DOCKET PROCESSING SCHEDULE

Amount Paid: 300 — ☐ *Hold* ☐ *Deposit*
Date Paid: 1/8/03 *Date of Timesheet Entry:* 1/15/03

Check All That Apply:
☐ **Public Notice** ☐ **Referral to Agencies** ☐ **Fee Required** ☐ **Fee w/ Application**
☐ **Fee Agreement w/ Application** ☐ **Referrals to APOs** ☐ **Notify APOs of Public Hearing**

1/8 **Application Submitted**
_____ *Placed on HOLD*
Reason: _____
_____
_____ *Resumed Process*

1/30 **Referral Deadline**
☑ *Ref. Sent to App./Agent on* 1/15/03
☐ *Ref. Received Copied/Mailed*
_____

_____ **DRSM set for** _____

_____ **PC set for** _____
Agenda Mailed to:
☐ Applicant/Property Owner/Agent
☐ Referral Agencies
☐ APOs / Interested Others

_____ **PC Notice Faxed/Email to Newspaper**

_____ **Tabled to** _____ **at** _____
_____ *Notices Printed & Sent to:*
☐ Applicant/Property Owner/Agent
☐ Referral Agencies
☐ APOs/Interested Others

_____ **PC Action Letter/Cert. of Resolution**
☐ Applicant/Property Owner/Agent
☐ Referral Agencies
☐ APOs/Interested Others

1/15/03 **BOCC Hearing** 2/20/03 **at** 11:30 AM
~~☐~~ *Information to Cecilia / BOCC Staff*
1/15 **Public Notice**
~~☐~~ Applicant/Property Owner/Agent
~~☐~~ Referral Agencies
~~☑~~ APOs / Interested Others
~~☐~~ Notice Faxed/Emailed to Newspaper

_____ **Staff Recs./Packets Mailed**
☐ Applicant/Property Owner/Agent
☐ BOCC/LU Director/Manager

Re Notice re: Taxing
1/23 **BOCC Hearing Tabled to** _____ **at** _____
1/23 *Notices Printed & Sent to:*
~~☑~~ Applicant/Property Owner/Agent
☐ Referral Agencies
☐ APOs / Interested Others
☑ Daily Camera

Per Applicants Request 3/13 @ 9AM
~~3/13~~ **BOCC Hearing Tabled to** ~~9AM~~ **at** ~~9AM~~
2/14 *Notices Printed & Sent to:*
~~☑~~ Applicant/Property Owner/Agent
~~☑~~ Referral Agencies
~~☑~~ APOs/Interested Others

2/28 ☑ Tabled Indef. Notice Sent to App/APOs

_____ **BOCC Action Letter**
☐ Applicant/Property Owner/Agent

4/14 (App/APOs) 5/22 @ 9AM BOCC

NOTES: _____

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Revised: August 22, 2001

DOCKET TRACKING SHEET

SE-03-01 Cemex Inc (Dowe Flats Dev. Parcel)

Docket # Project Name Planner

REQUEST: ~~OF A Community facility lot split~~ BLA APPROVAL TO CREATE PLAT ELEVEN LOTS ON 50.43 ACRES. THE PROPOSED LOTS VARY FROM ~~2.48 Acres~~ IN SIZE FROM 2.48 ACRES to 6.91 ACRES. APPROXIMATELY 103 ACRES WILL BE PLACED IN A CONSERVATION EASEMENT. ~~THE PURCHASE AGREEMENT STATES THAT CEMEX CANNOT SELL THE LOTS TO ANY ENTITY OTHER THAN BOULDER COUNTY UNTIL THE YEAR 2025~~

Property Address: 13301 N 55th St Total Number of Acres: 1103

Location:

S-T-R: S36 T2N R71W Zoning: LI FPD:

Assessor Id: ~~126669~~ 52913 Tax Area: Parcel #: ~~E3936000000~~

APPLICANT /OWNERS NAME(S): Cemex, INC

Address: 1200 SMITH STREET SUITE 2400 HOUSTON TX 77002

Phone #: 713-653-8561 Day / Evening

Fax #: 713-653-8569

APPLICANT /OWNER NAME(S):

Address:

Phone #: Day / Evening

Fax #:

AGENT NAME: PAUL BANKS

Address: BANKS & GESSO LLC 720 KIPLING St, Suite 117 LAKEWOOK CO 80215

Phone #: Day / Evening

Fax #: 303-274-4277 (303-274-8329 - FAX)

AGENT NAME:

Address:

Phone #: Day / Evening

Fax #:

COPY TO:

Address:

Phone #: Day / Evening

Fax #:

COPY TO:

Address:

Phone #: Day / Evening

Fax #:

Comments:

Prebbly

9-102(A)&(B)

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

MEMORANDUM

Monday, June 21, 2004

To: Board of County Commissioners

FR: Todd Tucker,
Planner II

RE: An amendment to the conservation easement recorded at reception # 2577190 with the Clerk and Recorder.

Discussion:

Language regarding the Brenner's water line was to be included in the conservation easement associated with Docket SE-03-01 Cemex. However, that language was inadvertently omitted in the recorded document.

This amendment addresses the missing language regarding the Brenner water line easement on the Cemex property, in the conservation easement.

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

PETROS & WHITE LLC
ATTORNEYS AT LAW

THE EQUITABLE BUILDING
730 SEVENTEENTH STREET
SUITE 820
DENVER, COLORADO 80202-3518

TELEPHONE (303) 825-1980

FACSIMILE (303) 825-1983

RECEIVED
JUN 18 2004
BOULDER COUNTY
LAND USE DEPT.

June 17, 2004

Via Federal Express

Mr. Todd Tucker
Boulder Coumty Land Use Department
2045 13th Street
Courthouse Annex
Boulder, Colorado 80302

Re: Amendment to Conservation Easement, Docket SE-03-01: CEMEX, Inc., Dowe Flats Development Parcel, Subdivision Exemption and Boundary Line Adjustment

Dear Todd,

Enclosed please find an Amendment to Conservation Easement signed by CEMEX, as referenced in the email correspondence dated June 14, 2004, between myself and Barbara Andrews (to which you were copied). I understand that you will make arrangements to have the document signed by the appropriate County official(s). Once fully executed, please return the document to me if you would like for CEMEX to arrange for recording of the document, or, if you record it for the County, please send me a fully executed copy (and a subsequent, recorded copy).

Thank you for your assistance in this matter. Please call me if you have any questions.

Sincerely,

David S. Hayes

DSH:jb
Enclosure
Cc: Nolan Fry (w/o enclosure)

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

September 11, 2003

Maureen Jacoby
SHB Agra Inc BANKS & GESSO
165 S. Union Blvd. #156
Lakewood, CO 80228

Regarding: Dowe Flats Development Parcel and Boundary line adjustment draft Survey exemption plat Submittal.

Dear Ms. Jacoby

Thank you for the recent survey review submittal for the Dowe Flats Development Parcel and Boundary Adjustment related to the approved Subdivision Exemption to situate eleven (11) residential lots a four outlots lots on 50.43 acres. The proposed lots vary in size ftom 4.25 acres to 7.239 acres.

Upon review of the submittal the County Surveyor had the following comments that need to be addressed on the final exemption plat (see below and memo attached):

1. A description of all monuments, both found and set, which mark the boundaries of the property and all control monuments used in conducting the survey (need to be included on the survey documents).
2. The signature and seal of the professional land surveyor (must be on the drawing).
3. Legend – adequately describing al symbols and line types (must be on the drawing).
4. Do monuments meet minimum standards?
5. (Are) Monument records prepared on all Aliquot Comers? Copies submitted?
6. Vicinity map – is it adequate to clearly depict general location?

With regard to the Land Use Departments comments please address the following:

1. Please dimension and label all outlot boundaries, acreages, and note the parcel, lot, or outlot at the matchline on each page for clarity (see notes on plans).
2. Please dimension, notate, label and provide acreage for the area to be added to the southern access parcel (the area of the boundary line adjustment) and reference the parcel that is to be attached to (see notes on plans and paragraph below).
3. Please locate and dimension, and or notate the centerline of all roads, as well as, road and rights-of-way and width of all roads within the development (see notes on plans).
4. Please add the following note: "*This exemption survey is given to implement the terms and conditions of Docket SE-03-01: Cemex, as approved by the Board of County Commissioners on May 22, 2003 pursuant to Resolution 2003-63 (In accordance with the terms of that approval, the development of these 11 (eleven) residential lots may*

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

not occur before the earlier of the completion of mining and reclamation (i.e. release of DMG bond) or the year 2025. Subject to the limitations stated the approval for the docket and the resolution, any authorized development of the approved 11 lots within the Development Parcel shall be subject to County Health Department Regulations, County Building Code Regulations, and applicable County Land Use Regulations in effect at the time (including Site Plan Review and the like as further stated in the resolution and on file). Prior to the issuance of any permits or the beginning of any construction related to the Docket, the Applicant shall apply for and receive the applicable approvals as required in accordance with County regulations."

With regard to combining the Plant Entrance Parcel with the Cement Plant Parcel (south of Highway 66). Please be advised that the applicant shall comply with all applicable post-approval requirements for a subdivision exemption as listed in Section 3-206(C) in the Land Use Code. These requirements include, but are not limited to, certification from the County Treasurer confirming that all outstanding ad valorem taxes for the subject property have been paid, and the provision and recording of a new warranty deed(s) for the subject property(s) reflecting the property description as approved by the Docket, and stating: "***This deed is given to implement the terms and conditions of Docket SE-03-01: Cemex, as approved by the Board of County Commissioners on May 22, 2003 pursuant to Resolution 2003-63.***" The Applicant must complete all applicable post-approval requirements within the time limits stated in Article 9-300 of the Land Use Code (i.e. within one calendar year after the date of adoption of this Resolution as stated below, unless the Board in its discretion grants an additional one-year extension as allowed under Article 9-300 of the Land Use Code).

If you have any questions please call.

Best Regards,

Todd Tucker, AICP
Planner II

Enclosures: 2

Cc: file, cron.

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Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

September 11, 2003

Maureen Jacoby
~~SHB Agra Inc~~ BANKS & GESSO
~~165 S. Union Blvd. #156~~ 720 Kipling
Suite 117
Lakewood, CO 80228
80215

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Paul Danish
County Commissioner

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Tom Mayer
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If you have any questions please call.

Best Regards,

Todd Tucker, AICP
Planner II

Enclosures: 2

Cc: file, cron.

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Office of the Boulder County Surveyor
Jason Emery, PLS No. 20134 - Phone: 303-441-1665 / 443-3616

PLAT REVIEW CHECKLIST

NAME OF PLAT Dowe Flats Estates LOCATION (S/T/R OR SUBDIV.) Sec 16 & 21, T3N, R67W

SURVEYOR NAME Wright PLS No. 23529

DATE ON PLAT Not Dated DATE PLAT RECEIVED 08/29/03

PARTY REQUESTING REVIEW Todd Tucker

PLEASE BE ADVISED THAT THE FOLLOWING REVIEW CHECKLIST DOES NOT REPRESENT FIELD CHECKS OR RESEARCH OF THE PUBLIC RECORD PERFORMED BY THE COUNTY SURVEYOR.

STATUTORY REVIEW ITEMS – REFER TO COLORADO REVISED STATUTES 38-51-106

OK	NEEDS ATTENTION	
☒	☐	A SCALE DRAWING OF THE BOUNDARIES OF THE LAND PARCEL.
☒	☐	ALL RECORDED AND APPARENT RIGHTS-OF-WAY AND EASEMENTS, AND, IF RESEARCH FOR RECORDED RIGHTS-OF-WAY AND EASEMENTS IS DONE BY SOMEONE OTHER THAN THE PROFESSIONAL LAND SURVEYOR WHO PREPARES THE PLAT, THE SOURCE FROM WHICH SUCH RECORDED RIGHTS-OF-WAY AND EASEMENTS WERE OBTAINED -OR- IF THE CLIENT WISHES NOT TO SHOW RIGHTS-OF-WAY AND EASEMENTS ON THE LAND SURVEY PLAT, A STATEMENT THAT SUCH CLIENT DID NOT WANT RIGHTS-OF-WAY AND EASEMENTS SHOWN.
☒	☐	ALL DIMENSIONS NECESSARY TO ESTABLISH BOUNDARIES IN THE FIELD.
☒	☐	A STATEMENT BY THE PROFESSIONAL LAND SURVEYOR THAT THE SURVEY WAS PERFORMED BY SUCH SURVEYOR OR UNDER SUCH SURVEYOR'S RESPONSIBLE CHARGE.
☒	☐	A STATEMENT BY THE PROFESSIONAL SURVEYOR EXPLAINING HOW BEARINGS, IF USED, WERE DETERMINED.
☐	☒	A DESCRIPTION OF ALL MONUMENTS, BOTH FOUND AND SET, WHICH MARK THE BOUNDARIES OF THE PROPERTY AND OF ALL CONTROL MONUMENTS USED IN CONDUCTING THE SURVEY.
☒	☐	A STATEMENT OF THE SCALE OR REPRESENTATIVE FRACTION OF THE DRAWING AND A BAR-TYPE OR GRAPHICAL SCALE
☒	☐	A NORTH ARROW
☒	☐	A WRITTEN PROPERTY DESCRIPTION, WHICH SHALL INCLUDE BUT SHALL NOT BE LIMITED TO A REFERENCE TO THE COUNTY AND STATE TOGETHER WITH SECTION, TOWNSHIP, RANGE, AND PRINCIPAL MERIDIAN OR ESTABLISHED SUBDIVISION, BLOCK AND LOT NUMBER, TO ANY OTHER METHOD OF DESCRIBING THE LAND AS ESTABLISHED BY THE GENERAL LAND OFFICE OR BUREAU OF LAND MANAGEMENT.
☐	☒	THE SIGNATURE AND SEAL OF THE PROFESSIONAL LAND SURVEYOR

☒ ☐ ANY CONFLICTING BOUNDARY EVIDENCE.

ADDITIONAL REVIEW ITEMS (Per C.A.C.S.)

OK	NEEDS ATTENTION	
☒	☐	LEGIBLE DRAFTING – REPRODUCABLE BY STANDARD COPYING SYSTEMS
☐	☒	LEGEND – ADEQUATELY DESCRIBING ALL SYMBOLS AND LINETYPES
☒	☐	NAMES OF ALL STREETS AND ROADS ALONG WITH DIMENSIONS
☒	☐	LABEL ADJACENT SUBDIVISIONS
☐	☒	DO MONUMENTS MEET MINIMUM STANDARDS?
☐	☒	MONUMENT RECORDS PREPARED ON ALL ALIQUOT CORNERS? COPIES SUBMITTED ?
☐	☒	AREA – IS THE ACREAGE AND/OR SOUARE FOOTAGE SHOWN?
☐	☒	VICINITY MAP – IS IT ADEQUATE TO CLEARLY DEPICT GENERAL LOCATION?

ADDITIONAL COMMENTS CONCERNING REVIEW OF PLAT:
It appears that the reviewed version of the plat was not plotted using the intended line widths.
No legend appears indicating boundary monuments set; I'm confused about open circles vs. solid circles on boundary corners.
Some private road easement dimensions appear to be missing.
It appears that some distances between aliquot corners, and some lot dimensions, are missing.
Areas of outlots are not indicated.
Witness corner to SE Cor W1/2 NW1/4 NE1/4 S21 may be sub-standard (see 6.4.1.1). However, witness corners are not specifically addressed in regulations.
Palmerton Ditch and Rough & Ready Ditch appear to end within Outlot C; is that the case?
Description of SE Cor Sec 9 appears to be incomplete.
A vicinity map would be nice to see.

NOTE: THIS PLAT REVIEW CHECKLIST IS PROVIDED BY THE OFFICE OF THE BOULDER COUNTY SURVEYOR AS A CONVENIENCE TO THOSE SURVEYORS PREPARING PLATS. THIS PLAT REVIEW DOES NOT REPRESENT A COMPREHENSIVE REVIEW OF THE DETAILS OF THE PLAT REVIEWED. THE COUNTY SURVEYOR ACCEPTS NO RESPONSIBILITY OR LIABILITY FOR THE COMPLETENESS, CORRECTNESS, ACCURACY OR APPROPRIATENESS OF THE SURVEY REFLECTED BY THE PLAT HEREIN REVIEWED. IT IS THE RESPONSIBILTY OF THE PROFESSIONAL LAND SURVEYOR PREPARING THE PLAT TO FOLLOW ALL FEDERAL, STATE AND LOCAL LAND SURVEYING LAWS AND REGULATIONS, AND TO ENSURE THE PLAT REVIEWED HEREIN IS ACCURATE AND CORRECT TO THE BEST OF HIS/HER KNOWLEDGE AND ABILITY.

BY: _____
JASON EMERY
BOULDER COUNTY SURVEYOR

COLORADO REGISTERED JASON G. EMERY 20134 PROFESSIONAL LAND SURVEYOR 9/7/03

(Form Revised 07/21/2003)

Document Name: BoCoPC03fr

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

MEMO

Thursday, August 14, 2003

TO: Jason Emory, County Surveyor
FR: Todd Tucker

RE: Docket SE-03-01 Cemex subdivision exemption

Hi Jason,

Attached is an Subdivision exemption Plat to "land" eleven development rights on a 150 acre parcel near SH 66 and N55th St. May add a few comments to Drexel, Barrel & CO here shortly, but thought that I should include any comments from you as well to avoid the need for multiple revisions.

Please let me know if you have any concerns, when you get a chance, and I'll forward them all on to William at Drexel at that time. If possible please retum the attached drawings for the file.

Thank you and have a great day.

Todd

Attachments 2

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

☒ ☐ ANY CONFLICTING BOUNDARY EVIDENCE.

ADDITIONAL REVIEW ITEMS (Per C.A.C.S.)

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BY: _____

JASON EMERY
BOULDER COUNTY SURVEYOR

COLORADO REGISTERED JASON G. EMERY 20134 PROFESSIONAL LAND SURVEYOR 9/7/03

(Form Revised 07/21/2003)

Document Name: BoCoPC03R

Office of the Boulder County Surveyor
Jason Emery, PLS No. 20134 - Phone: 303-441-1665 / 443-3616

PLAT REVIEW CHECKLIST

NAME OF PLAT Dowe Flats Estates LOCATION (S/T/R OR SUBDIV.) Sec 16 & 21, T3N, R67W

SURVEYOR NAME Wright PLS No. 23529

DATE ON PLAT Not Dated DATE PLAT RECEIVED 08/29/03

PARTY REQUESTING REVIEW Todd Tucker

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☐	☒	THE SIGNATURE AND SEAL OF THE PROFESSIONAL LAND SURVEYOR

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

July 29, 2003

CEMEX, Inc.
1200 Smith Street, Suite 2400
Houston TX 77002

Dear Applicant(s):

This letter certifies that a hearing of the Board of County Commissioners, County of Boulder, State of Colorado, was duly called and held on May 22, 2003, in consideration of the following request:

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA

Request:	Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement.
Location:	At 13301 N. 55th Street, in Section 36, T2N, R71W
Zoning:	Agricultural (A)

The Board of County Commissioners has determined that the request be APPROVED with CONDITIONS, subject to the following:

1) The request to situate 11 building lots on the 153-acre Development Parcel is approved, subject to the conditions as noted herein, and subject also specifically to the Applicant's revised plan presented at the Public Hearing which relocates Lots 1 and 2 and which is part of the official Docket file (plan entitled "Site Plan - Compronise Configuration," created on 4/2/03 by Banks and Gesso, LLC). In accordance with the Purchase Agreement, development of these 11 lots may not occur before the earher of the completion of mining and reclamation (i.e. release of DMG bond) or the year 2025. Subject to the limitations stated in Condition #14, below, any authorized development of the approved 11 lots within the Development Parcel shall be subject to County Health Department Regulations, County Building Code Regulations, and applicable County Land Use Regulations in effect at the time (including Site Plan Review and the like as further stated in Condition #14). Prior to the issuance of any permits or the beginning of any construction related to the Docket, the Applicant shall apply for and receive the applicable approvals as required in accordance with County regulations (see Condition #14).

2) Before the County issues any construction permit or building permits for development associated with the subject 11 lots, the County staff must review and approve the following:
   - I. Compliance with applicable requirements as noted in Article 7 of the Land Use Code including but not limited to: sufficient water supplies and sewage disposal systems, sufficient fire protection, current access permits, and the like.
   - II. Grading calculations, and plan, profile and cross sections of all proposed roadways, including a final soils and drainage report, and surfacing and drainage design recommendations;
   - III. Specific location and details for all proposed utility lines to service the eleven building sites;
   - IV. Specific location and dimensions of any proposed pedestrian paths;

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

V. A utility plan placing all proposed water lines outside of any wetland area;
VI. Covenants and design guidelines which shall be submitted for review and approval by the County, with all covenants and guidelines being in accordance with the Land Use Code and including reasonable, industry-recognized xeriscape standards on the design and watering of proposed landscape areas, and addressing uses for the Outlot, and the like.

In addition, the 30-foot height limit of the Agricultural Zoning District applies to all residential structures on any lot recognized by the Docket. These requirements shall be noted on the exemption plat.

3) Uses and activities associated with the Outlot shall be consistent with those which are permitted by the terms of any Conservation Easement encumbering the Outlot and which are permitted by right under the provisions of the Land Use Code and the Agricultural Zoning District and otherwise authorized by the County in accordance with the provisions of the Land Use Code. Formal recreational trails or other formal recreational uses of the Outlot shall be reviewed and approved by the County prior to implementation/construction in accordance with provisions of the Land Use Code. Particular care and consideration shall be given to preserve the quality and integrity of the enviromnental resources and wildlife habitat that exist along the irrigation canals and other enviromnentally sensitive areas within the Outlot, and this requirement shall be noted on the exemption plat.

4) Re-vegetation/reclamation of the mining-related operation and disturbances must be completed in accordance with previous approvals and applicable requirements. Prior to the issuance of any permits for residential-related construction on a particular parcel, a site-specific residential construction re-vegetation/erosion control plan must be submitted to the Land Use Department for review and approval. The plan must illustrate areas of construction disturbance, areas proposed for re-vegetation, and the locations of erosion and sediment control devices. The approved re-vegetation/erosion control plan must be implemented after approval of construction and prior to occupancy of any residence or building. The plan shall depict the location, type, and quantity of seed or other plantings and erosion control devices sufficient to stabilize all disturbed areas and areas of cut and fill, and this requirement shall be noted on the exemption plat.

The re-vegetation/erosion control plan must, at a minimum, address the following.

I. To prevent sediment loading in areas adjacent to any proposed disturbance, temporary erosion control devices must be used. A properly anchored silt fence shall be provided down gradient of all disturbed areas and anchored hay bale dikes shall be installed at all channelized point releases. The silt fences and hay bales must be installed before construction begins and remain in place until vegetation is sufficiently established on the disturbed soil.
II. Permanent control devices such as native rock check dams, shall be provided at all culvert releases.
III. Erosion control matting or blankets (in addition to seeding) shall be placed on all disturbed areas with slopes greater than 2(horizontal) to 1(vertical).
IV. Reseeding specifications (seed mix species and re-vegetation locations) must be indicated on the re-vegetation/erosion plan. Only native plant materials shall be used in re-vegetation.

5) The existing southern access road to Highway 66 (Ute Highway) may be used to serve the approved 11-lot development, provided that the Applicant first secures approval from the Colorado Department of Transportation for use of this road for private residential use. The road connection to County Road 47 shall be maintained for use by the 11-lot development and may also be used as ingress/egress for emergency use, upon approval of the Hygiene Fire Protection District. It shall be the responsibility of the Homeowners' Association to maintain these access roads and all of their bridge crossings: such maintenance shall not be the responsibility of the County, and the exemption plat shall so note. An ingress/egress for emergency use shall be defined and developed in accordance with the requirements of the local FPD and approved by County Staff prior recording of the exemption plat.

6) Private access driveways and roadways shall be reviewed and approved by the County Transportation Department, in accordance with County's requirements for private access in effect at the time of authorized development and prior to issuance of any permits, and this requirement shall be noted on the exemption plat.

7) The Applicant or developer shall notify the County immediately if any significant environmental, historic, or cultural resources are encountered during any construction activity, and this requirement shall be noted on the exemption plat.

8) A final drainage study and report conforming with all applicable County standards shall be developed for all proposed roads and driveways at time of authorized development. The purpose of this review is to determine that storm water runoff, and road and driveway designs, meet all applicable County standards, or that the appropriate variances from these standards are granted by the Transportation Department. Additional road and drainage design will be required for those sections of the existing road system that will be used for access, including but not limited to horizontal and vertical alignment, grading calculations, adequate support shoulders and ditches, head walls, end walls, aprons and culverts, silt fences, and similar design elements necessary to reduce storm water velocity and prevent excessive erosion. Cross sections for any retaining walls must be provided.

9) The development shall be subject to the terms, conditions, and commitments of record and in the file for the Docket as approved by the Board, and to the terms of any previous dockets approvals related to the currently existing use, and this requirement shall be noted on the exemption plat.

10) The request to sever the Plant Entrance Parcel (south of Highway 66) from the Development Parcel located north of Highway 66, and combine the Plant Entrance Parcel with the Cement Plant Parcel (south of Highway 66), is approved as proposed. The Applicant shall comply with all applicable post-approval requirements for a subdivision exemption as listed in Section 3-206(C) in the Land Use Code. These requirements include, but are not limited to, certification from the County Treasurer confirming that all outstanding ad valorem taxes for the subject property have been paid, and the provision and recording of a new warranty deed(s) for the subject property(s) reflecting the property description as approved by the Docket, and stating: "This deed is given to implement the terms and conditions of Docket SE-03-01: Cemex, as approved by the Board of County Commissioners on May 22, 2003 pursuant to Resolution 2003-63." The Applicant must complete all applicable post-approval requirements within the time limits stated in Article 9-300 of the Land Use Code (i.e. within one calendar year after the date of adoption of this Resolution as stated below, unless the Board in its

discretion grants an additional one-year extension as allowed under Article 9-300 of the Land Use Code).

11) In addition to all applicable post approval requirements set forth in Section 3-206(C) of the Land Use Code, the Applicant shall have a Colorado Registered Professional Land Surveyor prepare a subdivision exemption plat depicting all existing and proposed lot lines, easements, and road alignments. Upon approval of the County Land Use Department, the exemption plat shall be recorded with the Clerk and Recorder.

12) All approvals associated with the Docket are contingent upon satisfaction of all contingencies in the Purchase Agreement, and upon the closing on the conveyances of conservation easements provided for therein (see Condition #14, below).

13) The Applicant or property owner shall obtain all applicable federal, state, and legally required local permits as required at time of authorized residential development, and this requirement shall be noted on the exemption plat.

14) In consideration of the immense public benefit to be gained through the preservation of significant portions of valued plains ecosystem land as accomplished through the Purchase Agreement between the County and Applicant, and in light of the fact that the development requested in the Docket is of a relatively minimal nature, scope, and impact compared to the development which could have occurred absent the County's acquisition of substantial fee and conservation easement and other interests in the Subject Property and other property of the Applicant, the BOCC intends for the right to develop each of the approved lots for a residence (to the extent the County does not purchase the development rights pursuant to the option terms of the Purchase Agreement), to be perpetual, and that such right to develop shall not be diminished by any future changes in the law, such as rezoning or requirements for a more restrictive lot size or reduced number of lots. Paragraph 30 of the Purchase Agreement requires Application to convey the "Annexation Corridor" and a Conservation Easement in Gross to the County, if the County approves the platting of the eleven development rights as a block and vests the Applicant's ability to build eleven single family residences on the Development Parcel. The BOCC finds and determines that such conveyances by the Applicant, together with the previous grant of options to the County pursuant to the Purchase Agreement, constitute substantial and in good-faith steps by the Applicant in reliance on the approvals granted herein, and the County waives the right to assert, and it shall be estopped from asserting, a position to the contrary. In the event the approvals granted herein are not vested in perpetuity, then the conveyance of the Annexation Corridor and Conservation Easement in Gross pursuant to Paragraph 30 of the Purchase Agreement shall be subject to a reversion to Applicant or its successors. This perpetual approval is subject to the Applicant meeting all terms and conditions as stated herein.

This permanent vesting approval extends to and assures the right to develop the subject eleven lots, in their approved number and size, for single-family residential use. The lots shall be subject to all other County Zoning and Building Permit Requirements in effect at the time of development which are prerequisite to the issuance of a building permit for residential development of each lot, including but not necessarily limited to applicable site plan review, access review, and building permit review, and this requirement shall be noted on the exemption plat.

If you have any questions, please feel free to contact me at (303) 441-3930.

Sincerely,

Todd Tucker, AICP
Current Planning Division

cc: Dave Banks / Banks & Gesso, LLC

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Report Date: 06/23/2003 03:18PM

BOULDER COUNTY TREASURER
CERTIFICATE OF TAXES DUE

CERT #: 200225723

SCHEDULE NO: R0129580
ASSESSED TO:
CEMEX INC
PO BOX 529

LYONS, CO 80540

ORDER NO:
VENDOR NO:
BANKS & GESSO LLC
720 KIPLING ST STE 117

LAKEWOOD CO 80215

LEGAL DESCRIPTION:
1650 ACS M/L IN 9-3N-70 10-3N-70, 15-3N-70, 16-3N-70 21-3N-70 & 22-3N-70 LESS 1/2 OIL & GAS (DOW FLATS LIMESTONE PRODUCTION) PROPERTY ADDRESS: 013301 N 55TH ST LONGMONT

PARCEL: 1203-150-00-005 SITUS ADD: 013301 N 55TH ST LONGMONT

TAX YEAR	CHARGE	TAX AMOUNT	INTEREST	FEES	PAID	TOTAL DUE
2002	TAX	46,205.20	0.00	0.00	46,205.20	0.00
	TOTAL TAXES					0.00

GRAND TOTAL DUE GOOD THROUGH 06/23/2003 **0.00**

ORIGINAL TAX BILLING FOR 2002 TAX DISTRICT 2800 -

Authority	Mill Levy	Amount
COUNTY	20.087	13,966.00
SCHOOL RE-1J	41.025	28,523.65
NCWD	1.000	695.28
ST VRAIN LEFT HAND WATER	0.245	170.34
HYGIENE FIRE	4.099	2,849.93
LONGMONT CONSERVATION DIST	0.000	0.00
TAXES FOR 2002	66.456	46,205.20

Values	Actual	Assessed
NATURAL RE	2,397,500	695,275
TOTAL	2,397,500	695,275

FEE FOR THIS CERTIFICATE 10.00

ALL TAX LIEN SALE AMOUNTS ARE SUBJECT TO CHANGE DUE TO ENDORSEMENT OF CURRENT TAXES BY THE LIENHOLDER OR TO ADVERTISING AND DISTRAINT WARRANT FEES. CHANGES MAY OCCUR AND THE TREASURER'S OFFICE WILL NEED TO BE CONTACTED PRIOR TO REMITTANCE AFTER THE FOLLOWING DATES: PERSONAL PROPERTY AND MOBILE HOMES - 01-SEPT-03, REAL PROPERTY - SEPTEMBER 1. TAX LIEN SALE REDEMPTION AMOUNTS MUST BE PAID BY CASH OR CASHIERS CHECK.

SPECIAL TAXING DISTRICTS AND THE BOUNDARIES OF SUCH DISTRICTS MAY BE ON FILE WITH THE BOARD OF COUNTY COMMISSIONERS, THE COUNTY CLERK, OR THE COUNTY ASSESSOR.

This certificate does not include land or improvements assessed under a separate account number, personal property taxes, transfer tax or misc. tax collected on behalf of other entities, special or local improvement district assessments or mobile homes, unless specifically mentioned.

I, the undersigned, do hereby certify that the entire amount of taxes due upon the above described parcels of real property and all outstanding sales for unpaid taxes as shown by the records in my office from which the same may still be redeemed with the amount required for redemption are as noted herein. In witness whereof, I have hereunto set my hand and seal this 23rd day of June 2003.

BOULDER COUNTY TREASURER ★ SEAL ★ STATE OF COLORADO

TREASURER, BOULDER COUNTY, BOB HULLINGHORST, BY:
P. O. Box 471
1325 Pearl Street
Boulder, CO 80306
(303) 441-3520

Report Date: 06/23/2003 03:18PM

BOULDER COUNTY TREASURER
CERTIFICATE OF TAXES DUE

CERT #: 200225723

SCHEDULE NO: R0129580
ASSESSED TO:
CEMEX INC
PO BOX 529

LYONS, CO 80540

ORDER NO:
VENDOR NO:
BANKS & GESSO LLC
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LEGAL DESCRIPTION:
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PARCEL: 1203-150-00-005 SITUS ADD: 013301 N 55TH ST LONGMONT

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	TOTAL TAXES					0.00

GRAND TOTAL DUE GOOD THROUGH 06/23/2003 **0.00**

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I, the undersigned, do hereby certify that the entire amount of taxes due upon the above described parcels of real property and all outstanding sales for unpaid taxes as shown by the records in my office from which the same may still be redeemed with the amount required for redemption are as noted herein. In witness whereof, I have hereunto set my hand and seal this 23rd day of JUNE 2003.

BOULDER COUNTY TREASURER ★ SEAL ★ STATE OF COLORADO

TREASURER, BOULDER COUNTY, BOB HULLINGHORST, BY:
P. O. Box 471
1325 Pearl Street
Boulder, CO 80306
(303) 441-3520

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Page: 1 of 3
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Boulder County Clerk, CO ACE R 0.00 D 0.00

AMENDMENT TO CONSERVATION EASEMENT

(AMENDING THE CONSERVATION EASEMENT RECORDED AT RECEPTION NO. 2577190 IN THE REAL PROPERTY RECORDS OF BOULDER COUNTY, COLORADO)

This Amendment to Conservation Easement ("Amendment") is entered into by CEMEX, Inc., a Louisiana corporation ("Grantor"), on the 24 day of June, 2004, and the County of Boulder, a body corporate and politic ("County" or "Grantee") (collectively, the "Parties").

WHEREAS, as part of the County's approval of Grantee's subdivision exemption application in the matter of Boulder County Land Use Docket #SE-03-01 (the "Docket"), on April 8, 2004, Grantor and Grantee entered into a Conservation Easement (the "2004 Conservation Easement") concerning certain property, which is shown and described on the Dowe Flats Estates Subdivision Exemption Plat (the "Subdivision Exemption Plat") recorded at Reception No. 2577189 with the Boulder County Clerk and Recorder;

WHEREAS, the 2004 Conservation Easement assures and confirms that the right to develop eleven residential lots on property owned by Grantee will be used for single-family residential use as set forth in the Docket, that Outlot A and Outlot B, as shown on the Subdivision Exemption Plat, are used for the limited purposes as approved in the Docket, and that Outlot A and Outlot B are preserved as open space as required in the Docket;

WHEREAS, a provision for the subsequent granting to a third party of an easement for a private undergroimd water line along the southern boundary of Outlot B was erroneously omitted from the 2004 Conservation Easement;

WHEREAS, the parties wish to correct the omission by amending the 2004 Conservation Easement to include the intended language regarding the private water line easement; and

WHEREAS, this Amendment is by mutual agreement, does not affect the status of the Grantee of the 2004 Conservation Easement pursuant to C.R.S. 38-30.5-101, et seq., does not terminate or transfer the 2004 Conservation Easement or affect its perpetual duration, does not amount to a substantial modification of the Coimty's approval in the Docket, does not impair any of the significant conservation values of the property identified in the Subdivision Exemption Plat, is otherwise consistent with the purposes of the 2004 Conservation Easement, and the Amendment shall be recorded in the real property records of Boulder County, Colorado.

NOW, THEREFORE, in consideration of the 2004 Conservation Easement and the promises and covenants hereinafter set forth, the sufficiency of which is acknowledged by both parties, Grantor and the Coimty hereby promise, covenant and

agree as follows:

1. Paragraph 2 of the 2004 Conservation Easement is amended and modified to include a new subparagraph H, as follows:

> An easement, which may be granted and recorded subsequent to the date of this 2004 Conservation Easement, for a private underground water line along tne southem boundary of Outlot B, between County Road 47 and the residence located on the property identified as the "Benefited Property" in the Access Easement recorded at Reception No. 01424420 with the Boulder County Clerk and Recorder.

2. As amended and modified by this Amendment, the 2004 Conservation Easement shall continue in full force and effect.

IN WITNESS WHEREOF, Grantor has caused its name to be hereunto subscribed the day and year first above written.

Grantor:

CEMEX, INC., a Louisiana corporation

By: x _____

Title: Executive VP Planning

EVA GUAJARDO
MY COMMISSION EXPIRES
SEPTEMBER 1, 2004

STATE OF Texas)
) ss. 455 51 3097
COUNTY OF Harris)

The foregoing Amendment to Conservation Easement was acknowledged before me this 16 day of June, 2004, by Jesus Gonzalez

Witness my hand and official seal.

My commission expires:

September 1, 2004

Notary Public

IN WITNESS AND ACCEPTANCE WHEREOF, the County has caused its name to be hereunto subscribed the day and year first above written:

Board of County Commissioners of the
County of Boulder, Colorado

Paul D. Danish, Chair

ATTEST:

Clerk to the Board

2577187
Page: 1 of 9
04/16/2004 11:19A
Boulder County Clerk, CO EXEMPTION R 0.00 D 0.00

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

EXEMPTION FROM BOULDER COUNTY SUBDIVISION FORM

Docket # SE-03-01 Hearing Date: May 22, 2003

Applicant(s): CEMEX, Inc.

Request to Create 11 residential and two outlot Parcel(s) of 153.43 Acres, Out of 1 Parcel(s), Totaling 153.43 Acres, Located In the S1/2 of Sec 16 and N1/2 of Sec 21, T 21 N, R 71 W.; and to add the remaining 1.726 acres (Development parcel) located in Sec 21, T3N, R70W to the parcel described at Reception Number 01432783 (Plant entrance parcel) also located in the S1/2, Sec 21, T3N, R70W.

√ Boundary Line Adjustment

Legal Description of Subject Parcel(s):

See Deed(s) or Subdivision Exemption Plat recorded-- SEE ATTACHED

Commissioner Stewart Moved,

Commissioner Danish Seconded to:

√ Conditionally Approve the above request subject to the following:

- Conditions set forth in RESOLUTION 2003-63, which is attached to this form.

The motion was passed:

√ By Majority

Paul Danish 04-15-2004

Chair, Board of County Commissioners — Date
County of Boulder, State of Colorado

Attest:

Susan M. Osbecraft

Clerk of the Board

G:\LUD\LUSHARED\MAS-APS\RECORDATION-FORM.DOC

RESOLUTION 2003-63

A RESOLUTION CONDITIONALLY APPROVING BOULDER COUNTY LAND USE DOCKET #SE-03-01 ("CEMEX, INC./DOWE FLATS DEVELOPMENT PARCEL BOUNDARY LINE ADJUSTMENT"): A REQUEST FOR A SUBDIVISION EXEMPTION FOR A BOUNDARY LINE ADJUSTMENT TO CREATE 11 LOTS CONSISTING OF A TOTAL OF 50.43 ACRES ON THE 153-ACRE "DOWE FLATS DEVELOPMENT PARCEL," AND TO SEVER THE "CEMENT PLANT ENTRANCE PARCEL" LOCATED SOUTH OF COLORADO STATE HIGHWAY 66 FROM THE 153-ACRE DEVELOPMENT PARCEL LOCATED NORTH OF STATE HIGHWAY 66 SO THAT THE SEVERED PARCEL CAN BE COMBINED WITH OTHER LAND OWNED BY THE APPLICANT ON THE SOUTH SIDE OF STATE HIGHWAY 66 (THE APPLICANT'S "CEMENT PLANT PARCEL"), ON PROPERTY LOCATED AT 13301 N. 55TH STREET, IN SECTION 36, T2N, R71W

WHEREAS, CEMEX, Inc. ("Applicant") has requested an exemption from the Boulder County Subdivision Regulations, pursuant to Article 9 of the Boulder County Land Use Code ("the Land Use Code"), to approve an adjustment of parcel boundaries on property which the Applicant owns to accomplish two purposes: (1) to create 11 lots consisting of a total of 50.43 acres on the so-called 153-acre "Dowe Flats Development Parcel" ("Development Parcel"); and (2) to sever the "Cement Plant Entrance Parcel" located south of Colorado State Highway 66 from the 153-acre Development Parcel located north of State Highway 66, so that the severed parcel can be combined with other land owned by the Applicant on the south side of State Highway 66 (the Applicant's "Cement Plant Parcel"); and

WHEREAS, the property which is the subject of this application is located in the Agricultural Zoning District in unincorporated Boulder County; and

WHEREAS, this request follows a Purchase Agreement, Lease and Option to Purchase between the County and the Applicant entered into on July 11, 2002 ("Purchase Agreement"), whereby the County acquired over 800 acres of Dowe Flats property; acquired the development rights associated with 385 acres of the approximately 800 remaining Dowe Flats acres retained by the Applicant; and obtained options to purchase the remainder of the Applicant's property over a specified period; and

WHEREAS, in accordance with the requirements of the Purchase Agreement, the Applicant seeks to transfer the remaining 11 development rights in its ownership to the Development Parcel, for potential future development as 11 residential lots covering approximately 50 acres, with 103 acres of the Development Parcel to be preserved in an Outlot as open space; and

WHEREAS, if the County exercises its options under the Purchase Agreement for all development rights associated with the Development Parcel, then no development will occur; and

WHEREAS, if the County does not exercise its options, the Applicant cannot develop the subject 11 lots until the earlier of either the completion of mining and reclamation, or the year 2025; and

WHEREAS, the above-described request was processed and reviewed as Boulder County Land Use Docket #SE-03-01 ("the Docket"), all as further described in the Boulder County Land Use Department Planning Staff's Memorandum and written recommendation to the Board dated May 22, 2003, with its attachments ("the Staff Recommendation"); and

WHEREAS, on May 22, 2003, the Board held a duly-noticed public hearing on the Docket ("the Public Hearing"), at which time the Board considered the Staff Recommendation, and the documents and testimony presented by the Boulder County Land Use Department, Transportation Department, and County Attorney's Office, and several representatives of the Applicant; and

WHEREAS, based on the Public Hearing, the Board finds that the Docket meets the criteria for a boundary line adjustment under Article 9 of the Land Use Code, subject to the conditions stated below, and, therefore, finds that the Docket does not fall within the purposes of the Boulder County Subdivision Regulations, and can be approved pursuant to Article 9 of the Land Use Code, subject to the conditions stated below.

NOW, THEREFORE, BE IT RESOLVED that the Docket is hereby approved, on the basis and terms set forth in this Resolution, above, and subject to the following conditions:

1) The request to situate 11 building lots on the 153-acre Development Parcel is approved, subject to the conditions as noted herein, and subject also specifically to the Applicant's revised plan presented at the Public Hearing which relocates Lots 1 and 2 and which is part of the official Docket file (plan entitled "Site Plan - Compromise Configuration," created on 4/2/03 by Banks and Gesso, LLC). In accordance with the Purchase Agreement, development of these 11 lots may not occur before the earlier of the completion of mining and reclamation (i.e. release of DMG bond) or the year 2025. Subject to the limitations stated in Condition #14, below, any authorized development of the approved 11 lots within the Development Parcel shall be subject to County Health Department

Regulations, County Building Code Regulations, and applicable County Land Use Regulations in effect at the time (including Site Plan Review and the like as further stated in Condition #14). Prior to the issuance of any permits or the beginning of any construction related to the Docket, the Applicant shall apply for and receive the applicable approvals as required in accordance with County regulations (see Condition #14).

2) Before the County issues any construction permit or building permits for development associated with the subject 11 lots, the County staff must review and approve the following:

I. Compliance with applicable requirements as noted in Article 7 of the Land Use Code including but not limited to: sufficient water supplies and sewage disposal systems, sufficient fire protection, current access permits, and the like.

II. Grading calculations, and plan, profile and cross sections of all proposed roadways, including a final soils and drainage report, and surfacing and drainage design recommendations;

III. Specific location and details for all proposed utility lines to service the eleven building sites;

IV. Specific location and dimensions of any proposed pedestrian paths;

V. A utility plan placing all proposed water lines outside of any wetland area;

VI. Covenants and design guidelines which shall be submitted for review and approval by the County, with all covenants and guidelines being in accordance with the Land Use Code and including reasonable, industry-recognized xeriscape standards on the design and watering of proposed landscape areas, and addressing uses for the Outlot, and the like.

In addition, the 30-foot height limit of the Agricultural Zoning District applies to all residential structures on any lot recognized by the Docket. These requirements shall be noted on the exemption plat.

3) Uses and activities associated with the Outlot shall be consistent with those which are permitted by the terms of any Conservation Easement encumbering the Outlot and which are permitted by right under the provisions of the Land Use Code and the Agricultural Zoning District and otherwise authorized by the County in accordance with the provisions of the Land Use Code. Formal recreational trails or other formal recreational uses of the Outlot shall be reviewed and approved by the County prior to implementation/construction in accordance with provisions of the Land Use Code. Particular

care and consideration shall be given to preserve the quality and integrity of the environmental resources and wildlife habitat that exist along the irrigation canals and other environmentally sensitive areas within the Outlot, and this requirement shall be noted on the exemption plat.

4) Re-vegetation/reclamation of the mining-related operation and disturbances must be completed in accordance with previous approvals and applicable requirements. Prior to the issuance of any permits for residential-related construction on a particular parcel, a site-specific residential construction re-vegetation/erosion control plan must be submitted to the Land Use Department for review and approval. The plan must illustrate areas of construction disturbance, areas proposed for re-vegetation, and the locations of erosion and sediment control devices. The approved re-vegetation/erosion control plan must be implemented after approval of construction and prior to occupancy of any residence or building. The plan shall depict the location, type, and quantity of seed or other plantings and erosion control devices sufficient to stabilize all disturbed areas and areas of cut and fill, and this requirement shall be noted on the exemption plat.

The re-vegetation/erosion control plan must, at a minimum, address the following.

I. To prevent sediment loading in areas adjacent to any proposed disturbance, temporary erosion control devices must be used. A properly anchored silt fence shall be provided down-gradient of all disturbed areas and anchored hay bale dikes shall be installed at all channelized point releases. The silt fences and hay bales must be installed before construction begins and remain in place until vegetation is sufficiently established on the disturbed soil.

II. Permanent control devices such as native rock check dams, shall be provided at all culvert releases.

III. Erosion control matting or blankets (in addition to seeding) shall be placed on all disturbed areas with slopes greater than 2(horizontal) to 1(vertical).

IV. Reseeding specifications (seed mix species and re-vegetation locations) must be indicated on the re-

vegetation/erosion plan. Only native plant materials shall be used in re-vegetation.

5) The existing southern access road to Highway 66 (Ute Highway) may be used to serve the approved 11-lot development, provided that the Applicant first secures approval from the Colorado Department of Transportation for use of this road for private residential use. The road connection to County Road 47 shall be maintained for use by the 11-lot development and may also be used as ingress/egress for emergency use, upon approval of the Hygiene Fire Protection District. It shall be the responsibility of the Homeowners' Association to maintain these access roads and all of their bridge crossings: such maintenance shall not be the responsibility of the County, and the exemption plat shall so note. An ingress/egress for emergency use shall be defined and developed in accordance with the requirements of the local FPD and approved by County Staff prior recording of the exemption plat.
6) Private access driveways and roadways shall be reviewed and approved by the County Transportation Department, in accordance with County's requirements for private access in effect at the time of authorized development and prior to issuance of any permits, and this requirement shall be noted on the exemption plat.
7) The Applicant or developer shall notify the County immediately if any significant environmental, historic, or cultural resources are encountered during any construction activity, and this requirement shall be noted on the exemption plat.
8) A final drainage study and report conforming with all applicable County standards shall be developed for all proposed roads and driveways at time of authorized development. The purpose of this review is to determine that storm water runoff, and road and driveway designs, meet all applicable County standards, or that the appropriate variances from these standards are granted by the Transportation Department. Additional road and drainage design will be required for those sections of the existing road system that will be used for access, including but not limited to horizontal and vertical alignment, grading calculations, adequate support shoulders and ditches, head walls, end walls, aprons and culverts, silt fences, and similar design elements necessary to reduce storm water velocity and prevent excessive erosion. Cross sections for any retaining walls must be provided.
9) The development shall be subject to the terms, conditions, and commitments of record and in the file for the Docket as approved by the Board, and to the terms of any previous dockets approvals related to the currently existing use, and

this requirement shall be noted on the exemption plat.

10) The request to sever the Plant Entrance Parcel (south of Highway 66) from the Development Parcel located north of Highway 66, and combine the Plant Entrance Parcel with the Cement Plant Parcel (south of Highway 66), is approved as proposed. The Applicant shall comply with all applicable post-approval requirements for a subdivision exemption as listed in Section 3-206(C) in the Land Use Code. These requirements include, but are not limited to, certification from the County Treasurer confirming that all outstanding ad valorem taxes for the subject property have been paid, and the provision and recording of a new warranty deed(s) for the subject property(s) reflecting the property description as approved by the Docket, and stating: "This deed is given to implement the terms and conditions of Docket SE-03-01: Cemex, as approved by the Board of County Commissioners on May 22, 2003 pursuant to Resolution 2003-63." The Applicant must complete all applicable post-approval requirements within the time limits stated in Article 9-300 of the Land Use Code (i.e. within one calendar year after the date of adoption of this Resolution as stated below, unless the Board in its discretion grants an additional one-year extension as allowed under Article 9-300 of the Land Use Code).

11) In addition to all applicable post approval requirements set forth in Section 3-206(C) of the Land Use Code, the Applicant shall have a Colorado Registered Professional Land Surveyor prepare a subdivision exemption plat depicting all existing and proposed lot lines, easements, and road alignments. Upon approval of the County Land Use Department, the exemption plat shall be recorded with the Clerk and Recorder.

12) All approvals associated with the Docket are contingent upon satisfaction of all contingencies in the Purchase Agreement, and upon the closing on the conveyances of conservation easements provided for therein (see Condition #14, below).

13) The Applicant or property owner shall obtain all applicable federal, state, and legally required local permits as required at time of authorized residential development, and this requirement shall be noted on the exemption plat.

14) In consideration of the immense public benefit to be gained through the preservation of significant portions of valued plains ecosystem land as accomplished through the Purchase Agreement between the County and Applicant, and in light of the fact that the development requested in the Docket is of a relatively minimal nature, scope, and impact compared to the development which could have occurred absent the County's acquisition of substantial fee and conservation

easement and other interests in the Subject Property and other property of the Applicant, the BOCC intends for the right to develop each of the approved lots for a residence (to the extent the County does not purchase the development rights pursuant to the option terms of the Purchase Agreement), to be perpetual, and that such right to develop shall not be diminished by any future changes in the law, such as rezoning or requirements for a more restrictive lot size or reduced number of lots. Paragraph 30 of the Purchase Agreement requires Application to convey the "Annexation Corridor" and a Conservation Easement in Gross to the County, if the County approves the platting of the eleven development rights as a block and vests the Applicant's ability to build eleven single family residences on the Development Parcel. The BOCC finds and determines that such conveyances by the Applicant, together with the previous grant of options to the County pursuant to the Purchase Agreement, constitute substantial and in good-faith steps by the Applicant in reliance on the approvals granted herein, and the County waives the right to assert, and it shall be estopped from asserting, a position to the contrary. In the event the approvals granted herein are not vested in perpetuity, then the conveyance of the Annexation Corridor and Conservation Easement in Gross pursuant to Paragraph 30 of the Purchase Agreement shall be subject to a reversion to Applicant or its successors. This perpetual approval is subject to the Applicant meeting all terms and conditions as stated herein.

This permanent vesting approval extends to and assures the right to develop the subject eleven lots, in their approved number and size, for single-family residential use. The lots shall be subject to all other County Zoning and Building Permit Requirements in effect at the time of development which are prerequisite to the issuance of a building permit for residential development of each lot, including but not necessarily limited to applicable site plan review, access review, and building permit review, and this requirement shall be noted on the exemption plat.

A motion to approve the Docket, as stated above, was made by Commissioner Stewart, seconded by Commissioner Danish, and passed by a 2-1 vote, with Commissioner Mayer opposed.

ADOPTED this 3rd day of July, 2003, nunc pro tunc the 22nd day of May, 2003.

BOARD OF COUNTY COMMISSIONERS OF BOULDER COUNTY:

Paul D. Danish, Chair

Ronald K. Stewart, Vice Chair

Thomas A. Mayer, Commissioner
(OPPOSED)

ATTEST:

Clerk to the Board

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WARRANTY DEED

(Statutory Form, C.R.S. § 38-30-113)

Grantor, **CEMEX, INC.**, formerly known as Southdown, Inc., a Louisiana Corporation, whose legal address is 1200 Smith Street, Suite 2400, Houston, Texas 77002, County of Harris and State of Texas, for ~~good and valuable consideration~~ Ten Dollars the receipt and sufficiency of which is hereby acknowledged, hereby sells and conveys to Grantee, **CEMEX, INC.**, formerly known as Southdown, Inc., a Louisiana Corporation, whose legal address is 1200 Smith Street, Suite 2400, Houston, Texas 77002, County of Harris and State of Texas, the following real property located in the County of Boulder and State of Colorado, to wit:

SEE EXHIBIT A ATTACHED HERETO AND INCORPORATED HEREIN BY THIS REFERENCE,

with all its appurtenances, and warrants the title to the same, subject to the matters of record.

NOTE: These parcels are merged per the approval of Docket SE-03-01. This deed is given to implement the Board of County Commissioners' approval of Docket SE-03-01, Cemex, Inc./Dowe Flats Development Parcel and Boundary Line Adjustment, on May 22, 2003 as referenced in Resolution 2003-63, executed July 3, 2003. Resolution 2003-63 approves a boundary line adjustment, severing the property identified in Exhibit A as the "Development Parcel South" from its existing parcel and merging the severed property into the property identified in Exhibit A as "Parcel I."

Signed this APRIL 8 day of APRIL, 2004

CEMEX, INC., a Louisiana corporation

By: x _____

EXEC. V. P.

STATE OF Texas)
) ss.
COUNTY OF Harris)

The foregoing instrument was acknowledged before me this 8th day of April, 2004, by Jesus Gonzalez Herrera as Exec. V. P. of CEMEX, INC., a Louisiana corporation.

Witness my hand and official seal.

My Commission Expires: August 6, 2005

(SEAL)

IVONE E. DEL RIO
Notary Public, State of Texas
My Commission Expires
AUGUST 06, 2005

Ivone E. Del Rio
Notary Public

EXHIBIT "A" TO WARRANTY DEED

1. **DEVELOPMENT PARCEL SOUTH (A/K/A PLANT ENTRANCE PARCEL):**

A tract of land located in the NW1/4 of Section 21, T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of Section 16, T3N, R70W of the 6th P.M., from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence S00°29'31"W, 5428.32 feet along the North-South Centerline of said Section 16 to the S1/4 Corner of said Section 16; thence S00°27'46"W, 2646.11 feet along the North-South Centerline of said Section 21 to the Center of said Section 21; thence N89°40'32"W, 494.10 feet along the South line of the NW1/4 of said Section 21 to the West line of the East 30 acres of the NW1/4 of said Section 21 and the TRUE POINT OF BEGINNING;

Thence S89°40'32"E, 279.60 feet along the South line of the NW1/4 of said Section 21 to the Southwest Corner of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 208.38 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the Southwesterly right-of-way line of Colorado State Highway No. 66;

Thence N63°32'37"W, 417.92 feet along the Southwesterly right-of-way line of said Colorado State Highway No. 66 to the West line of the East 30 acres of the NW1/4 of said Section 21;

Thence S00°27'46"W, 368.76 feet along the West line of the East 30 acres of the NW1/4 of said Section 21 to the TRUE POINT OF BEGINNING.

Area = 1.726 acres, more or less.

2. **PARCEL I:**

A parcel of land located in the North 1/2 of the South 1/2 of Section 21, Township 3 North, Range 70 West of the Sixth Principal Meridian, County of Boulder, State of Colorado, conveyed as "Parcel I" by Special Warranty Deed, dated March 17, 1994, and recorded in the real estate records of the Boulder County Clerk and Recorder at Reception No. 01432783, being more particularly described as follows:

Commencing at the West 1/4 Corner of said Section 21; thence S89°36'40"E along the Northeriy line of the Southwest 1/4 of said Section 21, a distance of 1,323.81 feet to the point of beginning, said point being the Center West 1/16 Corner of the Southwest 1/4 of said Section 21; thence continuing S89°36'40"E a distance of 1,271.10 feet to a point on the Southerly right-of-way line of the Burlington Northern Railroad; thence along said right-of-way line along the arc of a curve to the left, whose radius bears N31°37'40"E having a delta of 03°21'11", a radius of 1,479.47 feet,

an arc distance of 86.58 feet to a point on the Westerly line of a tract of land described in Film 572, Reception No. 818101; thence along said Westerly line the following three (3) courses:

1. S26°54'14"W a distance of 283.88 feet to a point of curve;

2. Along the arc of a curve to the left having a delta of 26°23'30", a radius of 349.87 feet, an arc distance of 161.16 feet;

3. S00°30'44"W along a line parallel with the 140.00 feet Westerly of the Easterly line of the Southwest 1/4 of said Section 21 a distance of 871.36 feet to a point on the southerly line of the Northeast 1/4 of the Southwest 1/4 of said Section 21;

Thence N89°40'31"W along said Southerly line a distance of 1,186.70 feet to the Southwest 1/16 Corner of the Southwest 1/4 of said Section 21; thence N00°38'09"E along the Westerly line of the Northeast 1/4 of the Southwest 1/4 of said Section 21 a distance of 1,324.87 feet to the point of beginning.

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CONSERVATION EASEMENT

(REPEAL AND REPLACEMENT OF CONSERVATION EASEMENT RECORDED AT RECEPTION NO. 2308606 IN THE REAL PROPERTY RECORDS OF BOULDER COUNTY, COLORADO)

This Conservation Easement (the "2004 Conservation Easement") is granted by CEMEX, Inc., a Louisiana corporation ("Grantor"), on the 8th day of APRIL, 2004, to the County of Boulder, a body corporate and politic ("County" or "Grantee") (collectively, the "Parties").

WHEREAS, Grantor is the owner of certain property which is shown and described on the Dowe Flats Estates Subdivision Exemption Plat (the "Subdivision Exemption Plat") approved pursuant to Boulder County Land Use Docket #SE-03-01 ("the Docket") and recorded at Reception No. 2577189 with the Boulder County Clerk and Recorder, and which is located in Sections 16 and 21, Township 3 North, Range 70 West of the 6th P.M., in the County of Boulder, State of Colorado (the "Property"); and

WHEREAS, as part of the County's approval of the Docket, Grantor has received the right to develop eleven lots for single-family residential use as shown on the Subdivision Exemption Plat (the "Eleven Residential Lots"), with the remainder of the Property to be preserved in two outiots: Outiot **A**, for both a water line constructed by the City of Longmont and to serve as private open space for the benefit of the Eleven Residential Lots ("Outlot **A**"), and Outiot B, to serve as private open space for the benefit of the Eleven Residential Lots ("Outlot B"); and

WHEREAS, the County's approval of the Docket makes clear that Outiots **A** & B are not to be used for residential purposes, but are "to be preserved in an Outiot as open space," as stated in County Resolution 2003-63 adopted on July 31, 2003; and

WHEREAS, the Parties desire to enter into this 2004 Conservation Easement to assure and confirm that the Eleven Residential Lots are used for single-family residential use as set forth in the Docket, that Outlot **A** and Outlot B are used for the limited purposes as approved in the Docket, and that Outiot B is preserved as open space as required in the Docket; and

WHEREAS, on July 15, 2002, about a year before the County's approval of tiie Docket, the Parties entered into a **C**onservation Easement encumbering the Property, recorded at Reception No. 2308606 in the real property records of Boulder County, which prohibited landfill or waste disposal uses from occurring on the Property, but which otherwise allowed for mining through December 31, 2021, residential, agricultural and other specified uses on the Property (the "2002 Conservation Easement"); and

WHEREAS, the 2002 Conservation Easement does not conform with the requirements of the County's approval of the Docket, primarily in that it would allow residential and other uses on Outlot B which are not conducive to the preservation of Outlot B as open space; and

WHEREAS, the Parties thus desire to repeal the 2002 Conservation Easement, and replace it in its entirety with this 2004 Conservation Easement, as set forth below, to limit the uses of the Property in accordance with the County's approval of the Docket; and

WHEREAS, repeal of the 2002 Conservation Easement and the contemporaneous replacement with the 2004 Conservation Easement is consistent with the purposes of the 2002 Conservation Easement, effectively continues the perpetual duration of the 2002 Conservation Easement, does not permit additional developments or improvements prohibited by the 2002 Conservation Easement, and does not impair any of the significant conservation values of the Property.

NOW, THEREFORE, for good and valuable consideration, Grantor hereby grants and conveys to the County a Conservation Easement in gross pursuant to Title 38, Article 30.5 of the Colorado Revised Statutes, as amended, over the Property identified above, subject to the following terms and restrictions:

1. Subject to the further restrictions contained herein, the Property shall be used only for residential uses, a water line easement, private road and driveway access, utility access, agricultural uses, recreational uses, open space uses, pre-existing easements, uses associated with the maintenance and operation of the Supply Ditch, the Highland Ditch, the Rough & Ready Ditch, and the Palmerton Ditch, and mining and reclamation uses. Use of the Property for mining shall be prohibited after December 31, 2021, and use of the Property for a landfill or waste disposal site shall be prohibited.

A. For purposes of this 2004 Conservation Easement "mining" shall mean the excavation or extraction of minerals and any and all activities associated with the excavation and extraction of minerals, in accordance with Boulder County Special Use Permit 93-14; "mining" shall not include activities in connection with a water line easement, private road and driveway access, utility access, residential, agricultural, recreational and mining reclamation, including, but not limited to, earth and rock moving, grading, planting and removal of structures, tanks and equipment.

B. As used in this 2004 Conservation Easement a "landfill or waste disposal site" shall not include the burying, placement or relocation of overburden and other materials mined on the Property or from adjoining properties at other locations on the Property in connection with reclamation of the Property and adjoining properties from mining so long as such overburden and other materials do not include kiln dust and other hazardous materials.

C. The prohibition on mining contained herein does not prohibit reclamation of the Property after December 31, 2021, so long as it is consistent with Boulder County Special Use Permit 93-14, as approved in Boulder County Resolution 94-81, including without limitation the extended time referenced in Boulder County Resolution 94-81, page 7, paragraph 15.

D. As used in this 2004 Conservation Easement "residential uses" shall mean single-family residential use on the Eleven Residential Lots as set forth in the County's approval of the Docket (Resolution 2003-63 and the Subdivision Exemption Plat).

2. Following the completion of mining and reclamation on the Property as provide for herein, Outlots A & B shall be used for the following uses only:

A. A water line easement, on Outlot A only, as proposed in the Docket.

B. Open agricultural uses, which are uses of a predominately open nature which have only accessory or incidental structures associated with them , including, but not limited to, the grazing, keeping, and use of livestock, the production of agricultural or horticultural products, the diversion and use of water for irrigation or stockwatering, and the restoration or reclamation of land to its natural state.

C. Open recreational uses that do not require grading, structures or lighting, including, but not limited to, hiking, biking, game-playing, and the observation and study of nature, which are uses of a predominately open nature, have only accessory or incidental structures associated with them, and do not rely on motorized vehicles,. Nothing in this subparagraph C shall be interpreted as prohibiting the use of motorized vehicles on Outlots A & B in connection with maintenance of the uses allowed by this 2004 Conservation Easement. As provided in County Resolution 2003-63 (Condition #3), formal recreational trails or other formal recreational uses of Outlots A & B shall be reviewed and approved by the County prior to implementation/construction in accordance with the applicable provisions of the Boulder County Land Use Code (the "Land Use Code"). For purposes of this 2004 Conservation Easement a trail or recreational use shall not be considered "formal" unless grading, structures or lighting is required to build such trail or accomplish such use. In addition, particular care and consideration shall be given to preserving the quality and integrity of the environmental resources and wildlife habitat that exist along the irrigation canals and other environmentally sensitive areas within Outlot B.

D. All roads and driveways associated with the single-family use of the Eleven Residential Lots shall be located within the easements and residential lots noted on the Subdivision Exemption Plat.

E. All utilities associated with the single-family use of the Eleven Residential Lots shall be below ground and located within the easements and residential lots noted on the Subdivision Exemption Plat.

F. Pre-existing easements over Outlots A & B, including, but not necessarily limited to, the "Shed Encroachment License" and "Fence Encroachment License" identified in the Revocable License recorded at Reception No. 01524421 with the Boulder County Clerk and Recorder, and the "Driveway Easement" and "Driveway Relocation Easement" identified in the Access Easement recorded at Reception No. 01424420 with the Boulder County Clerk and Recorder. The County does not waive any regulatory enforcement authority by the inclusion of such uses in this 2004 Conservation Easement.

G. Any and all uses associated with the operation and maintenance of the Supply Ditch, the Highland Ditch, the Rough & Ready Ditch, and the Palmerton Ditch.

3. All uses of the Property as allowed herein shall comply with the approval of the Docket (Resolution 2003-63 and the Subdivision Exemption Plat), with the applicable provisions of the Land Use Code, and with the terms of this 2004 Conservation Easement.

4. Grantor shall not divide the Eleven Residential Lots, Outlot A, or Outlot B into two or more parcels, separate interests or interests in common, unless such division is one which is excluded from the statutory definition of "suhdivision" by C.R.S. 30-28-101(10)(c)(VII), or is exempted under C.R.S. 30-28-101(10)(d), as amended, or unless the Property is subdivided under the Land Use Code.

5. In light the Parties' mutual desire to preserve the character and integrity of the Property as rural land, the Property may not be annexed to a municipality without the prior consent of the County.

6. The County shall have the right to enter upon the Property at any time, with prior reasonable notice, to inspect for violations of the terms and covenants of this 2004 Conservation Easement. Notice shall be made to the Grantor's Lyons Plant Manager, or to the person(s) designated by the successors-in-interest of Grantor. For so long as the Property is being used for mining and reclamation, the County shall comply with Grantor's safety guidelines and requirements when entering the Property. No further right of access, entry or possession is conveyed hereby.

7. This Easement is granted in perpetuity and the covenants as set forth herein shall run with the land in perpetuity and be binding upon the Parties, their heirs, successors, representatives, and assigns, and all persons who may hereafter acquire an interest in the Property. It is intended that this 2004 Conservation Easement and any other interests created by this Easement vest immediately.

8. Grantor and the County may amend this 2004 Conservation Easement by mutual agreement, without a public hearing, provided that such amendment does not affect the status of the Grantee of the Easement pursuant to C.R.S. Section 38-30.5-101, et seq.; does not terminate or transfer the Easement or affect its perpetual duration; does not amount to a substantial modification of the County's approval in the Docket; does not impair any of the significant conservation values of the Property; and is otherwise consistent with the purposes of this 2004 Conservation Easement as set forth herein. Any such amendment shall be recorded in the real property records of Boulder County, Colorado.

9. In giving this 2004 Conservation Easement, the Grantor has considered the possibility that uses prohibited by this Easement may become more economically viable than the permitted uses and that neighboring properties may in the future be put entirely to such prohibited uses. It is the intent of both Grantor and Grantee that any such changes shall not be deemed circumstances justlfying the termination or extinguishment of this 2004 Conservation Easement. In addition, the inability of Grantor, or Grantor's heirs, successors, or assigns, to conduct or implement any or all of the uses permitted under this 2004 Conservation Easement, or the unprofitabihty of doing so, shall not impair the validity of this Easement or be considered grounds for its termination or extinguishment.

10. Contemporaneous with the recording of this 2004 Conservation Easement, the Parties repeal and rescind the 2002 Conservation Easement in its entirety.

IN WITNESS WHEREOF, Grantor has caused its name to be hereunto subscribed the day and year first above written.

Grantor:

CEMEX, INC., a Louisiana corporation

By: x _____

Title: EXEC. V. P.

STATE OF Texas)
) ss.
COUNTY OF Harris)

The foregoing Conservation Easement was acknowledged before me this 8th day of April, 2004, by Jesus Gonzalez Herrera

Witness my hand and official seal.

IVONE E. DEL RIO
Notary Public, State of Texas
My Commission Expires
AUGUST 06, 2005

My commission expires: August 6, 2005

_____
Notary Public

IN WITNESS AND ACCEPTANCE WHEREOF, the County has caused its name to be hereunto subscribed the day and year first above written:

Board of County Commissioners of the
County of Boulder, Colorado

Paul D. Danish, Chair 4/15/04

ATTEST:

_____
Clerk to the Board

Boulder County

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SPECIAL WARRANTY DEED

(Statutory Form, C.R.S. § 38-30-115)

Grantor, **CEMEX, INC.,** formerly known as Southdown, Inc., a Louisiana Corporation, whose legal address is 1200 Smith Street, Suite 2400, Houston, Texas 77002, County of Harris and State of Texas, for ~~good and valuable consideration~~ Ten Dollars the receipt and sufficiency of which is hereby acknowledged, hereby sells and conveys to Grantee, the **COUNTY OF BOULDER**, a body corporate and politic, whose mailing address is P.O. Box 471, Boulder, Colorado 80306, County of Boulder, State of Colorado, the following real property located in the County of Boulder and State of Colorado, to wit:

SEE EXHIBIT A ATTACHED HERETO AND INCORPORATED HEREIN BY THIS REFERENCE,

with all its appurtenances, including any and all mineral rights, and warrants the title against all persons claiming under the Grantor, subject to those matters set forth in Exhibit B attached hereto and made a part hereof by this reference.

Signed this 8th day of April, 2004

CEMEX, INC., a Louisiana corporation

By: x _____

EXEC. V.P.

STATE OF ~~COLORADO~~ Texas)
) ss.
COUNTY OF Harris)

The foregoing instrument was acknowledged before me this 8th day of April, 2004, by Jesus Gonzalez Herrera as Exec. V.P. of CEMEX, INC., a Louisiana corporation.

Witness my hand and official seal.

My Commission Expires: August 6, 2005

_____
Notary Public

(S E A L)

IVONE E. DEL RIO
Notary Public, State of Texas
My Commission Expires
AUGUST 06, 2005

EXHIBIT "A" TO SPECIAL WARRANTY DEED

BOULDER COUNTY SOUTH PARCEL A:

A tract of land located in the SW1/4 of Section 16 and in the NW1/4 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of said Section 16, from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the North line of the NW1/4 of said Section 16; thence S00°00'00"W, 3490.76 feet; thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado, and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado, and the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 2030.68 feet to the West line of the SW1/4 of said Section 16;

Thence S00°28'48"W, 1941.21 feet along the West line of the SW1/4 of said Section 16 to the Southwest Corner of said Section 16;

Thence S00°26'16"W, 216.48 feet along the West line of the NW1/4 of said Section 21;

Thence S89°49'48"E, 399.85 feet;

Thence N00°28'48"E, 1758.67 feet;

Thence S89°58'20"E, 1633.82 feet to the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26;

Thence N00°01'40"E, 400.00 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the TRUE POINT OF BEGINNING.

Area = 34.806 acres, more or less.

Legal Descriptions Prepared By:

William K. Wright, PLS #23529

Drexel, Barrell & Co.

4840 Pearl East Circle, Suite 114

Boulder, CO 80301-2475

EXHIBIT B

6. Taxes and assessments.

7. The rights of the proprietors of veins or lodes to extract or remove ore should the same be found to intersect or penetrate the herein described property and easements for ditches or canals as reserved in the various patents of the herein described property, as recorded in Book 75, Page 509, recorded December 19, 1891 as to the Southeast quarter of Section 9, Township 3 North, Range 70 West, Book 75, Page 512, recorded December 19, 1891 as to the East half of the Northeast quarter of Section 9, Township 3 North, Range 70 West, Book 75, Page 516, recorded December 19, 1891 as to the West half of the Northeast quarter of Section 9, Township 3 North, Range 70 West, Book 100, Page 141 recorded August 3, 1900 as to the Southwest quarter of Section 10, Township 3 North, Range 70 West, Book 75, Page 519, recorded February 22, 1892 as to the West half of the Northeast quarter and North half of the Northwest quarter of Section 15, Township 3 North, Range 70 West, Book 100 at Page 56, recorded February 22, 1892 as to the South half of the Northwest quarter and North half of the Southwest quarter of Section 15, Township 2 North, Range 70 West, Book 369, Page 138, recorded October 29, 1936 as to the East half of the Northeast quarter of Section 15, Township 3 North, Range 70 West, Book 59, Page 493, recorded December 26, 1900 as to the North half and the North half of the Southwest quarter and North half of the Southeast quarter and the Southwest quarter of the Southeast quarter of Section 16, Township 3 North, Range 70 West, Book 100, Page 57, recorded February 22, 1892 as to the Northwest quarter of the Northwest quarter of Section 21, Township 3 North, Range 70 West, Book 75, Page 24, recorded January 13, 1887 of the West half of the Northeast quarter of Section 22, Township 3 North, Range 70 West, Book 100, Page 53, recorded December 19, 1891 as to the Southwest quarter of Section

--Continued

RECORDER'S NOTE:
RECEIVED IN THIS CONDITION.

RECORDER'S NOTE:
PORTION OF RECORDED DOCUMENT
MAY NOT REPRODUCE LEGIBLY.

9, Township 3 North, Range 70 West, Book 122, Page 35, recorded June 13, 1888, as to the East half of the Northwest and West half of the Northeast of Section 9, Township 3 North, Range 70 West.

8. An easement for water pipeline and incidental purposes granted to the City of Longmont, a municipal corporation by the instrument recorded May 14, 1910 in Book 337 at Page 100.

9. A perpetual easement and right of way to construct, operate, maintain, and use such ditch and other works as may be necessary to construct operate and maintain the St. Vrain Supply Canal, on, over and across the following described parcels of land in Deed, located in the Northeast quarter of Section 9 and located in the Northwest quarter of Section 16, both in Township 3 North, Range 70 West of the 6th P.M., as conveyed to the United Statea of America by Deed recorded April 24, 1952 in Book 905 at Page 250.

10. A perpetual easement and right of way to construct, operate, maintain, and use such ditches and other works as may be necessary to construct, operate and maintain the St. Vrain Supply Canal, on, over and across said land, located in the West half of Section 9, Township 3 North, Range 70 West of the 6th P.M., as conveyed to the United States of America by Deed recorded April 1, 1952 in Book 903 at Page 221.

11. A perpetual easement to borrow and disposal area, together with tha right to borrow and waste; to construct, operate and maintain such construction facilities as may be incidental thereto, including the right to fence said tracts, located in the South half of the Southwest quarter of Section 9, Township 3 North, Range 70 West of the 6th P.M., as conveyed to the United States of America by Deed recorded August 5, 1953 in Book 932 at Page 590.

12. A perpetual easement and right of way to a borrow and disposal area, together with the right to borrow and waste; to fence said area and to construct, operate and maintain such construction facilities as may be incidental thereto, located in the Southwest quarter of Section 9, Township 3 North, Range 70 West of the 6th P.M. as conveyed to the United States of America by Deed recorded September 15, 1953 in Book 936 at Page 354.

13. Except an undivided one-half of all oil, gas and other minerals, in under or that may be produced from subject property together with the right of ingress and egress to same for mining, operating and producing oil, gas and other minerals as reserved in Warranty Deed recorded May 14, 1954 in Book 950 at Page 366.

CONTINUED

Affects the W 1/2, W 1/2 W 1/2 E 1/2 of Section 9 Township 3 North, Range 70 West.

14. Excepting an undivided one-half interest in all oil, gas and other minerals as reserved from Deed recorded May 25, 1960 in Book 1144 at Page 456, the Northwest quarter of the Northwest quarter of Section 21, Township 3 North, Range 70 West.

15. An oil and gas lease and any and all assignments, thereof, dated November 8, 1978, executed by Paul J. Zencbia and Frances E. Zencbia, as Leasor and Benton R. Bullock, as Leasee, for a term of 5 years, recorded July 24, 1980 at Reception No. 404724.

16. An oil and gas lease and any and all assignments thereof, dated June 7, 1982, executed by Ideal Basic Industries, Inc., as Leasor and Benton R. Bullock, as Leasee, for a term of 3 years, recorded July 16, 1982 at Reception No. 503237.

17. An oil and gas lease and any and all assignments thereof dated June 7, 1982, executed by Ideal Basic Industries, Inc., as Leasor, and Benton R. Bullock, as Leasee, for a term of 3 years, recorded July 16, 1982 at Reception No. 503238.

18. The effect of the follcwing items as fcund in the hereinafter recited Ditch Plat Books:

A) Supply Ditch as shcwn in Ditch Plat Book E Pages 14, 15, 16, 58, 78, 79, 80, Boulder County Records.
B) Highland Ditch as shcwn in Ditch Plat Book Box 1, Page 67, Boulder County Records.
C) Rough and Ready Ditch as shown in Ditch Plat Book B Page 19, Boulder County Records.
D) Balmerton Ditch as shown in Ditch Plat Book E Page 40 in Box 2 Page 104, Boulder County Records.

NOTE: None of the instruments referred to therein contain language of a conveyance creating rights or easements.

19. Terms, conditions, provisions, agreements and obligations specified under the Access Easement Agreement by and between Joel F. Kleaves and Jean Ann Kleaves and Marigold 41, a Colorado general partnership recorded January 9, 1984 on Film 1286 at Reception Nc. 597582.

20. Except an undivided one-half interest in and to all gas and oil rights underlying said premises, together with the right to prospect for, mine and

CONTINUED

remove the same, but this reservation shall not include limestone, lime rock, shale, clay, sand, gravel or minerals other than gas and oil, as reserved in Deeds recorded April 13, 1959 in Book 1106, Page 152, Book 1106, Page 153 and as corrected in Book 1109 at Page 460.

21. An easement for transmission line and incidental purposes over the property described as follows:

An easement 100 feet in width whose centerline is described as follows:

Beginning at a point on the East line of Section 15, Township 3 North, Range 70 West of the 6th P.M., Boulder County, Colorado, 15 feet South of the East quarter-corner of said Section 15; thence Westerly parallel to and 15 feet Southerly of the East-West centerline of said Seotion 15 a distance of 50 feet; thence Southerly parallel and 50 feet Westerly of the East line of said Section 15 to a point 50 feet North of the South line of said Section 15; thence Westerly parallel to and 50 feet Northerly of the South lien of said Section 15 to the farthest Westerly point from which the centerline of the easement may then be extended in a straight Northwesterly line to a point on the East line of the Southwest quarter of the Southwest quarter of said Section 15, 11 feet South of the Northaast corner of the Southwest quarter of the Southwest quarter of said Section 15 without this easement encroaching upon the right of way for Supply Ditch as granted to Poudre Valley Rural Electric Association by Document recorded January 25, 1971 at Reception No. 65876.

NOTE: Said Document further depicts the transmission line across the Southwest quarter of said section.

22. An easement for an electric transmission and/or distribution line or system and to cut, trim and control the growth by chemical meane, machinery or otherwise of trees or shrubbery on said easement and incidental purposes over the following described land:

An easement 100 feet in width whose centerline is described as follows:

Beginning at a point on the East line of Section 15, Township 3 North, Range 70 West of the 6th P.M., Boulder County, Colorado, 15 feet South of the East quarter-corner of said Section 15; thence Westerly parallel to and 15 feet Southerly of the East-West centerline of said Section 15, a distance of 50 feet; thence Southerly parallel and 50 feet Westerly of the East line of said Section 15; thence Westerly parallel to and 50 feet Northerly of the South line of said Section 15, a distance of 1312.5 feet; thence North 64°45' West 2905 feet, more or less to a point on the East line of the Southwest quarter

CONTINUED

of the Southwest quarter of said Section 15, 11 feet South of the Northeast corner of Southwest quarter of the Southwest quarter of said Section 15, except such portion of the aforesaid easement as would lie Southerly of the Northerly right of way line of the Supply Ditch as granted to Poudre Valley Rural Electric Association by Document recorded January 25, 1971 at Reception No. 965876.

NOTE: Said Document further depicts the transmission line across the Southwest quarter of said section.

23. Covenants, conditions and restrictions regarding an individual sewer system, contained in an Agreement with Boulder County Board of Health in Document recorded March 13, 1974 at Reception No. 96215.
(Affects the Southwest quarter of Section 10, Township 3 North, Range 70 West)

24. Any assessment or lien of Longs Peak Water District, as disclosed by the instrument recorded October 17, 1991 on Film 1697 at Reception No. 1136980.

25. Any water rights or claims or title to water, in, on or under the land.

26. Any existing leases or tenancies.

27. Covenants, conditions, reservations, restrictions and obligations which do not contain a reverter clause, as contained in Term Deed between Marigold 41, a Colorado general partnership and Southdown, Inc. recorded March 25, 1993 on Film 1808 at Reception No. 1276718.

28. Terms, conditions, provisions, agreements and obligations specified under the Co-Tenancy Agreement by and between Southdown, Inc. and Marigold 41, a Colorado general partnership recorded March 25, 1993 on Film 1808 at Reception No. 1276720.

29. Bargain and Sale Easement recorded Febraury 14, 1990 at Reception No. 1028294 and amendment recorded May 6, 1996 on Film 2124 at Reception No. 01605054.

30. Terms, provisions, conditions, obligations and agreements as contained in Term Deed recorded March 25, 1993 on Film 1808 at Reception No. 01276718.

31. Terms, provisions, conditions, obligations and agreements as contained in Ditch Crossing Agreement recorded February 27, 1995 at Reception No. 01500035.

32. Terms, provisions, conditions, obligations and agreements as contained in Ditch Crossing Agreement recorded February 27, 1995 at Reception No. 01500036.

CONTINUED

33. Terms, provisions, conditions, obligations and agreements as contained in Ditch Crossing Agreement recorded Febraury 25, 1995 at Reception No. 01500037.

34. Terms, conditions, provisions, agreements and obligations contained in the Development Agreement recorded July 18, 1944 at Reception No. 01447009.

35. Terms, conditions, provisions, agreements and obligations contained in the Resolution 95-256 recorded May 13, 1996 at Reception No. 01607220.

36. An easement for Public Roadway and attendant Improvements and incidental purposes granted to The County of Boulder by the instrument recorded December 5, 2000 at Reception No. 2101052.

37. Any rights which Poudre Valley Rural Electric Association may have in the property by virtue of that right of way easement executed by Ideal Cement Company on September 24, 1963 as disclosed in Term Deed recorded March 25, 1993 on Film No. 1808 at Reception No. 01276718.

38. Any rights which Poudre Valley Rural Electric Association, Inc. may have in the property by Virtue of that Easement executed by Ideal Cement Company on March 19, 1965 as disclosed in Term Deed recorded March 25, 1993 on Film No. 1808 at Reception No. 01276718.

39. Terms, provisions, conditions, obligations, agreements and easements as contained in Special Warranty Deed recorded May 13, 1996 at Reception No. 01607221.

40. Terms, provisions, conditions, obligations, agreements and easements as contained in Special Warranty Deed recorded May 13, 1996 at Reception No. 01607222.

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CONSERVATION EASEMENT

This Conservation Easement (the "Easement") is granted by CEMEX, Inc., a Louisiana corporation ("Grantor") on the 8th day of April, 2004, to the County of Boulder, a body corporate and politic ("County" or "Grantee").

WHEREAS, Grantor is the owner of the Property legally described on Exhibit A, attached hereto and by this reference made a part of this Easement located in portions of Sections 9, 10, 15 & 16, Township 3 North, Range 70 West of the 6th P.M., in the County of Boulder, State of Colorado; and

WHEREAS, County has purchased or transferred to other properties all of the development rights appurtenant to the Property, pursuant to the Purchase Agreement, Lease and Option dated July 11, 2002 (the "Purchase Agreement");

WHEREAS, Grantor has agreed to preserve the Property in consideration of the County's purchase or transfer of the development rights and other terms of the Purchase Agreement through this Conservation Easement; and

WHEREAS, by entering into this Conservation Easement, the Parties intend to preserve the Property as open land for agricultural, Limestone Mining, reclamation, wildlife and livestock purposes in accordance with the Purchase Agreement.

NOW, THEREFORE, for good and valuable consideration, Grantor hereby grants and conveys to the County a Conservation Easement in gross pursuant to Title 38, Article 30.5 of the Colorado Revised Statutes, as amended, over the Property as identified above, subject to the following terms and restrictions:

1. The Property shall be used only for agricultural, Limestone Mining , reclamation, wildlife, and livestock purposes. Limestone Mining and those uses permitted under Special Use Permit 93-14, including reclamation shall be allowed on the Property until the completion of mining and reclamation under Boulder County Special Use Permit 93-14. Thereafter, no mining shall be allowed on the Property. As used herein, "Limestone" shall include all limestone, limerock, calcareous materials, clay, shale and other materials used in the manufacture of cement in, on or under the Property. As used herein, "Limestone Mining" shall include the right to enter upon and use the Property for the purposes of surveying, exploring for, and defining the extent and quality of all Limestone and all Limestone deposits in, on, or under the Property, and for developing, mining, removing, crushing, processing, shipping and marketing such Limestone and Limestone deposits by whatever methods Grantor may deem appropriate; to construct and use such buildings, crushers, processing and conveyor equipment, rods, water facilities, power and communication lines and other improvements on the Property as are required by Grantor for the full use of the Property in connection with Grantor's mining operations; to construct and use workings now or hereafter located on the Property as may be necessary, convenient or suitable for or incidental to any of the rights or privileges of Grantor hereunder; and to use so much of the

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surface and subsurface of the Property in such manner as may be necessary, convenient, or suitable for or incidental to Grantor's mining operations.

2. Grantor may conduct or allow to be conducted any use on the Property which is consistent with and accessory to the preservation of the Property for the uses described in Paragraph 1 above, and which complies with the Land Use Code and the terms of this Easement.

3. Grantor shall not erect on the Property any residential structures or any other structures which are not accessory to an agricultural use. Agriculturally related buildings and structures may be permitted on the Property if they are not used for residential purposes; they are constructed and used as accessory structures to a single principal use of agriculture; and they are in accordance with the Land Use Code. Mining structures approved in Special Use Permit 93-14 are also permitted on the Property.

4. Grantor shall not divide the Property into two or more parcels, separate interests or interests in common (whether or not such subdivision is permitted under state law) without the express written consent of Grantee. The Property shall be held as one agricultural unit and , without the express written consent of the Grantee, or by operation of law, Grantor may not convey any portion of the Property as said conveyance would constitute an impermissible division of the Property under this Easement. If the Grantee does approve a division of the Property, or the Property is divided by operation of law, all terms of this Easement shall attach to the land and shall survive any division.

5. The County shall have the right to enter upon the Property with prior reasonable notice, to inspect for violations of the terms and covenants of this Easement and take appropriate legal action to remove or eliminate any conditions or operations which violate the same. No further right of access entry or possession is conveyed hereby.

6. This Easement is granted in perpetuity and the covenants as set forth herein shall run with the land and be binding upon all parties thereto, their heirs, successors, representatives, and assigns, and all persons who may hereafter acquire an interest in the Property. It is intended that this Easement and any other interests created under this Easement vest immediately. Pursuant to Colorado Revised Statute Section 15-11-1102(1)(a) and (b), if any nonvested property interests conveyed to the Grantee under this Easement do not vest within 90 years after the date of execution of this Easement by both parties, said interests shall automatically be severed from the remainder of the interests conveyed herein and shall automatically terminate.

7. If circumstances arise under which an amendment would be appropriate, Grantor and Grantee may jointly amend the Easement. Any such amendment shall be consistent with the purposes of the Easement, shall not affect its perpetual duration, shall not permit additional developments or improvements currently prohibited by the Easement, and shall not impair any of the significant conservation values of the Property Any such amendment shall be recorded in the official records of Boulder County, Colorado.

In giving this Easement, the Grantor has considered the possibility that uses prohibited by the terms of this Easement may become more economically valuable than permitted uses and that neighboring properties may in the future be put entirely to such prohibited uses. It is the intent

of both the Grantor and the Grantee that any such changes shall not be deemed circumstances justifying the termination or extinguishment of this Easement. In addition, the inability of the Grantor, or the Grantor' heirs, successors or assigns, to conduct or implement any or all of the uses permitted under this Easement, or the unprofitabihty of doing so, shall not impair the validity of this Easement or be considered grounds for its termination or extinguishment.

IN WITNESS WHEREOF, Grantor has caused its name to be hereunto subscribed the day and year first above written.

GRANTOR:

CEMEX, INC., a Louisiana corporation

By:x _____
Its: EXEC. V.P.

STATE OF Texas)
) ss
COUNTY OF Harris)

The foregoing instrument was acknowledged before me this 8th day of April, 2004, by Jesus Gonzalez Herrera the Exec. V.P. of CEMEX, Inc., a Louisiana corporation.

Witness my hand and official seal.

My commission expires: August 6, 2005

Notary Public

IVONE E. DEL RIO
Notary Public, State of Texas
My Commission Expires
AUGUST 06, 2005

IN WITNESS AND ACCEPTANCE WHEREOF, the County has caused its name to be hereunto subscribed the day and year first above written.

_____ 4/15/04
Board of County Commissioners of the County of Boulder, Colorado

ATTEST:

Deputy Clerk to the Board

EXHIBIT A
TO CONSERVATION EASEMENT

LEGAL DESCRIPTION:

OPERATIONS PARCEL WEST:

A tract of land located in Sections 9, 10, 15 and 16, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the S1/4 Corner of said Section 9 from which the Southeast Corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the South line of the SW1/4 of said Section 9 to the TRUE POINT OF BEGINNING;

Thence S00°00'00"W, 3490.76 feet;

Thence S89°58'20"E, 1377.93 feet to the West line extended Northerly of the SE1/4 of the SE1/4 of said Section 16;

Thence S00°34'45"W, 600.00 feet along the West line extended Northerly of the SE1/4 of the SE1/4 of said Section 16 to the Northwest Corner of the SE1/4 of the SE1/4 of said Section 16;

Thence S89°18'43"E, 1320.20 feet along the North line of the SE1/4 of the SE1/4 of said Section 16 to the Northeast Corner thereof;

Thence S89°45'38"E, 1028.99 feet along the North line of the SW1/4 of the SW1/4 of said Section 15 to the Westerly right-of-way line of Boulder County Road No. 47 as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607221 of the records of Boulder County, Colorado;

The following courses and distances are along the Westerly and Northerly right-of-way line of said Boulder County Road No. 47:

Thence Northerly, 155.73 feet along the arc of a curve concave to the West to a point tangent, said arc having a radius of 480.00 feet, a central angle of 18°35'21" and being subtended by a chord that bears N04°59'58"E, 155.05 feet;

Thence N04°17'43"W, 777.37 feet to a point of curve to the left;

Thence Northwesterly, 324.08 feet along the arc of said curve to a point tangent, said arc having a radius of 1000.00 feet, a central angle of 18°34'07" and being subtended by a chord that bears N13°34'46"W, 322.67 feet;

Thence N22°51'50"W, 269.77 feet to a point of curve to the right;

Thence Northerly, 532.46 feet along the arc of said curve to a point tangent, said arc having a radius of 700.00 feet, a central angle of 43°34'56" and being subtended by a chord that bears N01°04'22"W, 519.71 feet;

Thence N20°43'06"E, 780.37 feet to a point of curve to the left;

Thence Northeasterly, 544.21 feet along the arc of said curve to a point tangent, said arc having a radius of 1500.00 feet, a central angle of 20°47'14" and being subtended by a chord that bears N10°19'29"E, 541.23 feet;

Thence N00°04'09"W, 218.20 feet to a point of curve to the left;

Thence Northerly, 344.09 feet along the arc of said curve to a point tangent, said arc having a radius of 2000.00 feet, a central angle of 09°51'26" and being subtended by a chord that bears N04°59'52"W, 343.66 feet;

Thence N09°55'35"W, 911.61 feet to a point of curve to the left;

Thence Northwesterly, 1032.58 feet along the arc of said curve to a point tangent, said arc having a radius of 2000.00 feet, a central angle of 29°34'53" and being subtended by a chord that bears N24°43'02"W, 1021.15 feet;

Thence N39°30'28"W, 741.51 feet to a point of curve to the right;

Thence Northwesterly, 246.83 feet along the arc of said curve, said arc having a radius of 420.00 feet, a central angle of 33°40'21" and being subtended by a chord that bears N22°40'17"W, 243.29 feet;

Thence S89°37'09"E, 70.50 feet to the Westerly line of that strip of land as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607222 of the records of Boulder County, Colorado;

Thence leaving the Northerly right-of-way line of said Boulder County Road No. 47, Northerly, 49.31 feet along the Westerly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 and along the arc of a curve concave to the East to a point tangent, said arc having a radius of 350.00 feet, a central angle of 8°04'19" and being subtended by a chord that bears N03°02'57"W, 49.27 feet;

Thence N00°59'12"E, 152.30 feet along the West line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 to the East-West Centerline of said Section 10;

Thence N89°10'22"W, 1.43 feet along the East-West Centerline of said Section 10 to the W1/4 Corner of said Section 10;

Thence N88°00'00"W, 2749.89 feet along the East-West Centerline of said Section 9 to a point from which the True Point of Beginning bears S00°00'00"W;

Thence S00°00'00"W, 2642.02 feet to the TRUE POINT OF BEGINNING.

Subject to a right-of-way for Boulder County Road No. 47.

Area = 525.202 acres, more or less.

OPERATIONS PARCEL EAST:

A tract of land located in the S1/2 of Section 15 and in the NE1/4 of Section 22, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the Southeast Corner of Section 9, T3N, R70W of the 6th P.M., from which the S1/4 Corner of said Section 9 bears N87°27'25"W, 2644.89 feet, thence S51°33'47"E, 4965.84 feet to an Easterly Corner of the Mining Property as described in Exhibit A in Term Deed recorded on Film 1808 as Reception No. 1276718 of the records of Boulder County, Colorado; thence S61°53'26"E, 406.88 feet along the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718; thence S05°48'06"E, 1111.23 feet along the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718 to the TRUE POINT OF BEGINNING;

Thence S84°11'54"W, 129.78 feet to a point of curve to the right;

Thence Northwesterly, 98.84 feet along the arc of said curve to a point tangent, said arc having a radius of 185.00 feet, a central angle of 30°36'42" and being subtended by a chord that bears N80°29'45"W, 97.67 feet;

Thence N65°11'24"W, 1391.34 feet to a point of curve to the right;

Thence Northwesterly, 275.51 feet along the arc of said curve to a point of reverse curve, said arc having a radius of 680.00 feet, a central angle of 23°12'52" and being subtended by a chord that bears N53°34'58"W, 273.63 feet;

Thence Northwesterly, 1675.78 feet along the arc of said reverse curve to a point tangent, said arc having a radius of 1835.00 feet, a central angle of 52°19'28" and being subtended by a chord that bears N68°08'16"W, 1618.15 feet;

Thence S85°42'00"W, 94.98 feet to the Easterly line of that strip of land as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607222 of the records of Boulder County, Colorado;

Thence Southerly, 12.99 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 and along the arc of a curve concave to the West to a point tangent, said arc having a radius of 1110.00

feet, a central angle of 00°40'13" and being subtended by a chord that bears S04°37'50"E, 12.99 feet;

Thence S04°17'43"E, 306.87 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222;

Thence S04°24'56"W, 99.04 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222;

Thence S04°17'43"E, 211.84 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222;

Thence S10°02'04"E, 100.00 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222.

Thence S04°17'43"E, 61.25 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 to a point of curve to the right;

Thence Southerly, 163.65 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 and along the arc of said curve to the North line of the SW1/4 of the SW1/4 of said Section 15, said arc having a radius of 585.00 feet, a central angle of 16°01'40" and being subtended by a chord that bears S03°43'07"W, 163.11 feet;

Thence S89°45'38"E, 185.33 feet along the North line of the SW1/4 of the SW1/4 of said Section 15 to the Northeast Corner thereof;

Thence S00°31'39"W, 683.81 feet along the East line of the SW1/4 of the SW1/4 of said Section 15 to the approximate Northerly bank of the Supply Ditch;
The following courses and distances are along the approximate Northerly bank of said Supply Ditch:

Thence N74°04'04"E, 86.38 feet;

Thence N61°42'40"E, 199.17 feet;

Thence N21°00'22"E, 276.56 feet;

Thence N45°56'00"E, 75.97 feet;

Thence N75°25'05"E, 176.92 feet;

Thence S27°00'29"E, 306.77 feet;

Thence S64°35'35"E, 357.74 feet;

Thence S79°34'12"E, 142.33 feet;

Thence S63°57'18"E, 182.39 feet;

Thence S50°18'58"E, 112.20 feet;

Thence S71°54'56"E, 168.49 feet;

Thence S55°53'34"E, 189.88 feet;

Thence S75°12'21"E, 184.87 feet;

Thence S66°08'01"E, 196.80 feet;

Thence S57°15'11"E, 312.16 feet;

Thence S37°39'43"E, 194.52 feet;

Thence S39°28'40"E, 236.03 feet to the East line of the NW1/4 of the NE1/4 of said Section 22;

Thence, leaving the approximate Northerly bank of said Supply Ditch, N00°23'09"E, 274.18 feet along the East line of the NW1/4 of the NE1/4 of said Section 22 to the Northeast Corner thereof;

Thence S89°54'18"E, 532.30 feet along the South line of the SE1/4 of said Section 15 to a point from which the Southeast Corner of said Section 15 bears S89°54'18"E, 793.42 feet and the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718;

Thence N05°48'06"W, 943.93 feet along the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718 to the TRUE POINT OF BEGINNING.

Area = 88.123 acres, more or less.

Legal Descriptions Prepared By:
William K. Wright, PLS #23529
Drexel, Barrell & Co.
4840 Pearl East Circle, Suite 114
Boulder, CO 80301-2475

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NOTICE OF SATISFACTION OF REQUIREMENTS

THIS NOTICE OF SATISFACTION OF REQUIREMENTS ("Notice") is made and effective this 15th day of April, 2004, by the **COUNTY OF BOULDER**, a body corporate and politic ("County").

A. On July 11, 2002, the County and CEMEX entered into a Purchase Agreement, Lease and Option to Purchase ("Purchase Agreement") providing for the partitioning of property located in Boulder County, Colorado known as Dowe Flats and purchase of portions of the property by Boulder County.

B. Paragraph 22 of the Purchase Agreement requires CEMEX to submit a subdivision or subdivision exemption application to the County to plat eleven development rights associated with a parcel within Dowe Flats, known as the "Operations Parcel" to another parcel within Dowe Flats, known as the "Development Parcel."

C. Paragraph 30 of the Purchase Agreement requires that, if the County approves CEMEX's subdivision application and vests the eleven development rights on the Development Parcel, then CEMEX shall convey to the County both a parcel within Dowe Flats known as the "Annexation Corridor" and a Conservation Easement covering the entire Operations Parcel.

D. CEMEX submitted a subdivision exemption application to the County on January 8, 2003. On July 31, 2003, the County approved CEMEX's subdivision exemption application, by Resolution 2003-63, Boulder County Land Use Docket No. SE-03-01.

E. Condition No. 12 of Resolution 2003-63 states that the approval of the subdivision exemption is contingent "upon satisfaction of all contingencies in the Purchase Agreement."

F. CEMEX recorded a Subdivision Exemption Plat on 2577189, vesting the eleven development rights on the Development Parcel, and immediately thereafter executed a Warranty Deed conveying the Annexation Corridor to the County and conveyed a Conservation Easement to the County over the entire Operations Parcel.

NOW, THEREFORE, the County hereby acknowledges that, by conveying the Annexation Corridor and the Conservation Easement, CEMEX has satisfied all of the contingencies in the Purchase Agreement, as required by Condition No. 12 of Resolution 2003-63, and the subdivision exemption approval is final. Nothing in this Notice shall be deemed to alter or amend the County's option rights as set forth in the Purchase Agreement.

DATED: April 15th, 2004

COUNTY OF BOULDER,
a body corporate and politic

By: _____
Paul D. Danish, Chair

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Ronald K. Stewart, Vice-Chair

Thomas A.Mayer, Commissioner

COUNTY OF BOULDER)
) ss.
STATE OF COLORADO)

The foregoing instrument was acknowledged before me this 15th day of April, 2004, by Paul D. Danish, Chair, Ronald K. Stewart, Vice-Chair, and Thomas A. Mayer, Commissioner, of the Board of County Commissioners of Boulder County.

(S E A L)

SUSAN M. ASHCRAFT NOTARY PUBLIC STATE OF COLORADO

My Commission Expires 10/17/2005

Notary Public

My Commission Expires: 10/17/2005

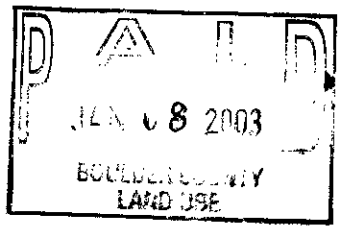
BOULDER COUNTY LAND USE DEPARTMENT
2045 13th Street / 13th & Spruce Streets / Courthouse Annex
P O Box 471 / Boulder, Colorado 80306
303.441.3930 / Fax 303 441.4856

APPLICATION FORM

APPLICATION DEADLINE
SECOND WEDNESDAY OF THE MONTH - 4:30
Does not apply to Exemption Plats, Site Plan Reviews, Limited Impact Special Reviews, or Subdivision Exemptions

SHADED AREAS FOR STAFF ONLY

INTAKE STAMP



#300 - #8664

PROJECT NUMBER	PROJECT NAME

- O BOA VARIANCE/APPEAL
- O EXEMPTION PLAT
- O LIMITED IMPACT SPECIAL USE
- O LOCATION & EXTENT
- O RESUBDIVISION (REPLAT)
- O REZONING
- O ROAD NAME CHANGE
- O SITE PLAN REVIEW
- O SPECIAL USE/SSDP
- X SUBDIVISION EXEMPTION
- O SKETCH PLAN
- O PRELIMINARY PLAN
- O FINAL PLAT
- O ROAD/EASEMENT VACATION
- O 1041 - STATE INTEREST REVIEW
- O EXTENSION OF APPROVAL
- X OTHER Boundary Line Adjustment

LOCATION(S) - STREET ADDRESS(ES)
See attached legal description

SUBDIVISION NAME
Dowe Flats Development Parcel

LOT(S)	BLOCK(S)	SECTION(S)	TOWNSHIP(S)	RANGE(S)
		Parts of S½ 16 + N½ 21	3 North	70 West

AREA IN ACRES	EXISTING ZONING	EXISTING USE OF PROPERTY	NUMBER OF PROPOSED LOTS
153	Agricultural	Limestone Quarry	11

PROPOSED WATER SUPPLY	PROPOSED SEWAGE DISPOSAL METHOD
Longs Peak Water Districe (Longmont taps)	Individual sewage disposal systems

APPLICANTS

APPLICANT/PROPERTY OWNER			STREET ADDRESS	
CEMEX, Inc.			1200 Smith Street, Suite 2400	
CITY	**STATE**	**ZIP CODE**	**PHONE NUMBER**	**FAX NUMBER**
Houston	Texas	77002	(713) 653-8561	(713) 653-8569

APPLICANT/PROPERTY OWNER			STREET ADDRESS	
CITY	**STATE**	**ZIP CODE**	**PHONE NUMBER**	**FAX NUMBER**
			( )	( )

APPLICANT/PROPERTY OWNER			STREET ADDRESS	
CITY	**STATE**	**ZIP CODE**	**PHONE NUMBER**	**FAX NUMBER**
			( )	( )

AGENT/CONSULTANT			STREET ADDRESS	
Paul Banks - Banks and Gesso, LLC			720 Kipling St., Suite 117	
CITY	**STATE**	**ZIP CODE**	**PHONE NUMBER**	**FAX NUMBER**
Lakewood	Colorado	80215	(303) 274-4277	(303) 274-8329

AGENT/CONSULTANT			STREET ADDRESS	
CITY	**STATE**	**ZIP CODE**	**PHONE NUMBER**	**FAX NUMBER**
			( )	( )

CERTIFICATION

I certify that the information and exhibits I have submitted are true and correct to the best of my knowledge In filing the application I am acting with the knowledge and consent of those persons who are owners of the subject property or are parties to this application I understand that all materials required by Boulder County must be submitted prior to having this matter processed I understand that public hearings or meetings may be required I understand that additional fees or materials may be required as a result of considerations which may arise in the processing of this docket I understand that the road, school and park dedications may be required as a condition of approval

I understand that I am consenting to allow the County Staff involved in this application or their designees to enter onto and inspect the subject property at any reasonable time, without obtaining any prior consent

SIGNATURE	DATE
X John W Banks	12/18/02
X	

PLEASE NOTE

PLEASE REFER TO THE REGULATIONS AND APPLICATION SUBMITTAL PACKAGE FOR COMPLETE APPLICATION REQUIREMENTS

● PLEASE SEE BACK ●

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

AGREEMENT FOR PAYMENT OF LAND USE DEPARTMENT APPLICATION FEES AND FOR PROCESSING OF APPLICATION IN ACCORDANCE WITH THE BOULDER COUNTY LAND USE CODE

CEMEX, Inc.
_____ as Property Owner/Applicant, and
_____ as Owner's Agent on Application, if different from Owner (collectively "APPLICANT"), AGREE AS FOLLOWS with the County of Boulder and its Land Use Department (collectively "COUNTY"), in consideration of the County's acceptance of Applicant's application for the land use approval as further described below:

1. Applicant has submitted to County an application for approval of: Subdivision Exemption Survey Plat - Dowe Flats Development Parcel ("Application").

2. Applicant acknowledges and understands that Board of County Commissioners Resolution No. 92-155 establishes a fee structure for County Land Use Department applications. This includes a non-refundable deposit which must be paid prior to the Department's acceptance of any application for processing, and provision for billing the Applicant for any costs of processing applications which may accrue above the non-refundable deposit amount. Resolution No. 92-155 and its respective billing rates as they may be duly amended from time to time by the County, and this Agreement, shall govern the payment of fees for the processing of the Application.

3. The Application shall not be accepted for processing unless the property owner of record of the property included in the Application signs this Agreement. In the case of multiple property owners, the Director of the County Land Use Department ("Director") shall have the discretion to determine which owner(s) shall sign.

4. The Applicant shall be billed by the County Land Use Department ("the Department") for all direct and indirect costs (including but not limited to staff time of the Departmem, the County Attorney's Office, and the Coumty Transportation, Health, and Parks Departments); mailing, copying, recording, and publication fees and costs; and authorized consultants' fees incurred by the County), which the Department has accrued to date in processing the Application. The Department will continue to bill the Applicant until all costs have accrued and are paid.

5. The Applicant agrees to pay all such bills in full, and by whatever manner of payment is specified as acceptable by the Director, by delivery made to the Department no later than one month after the billing date. The Director shall have the discretion to suspend processing of the Application if any payments under this Agreement are not made on time. This suspension may involve the postponement of scheduled Planning Commission or Board of County Commissioner hearings or meetings, and the incurrence of additional costs such as for renotification or republication. Similarly, the Director shall have the discretion to terminate the processing of any Application for which any billed payment is more than three months overdue.

Jona L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner

12. The Applicant agrees to waive any requirements for the Applicant's written consent to extend voluntarily any public hearing or other deadline associated with processing the Application, if the Applicant or its representative agrees orally to any such extension.

13. The Applicant acknowledges that the Applicant executes this Agreement freely, voluntarily, and without threat of compulsion. The Applicant understands that the Applicant may consult an attorney or any other person concerning the Application or this Agreement prior to executing this Agreement, if the Applicant so chooses.

14. Acceptance of the Application for filing and receipt of the Application fee deposit do not necessarily mean that the Application is complete under the applicable requirements of the Land Use Code.

15. This Agreement shall be construed and enforced in accordance with the law of the State of Colorado.

APPLICANT:
(Note: Property owner must sign, per Paragraph 3, above)

By: _____ By: _____
Date: 12/18/02 Date: _____

By: _____ By: _____
Date: _____ Date: _____

BOULDER COUNTY

By: _____ Date: _____
Land Use Director or Designee

For Land Use Department Use

Docket Number: _____
Docket Name: _____
Deposit Amount and Date Received: _____

Allen David L & Barbara A
1125 Stone Canyon Rd
Longmont CO 80503

Arapahoe Chemicals Inc
2075 55th Street
Boulder CO 80301

Baird Noel W & Tim D Kier
6544 E Willow Street
Long Beach CA 90815

Bowes Stpehen K & Terry L
5595 Ute Hwy
Longmont CO 80503

Braly Land Co LLC
1800 Pike Rad
Longmotn CO 80501

Braly Shari
203 W Spring Drive
Austin TX 78746

Brenner Gary R & Shirley E H (JT)
13197 N 53rd Street
Longmont CO 80503

Carter George M & Lila H
5455 N Dakota Ridge Road
Longmont CO 80503

City of Longmont
1100 S Sherman Street
Longmont CO 80501

Daudt Stephen W & Sharon E
1657 Stone Canyon
Longmont CO 80503

Dirkes Fred David
4413 Morgan County Rd 36
Brush CO 80723

Dunn Thomas L & Nancy J
6400 Rabbit Mountain Rd
Longmont CO 80503

Eaton Jonathan B & Tracey
4702 Highland Dr
Longmont CO 80503

Ekendahl James E & G Joe Webster
216 Kula Hwy B
Kula HI 96790

Ellis George W & Darcy M Ellis
13037 N 53rd
Longmont CO 80503

Ernst Beverly A
4858 Highland Drive
Longmont CO 80503

First Interstate of Denver
NA Hill Found
PO Box 659
Wichita Falls TX 76307

Fischer Farms Dev. Inc.
1731 15th St, Suite 250
Boulder CO 80302

George Dorothy M
12996 Foothills Hwy
Longmont CO 80503

Graham Rober & Connie Living Trust
4617 Highland
Longmont CO 80503

Hagedorn Marcia & Mikel
2185 Keota Ln
Superior CO 80027

Hickman Lois
5125 Ute Hwy
Longmont CO 80503

Johnson Cindy & David W
1810 Stone Canyon Rd
Lyons CO 80540

Jones & Co
4708 Highland Drive
Longmont CO 80503

Jones James Richard Jr & Mary Colleen
4708 Highland Drive
Longmont CO 80503

Kelley Vincent L & Ada M & Ernest R Owen
4602 Highland Drive
Longmont CO 80503

Kline R E
PO Box 410
Lyons CO 80540

Loukonen Leonard
PO Box 333
Lyons CO 80540

Madhava Honey Ltd
4689 Ute Hwy
Longmont Co 80503

Mahoney Philip S & Carolann
5565 Ute Hwy
Longmont CO 80501

Martin John M
5169 Ute Hwy
Longmont Co 80503

McCain Gene Edward & Lynn Marie
5099 Ute Hwy 66
Longmont CO 80503

Moersch Kevin P
6306 Ute Hwy
Longmont CO 0503

Montgomery Donald E
5435 Ute Rd
Longmont CO 80501

Neuschaefer John & Kandy Tigerman
1328 N 53rd St
Longmont CO 80503

Oligarchy Famrs Inc (43)
7001 Rozena Drive
Longmont CO 80503

Owen Gwynne L
4602 Highlands Drive
Longmont CO 80501

Phillips Robert & Frances A
7850 Ute Hwy
Longmont CO 80503

Ramey John
PO Box 1850
Estes Park Co 80517

Robert & Connie Graham Living Trust
4617 Highland Drive
Longmont CO 80503

Roche Colo Corp
2075 N 55th Street
Boulder CO 80301

Rosenberg Ellen
13018 N 53rd St
Longmont CO 80503

Rothe Edgar F & Luann L
5555 Ute Hwy
Longmont CO 80503

Satur Gary L & Patricia A
1621 Stone Canyon Rd
Longmont CO 80503

Sherwood Donald J
353 Main Street
Longmont CO 80501

Silco Oil Co
3244 9th Street
Boulder CO 80304

Stratton Gary L & Sharron S
5617 Ute Rd
Longmont CO 80503

Toledo Suzanne Simmons
1649 Stone Canyon Rd
Longmont CO 80503

Toteve John E Jr. & Margaret L
13151 N 61st Street
Longmont CO 80503

US Forest Service
Attn Land Staff
2140 Yarmouth
Boulder CO 80301

Wall Jerilyn Dianne & Margaret L Toteve
4945 Highland Drive
Longmont CO 80503

Wallace Harry J & Charlotte H
4945 Highland Drive
Longmont CO 80503

Weston Michael L
5291 Ute Hwy
Longmont CO 80503

Winans John D & Eileen
3244 9th Street
Boulder CO 80304

Zenobia Paul J Estates & Frances E
1301 Parkview Blvd
Colorado Springs CO 80906

Jeff Moline
County Transportation Dept

Inter County Mail

Linda Flowers
County Health Dept

Inter County Mail

Clark Misner
County Transportation Dept

Inter County Mail

Cemex Inc
1200 Smith St Suite 2400
Houston TX 77002

Paul Banks
Banks & Gesso LLC
720 Kipling St. Suite 117
Lakewood CO 80215

Banks and Gesso, LLC

720 Kipling St.,Suite117
Lakewood, Colorado 80215

(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

RECEIVED
AUG - 5 2003
BOULDER COUNTY
LAND USE DEPT.

August 1, 2003

Mr. Todd Tucker
Boulder County Land Use Department
P.O. Box 471
Boulder, CO 80306

Re: Docket # SE-03-01; Cemex Dowe Flats Subdivision Exemption Plat Recordation

Dear Todd:

Attached please find 2 sets of the following draft documents, related to the above referenced docket number and required by Resolution 2003-63, for your review and final approval:

1. Subdivision Exemption Plat (2 sheets); — UNDER REVIEW — 8/6/03
2. Draft Warranty Deed for the severed parcel; — ok LINDA
3. Tax Certification Letter; — ok
4. Letter from the Hygiene Fire Department approving the access roads. — ok — Sent email 9/11/03

A title report for the development parcel was previously submitted with the subdivision exemption application and is included in the docket.

Please let me know if any changes are required. Upon approval, we will file the Plat and Warranty Deed with the Boulder County Clerk and Recorder. The Conservation Easement and Deed required by the 2002 'Purchase Agreement' have been drafted and agreed upon by Cemex's and the County's respective counsel, and will be conveyed to the County by Cemex immediately following the recordation of the Plat.

Please let me or Paul Banks know if you have any questions. Thank you.

Sincerely,

Maureen Jacoby

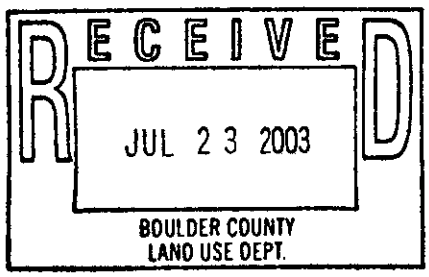
Maureen Jacoby

cc: Nolan Fry, Cemex, Inc.
Dave Hayes, Petros & White, LLC

Hygiene Fire Department

P.O. Box 83
Hygiene, Colorado 80533

July 21,2003



Mr. Todd Tucker
Boulder County Land Use Department
P.O. Box 471
Boulder, CO 80306

Re: Cemex, Inc. -Dowe Flats Subdivision
Emergency Access Routes

Dear Todd,

I have received and reviewed a copy of the Site Plan -Compromise Configuration approved by Docket#SE-03-01, and the access roads as shown are acceptable to the Hygiene Fire Department. If you have any questions or concerns please feel free to call,

Thank you,

John E. Hoffman Jr. (J.J.)
Fire Chief

Phone- (303) 775-1461
Pager -(303)441-3851 #2861

Cc: Banks and Gesso, LLC , Maureen Jacoby

THE HIGHLAND DITCH COMPANY
4309 State Highway 66
LONGMONT, COLORADO 80504
970.535.4531

RECEIVED
MAY 19 2003
BOULDER COUNTY
LAND USE DEPT.

May 14, 2003

Todd Tucker Boulder County Land Use Department
Courthouse Annex
2045 13th Street
Boulder, Colorado 80302

SUBJECT: DOCKET SE-03-01: CEMEX, INC.
DOWE FLATS SUBDIVISION EXEMPTION

Dear Todd:

We have reviewed the referenced Docket and would like to comment. This road provides access to the Highland Ditch, which is useful. Highland supports leaving the main access road from Highway 66 in place.

We have had no problems having access through Cemex and feel this will not be a future problem, realizing, the area is privately owned and will remain as such.

The proposed subdivision at this time does not look to be a problem.

Sincerely,
The Highland Ditch Board Members
Dave Bachman
Dave Bachman, Superintendent

Banks and Gesso, LLC

720 Kipling St ,Suite117
Lakewood, Colorado 80215

(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

RECEIVED
MAY 19 2003
BOULDER COUNTY
LAND USE DEPT.

May 15, 2003

Mr. Todd Tucker
Boulder County Land Use Department
P.O. Box 471
Boulder, Colorado 80306

Re: Docket **# SE-03-01**
Cemex, Inc., Dowe Flats Subdivision Exemption

Dear Todd:

Attached please find two letters we recently received from the Rough and Ready Irrigating Ditch Company and the Supply Irrigating Ditch Company in support of maintaining the existing access road to Cemex's Dowe Flats property off Highway 66. Also included is a copy of a letter sent to you from the Highland Ditch Company indicating their support as well.

Please provide these letters to the Board for their consideration of Cemex's request. Thank you.

Sincerely,

Maureen Jacoby

Maureen Jacoby

Cc: John Lohr, Cemex, Inc.
Nolan Fry, Cemex, Inc.

May 12, 2003

Maureen Jacoby
Banks and Gesso, LLC
720 Kipling Street, Suite 117
Lakewood, Co. 80215

Re.: Cemex Ditch Crossing

Dear Mrs. Jacoby:

The Rough and Ready Irrigating Ditch Company is supportive of the proposal to leave the bridge for the haul road during and after future residential development of Cemex' Dowe Flats property.

If you need anything additional from the Ditch Company, please do not hesitate to call.

Sincerely,

Dan Grant
Secretary/Treasurer
Rough and Ready Irrigating Ditch Company
(303) 678-4179
P.O. Box 1826
Longmont, Co. 80502-1826

RECEIVED
MAY 1 4 2003
BANKS & GESSO, LLC

Maureen Jacoby
Banks and Gesso, LLC
720 Kipling Street, Suite 117
Lakewood, Co. 80215

Re.: Cemex Ditch Crossing

Dear Mrs. Jacoby:

The Supply Irrigating Ditch Company is supportive of the proposal to leave the bridge for the haul road during and after future residential development of Cemex' Dowe Flats property.

If you need anything additional from the Ditch Company, please do not hesitate to call.

Sincerely,

Dan Grant
Secretary/Treasurer
Supply Irrigating Ditch Company
(303) 678-4179
P.O. Box 1826
Longmont, Co. 80502-1826

RECEIVED
MAY 12 2003
BANKS & GESSO, LLC

THE HIGHLAND DITCH COMPANY
4309 State Highway 66
LONGMONT, COLORADO 80504
970.535.4531

May 14, 2003

Todd Tucker Boulder County Land Use Department
Courthouse Annex
2045 13th Street
Boulder, Colorado 80302

SUBJECT: DOCKET SE-03-01: CEMEX, INC.
DOWE FLATS SUBDIVISION EXEMPTION

Dear Todd:

We have reviewed the referenced Docket and would like to comment. This road provides access to the Highland Ditch, which is useful. Highland supports leaving the main access road from Highway 66 in place.

We have had no problems having access through Cemex and feel this will not be a future problem, realizing, the area is privately owned and will remain as such.

The proposed subdivision at this time does not look to be a problem.

Sincerely,
The Highland Ditch Board Members

Dave Bachman, Superintendent

Date: 5-15	# Of Pages: 1
To: Maureen J.	From: Jill
Co./Dept.:	Co./Dept.: Highland Ditch
Fax: 303) 274.8329	Fax:
Phone:	Phone: 970.535.4531
Note: From Bob Schaget	E-Mail:

QUICK FAX OfficeMax

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

BOARD OF COUNTY COMMISSIONERS
AGENDA ITEM

THURSDAY, MAY 22, 2003 – 9:00 A.M.
Hearing Room, Third Floor, Boulder County Courthouse

PUBLIC HEARING

STAFF PLANNER: Todd C. Tucker

STAFF RECOMMENDATION RE:

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA

Request:	Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size fiom 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement.
Location:	At 13301 N. 55th Street, in Section 36, T2N, R71W
Zoning:	Agricultural (A)
Applicant:	CEMEX, Inc.
Agent:	Banks & Gesso, LLC / Paul Banks

DISCUSSION:

The applicant has proposed to situate eleven building lots on 50 acres of the proposed 153 acre development parcel located west of County Road 47 (53rd St.) and north of the Ute Highway; as generally required in the purchase agreement between Cemex and Boulder County. The proposal is related to the preservation of about 800 acres of open space in the Dowe Flats area.

Staff generally supports approval of the proposal, however staff also finds that proposed lots 1, 2, 3, and the existing / proposed access roads conflict with specific provisions of the Land Use Code and various policies of the County Comprehensive Plan. Thus, as detailed in the following analysis and criteria staff recommends conditional approval and the subsequent reloçation of proposed lots 1,2,3 and the access roads including the closure of the existing haul road to CO 66 (Ute Highway). In addition, staff is under the impression that the Colorado Department of Transportation has issued a temporary access permit to Cemex for this particular road connection. The terms of this access pemit generally limit its use to truck traffic only and therefore, generally provide for the removal of this access connection to CO 66 upon closure of the mining operations.

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

and road alignments. The survey shall be recorded with the Clerk and Recorder in conjunction with the requisite deeds acknowledging the subdivision exemption action.

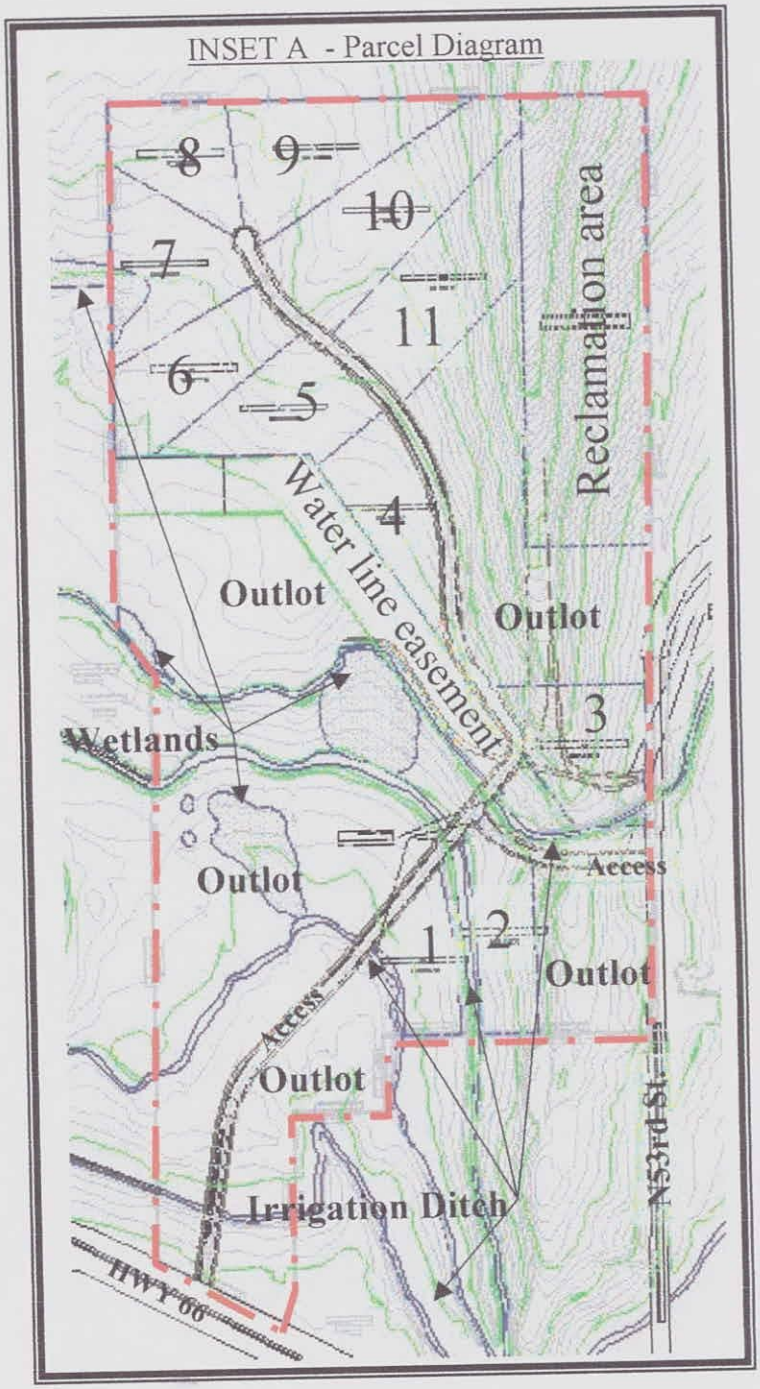
14) All approvals associated with the Docket are contingent upon satisfaction of all contingencies of the 2002 (Conservation Easement) Purchase Agreement, and the closing of the conveyances of conservation easements provided for therein (see condition 16).

15) The property owner or their agent shall obtain all applicable federal, state, and legally required local permits as required at time of authorized residential development (this requirement shall be noted on the exemption plat).

16) In consideration of the immense public benefit to be gained through the preservation of significant portions of valued plains ecosystem land as accomplished through the July 11, 2002 Purchase Agreement between the County and Applicant, and in light of the fact that the development requested in the Docket is of a relatively minimal nature, scope, and impact compared to the development which could have occurred absent the County's acquisition of substantial fee and conservation easement and other interests in the Subject Property and other property of the Applicant, the BOCC intends for the right to develop each of the approved lots for a residence (to the extent the County does not purchase the development rights pursuant to the option terms of the Purchase Agreement), to be perpetual, and that such right to develop shall not be diminished by any future changes in the law, such as rezoning or more restrictive lot size or lot number requirements. Paragraph 30 of the Purchase Agreement requires Application to convey the "Annexation Corridor" and a Conservation Easement in Gross to the County, if the County approves the platting of the eleven development rights as a block and vests the Applicant's ability to build eleven single family residences on the Development Parcel. The BOCC finds and determines that such conveyances by the Applicant, together with the previous grant of options to the County pursuant to the Purchase Agreement, constitute substantial and in good faith steps by the Applicant in reliance on the approvals granted herein, and the County waives the right to assert, and it shall be estopped from asserting, a position to the contrary. In the event the approvals granted herein are not vested in perpetuity, then the conveyance of the Annexation Corridor and Conservation Easement in Gross pursuant to Paragraph 30 of the Purchase Agreement shall be subject to a reversion to Applicant or its successors. This perpetual approval is subject to the Applicant meeting all terms and conditions as stated herein.

This permanent vesting approval extends to and assures the right to develop the subject eleven lots, in their approved number and size for single-family residential use. The lots shall be subject to all other County Zoning and Building Permit Requirements in effect at the time of development which are prerequisite to the issuance of a building permit for residential development of each lot, including but not necessarily limited to applicable site plan review, access review, and building permit review (this requirement shall be noted on the exemption survey plat).

The property is within the Longmont, Lyons, St. Vrain, Subregion as defined in the Boulder County Comprehensive Plan. According to the County Comprehensive Plan *"(t)he St. Vrain Valley is the most highly irrigated portion of Boulder County and consequently contains the most productive agricultural lands. It is within the purpose of the following policies to acknowledge the land use character of this subregion as being agricultural in nature." "The environs of St. Vrain Creek contain significant resources for the continued livelihood of the Valley, county and region. Existing within the creek's surroundings are wildlife habitats, significant agricultural lands, recreational opportunities and commercial mineral deposits. Perhaps most important, the creek is the source of water which is extensively used for agricultural, manufacturing and domestic purposes. With these varying interests continually competing for resource utilization and preservation, it becomes evident that comprehensive land use management policies be developed. Such policies as mineral resource utilization, wildlife habitat preservation, and agricultural land use have been formulated to guide future decisions affecting the St. Vrain Creek environs as well as other riparian areas of the county."*



Dowe Flats, located east of Lyons along State Highway 66 and is within the Longmont, Lyons, St. Vrain, subregion, as noted in the County Comprehensive Plan. Dowe Flats contains significant plains ecosystems and resources such as riparian habitats. The applicant, CEMEX, Inc., has been working with the County to facilitate the preservation of Dowe Flats, upon completion of the mining operations. Specifically, on July 11, 2002, CEMEX and the County entered into a Purchase Agreement, Lease and Option to Purchase ("Purchase Agreement") concerning Dowe Flats. Pursuant to the Purchase

Agreement, Dowe Flats was partitioned and the County acquired over 800 acres of land in Dowe Flats, including property immediately adjacent to the Rabbit Mountain Environmental Conservation Area and the Indian Mountain Open Space. The County also acquired the development rights associated with 385 acres of the approximately 800 total acres retained by CEMEX in Dowe Flats. In addition, the County obtained options to acquire the remainder of the applicant's Dowe Flats property and the development rights associated with that property. This application is submitted as a requirement of the Purchase Agreement. As such, the applicant seeks to transfer and cluster the remaining development rights for eleven residential lots to within the proposed ±153 acre development parcel. The eleven lots will cover approximately 50 acres and the remaining 103 will be acres preserved as open space. This process facilitates the County's ability to exercise the various options, and, in the event the County does not exercise its options, will minimize the impact of the proposed development and maximizes the open space at Dowe Flats. Note that, if the County exercises its options under the Purchase Agreement for all the development rights associated with the parcel, then no development would occur. If the County does not exercise its options, Cemex cannot develop the lots until the earlier of either the completion of mining and reclamation, or the year 2025. Further, an assignment of CEMEX's rights and obligations under the Purchase Agreement requires the County's consent.

This application also consists of a request to sever the Plant Entrance Parcel (south of CO 66) from the proposed 153-acre development parcel located north of CO 66 and combine it with the Cemex cement plant parcel (south of CO 66).

The project area generally includes land in the southeast part of Dowe Flats, east of Lyons, north of the State Highway 66 corridor, and immediately west of the existing Cemex limestone mine. This region of the county is at the southern edge of the Rabbit Mountain Environmental Conservation Area (ECA) as designated in the Boulder County Comprehensive Plan. The ECA designation is intended to protect the important flora and fauna features within the area, including significant natural communities, as well as the ecological processes that accompany the landscape. Because of the past agricultural uses on the subject property, much of the project site (Lots 4 through 11) consists primarily of disturbed upland grasslands. Proposed Lot 3 is on the southern end of the limestone ridge north of the irrigation ditches, and has been heavily impacted by the on-going mining operations. Proposed Lots 1 and 2 are in close proximity to the trees and shrubs associated with irrigation ditches, they too have been altered by ongoing mine operations. Vegetation resources of note include the irrigation ditches and associated wetlands. While Lots 1 through 3 are adjacent to the water supply ditches, Lots 4 through 11 are ±600 feet to ±1000 feet away from the irrigation ditches. The proposed access roads to the development follow the existing haul road for over half its roughly 4000 foot length. A new roadway segment is proposed across the already disturbed grassland portion of the property. At this time, it appears that none of the project will directly affect riparian or wetland vegetation. Prairie dogs have colonized the very northeast corner of the subject property (near the reclamation area).

The Preble's Meadow Jumping Mouse (PMJM) has been identified as a Threatened Species pursuant a 1998 Federal Endangered Species Act. Three of the four water supply ditches have been identified as Mouse Management Areas. These ditches include the Highline, Rough and Ready, and Supply Canal irrigation ditches. The existing irrigation ditches have provided an

opportunity for vegetation and the development of an associated wildlife habitat. The habitat has become and will likely continue to be a significant resource for raptors, mouse habitat, and other wildlife. As noted previously, proposed parcels 1, 2 and 3 are adjacent to these three irrigation ditches and existing resource areas.

The property is zoned Agricultural. Article 4-102 Agricultural (A) District describes the purpose of the district as "*Rural areas where conservation of agricultural resources is of major value, and where residential development compatible with agricultural uses is allowed.*"

REFERRAL RESPONSES:

This application for a Subdivision Exemption was sent to the standard referral agencies and departments, and adjacent property owners (within 1,500 feet of the 1,600 acre Dowe Flats property) for comment (approximately 60 owners). A summary of the responses received follows with all comments attached for detailed consideration.

Referral Agencies or Departments indicating no Conflict – City of Longmont Water/Wastewater Department, City of Longmont Planning Department, City of Longmont Water/Wastewater.

County Transportation Department – In concept, the Transportation Department has no major issues with the proposed development, however, the Transportation Department has the following recommendations:

1. Eliminate the existing access road off of Colorado State Highway 66 into the development as a proposed access and use only the access from County Road 47;
2. Move the access on CR 47 northward to align with the current access road and avoid conflicts with the proposed 200' water line easement and utilize the existing access from CR 47 (Note: that applicant indicates that the 200 foot utility corridor was located in consultation with the City of Longmont.).
3. Lots 1 and 2 could be eliminated upon elimination of the access from CO 66, unless easements were granted by appropriate parties. This would result in a more suitable and acceptable density of eight parcels in the area.

County Parks & Open Space Department – The impacts of the proposal are extremely hard to assess given that the development (if it ever occurs) won't occur for over 20 years. Lacking any other method for analyzing this development, staff has chosen to examine it based on the existing resources and conditions that can be easily predicted based on general landscape features. Furthermore, the impacts of this clustered development should be weighed against the impacts to the site if the clustering didn't happen and eleven 35-acre parcels (or even greater development if the site was annexed) were scattered across the middle of Dowe Flats. In that case, the parcels would extend further into the Rabbit Mountain ECA and disrupt the larger site. By clustering the lots along the south side of the property, [as proposed], the lots are closer to existing residential development. That being the case, the project would primarily add to the cumulative impacts of the nearby development. Mining and reclamation should end prior

to commencement of this project, so there shouldn't be much disturbance or activity on the lands to the north of the site.

The project area generally includes land in the southeast part of Dowe Flats--east of Lyons, north of the State Highway 66 corridor and immediately west of the existing Cemex limestone mine. This region of the county is at the southern edge of the Rabbit Mountain Environmental Conservation Area (ECA) as designated in the Boulder County Comprehensive Plan. The ECA designation is intended to protect the important flora and fauna features within the area, including significant natural communities, as well as the ecological processes that accompany the landscape. Because of the past agricultural uses on the property, much of the project site (Lots 4 through 11) consists primarily of disturbed upland grasslands. Lot 3 is on the southern end of the limestone ridge and has been heavily impacted by the on-going mining operations. While Lots 1 and 2 are in close proximity to the trees and shrubs associated with irrigation ditches, they too have been extremely altered by mine operations. Vegetation resources of note include the irrigation ditches and associated wetlands. While Lots 1 through 3 are adjacent to the ditches, Lots 5 through 11 are at least 600 feet from the ditches and most are over 1000 feet away from them. The proposed access road to the development follows the existing haul road for over half its roughly 4000-foot length. The new roadway segment is through the already disturbed grassland portion of the property. At this time, it appears that none of the project will directly affect riparian or wetland vegetation. Prairie dogs have colonized the very northeast corner of the subject property.

This general area has been the subject of numerous environmental studies, first for the mining operations and more recently for the City of Longmont's water treatment plant and associated pipelines. From these past studies, the importance of Dowe Flats as grassland habitat for prairie dogs and raptors is very clear. Preble's meadow jumping mice *(Zapus hudsonius preblei)* have been found about a mile from the site and suitable habitat is present along the nearby irrigation ditches. However, trapping surveys in this general area (for the water treatment plant and pipelines) have not captured any PMJM. The mature trees along the irrigation ditches have harbored roosting Bald Eagles and other raptors in the past, but use of the ditches in the vicinity of the subject property appears to have trailed off according to the more recent monitoring studies for the mine. Nevertheless, during the review of the water treatment plant project, the Colorado Division of Wildlife cited the importance of the "riparian" vegetation along the ditches as movement corridors for wildlife and the use of mature trees as raptor roost sites. The CDOW recommended a buffer of 100 feet from the ditches for protection of the habitat. If bald eagles used the trees, CDOW recommended a buffer of ¼ mile for their protection.

At this time, if prairie dogs would be displaced by development of the project, staff would recommend that they be removed from the site and relocated to adjacent County property if appropriate. Furthermore, the applicants would need to check for burrowing owls if construction occurred in prairie dog colonies between March 1 and October 31.

Because of their proximity to the riparian vegetation of the ditches, Lots 1 and 2 will have some environmental impacts to wildlife using these areas. Although these areas are extremely disturbed and denuded in large parts at this time, following the conclusion of mining and reclamation, they could easily serve as upland habitat adjacent to the irrigation ditches. At that point the mature vegetation of the ditches could harbor a variety of species including eagles and other raptors using these trees to roost. Also, there is an active prairie dog colony encroaching on the site and this could easily expand on the property. At this time, if prairie dogs would be displaced by development of the project, staff would recommend that they be removed from the site and relocated to adjacent County property if appropriate. Furthermore, the applicants would need to check for burrowing owls if construction occurred in prairie dog colonies between March 1 and October 31.

The only nearby County property with public recreation use at this time is Rabbit Mountain, north and east of the project. While this development maybe visible to visitors of nearby County Open Space, staff feels that the clustered design on relatively large lots will be less intrusive than spreading the eleven home sites across 385 acres.

Specific recommendations:

1. Immediately prior to any development, the applicants shall study and survey the natural resources of site and surroundings. The applicant must ensure that no significant resources are adversely affected by the project. At a minimum this would include any necessary wildlife studies and permissions from local, state, and federal agencies. Any impacts to wildlife and vegetation must be adequately mitigated.
2. The applicant should consider moving Lots 1 and 2 north of the Supply Ditch to minimize resource impacts.
3. The County should review and approve any necessary grading, construction, and erosion control plans at the time of development
4. In the interim, the portions of the property outside the active mine site should be managed to conserve natural resources. This should include aggressive weed control and the establishment of native grasses.
5. The applicant shall notify the County immediately if any significant environmental, historic, or cultural resources are encountered during the construction activity.

County Health Department – Drinking water will be supplied by the City of Longmont.

Application for and issuance of an individual sewage disposal system (ISDS) permit must be made prior to system installation. This Department must conduct an onsite investigation and review percolation rates, soil conditions and any design plans and specifications prior to permit issuance. The proposed absorption field must be located a minimum distance of 100' from all wells, 25' from waterlines, 50' from waterways and 10' from property lines.

Under the provisions of the Colorado Water Quality Control Act, this applicant may need to obtain a general permit for stormwater discharges associated with development of a property greater than 5 acres. The applicant should contact the CDPHE, Colorado Water Quality Control Division at (303) 692-3590 to determine the requirements.

Any constmction or disturbance of land that is one (1) acre or greater shall submit a fugitive particulate emission abatement and control plan to the Boulder County Health Department, Environmental Health Program for review prior to commencing constmction activities.

The Rocky Mountain Region has been ranked as a Zone 1 area for radon by the Environmental Protection Agency. A Zone 1 area has the highest radon potential possible. Radon is also listed as a Group A carcinogen and is definitely known to cause cancer in human beings. It is recommended that all new dwellings and buildings be built using EPA recommended Radon-Resistant Constmction Techniques. Information on these constmction techniques can be provided by the Environmental Health Program/Boulder County Health Department upon request.

US Fish and Wildlife Service – Based on the information provided, the Service finds the report acceptable and agrees that a population of Preble's is not likely to be present within the subject area. Thus, the Service concludes that the proposed project on this site should not have direct adverse effects to Preble's. Should Preble's populations exist downstream from the site, actions on the site that result in significant modifications of Preble's habitat downstream (for example, through alteration of existing flow regimes, or sedimentation) may be subject to provisions of the ESA.

Adiacent Property Owners – The Land Use Department has received two responses from adjacent property owners. All responses received are attached for review and summarized below.

John Martin – Luxury homes on large lots are incompatible with the agricultural and open space uses of the adjoining properties. Prefers open space or agricultural uses to the proposed development. Believes it unwise for the County to commit so far in advance of the development. Suggests the applicant return in 15 years for consideration at that time.

Ellen Rosenberg – Prefer that the land be reclaimed to natural prairie or agricultural use. Second preference would be open space.

CRITERIA REVIEW:

Section 9-102 (A) of the Boulder County Land Use Code sets general criteria for Subdivision Exemptions. Staff has reviewed these criteria and finds the following:

9-102(A)(1) Any new parcel created shall not increase the degree of nonconformity of an existing structure.

The subject property is located within the Agricultural Zoning District and is currently part of a mineral extraction operation. The proposal would not increase the degree of non-conformity for any existing structure. Any future development would be required to meet the applicable requirements of the County Land Use Code, including but not limited to the height and setback requirements of the Agricultural Zoning District, and other applicable requirements (I.E. Site Plan Review).

9-102(A)(2) **No exemption shall be approved if development will occur on a topographic or geologic hazard.**

The proposed 153-acre development parcel is predominantly level with some topography along the easteru boundary. The Comprehensive Plan did not indicate any particular topographic or geologic hazard on or near the proposed development area. However, the property is subject to a Moderate Geologic Constraint with regard to Landslides, Mudslides, Mudfalls, and Debris fans, as well as expansive soils or Claystone. These constraints are typically addressed at the building permit phase of the proposed development. In addition, any future septic system would be required to comply with the requirements of the County Health Department. However, the application notes that there are no plans for the development of the subject property at this time.

9-102(A)(3) **No exemption shall be approved by the Board within a Floodplain Overlay District, unless it is determined by the County Engineer that all proposed uses are capable of receiving a floodplain development permit.**

The subject parcels are not within a Floodplain Overlay District, nor is the property within an area that is subject to Flash Flooding as noted in the Comprehensive Plan. However, there are four significant water routes that cross or are in proximity to the proposed parcels (Rough and Ready, Highland, Supply Canal, and Palmerton Ditch). In addition the City of Longmont's water line will also bisect the development upon construction. The Land Use Code requires that all development maintain a minimum distance of 50 feet from the edge of any irrigation ditch (article 4-102(E)(2)(d) "*From an irrigation ditch...50 feet from the centerline of the ditch. This requirement only affects structures built after October 10, 1996. The setback may -**with County concurrence**- be reduced in accordance with a letter from the applicable ditch company establishing a different setback, but in any event shall not be less than 20 feet from the ditch centerline.* (10/10/96) (11/25/97)." In addition, any proposed ditch crossing will require the applicant to demonstrate approval by the appropriate interest holder.

9-102(A)(4) **All proposals for the development of parcels created should conform to the provisions of Article 7 of the Land Use Code, including access.**

Article 7 as referenced above is attached and herby incorporated into the approval of this application per the requirements of Article 9-102(A)(4) of the Land Use

Code. Staff finds that the proposal generally complies with the provisions of this requirement. However, staff has some concern that proposed lots one, two, and three may exhibit some conflicts with the criteria defined in Article 7-200(A)(1), (2), and 7-200(B)(10) (below). In addition, the applicant will be required to demonstrate sufficient water supplies and sewage disposal systems, sufficient fire protection, Utility line locations and sufficient utility services, school and parks dedications, etc., upon application for a building permit should a residence be constructed as potentially anticipated. Of note is that the CDOT access permit to CO 66 states: "*Private direct access to the state highway system shall be permitted only when the property in question has no other reasonable access to the general street system or if the local authority and Department determine and agree that denial of direct access to the state highway and alternative direct access to another roadway would cause un acceptable operation and safety problems to the overall traffic flow of the general street system.*" In addition the permit states: "*No more than one access shall be permitted to an individual parcel or to contiguous parcels under the same ownership unless it can be shown that (1) additional access would be significantly beneficial to the safety and operation of the highway, or (2) allowing only one access would be in conflict with local safety regulations.*" Furthermore, "*The proposed haul route and crossing would be restricted to use by haul trucks only. Other traffic associated with the cement plant operation (employees, customers, etc) would continue to use the existing county roads. The purpose of the constructing a designated haul route is to separate the truck traffic from other traffic on the county roads and to move the haul trucks directly across SH 66 rather than operating along SH 66 and making turning movements to and from SH 66. Thus, the impacts of these trucks on traffic operations and safety on SH 66 will be substantially lessened.*" Therefore, staff finds that the access to CO 66 (SH 66 / Ute Highway) is exclusive to the truck traffic and residential related activities and access are not permitted for this point of entry and the access must be removed prior to construction of the proposed development (see also 7-200(A)(2), 7-200(B)(10), 9-102(A)(5), 9-102(A)(7)).

7-200(A)(1) "*All subdivisions shall result in the creation of lots which are developable and capable of being built upon in conformance with this Code, the Building Code, or other County adopted regulations.*"

As noted in the Parks and Open Space referral and Article 9-102(A)(5) below, lots one, two, and three are adjacent to riparian corridor(s) and known wildlife habitat. As such there are various wildlife issues that may effect future development of these three lots. In accordance with current standards, restrictions on development could occur should it be found that these areas are in use by significant species such as Bald Eagles, the Preble's Meadow Jumping Mouse (PMJM), etc. For, example, the Colorado Division of Wildlife (CDOW) has recommended a buffer of 100 feet from the ditches for protection of habitat. If Bald Eagles used the

trees, CDOW recommends a buffer of ¼ mile from activities for their protection, and generally a 300-foot buffer for PMJM habitat. Thus parcel one, which is about 200 feet wide and sandwiched between the Rough and Ready Ditch and the Highland Ditch, both of which are suitable PMJM habitat, may be subject to significant development limitations and or mitigation efforts. Similar circumstances exist for lots two and three.

7-200(A)(2) *"The design of the development shall eliminate or mitigate the potential effects of hazardous site conditions."*

Currently the proposal has two points of entry, CR 47 (N53rd St.) to the east and CO 66 to the south. Circulation through the site consists of a "Y" or "T" pattern and crosses four irrigation ditches and a water line easement for the City of Longmont. As generally noted in the Transportation Departments referral, Staff has some concern for the safety of the proposed residents and ability to provide for emergency access in the event of a ditch failure, water line break or other maintenance / constrnction on one or more of the crossings. As noted above, the applicant has proposed to access the site from both CR 47 (N53rd St.) and CO 66. CR 47 provides local access to CO 66 and is about 1,800 feet east of the proposed / existing access on CO 66. It is commonly understood that each point of entry onto a collector road, such as CO 66 creates the potential for additional vehicular conflicts (potential health and human safety issues). To reduce the potential for vehicular conflicts, staff suggests that the applicant utilize the County Road for primary access to and from the site. This would aggregate the access from these eleven proposed lots with the existing access for the adjacent properties served by the County Road. This aggregation of traffic could reduce the potential for vehicular conflicts on CO 66 by reducing the number of entry points on the road. For this and other reasons detailed elsewhere in this report, staff suggests the reconfiguration of existing / proposed access to utilize the northern most entry point to 53Rd St. (CR 47) and the closure and decommission / reclamation of the access to CO 66. In addition, an alternative emergency access route should be defined for the northern parcels. Furthermore, the access to CO 66 posses other potential conflicts with the provisions of the Land Use Code as noted in 7-200(B)(10) and 9-102(A)(5) below and elsewhere in this report. Also note that CR 47 (53rd St) is County maintained and that the existing bridges are rated for residential uses (see 7-200(B)(10), 9-102(A)(4), 9-102(A)(5), 9-102(A)(7)).

7-200(B)(10) *"Lots should be arranged to minimize the number of outlots."*

Staff finds that the proposed lot configuration (see Inset A, page 2) fragments the outlot into multiple areas of varying size. Thus, Staff suggests the relocation of lots 1, 2, and 3, as noted below and in the recommended conditions of approval to reduce the number of outlots, provide contiguity for better management of the

agricultural resource, preserve significant wildlife habitat, reduce the need for an access connection to CO 66, (see 7-200(A)(2), 7-200(B)(10), 9-102(A)(5), 9-102(A)(7)), and maintain consistency with the Policies and Goals of the County Comprehensive Plan, the provisions of the Land Use Code, as well as reduce the potential for future conflicts with policies and trends in the regulation of impacts on threatened or endangered species.

Under the current provisions of the Land Use Code staff notes that if approved, any proposed development of the proposed parcels would be subject to all applicable County reviews and process in accordance with the regulations in effect at the time of application for development. In addition, any development would be required to meet with all other the applicable requirements and including a septic permit (issued by the County Health Department) and well permit (issued by the State Engineer) or otherwise demonstrate adequate water and sewer provisions, and/or meet other federal or state requirements.

Provided the conditions of approval are fully implemented, staff finds that the application will generally comply with the provisions Article 7.

9-102(A)(5) **Proposed parcel boundaries and development shall be suitably located and sized with respect to the physical characteristics of the land, the character of the neighborhood, and the County's goals of preserving agricultural and forestry lands.**

There are multiple Comprehensive Plan Designations and policies that are involved or addressed in this application. While staff agrees that there is an immense public benefit gained through the acquisition of the conservation easement on the Cemex / Dowe Flats property (± 800 acres), and that the development requested in the Docket is of a relatively minimal nature, staff has some concern for the potential adverse impact that may occur should lots 1, 2, and 3 be developed as proposed. Lots 1, 2, and 3 are located immediately adjacent to and/or in between the Supply Ditch, Highland Ditch, and the Rough and Ready Ditch. The mature vegetation and trees along these irrigation ditches have harbored roosting Bald Eagles and other raptors in the past. While use of the vegetation by raptors in the vicinity of the property has trailed off recently, these natural resources are utilized by numerous wildlife species, including other threatened or endangered species. Occupation or use of this site, by wildlife, may occur or reoccur at any time and is likely to increase upon closure of the mine operation. Thus the development of lots one, two and three, if approved as proposed, could conflict with this valuable wildlife resource and / or development would likely be severely limit or restrict the develop-ability of these parcels should one or more of these wildlife species, or a yet unidentified or unlisted threatened or endangered species, be found prior to issuance of a building permit and any construction. For example, Bald Eagles have been know to use the trees near lots one and two for roosting and or nesting. As noted previously, if eagles

use these trees, as they have in the past, CDOW recommends a buffer from development of ¼ mile for their protection. In addition, suitable PMJM habitat also exists along the irrigation ditches, adjacent to lots 1, 2, and 3. While no mice have been captured in the immediate vicinity of lots 1, 2, or 3, PMJM have been observed within a mile of the site. The current standards recommended by CDOW for preservation of the Preble's Mouse Habitat is a 300 feet development buffer. Lots 1, 2, and 3 are adjacent to suitable Preble's Mouse Habitat. Lots one and two are about 200 feet wide, and lot three is somewhat wider. Thus, development could be severely limited on these lots due to one or more of these wildlife / environmental requirements should they exist at time of application for a building permit.

Staff also finds that the existing/proposed access roads are potentially problematic. The existing / proposed access to N53rd St. crosses the Supply Ditch, and bisects the City of Longmont's Water Line easement, thus creating potential conflicts with the construction, maintenance and service of the ditch or City's utility and may not meet the intent for egress in the event of an emergency (i.e. potential access conflicts in the event of a breach of either the water line or irrigation ditch). Furthermore, staff finds that the existing/proposed access road to CO 66 fragments the continuity of the outlot / open space and also may not meet the objective of providing for adequate egress in the event of an emergency (I.E. crosses the Supply, Highland, Rough and Ready, and Palmerton Ditch as well as crosses the City's waterline easement, thus an increased potential for resource conflicts particularly in the event of a ditch / pipe breach, or bridge failure). As noted, Staff is also concemed about the fragmentation of the outlot as a result of the placement of the existing/proposed roads and lots. Such fragmentation will likely magnify the complexity of the outlot's management, maintain a permanent encroachment on significant habitat and wildlife resources and promote continued conflicts between wildlife and human activities, and conflict with the requirements of Article 7-200 as noted on 9-102(A)(4) above.

Table 1. Parcel Density Study @ Acres per Unit		
101 parcels in 1,500 ft. radius (4,477.65 acres). 73 parcels are currently vacant		
ACRES / UNITS OF DENSITY	**RESULT**	**Acres per unit**
4477.65/101	44.3	Existing all lots
153/11	13.9	Proposed
300/28	10.7	Existing developed lots

Parcel Density Study @ Units per Acre		
101 parcels in 1,500 ft. radius (4,477.65 acres). 73 parcels are currently vacant		
UNITS OF DENSITY / ACRES	**RESULT**	**Units per acre**
101/4477.65	0.02	Existing all lots
11/153	0.07	Proposed
28/300	0.93	Existing developed lots

With regard to the character of the neighborhood and existing development pattems, staff finds that there are currently 101 public and private properties within 1,500 feet of this parcel, 73 of which are undeveloped (source: Assessor's data base). The remaining 28 developed properties consist of an average size of 10.7 acres (see table 1). Many of the undeveloped parcels are owned by or otherwise encumbered by local governments including 13 held by the County and nine held by the City of Longmont. Thus, the development potential for 1,013 acres has been reduced via the combined efforts of these entities. In addition Cemex retains ownership of an estimated 2,667 acres. Therefore, the density of the area is not likely to increase significantly over that which currently exists (average 10.7 acres per unit) in the near or foreseeable future.

The applicant has proposed to "land" and develop 11 residential lots within the 153 acre development parcel resulting in a density of approximately 13.9 acres per unit. In concept, staff finds that the proposed parcel boundaries and development are generally located and sized with respect to the physical characteristics of the land, the character of the neighborhood, and the County's goals of preserving agricultural lands. However, as noted by the Parks and Open Space Department, the importance of Dowe Flats as grassland habitat for prairie dogs and raptors is very clear. Suitable PMJM habitat exists along the irrigation ditches (near lots 1,2, and 3). Preble's Meadow Jumping Mice (PMJM) have been observed within a mile from the site. In addition, Eagles have roosted in the trees adjacent to lots 1 and 2 in the past. Because of their proximity to the riparian vegetation of the ditches, the development of proposed Lots 1, 2, and 3 are likely to result in some environmental impacts to any wildlife using these areas. Due to these impacts, as noted above, staff is of the opinion that lots 1 and 2 should be relocated. Any relocation of lots 1 and 2 to the area north of lot 3 and east of lot 4 may result in the displacement of the prairie dogs. Furthermore, burrowing owls are known to be associated with the prairie dogs during specific times of the year (March 1 and October 31). If relocation of wildlife were to occur, staff would recommend that the prairie dogs be humanely removed from the site and relocated to adjacent County property, if appropriate. Another altemative would be to reduce the size of the remaining lots so that the eleven

parcels would be clustered to the north end of the cul-de-sac. In an effort to address emergency egress issues, staff suggests that an alternative access route be defined (see 7-200(A)(2), 7-200(B)(10), 9-102(A)(4), 9-102(A)(7)).

Rabbit Mountain, located north and east of the project site, is the nearest County property with public recreation use at this time. While this development may be visible to visitors of nearby County Open Space, staff feels that the clustered design on will be less intrusive than spreading the eleven proposed home sites across 385 acres.

Provided the conditions of approval are fully implemented, staff finds that the application will comply with these provisions, as they currently exist.

9-102(A)(6) Parcels within an approved subdivision shall go through an exemption plat process.

The subject parcel is not within an approved subdivision.

9-102(A)(7) The proposal shall be in accordance with the Comprehensive Plan, any applicable intergovernmental agreement affecting land use or development, and this Code.

As noted in the Boulder County Comprehensive Plan, "*The loss of wildlife and plant habitats leads to the inevitable disappearance of wildlife and plant species themselves. This resultant loss of environmental diversity weakens the system as a whole, since diversity is an indication of the health of our environment. Thus, the intent of policies ER 4.01 through ER 4.08 is to achieve the stated Environmental Management Goals B.3 and B.4 of avoiding depletion through the preservation and conservation of critical habitats and to recognize the importance of an ecosystem approach in protecting all species and habitat types currently found in Boulder County in order to balance natural systems and human use.*"

"*Wetlands are a critical environmental resource that function as wildlife habitat, aquifer recharge areas, linkages in the overall county wildlife system, and aid in smog control. The intent of policies ER 6.01 through ER 6.05 is to achieve the Environmental Management Goal B.5 of significant wetland conservation while recognizing the constantly changing nature of wetland communities.*"

"*Goal B.6 and Policy ER 7.01 pertain to implementation of several of the Environmental Resources Goals.*"

Riparian areas exist along the multiple irrigation ditches that cross the site. Riparian areas are a significant resource habitat for wildlife. Policy ER 6.02 of the County Comprehensive Plan states "*The County shall work toward minimizing human impacts to riparian ecosystems from development, roads and trails.*"

Lots 1, 2, and 3 are adjacent to these irrigation ditches / riparian areas. Bald eagles have been know to use the trees near lots one and two for roosting and or nesting. In addition, suitable PMJM habitat also exists along the irrigation ditches that cross the site including those adjacent to lots 1, 2, and 3 and PMJM have been trapped within a mile of the site. As such, staff suggests that lots 1, 2 and 3 be relocated and the lots reconfigured to minimize the potential for perpetuating conflicts between human activities and wildlife. In addition, Staff suggests that the access road to CO 66 be removed to further reduce the potential for conflicts between development and wildlife, maintain contiguity of the Outlot, for improved resource management, and to comply with the sections of the Code(see 7-200(A)(2), 7-200(B)(10), 9-102(A)(4), 9-102(A)(5), 9-102(A)(7)). Lastly, staff has some concern for preserving human health and safety with regard to the proposed access routes. Contemporary planning principals suggest that each additional point of entry on a major thoroughfare, such as CO 66, increases the likely hood of vehicular conflicts. Therefore, staff suggests that the access utilize 53rd St. (CR 47) as proposed and closure of the proposed access to CO 66. This would reduce the number of entry points on CO 66 and reduce the potential for vehicular conflict to and from the site. In addition, staff finds that the proposed/existing access road crosses the City of Longmont's waterline R.O.W. and several irrigation ditches. A breach of any of these water sources could result in an inability to access the development. Therefore, the proposed entry to N 53rd St. should be shifted to the northern most existing entry and additional consideration should be made for an alternative route for emergency access in the event of an unforeseen emergency. Staff is of the opinion that these suggested modifications are minor adjustments that would further reinforce the intent of the conservation easement and demonstrate commitments of resource preservation, habitat preservation, and improve the health and human safety for the future residents of the proposed development.

As noted above, there are multiple Comprehensive Plan Designations and pohcies that are involved and/or addressed in this application. While staff agrees that there is an immense public benefit gained through the preservation of significant portions of the valued plains ecosystem as accomplished through the acquisition of the conservation easement, and that the development requested in the Docket is of a relatively minimal scope, staff however, has some concern for the potential adverse impact that may occur should lots 1, 2, and 3 be developed as proposed.

Staff finds that the property is not within the boundary of any existing Inter-Governmental Agreement (IGA).

Provided the conditions of approval are fully implemented, staff finds that the application will comply with the current provisions of the Comprehensive Plan. Note that other County requirements need to be met before a building permit can be issued for development of the proposed Parcels.

9-102(B) Additional Criteria for Boundary Line Adjustments

1. **Divisions which create any number of parcels equal to or less than the number of original undivided parcels are subject to the following conditions:**
   a. **Where the original building lot is in conformance with the lot requirements of the zoning district in which the parcel is located, any parcels created shall also conform to those requirements.**

      The original lots are in conformance with the lot requirements of the zoning district. Staff finds that the proposed boundary adjustment (entry parcel) and the eleven proposed "landed" parcels shall also conform to those requirements, provided the conditions of approval are fully implemented, staff finds that the application will comply with these requirements, as they currently exist.

   b. **Where original building lots are nonconforming with respect to the lot requirements of the zoning district in which located, any parcels created should not increase the degree of nonconformity.**

      No non-conformity is known to exist at this time. Provided the conditions of approval are fully implemented, staff finds that the application will comply with these requirements, as they currently exist.

   c. **A boundary line adjustment shall not be approved solely for convenience of construction.**

      No construction is proposed as part of this application or would be permitted prior to verification of conformance with all applicable requirements, and the terms of the purchase agreement (conservation easement), as they may exist in the year 2025.

SUMMARY:

In consideration of the immense public benefit to be gained through the preservation of significant portions of the Dowe Flats area and plains ecosystem, as accomplished through the July 11, 2002 Purchase Agreement between the County and Applicant, and in light of the fact that the development requested in the Docket is of a relatively minimal nature, scope, and impact compared to the development which could have occurred absent the County's acquisition of the conservation easement, staff supports approval of the proposal. However, staff suggests some minor modifications to the proposal to further reduce the potential for adverse impact on the environment, significant natural resources, and wildlife habitat. Of note is that the applicant has supplied a conceptual revised site plan illustrating the relocation of lots one and two which addresses some of the concerns noted by staff, however, this plan is not being supported by the applicant. Staff also suggests a reconfiguration of the proposed access to assist with the preservation of human health and public safety. In addition, the access permit from CO 66 (Ute Highway / SH 66) states: that "*The proposed haul route and crossing would be restricted to use*

by haul trucks only; (and) . . . *(employees, customers, etc) would continue to use the existing county roads. Thus, the impacts of these trucks on traffic operations and safety on SH 66 will be substantially lessened.*" Therefore, staff finds that some minor modification to the proposal is necessary.

RECOMMENDATION:

Based on the review criteria for a subdivision exemption under section 9-102(A) of the Land Use Code, Land Use staff recommends that the Board of County Commissioners **approve** this request subject to the following conditions:

1) The request to situate eleven building lots on the 153-acre "development parcel" is approved, subject to conditions, as noted herein. Of note is that the purchase agreement precludes the development of these eleven lots before the earlier of the completion of mining (i.e. release of DMG bond) or the year 2025. Any authorized development of the proposed eleven lots within the Dowe Flats Development Parcel shall be subject to County Health Department regulations, County Building Code Regulations, and applicable Land Use Regulations in effect at the time (including Site Plan Review, etc.) **Prior to the issuance of any permits or the beginning of any construction** related to this docket, the applicant shall apply for and receive the applicable approval as required in accordance with County regulations (see condition 16).
2) Before the County issues any construction permit or building permits for development associated with these eleven lots, the staff shall review and approve the following:
   I. Compliance with applicable requirements as noted in Article 7 of the Land Use code including but not limited to: sufficient water supphes and sewage disposal systems, sufficient fire protection, current access permits, etc.
   II. Grading calculations, and plan, profile and cross sectlons of all proposed roadways, including a final soils and drainage report, and surfacing and drainage design recommendations;
   III. Specific location and details for all proposed utility lines to service the eleven building sites;
   IV. Specific location and dimensions of any proposed pedestrian paths;
   V. A utility plan placing all proposed water lines outside of any wetland area; Covenants and design guidelines shall be submitted for review and approval by the County, all covenants and guidelines shall be in accordance with the Land Use Code and shall place reasonable, industry recognized xeriscape standards on the design and watering of proposed landscape areas, address uses for the outlot, etc.

   Note: The 30-foot height limit of the agricultural zoning district applies to all residential sttuctures on any lot recognized by this subdivision exemption (these requirements shall be noted on the exemption plat).
3) Use and activities associated with the Outlot shall be consistent with that which is permitted by the terms of the conservation easement and that which is permitted by right under the provisions of the Land Use Code and the Agricultural Zoning District and authorized by the County in accordance with the provisions of the Land Use Code. Formal recreational trails or other formal recreational uses of the outlot shall be reviewed and approved by the County prior to implementation / construction in accordance with provisions of the Land Use Code. Particular care and consideration shall be made to

preserve the quality and integrity of the environmental resources and wildlife habitat that exist along the irrigation canals and other environmentally sensitive areas within the outlot (this requirement shall be noted on the exemption plat).

4) Re-vegetation / reclamation of the mining related operation and disturbances must be completed in accordance with previous approvals and applicable requirements. Prior to the issuance of any permits for residential related construction on a particular parcel, a site specific residential construction re-vegetation / erosion control plan must be submitted to the Land Use Department for review and approval. The plan must illustrate areas of construction disturbance, areas proposed for re-vegetation, and the locations of erosion and sediment control devices. The approved re-vegetation/erosion control plan must be implemented after approval of construction and prior to occupancy of any residence or building. The plan shall depict the location, type, and quantity of seed or other plantings and erosion control devices sufficient to stabilize all disturbed areas and areas of cut and fill (this requirement shall be noted on the exemption plat).
   (A) The re-vegetation/erosion control plan must, at a minimum, address the following.
      1. To prevent sediment loading in areas adjacent to any proposed disturbance, temporary erosion control devices must be used. Provide a properly anchored sih fence down-gradient of all disturbed areas and install anchored hay bale dikes at all channelized point releases. The silt fences and hay bales must be installed before construction begins and remain in place until vegetation is sufficiently established on the disturbed soil.
      II. Permanent control devices such as native rock check dams, shall be provided at all culvert releases.
      III. Erosion control matting or blankets (in addition to seeding) shall be placed on all disturbed areas with slopes greater than 2(horizontal) to 1(vertical).
      IV. Reseeding specifications (seed mix species and re-vegetation locations) must be indicated on the re-vegetation/erosion plan. Only native plant materials shall be used in re-vegetation.
5) The development of lots one (1) and two (2) have an evident potential for significant adverse impact to wildlife habitat (Raptors and Pebbles Mouse, etc.) To avoid these conflicts lots one (1) and two (2) must be clustered with lots 4 through 11 (generally north of the pipeline easement). In an effort to reduce the potential for adverse impacts on existing wildlife and known habitat, as stated above and including the existing prairie dog colonies located east of lot four (4) and north of lot three (3), the relocation of these lots may result in the reconfigured of the other lots in terms of size and location (I.E. clustered at the north end of the proposed Cul-de-sac). The required parcel reconfiguration must be approved by county staff and shall maintain consistency with all other conditions of approval as stated herein. The required parcel reconfiguration may include the installation of an additional cul-de-sac(s). All approved lot adjustments must be represented in the surveyor's plat (see condition 13).
6) The southem access road to Highway 66 (Ute Highway) shall be permanently removed and all related site disturbances reclaimed in accordance with County reclamation and re-vegetation requirements (upon closure of the mining operation). In addition, the eastem access to CR 47 (N 53rd St.), as shown on the drawing titled "Drainage Plan," shall be relocated to align with the northeru most entry to avoid potential conflicts and crossings

over the proposed water pipeline and the existing irrigation ditches. An egress for emergency use only shall be defined and developed in accordance with the requirements of the local FPD and approved by County Staff prior recording of the survey plat.

7) Lot three (3) shall be reconfigured to accommodate the access re-ahgnment as noted in condition 6. All approved lot adjustments must be represented in the final and approved surveyor's plat (see condition 13).

8) Private access driveways and roadways shall be reviewed and approved by the County Transportation Department, in accordance with County Requirements for private access in effect at the time of authorized development and prior to issuance of any permits (this requirement shall be noted on the exemption survey plat).

9) The applicant or developer shall notify the County immediately if any significant environmental, historic, or cultural resources are encountered during any construction activity (this requirement shall be noted on the exemption survey plat).

10) A final drainage study and report conforming with all applicable County standards shall be developed, for all proposed roads and driveways at time of authorized development. The purpose of this review is to determine that storm water runoff, and road and driveway designs, meet all applicable County standards, or that the appropriate variances from these standards are granted by the Transportation Department. Additional road and drainage design will be required for those sections of the existing road system that will be used for access, including but not limited to horizontal and vertical alignment, grading calculations, adequate support shoulders and ditches, head walls, end walls, aprons and culverts, silt fences, and similar design elements necessary to reduce storm water velocity and prevent excessive erosion. Cross sections for any retaining walls must be provided.

11) The development shall be subject to the terms, conditions, and commitments of record and in the file for this Docket, SE-03-01 Cemex, as approved by the Board of County Commissioners and the terms of any previous dockets approvals related to the currently existing use (this requirement shall be noted on the exemption plat).

12) The request to sever the Plant Entrance Parcel (south of CO 66) from the proposed 153-acre development parcel located north of CO 66 and combine it with the Cemex cement plant parcel (south of CO 66) is approved as proposed. The applicants shall comply with all applicable post-approval requirements for a subdivision exemption as listed in Article 3-206(C) in the Land Use Code. These requirements include, but are not limited to, certification from the County Treasurer confirming that all outstanding ad valorem taxes for the subject property have been paid, and the provision and recording of a new warranty deed(s) for the subject property(s) reflecting the property description as approved by the Docket, and stating "*This deed is given to implement the terms and conditions of the docket SE-03-01: Cemex, as approved by the Board of County Commissioners on May ___, 200__*". The applicants must complete all applicable post approval requirements within the time limits stated in Article 9-300 of the Land Use Code (i.e. within one calendar year after the date of adoption of this resolution as stated below, unless the Board in its discretion grants an additional one-year extension as allowed under article 9-300 of the Land Use Code).

13) In addition to all applicable post approval requirements set forth in § 3-206 (C) of the Land Use Code, the applicant shall have a Colorado Registered Professional Land Surveyor prepare a land survey depicting all existing and proposed lot lines, easements,

and road ahgmnents. The survey shall be recorded with the Clerk and Recorder in conjunction with the requisite deeds acknowledging the subdivision exemptlon action.

14) All approvals associated with the Docket are contingent upon satisfaction of all contimgencies of the 2002 (Conservation Easement) Purchase Agreement, and the closing of the conveyanees of conservatlon easements provided for therein (see condition 16).

15) The property owner or their agent shall obtain all applicable federal, state, and legally required local permits as required at time of authorized residentlal development (this requirement shall be noted on the exemption plat).

16) hı consideration of the immense public benefit to be gained through the preservation of significant portions of valued plains ecosystem land as accomphshed through the July 11, 2002 Purchase Agreement between the County and Applicant, and in light of the fact that the development requested in the Docket is of a relatlvely minimal natıre, scope, and impact compared to the developmem which could have occurred absent the County's acquisition of substantial fee and conservatlon easemem and other interests in the Subject Property and other property of the Applicant, the BOCC intends for the right to develop each of the approved lots for a residence (to the extent the County does not purchase the development rights pursuant to the option terms of the Purchase Agreement), to be perpetual, and that such right to develop shall not be diminished by any fıture changes in the law, such as rezoning or more restıictive lot size or lot number requirements. Paragraph 30 of the Purchase Agreement requires Application to convey the "Annexation Corridor" and a Conservation Easement in Gross to the County, if the County approves the platıing of the eleven development rights as a block and vests the Applicant's ability to build eleven single family residences on the Development Parcel. The BOCC fınds and deterınines that such conveyances by the Applicant, together with the previous grant of options to the County pursuant to the Purchase Agreement, constitıte substantlal and in good faith steps by the Apphcant in rehance on the approvals granted herein, and the County waives the right to assert, and it shall be estopped from asserting, a position to the contrary. In the evem the approvals granted herein are not vested in perpetuity, then the conveyance of the Annexatlon Corıidor and Conservation Easement in Gross pursuant to Paragraph 30 of the Purchase Agreement shall be subject to a reversion to Applicant or its successors. This perpetıal approval is subject to the Applicant meeting all terms and conditions as stated herein.

This perınanent vesting approval extends to and assures the right to develop the subject eleven lots, in their approved number and size for single-family residentlal use. The lots shall be subject to all other County Zoning and Building Permit Requirements in effect at the time of development which are prerequisite to the issuance of a building perınit for residential development of each lot, including but not necessarily limited to applicable site plan review, access review, and building perınit review (this requirement shall be noted on the exemption survey plat).

Boulder County Land Use Department
P.O. Box 471 / Boulder, Colorado 80306
2045 13th Street / 13th & Spruce Streets
(303) 441-3930

SUBDIVISION EXEMPTION INFORMATION

EXISTING PARCEL(S)

DESCRIPTION	ONE	TWO	THREE	FOUR	FIVE
Acreage	153				
Frontage	State Hgwy 66 Co. Rd. 47				
Date Acquired					
Owner	CEMEX, Inc.				
Date Created	N/A				
Existing Improvements	Roads, Conveyor Office				
Date Constructed	1995				
Setbacks Front/Rear	N/A /	/	/	/	/
Setbacks Side/Side	N/A /	/	/	/	/

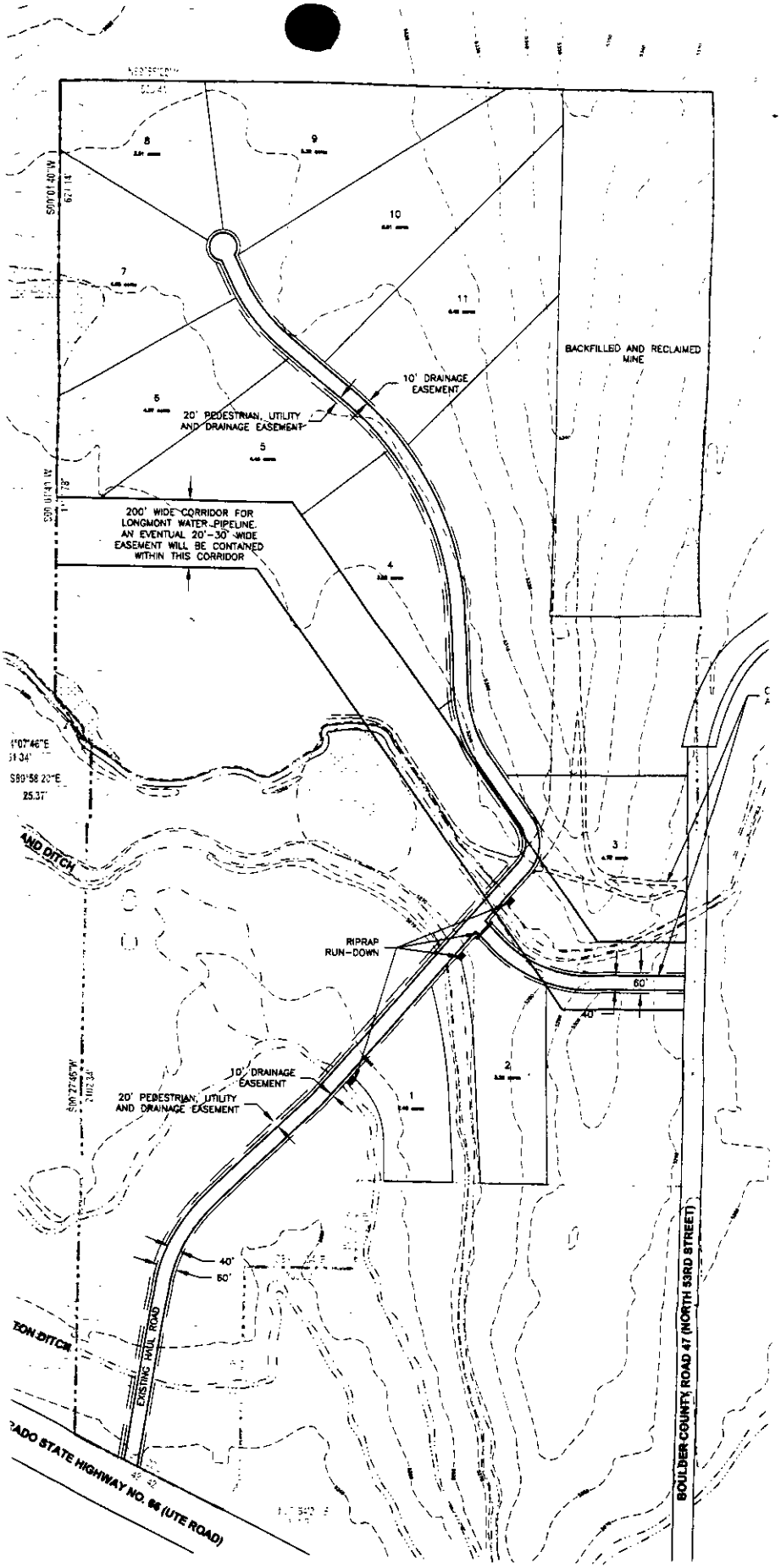
PROPOSED PARCEL(S)

Acreage	11 Lots				
Frontage	See attached				
Setbacks Front/Rear	/ See attached	/	/	/	/
Setbacks Side/Side	/ See attached	/	/	/	/
Owner	CEMEX, Inc.				

PROPERTY OWNERS

PARCEL	NAME	STREET ADDRESS	STATE	ZIP CODE	PHONE/FAX NUMBER
1	CEMEX, Inc.	1200 Smith Street, Suite 2400	Texas	77002	713-653-8561 713-653-8569
	Honston				
2					
3					
4					
5					

REMARKS: CEMEX, Inc. is creating 11 single family residential lots and will retain ownership of all the lots pursuant to purchase agreement with Boulder County (July 11, 2002).


BACKFILLED AND RECLAIMED MINE
10' DRAINAGE EASEMENT
20' PEDESTRIAN, UTILITY AND DRAINAGE EASEMENT
200' WIDE CORRIDOR FOR LONGMONT WATER PIPELINE. AN EVENTUAL 20'-30' WIDE EASEMENT WILL BE CONTAINED WITHIN THIS CORRIDOR
RIPRAP RUN-DOWN
60'
40'
10' DRAINAGE EASEMENT
20' PEDESTRIAN, UTILITY AND DRAINAGE EASEMENT
40'
60'
EXISTING HAUL ROAD
BOULDER COUNTY ROAD 47 (NORTH 53RD STREET)
COLORADO STATE HIGHWAY NO. 66 (UTE ROAD)
S89°58'20"E
25.37'

5.0 Written Statement

5.1 Introduction and Background

This Subdivision Exemption Survey Plat is submitted in compliance with a Purchase Agreement entered into between Boulder County and Cemex, Inc. on July 11, 2002. Cemex is seeking approval of the Subdivision Exemption (and vesting in perpetuity of eleven (11) single family residential lots on what is referred to as the Development Parcel North) and approval of a Boundary Line Adjustment on what is referred to as the Development Parcel South (the Boundary Line Adjustment seeks to sever the Development Parcel South from the Dowe Flats property north of State Highway 66 and attach it to Cemex's cement plant property south of State Highway 66).

Purchase Provision No. 4 of the referenced Purchase Agreement transfers the development rights for eleven (11) single family lots from the Operations Parcel onto the Development Parcel North. Purchase Provision No.22 requires Cemex to submit a subdivision or subdivision exemption to the County for review and consideration by the Board of County Commissioners to create and vest the eleven (11) single family residential lots.

It should be noted that according to the Purchase Agreement, Cemex can not develop the lots nor sell the lots to any entity other than Boulder County until the year 2025. This fact makes this application somewhat unique and some of the submittal documents reflect this.

The Development Parcel North consists of approximately 153 acres. The eleven (11) lots occupy 50.43 acres and vary in size form 2.48 acres to 6.91 acres. Approximately 103 acres will be placed in a Conservation Easement (except for roads and easements).

5.2 Subdivision Exemption

Each lot created through this process will be allowed a single family residence with associated accessory buildings and garages. All buildings will have a minimum 25 foot setback from property lines. At this time the Applicant prefers not to provide building envelopes for the lots but rather seeks approval to build the houses anywhere within the lot in conformance with setback requirements. This will allow flexibility for future trends in the size and layout of houses.

Proposed roads in the subdivision use existing roads to the maximum extent possible to minimize land disturbance. The lot layout was chosen using the following criteria;

- Avoid backfilled and reclaimed mine
- Use topography to reduce visual impacts and avoid steeper slopes
- Avoid the agricultural ditches
- Avoid wetlands

- Minimize disturbance of existing vegetation
- Minimize wildlife disruption

Development of the lots will be subject to Covenants, Design Guidelines and Landscaping Guidelines. It would not be prudent to attempt to create these documents now for a potential development 22 years from now. The applicant proposes to defer these items to Site Plan Review/building permit (or its future equivalent) so that issues and trends at that time can be accommodated.

5.3 Conservation Easement

Cemex will grant a Conservation Easement on the portion of the property not occupied by platted lots, roads or utility easements. Prior to December 31, 2024, the applicant proposes that existing uses and activities associated with the approved mining operation be allowed in the Conservation Easement. Reasonable and appropriate expansion of such uses shall also be allowed. During this time the public shall not be allowed on the property.

After December 31, 2024 any improvements on or use of the Conservation Easement shall be the responsibility of the Homeowners Association as may be approved by Boulder County.

5.4 Access

Two access points are provided with this Subdivision Exemption. The main access is off of State Highway 66 at the currently improved access to the quarry operation. Secondary access is provided off of County Road 47, also at an existing point and using an existing roadway. This access plan creates an eight (8) lot cul de sac at the northern end of the parcel. The other three (3) lots are not considered to be on a cul de sac.

5.5 Services

5.5.1 Water

Water will be provided to this development by Longmont (pursuant to an agreement between Longmont and Cemex, (see Appendix 1 for a copy of the agreement) and will be delivered by the Longs Peak Water District. Cemex has more than enough taps available to serve the eleven (11) lots.

5.5.2 Sewer

No public sewer service lines or treatment facilities are proposed. Sewer service will be by private, individual sewage disposal systems. On-site sewage treatment is a viable approach and individual lot owners will provide the necessary soils and geologic data at the time of application for individual sewage disposal system permits.

5.5.3 Gas

Naturai gas will be provided by Public Service Company of Colorado or equivalent provider.

5.5.4 Electric

Electricity will be provided by Poudre Valley Rural Electric Association or equivalent provider.

5.5.5 Fire Protection

The property is with the Hygiene Fire Protection District. A 30,000 gallon cistern will be provided at the high point of the property in the northeast corner. This cistern shall be dedicated to fire protection and is proposed because there currently is inadequate water pressure for fire protection purposes.

5.5.6 Roads

All roads in the proposed development are private and will be the maintenance responsibility of the Homeowners Association. Roads will, however, be constructed to appropriate County standards.

5.5.7 Telephone/Cable

Qwest Communication or its equivalent will provide telephone service. The cable company that will ultimately provide service to the development is unknown at this time.

5.5.8 Police

The Boulder County Sheriffs' Department provides police protection for the property.

5.5.9 Schools

The property is within the St. Vrain School District.

5.6 Easements

All utility lines wiil be contained within easements along the internal, private roads. Drainage easements are also along the roads. Easements are shown on the Subdivision Exemption Survey Plat.

5.7 Site Pian

Attached is a Site Plan showing existing topographic and cultural features as well as the proposed lot locations and roads.

5.8 Floodplain

The proposed lots are not within the 100 year floodplain of St. Vrain Creek.

5.9 Traffic

Each lot is estimated to generate 10 trips per day. At full buildout this would add 110 trips to State Highway 66 (with a small percentage of these trips using County Road 47). This is not a significant impact to local traffic (particularly with the quarry no longer being operational).

5.10 Soils and Geology

The soils and bedrock on this property have been extensively investigated by Cemex. The proposed development will not be adversely affected by the soil and bedrock conditions and these conditions are suitable for the proposed subdivision with respect to foundation, road and utility construction.

5.11 Vegetation, Wildlife and Cultural Resources

Cemex has exhaustively studied the environmental and cultural resources on this property over the years. The proposed development will not have significant adverse impact on any of these values.

APO

ALLEN DAVID L & BARBARA A	1125 STONE CANYON RD	LONGMONT	CO	80503
ARAPAHOE CHEMICALS INC	2075 55TH ST	BOULDER	CO	80301
BAIRD NOEL W & TIM D KIER	6544 E WILLOW ST	LONG BEACH	CA	90815
BOULDER COUNTY	P O BOX 471	BOULDER	CO	80306
BOWES STEPHEN K & TERRY L	5595 UTE HWY	LONGMONT	CO	80503
BRALY LAND CO LLC	1800 PIKE RD	LONGMONT	CO	80501
BRALY SHARI	203 W SPRING DR	AUSTIN	TX	78746
BRENNER GARY R & SHIRLEY E H (JT)	13197 N 53RD ST	LONGMONT	CO	80503
CARTER GEORGE M & LILA H	5455 N DAKOTA RIDGE RD	LONGMONT	CO	80503
[redacted]	[redacted]	[redacted]	[redacted]	[redacted]
CITY OF LONGMONT	1100 SOUTH SHERMAN ST	LONGMONT	CO	80501
DAUDT STEPHEN W & SHARON E	1657 STONE CANYON	LONGMONT	CO	80503
DIRKES FRED DAVID	4413 MORGAN COUNTY RD 36	BRUSH	CO	80723
DUNN THOMAS L & NANCY J	6400 RABBIT MOUNTAIN RD	LONGMONT	CO	80503
EATON JONATHAN B & TRACEY	4702 HIGHLAND DR	LONGMONT	CO	80503
EKENDAHL JAMES E & G JOE WEBSTER	216 KULA HWY B	KULA	HI	96790
ELLIS GEORGE W & DARCY M ELLIS	13037 N 53RD	LONGMONT	CO	80503
ERNST BEVERLY A	4858 HIGHLAND DR	LONGMONT	CO	80503
FIRST INTERSTATE OF DENVER NA HILL FOUND	PO BOX 659	WICHITA FALLS	TX	76307
FISCHER FARMS DEVELOPMENT LLC	1731 15TH ST STE 250	BOULDER	CO	80302
GEORGE DOROTHY M	12996 FOOTHILLS HWY	LONGMONT	CO	80503
GRAHAM ROBERT & CONNIE LIVING TRUST	4617 HIGHLAND	LONGMONT	CO	80503
HAGEDORN MARCIA & MIKEL	2185 KEOTA LN	SUPERIOR	CO	80027
HICKMAN LOIS	5125 UTE HWY	LONGMONT	CO	80503
JOHNSON CINDY & DAVID W	1810 STONE CANYON RD	LYONS	CO	80540
JONES & CO	4708 HIGHLAND DR	LONGMONT	CO	80503
JONES JAMES RICHARD JR & MARY COLLEEN	4708 HIGHLAND DR	LONGMONT	CO	80503
KELLEY VINCENT L & ADA M & ERNEST R OWEN	4602 HIGHLAND DR	LONGMONT	CO	80503
KLINE R E	PO BOX 410	LYONS	CO	80540
LOUKONEN LEONARD	PO BOX 333	LYONS	CO	80540
MADHAVA HONEY LTD	4689 UTE HWY	LONGMONT	CO	80503
MAHONEY PHILIP S & CAROLANN	5565 UTE HIGHWAY	LONGMONT	CO	80501
MARTIN JOHN M	5169 UTE HWY	LONGMONT	CO	80503
MCCAIN GENE EDWARD & LYNN MARIE	5099 UTE HWY 66	LONGMONT	CO	80503
MOERSCH KEVIN P	6306 UTE HWY	LONGMONT	CO	80503
MONTGOMERY DONALD E	5435 UTE RD	LONGMONT	CO	80501
NEUSCHAEFER JOHN & KANDY TIGERMAN	1328 NORTH 53RD ST	LONGMONT	CO	80503
OLIGARCHY FARMS INC 43	7001 ROZENA DR	LONGMONT	CO	80503
OWEN GWYNNE L	4602 HIGHLAND DR	LONGMONT	CO	80501
PHILLIPS ROBERT & FRANCES A	7850 UTE HWY	LONGMONT	CO	80503
RAMEY JOHN	PO BOX 1850	ESTES PARK	CO	80517
ROBERT & CONNIE GRAHAM LIVING TRUST	4617 HIGHLAND DR	LONGMONT	CO	80503
ROCHE COLORADO CORPORATION	2075 N 55TH ST	BOULDER	CO	80301
ROSENBERG ELLEN	13018 N 53RD ST	LONGMONT	CO	80503
ROTHE EDGAR F & LUANN L	5555 UTE HWY	LONGMONT	CO	80503
SATUR GARY L & PATRICIA A	1621 STONE CANYON RD	LONGMONT	CO	80503
SHERWOOD DONALD J	353 MAIN ST	LONGMONT	CO	80501
SILCO OIL COMPANY	3244 9TH ST	BOULDER	CO	80304
STRATTON GARY L & SHARRON S	5617 UTE RD	LONGMONT	CO	80503
TOLEDO SUZANNE SIMMONS	1649 STONE CANYON RD	LONGMONT	CO	80503
TOTEVE JOHN E JR & MARGARET L	13151 N 61ST ST	LONGMONT	CO	80503
[redacted]		[redacted]	[redacted]	[redacted]
WALL JERILYN DIANNE & MARGARET L TOTEVE	13151 N 61ST ST	LONGMONT	CO	80503
WALLACE HARRY J & CHARLOTTE H	4945 HIGHLAND DR	LONGMONT	CO	80503
WESTON MICHAEL L	5291 UTE HWY	LONGMONT	CO	80503
WINANS JOHN D & EILEEN	3244 9TH ST	BOULDER	CO	80304
WINANS JOHN D & EILEEN M	3244 9TH ST	BOULDER	CO	80304
ZENOBIA PAUL J ESTATE & FRANCES E	1301 PARKVIEW BLVD	COLORADO SPRIN	CO	80906

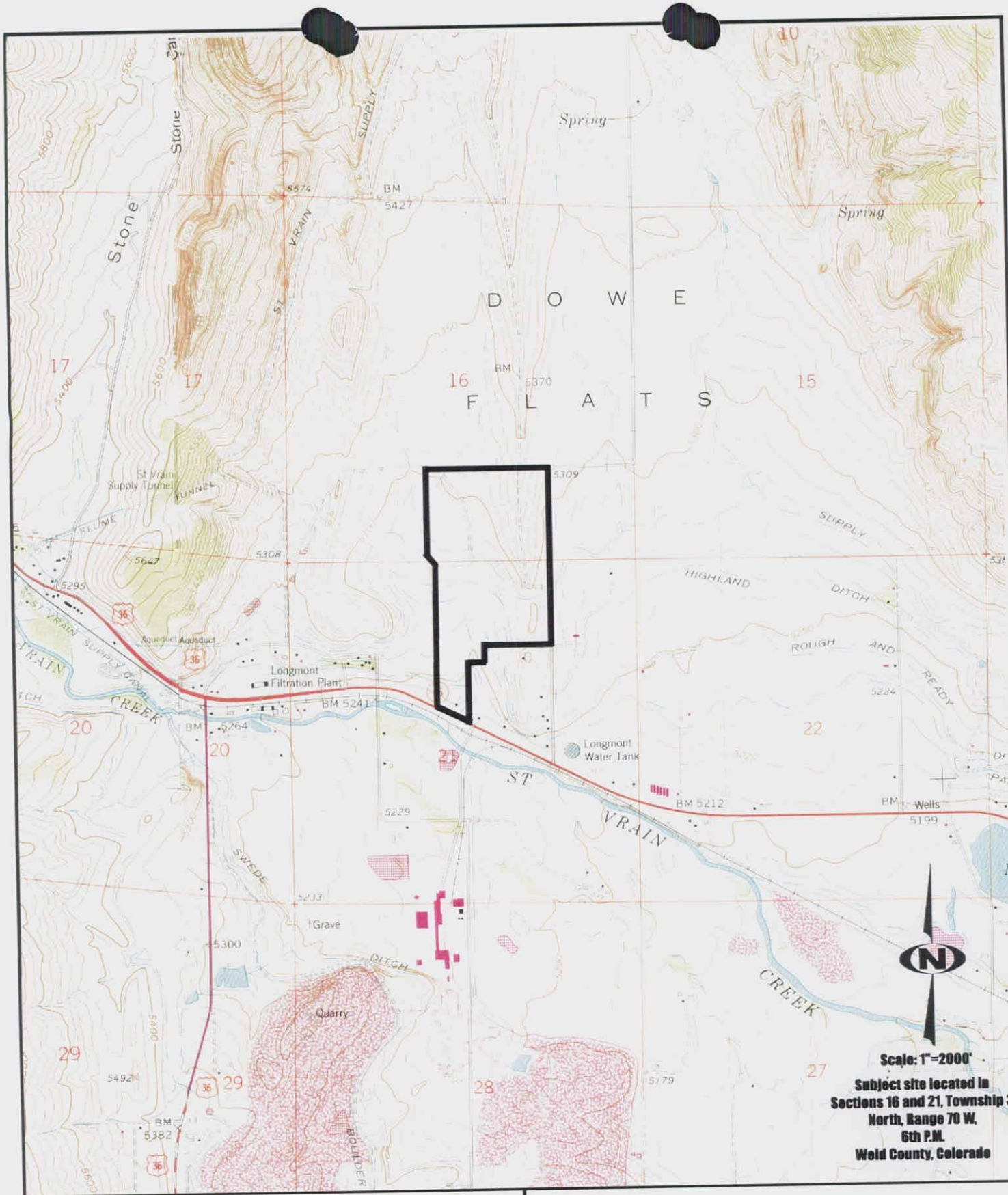
7.0 Boundary Line Adjustment

Cemex requests approval of a Boundary Line Adjustment as described herein. The Purchase Agreement between Cemex and Boulder County makes reference to (and contains a legal description of) the Development Parcel South. The Development Parcel South is also referred to as the Plant Entrance. This property is south of State Highway 66 and is located at the main entrance to the cement plant.

Cemex is seeking approval and recognition from the County of the following;

- This parcel is not part of the Development Parcel North
- This parcel is herein severed from the Development Parcel North and all parcels north of State Highway 66 that are part of the Purchase Agreement.
- This parcel is attached to Cemex's cement plant property south of State Highway 66.

The legal description of the Development Parcel South is attached to this application.

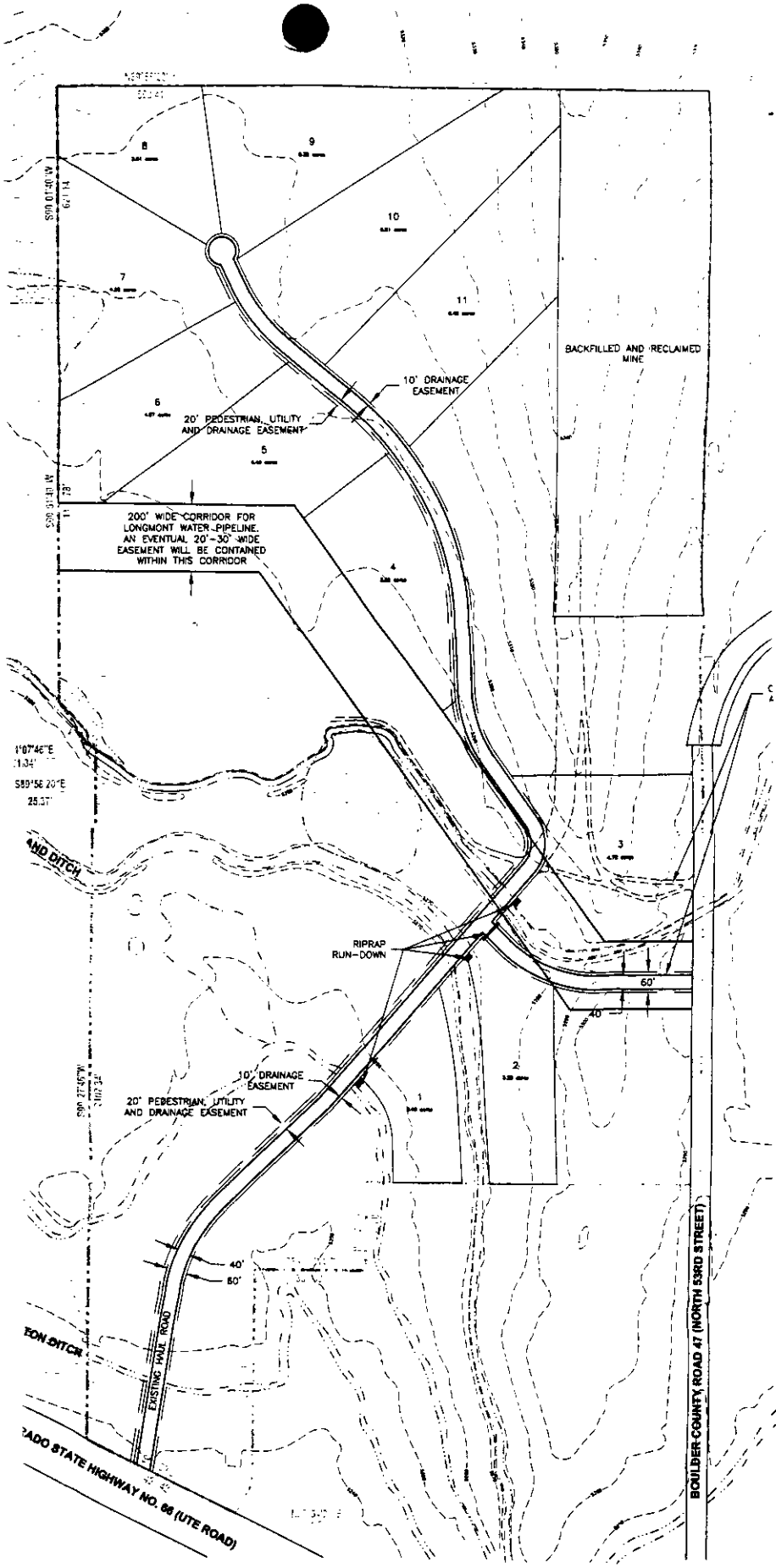


Banks & Gesso, LLC
720 Kipling, Suite 117
Lakewood, CO 80215
banksandgesso.com

Vicinity Map
Subdivision Exemption Survey Plat
Cemex, Inc.
Dowe Flats Development Parcel

10/23/02

02031


BACKFILLED AND RECLAIMED MINE
10' DRAINAGE EASEMENT
20' PEDESTRIAN, UTILITY AND DRAINAGE EASEMENT
200' WIDE CORRIDOR FOR LONGMONT WATER PIPELINE. AN EVENTUAL 20'-30' WIDE EASEMENT WILL BE CONTAINED WITHIN THIS CORRIDOR
RIPRAP RUN-DOWN
60'
40'
10' DRAINAGE EASEMENT
20' PEDESTRIAN, UTILITY AND DRAINAGE EASEMENT
40'
60'
EXISTING HAUL ROAD
ADO STATE HIGHWAY NO. 66 (UTE ROAD)
BOULDER COUNTY ROAD 47 (NORTH 53RD STREET)

Preliminary Drainage Report
And Sediment Control Plan
For the
Dowe Flats Development Parcel,
Subdivision Exemption Survey Plat
Boulder County, Colorado

Prepared For:
CEMEX, Inc.
1200 Smith Road, Suite 2400
Houston, TX 77002

Prepared By:
Banks and Gesso, LLC
720 Kipling St. ,Suite 117
Lakewood, Colorado 80215

November 2002

Project Location and Description

The Dowe Flats Development Parcel (Parcel) is a proposed subdivision located along Colorado State Hwy 66 in Boulder County, Colorado. The Parcel includes a total of 153 acres, of which approximately 55 acres is proposed to be developed. The proposed subdivision includes eleven lots, each between 2 and 7 acres. The Parcel is located in Sections 16 and 21, Township 3 North, Range 70 West.

The Parcel is bounded by Colorado State Hwy 66 to the south, by Boulder County Road 47 to the east, by Open Space land to the west and by privately owned land to the north. An area that will be reclaimed after mining is located in the northeast part of the Parcel.

Two access roads are proposed for the subdivision; the south road enters the subdivision from Colorado State Hwy 66 and the east access road enters the subdivision from Boulder County Road 47.

Historical Drainage

Figure 1 shows two long, narrow basins with a ridge between then, each with a channel along their length. The hydrologic border to the is the St. Vrain Water Supply Canal along both basins. Four water supply ditches cross the Parcel, following the contours but generally traveling east-west. The west part of the Development Parcel drains into the eastern north-south stream that flows into the Supply Ditch. Localized flows discharge directly into the water supply ditches that cross the Parcel. The north part of the Parcel slopes approximately 1.5% to the southwest. The south part of the Parcel slopes approximately 1.5% to the south.

Wetlands have been mapped in several areas within the Parcel, generally along the water supply ditches.

Hydraulic Criteria and Drainage Concept

Because of the low housing density proposed and the existing site conditions, the proposed drainage measures are limited to a channel along the access roads to intercept flows and culverts and inlet protection as needed.

Ditches and culverts are sized herein to convey flows along the access roads. Protection locations and guidelines are presented on Drawing 2 and detailed on Drawing 3. Urban Drainage and Flood Control District (UDFCD) and Boulder County Drainage Criteria Manual criteria were used for this study.

As recommended by UDFCD, the long, narrow catchments were subdivided into smaller sub-basins. The sub-basins were delineated on the east and south parts of the Parcel to define areas where drainage will be altered by the development. Sub-basins that are unaffected by the development were not delineated. Figure 1 shows the sub-basin delineation. Each of the sub-basins historically flows into the water supply ditches; this in not altered with development. Flow is concentrated along the access roads and drainage measures are proposed to address this concentration of flow.

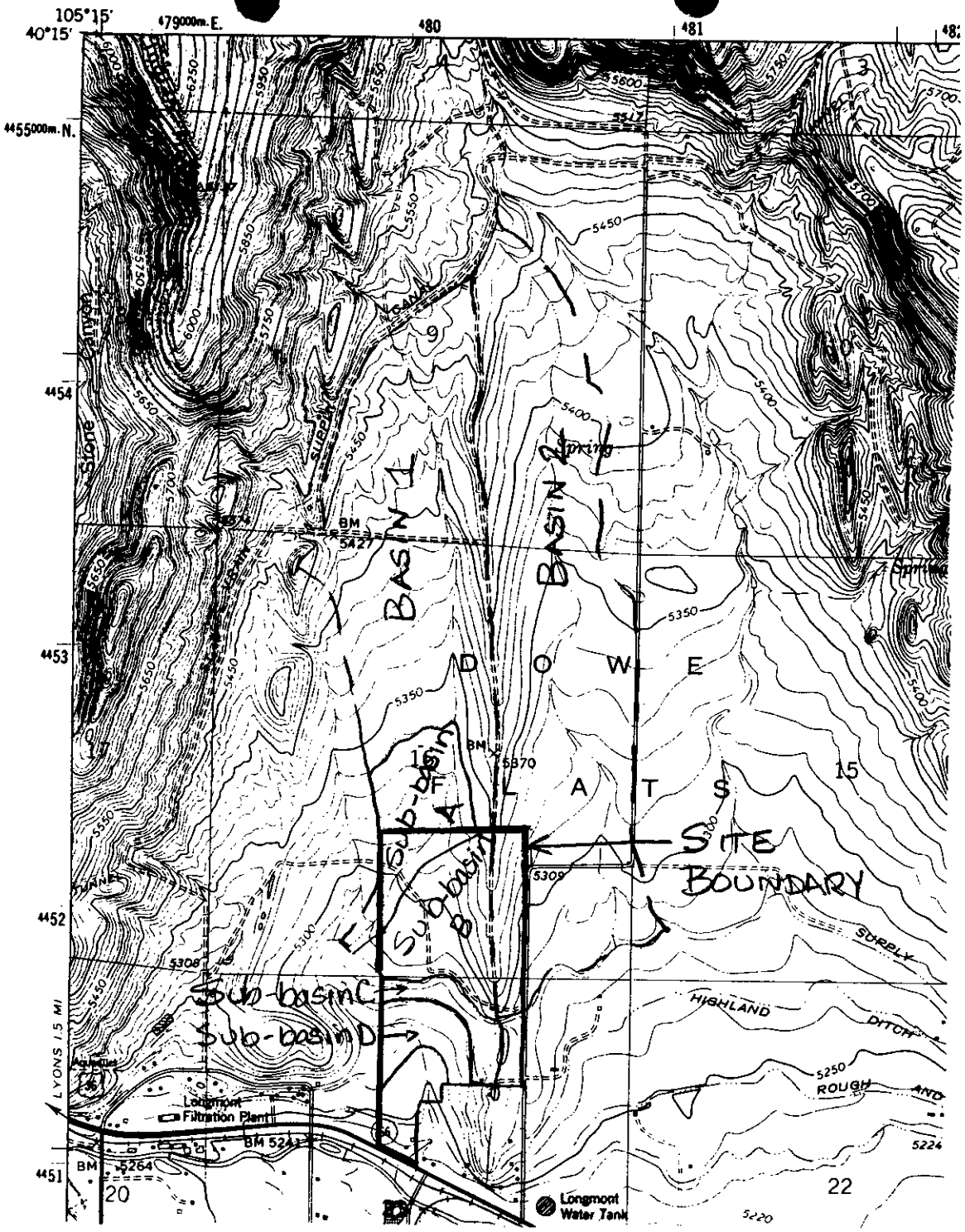
The rational method was used to estimate flows to size channels and culverts. Calculations are included as Appendix A. The following table summarizes the hydraulic properties of the sub-basins and the change in flow quantities between historic conditions and proposed conditions.

TABLE 1
PEAK ON-SITE FLOW RATE CALCULATIONS
HISTORIC CONDITIONS

				10-Yr Historic		10-Yr Build-out	
Sub-Basin Designation	Sub-Basin Area (Acres)	Runoff Coefficient 10-Yr/100-Yr	Time of Concentration 10-Yr Historic/ 10-Yr Build-out (min)	Intensity (in/hr)	Peak Flow (cfs)	Intensity (in/hr)	Peak Flow (cfs)
Sub-Basin A	44.0	0.30/0.28	27/27	2.4	30	2.4	32
Sub-Basin B	48.2	0.30/0.28	15/15	2.4	32	2.4	35
Sub-Basin C	9.6	0.30/0.28	10/10	2.4	6	2.4	7
Sub-Basin D	19.2	0.30/0.28	10/10	2.4	13	2.4	14

Erosion and Sediment Control

Because of the low density of housing proposed and limited disturbed areas, localized use of sediment control measures are recommended. Temporary silt fencing is necessary on the downhill side of all disturbance areas and timely revegetation of disturbed areas will minimize the impact of sediment on storm flows. See the Drainage and Sediment Erosion Control Plan and Detail Sheet for silt fencing installation details. Inlet protection Is recommended for culverts and run-downs as indicated on the Drawings.



FROM: USGS HYGIENE, COLO QUADRANGLE, 1979

BANKS AND GESSO, LLC. 720 KIPLING ST., SUITE 117 LAKEWOOD, COLORADO 80215 (303) 274-4277	CEMEX, INC 1200 SMITH ST. SUITE 2400 HOUSTON, TX 77002	DOWE FLATS DEVELOPMENT PARCEL SUBDIVISION EXEMPTION SURVEY PLAT BOULDER COUNTY COLORADO

JOB NO	DATE	SCALE	DRAWN BY	DESIGNED BY	APPROVAL	REV.	SHEET
02031	10/17/02	APPROX 1"=2000'		MDV			1

Appendix A

Hydraulic Calculations

STAEDTLER® No. 937 811E Engineer's Computation Pad

RATIONAL METHOD - Appropriate because basin size is less than 90 acres.

$Q_{10} = CIA$, 10-YR FLOW

BASIN A - Area = 44.0 acres
Length = 3000 ft
Slope = 2%

t_c Determination

$t_c = t_i + t_t$

$t_i = \frac{0.395 (1.1 - C_5) \sqrt{L}}{5^{0.33}}$ FROM FIG 601 (BOULDER CO. SDCM)

C_5 FROM TABLE 601

$C_5 = 0.35$

L → use 500ft max

t_i = 58 min

t_t From Fig 602, grassed waterway @ 2%,

t_t = 2 ft/sec x 2500 ft = 21.8 min

t_c = 79 min ; $t_c = \frac{L}{180} + 10$ = 27 min

USE THIS LOWER VALUE

I determination
From Fig 502

I = 2.4 inches/hour

STAEDTLER® No. 937 811E Engineer's Computation Pad

C determination , SOIL TYPE C

$C_{CD} = K_{CD} + (0.858i^3 - 0.786i^2 + 0.774i + 0.04)$

$i = 0.09$

$K_{CD} = -0.18i + 0.21 = 0.195$

$C_{CD} = 0.19 + (0.00063 - 0.0064 + 0.0697 \quad 0.04)$

$C_{CD} = 0.294$ / Table RO-5 $C = 0.30$

$Q = (0.30)(44.0)(2.4) = 31.7$ cfs

32 cfs 10-yr discharge
Build out Conditions

Historic conditions

$i = 0.02$

$K_{CD} = 0.20$

$C_{CD} = 0.20 + 0.000069 -$

$C_{CD} = 0.26$ RO5 $C = 0.28$ ← use

$Q = (0.28)(44.0)(2.4) = 29.6$

30 cfs 10-yr discharge
Historic conditions

STAEDTLER® No. 937 811E Engineer's Computation Pad

BASIN B - 10-YR FLOW

Area = 48.2 acres
Length = 1000 ft
Slope = 1%

$$t_c = \frac{1000}{180} + 10 = 15 \text{ minutes}$$

I = 2.4 in/hour

C = 0.30 Build out

C = 0.28 Historic

$$Q_{BUILDOUT} = (48.2)(0.30)(2.4) = 34.7 \Rightarrow 35 \text{ cfs}$$
10-yr Buildout

$$Q_{HISTORIC} = (48.2)(0.28)(2.4) = 32.4 \Rightarrow 32 \text{ cfs}$$
10-yr Historic

STAEDTLER® No. 937 811E Engineer's Computation Pad

Basin C – 10-YR FLOW

Area = 9.6 acres
Length = 200 ft
Slope = 4%

t_c = 10 minutes (minimum)

I = 2.4

C_{11} = 0.30 – Buildout

C = 0.28 – Historic

$Q_{HISTORIC} = (0.28)(9.6)(2.4) = 6.4$ cfs ⇒ 6 cfs
10-YR HISTORIC

$Q_{BUILDOUT} = (0.30)(9.6)(2.4) = 6.9$ cfs ⇒ 7 cfs
10-YR BUILDOUT

STAEDTLER® No. 937 811E Engineer's Computation Pad

Basin D 10-YR FLOW

Area = 19.2 acres
Length = 600 feet
Slope = 3%

t_c = 10 minutes (minimum)

I = 2.4

C = 0.30 BUILDOUT

C = 0.28 HISTORIC

$Q_{HISTORIC}$ = (0.28)(19.2)(2.4) = 12.9 cfs
⇒ 13cfs 10yr HISTORIC FLOW

$Q_{BUILDOUT}$ = (0.30)(19.2)(2.4) = 13.8 cfs
14cfs 10-yr BUILDOUT FLOW

PIPE IN SUBBASIN B Q = 35 cfs
OUTLET CONTROL, LENGTH 50 FT

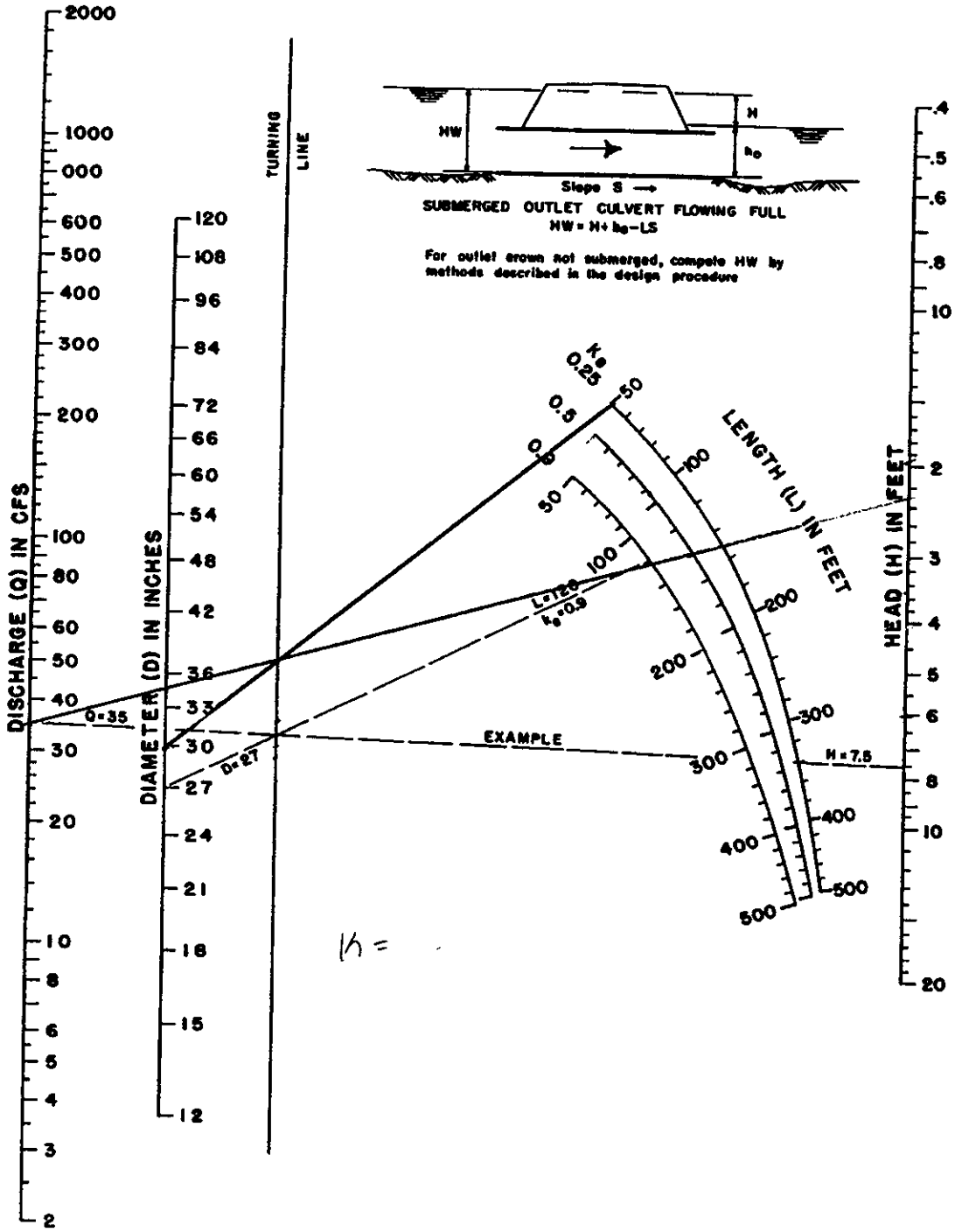


FIGURE CU-29

Head for Standard Corrugated Metal Pipe Culverts Flowing Full n = 0.024

PIPE IN SUBBASIN B Q = 35 cfs
INLET CONTROL, 2PT HEADWATER ID

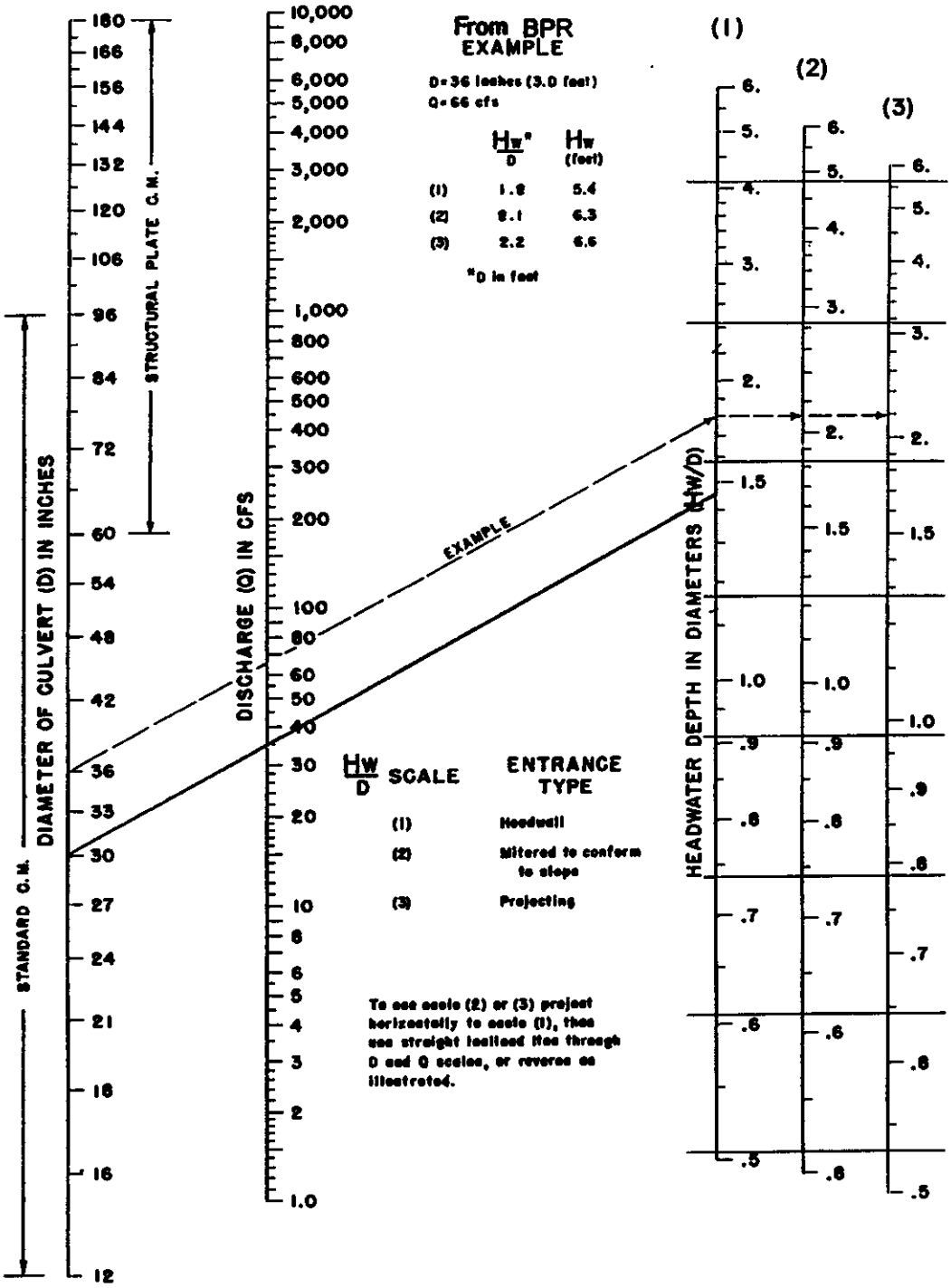
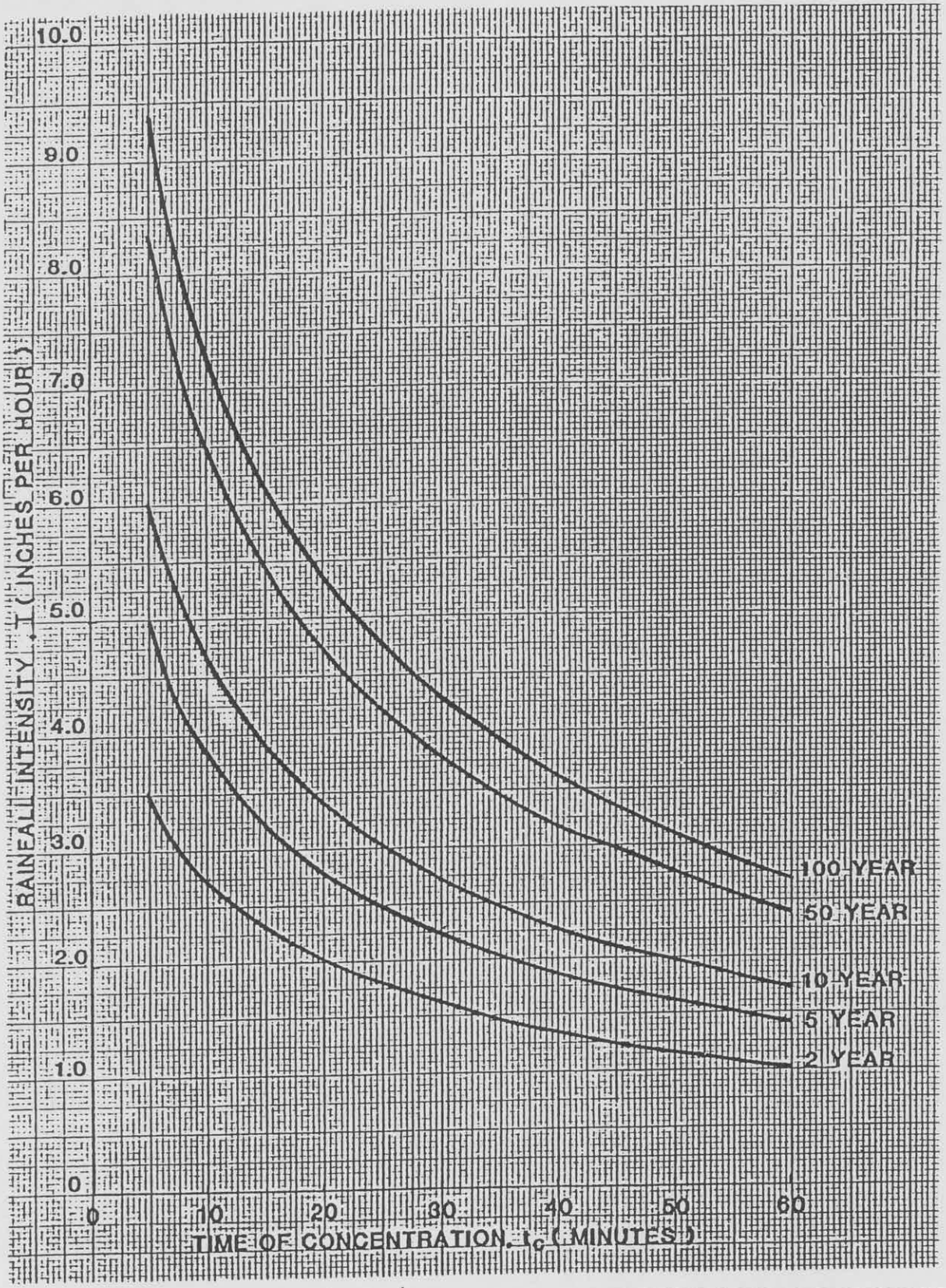


FIGURE CU-26

Headwater Depth for Corrugated Metal Pipe Culverts With Inlet Control

FIGURE 502

TIME-INTENSITY-FREQUENCY CURVES ZONE I

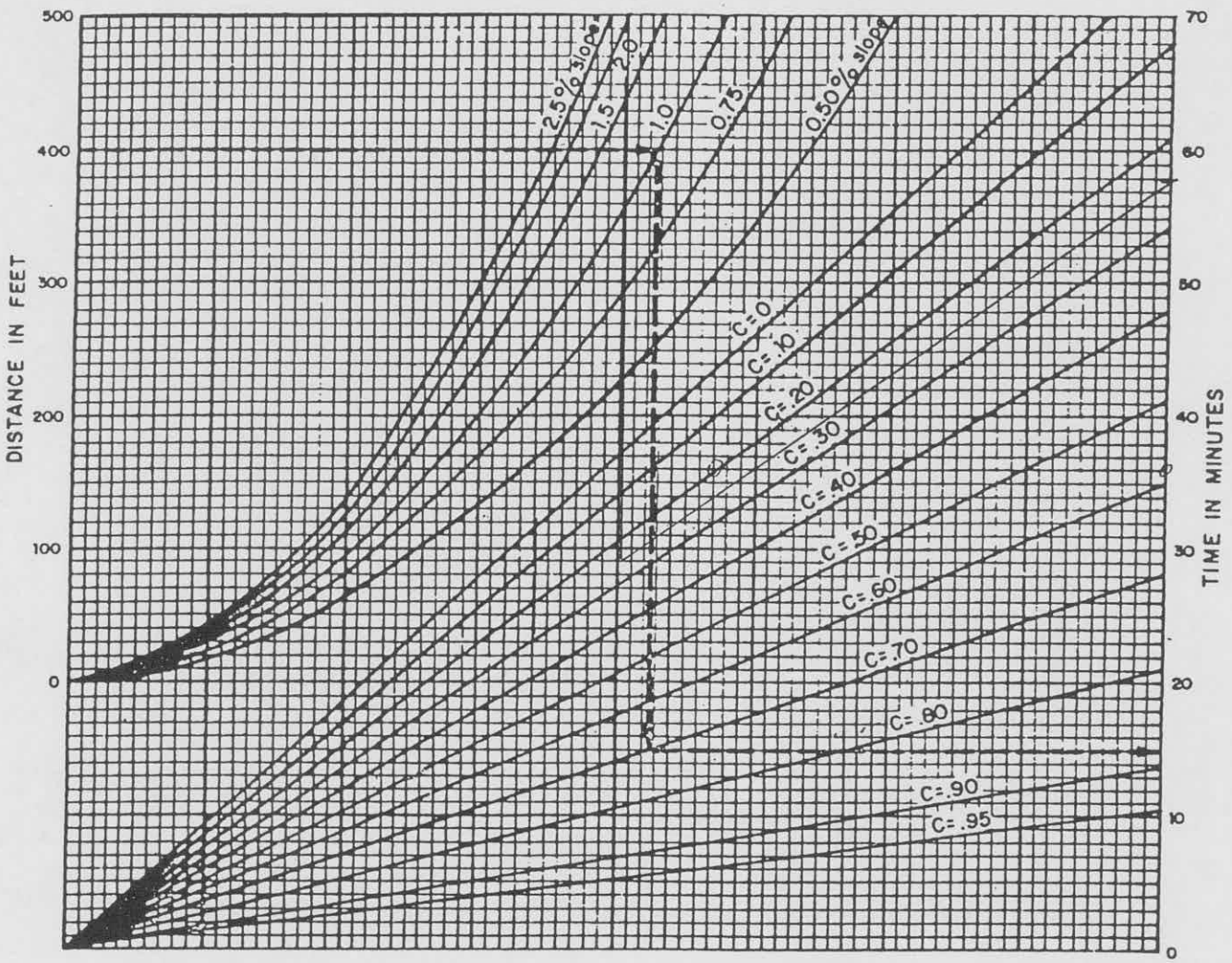


WRC ENG.

REFERENCE: WRC TM-1 NOV. 1983

FIGURE 601

OVERLAND TIME OF FLOW



THE ABOVE CURVES ARE A SOLUTION OF THE FOLLOWING EQUATION:

$$t_i = \frac{1.8\,(1.1 - C_5)\sqrt{L}}{\sqrt[3]{S}}$$

where: t_i = initial flow time (min.)
S = slope of basin (%)
C_5 = runoff coeficient for 5 year frequency (Table 601)
L = length of basin (ft.)

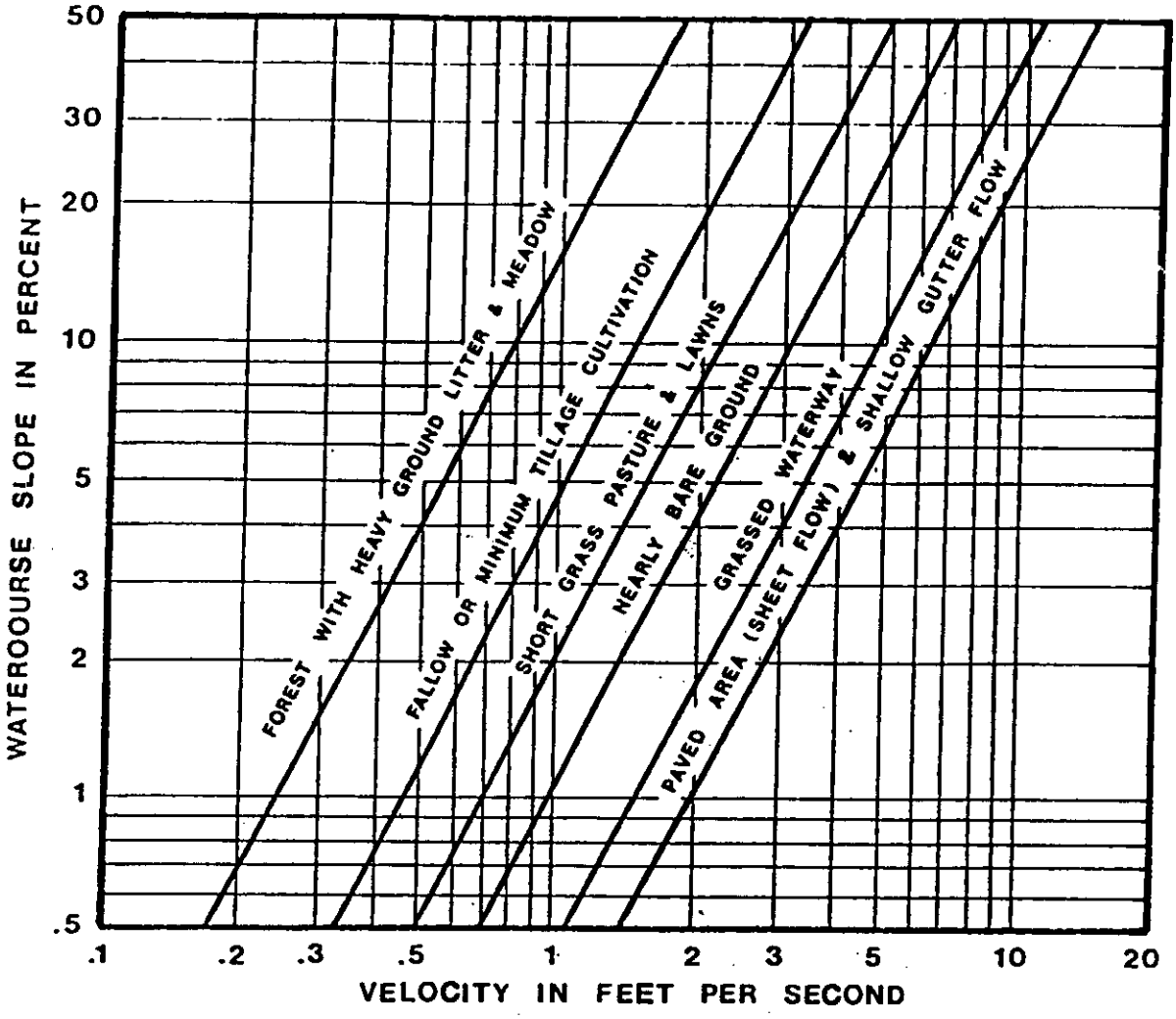
Notes: 1. The curves are for use with the Rational Method, see Text Section 602.

2. The curves shall not be used for distances in excess of 500'.

WRC ENG.	REFERENCE: "Urban Storm Drainage Criteria Manual" DRCOG, Denver, Colorado 1969

FIGURE 602

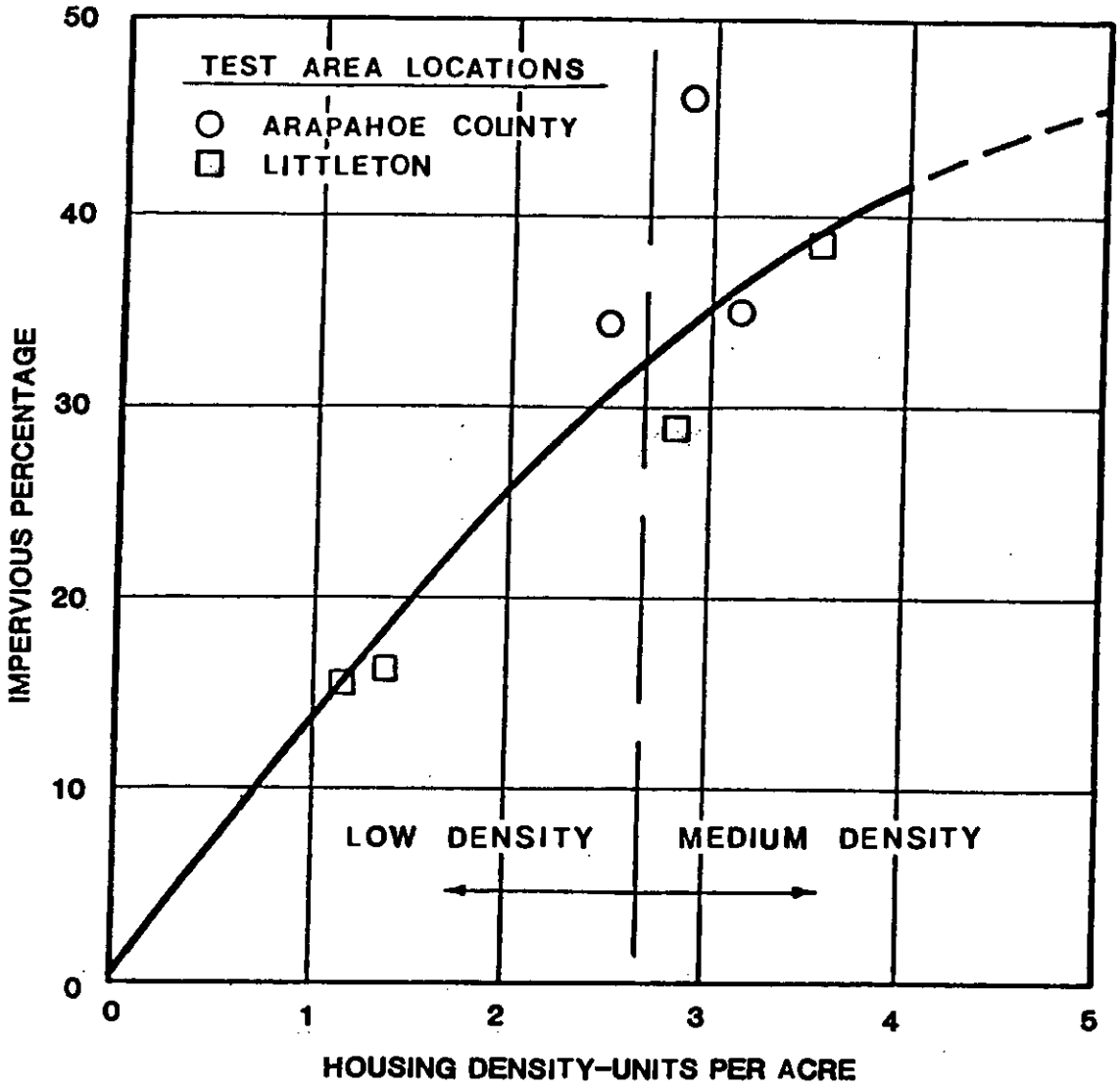
TRAVEL TIME VELOCITY FOR RATIONAL METHOD



WRC ENG.	REFERENCE: "Urban Hydrology For Small Watershads" Technical Release No. 55, USDA, SCS Jan. 1975.

FIGURE 603

RESIDENTIAL HOUSING DENSITY VS IMPERVIOUS AREA



174

WRC ENG.	REFERENCE: USDCM, DRCOG Revised 5-1-84

RUNOFF COEFFICIENTS AND PERCENT IMPERVIOUS

LAND USE OR SURFACE CHARACTERISTICS	PERCENT IMPERVIOUS	RUNOFF COEFFICIENTS FREQUENCY 2	5	10	100
Business:					
Commercial Areas	95	.87	.87	.88	.89
Neighborhood Areas	70	.60	.65	.70	.80
Residential:					
Single-Family	Figure-603	.40	.45	.50	.60
Multi-Unit (detached)	50	.45	.50	.60	.70
Multi-Unit (attached)	70	.60	.65	.70	.80
1/2 Acre Lot or Larger	Figure-603	.30	.35	.40	.60
Apartments	70	.65	.70	.70	.80
Industrial:					
Light Areas	80	.71	.72	.76	.82
Heavy Areas	90	.80	.80	.85	.90
Parks, Cemetaries	7	.10	.10	.35	.60
Playgrounds	13	.15	.25	.35	.65
Schools	50	.45	.50	.60	.70
Railroad Yard Areas	40	.40	.45	.50	.60
Undeveloped Areas:					
Historic Flow Analysis Greenbelts, Agricultural	2		(see "Lawns")		
Offsite Flow Analysis (when land use not defined)	45	.43	.47	.55	.65
Streets:					
Paved	100	.87	.88	.90	.93
Gravel	13	.15	.25	.35	.65
Drives and Walks	96	.87	.87	.88	.89
Roofs	90	.80	.85	.90	.90
Lawns, Sandy Soil	0	.00	.01	.05	.20
Lawns, Clayey Soil	0	.05	.10	.20	.40

NOTE: The Rational Formula coefficients do not apply for larger basins where the time-of-concentration exceeds 60 minutes.

WRC ENG. | REFERENCE: USDCM DRCOG Rev. May 1, 1984

EFFECTIVE RAINFALL PARAMETERS

DEPRESSION AND RETENTION LOSSES

LAND COVER	DEPRESSION & RETENTION (INCHES)	RECOMMENDED (INCHES)
Impervious:		
Large Paved Areas	0.05 - 0.15	0.1
Roofs - Flat	0.1 - 0.3	0.1
Roofs - Sloped	0.05 - 0.1	0.05
Pervious:		
Lawn Grass	0.2 - 0.5	0.5
Wooded Area and Open Fields	0.2 - 0.6	0.4

NOTE: Values are valid for CUHP method only

INFILTRATION PARAMETERS FOR HORTON'S EQUATION

SCS HYDROLOGIC SOIL CROUP *	INFILTRATION (IN/HR) INITIAL (f_i)	FINAL (fo)	DECAY COEFFICIENT (a)
A	5.0	1.0	0.0007
B	4.5	0.6	0.0018
C	3.0	0.5	0.0018
D	3.0	0.5	0.0018

* SCS - Soil Conservation Service

Appendix 3

Subdivision Exemption Survey Plat
(To be submitted at time of recordation with Boulder County Clerk and Recorder)

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1. Subdivision exemption applications proposing a change or development which can be reasonably determined at the pre-application stage to have no material impact on a Species of Special County Concern or significant habitat for such Species (such as a minor boundary line adjustment to resolve an existing structural encroachment).
2. Applications where the subject property is encumbered by a conservation easement or other form of binding land management or preservation plan which adequately protects any Species of Special County Concern or significant habitat for such Species found on the property.

John Martin
5169 Ute Hwy
Longmont CO 80503
1/20/03

Boulder County Land Use Department
2045 13th Street
Boulder CO 80302

Concerning Docket SE-03-01: Cemex Inc (Dowe Flats Development Parcel) BLA

I am writing in opposition to the Cemex application for a Subdivision Exemption for the proposed Dowe Flats development parcel. My small organic farm abuts the property to the South at what is designated lot 1.

I object in principle to the proposed development of luxury lots on that particular piece of property. Luxury homes on large lots are incompatible with the agricultural and open space uses of the adjoining properties. I would urge the County to do all in its power to secure the center of this large open space to complete the County's holdings in this area. Failing Open Space purchase, I would like to see Dowe Flats returned to its agriculture designation.

Furthermore, even if one is open to the idea of development use for this land, it would seem unwise for the County to commit to this particular scheme so far in advance. If the mining operations are to continue for 22 years, what is the rush? Cemex should be directed to have whichever multinational corporation to whom they have sold Dowe Flats in 15 years reapply at that time. By then we may have a clearer picture of the needs of the County.

Sincerely,

John Martin

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

RECEIVED
FEB 6 2003
BOULDER COUNTY
LAND USE DEPT.

MEMO TO: Agencies and adjacent property owners
FROM: Todd Tucker, Staff Planner
DATE: January 15, 2003
RE: Docket SE-03-01

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) ~~BLA~~

Request: Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement.
Location: At 13301 N. 55th Street, in Section 36, T2N , R71W
Zoning: Agricultural (A)
Applicant: CEMEX, Inc.
Agent: Banks & Gesso, LLC / Paul Banks

A Subdivision Exemption is a waiver of the usual subdivision requirements to allow a Boundary Line Adjustment, a Lot Recognition, a Lot Split, or a Community Facility Lot Split.

This process includes public hearings before the Boulder County Board of County Commissioners. Adjacent property owners and holders of liens, mortgages, easements or other rights in the subject property are notified of these hearings.

The Land Use staff and County Commissioners value comments from individuals and referral agencies. Please check the appropriate response below or send a letter. Late responses will be reviewed as the process permits; all comments will be made part of the public record and given to the applicant. Only a portion of the submitted documents may have been enclosed; you are welcome to review the entire file at the Land Use Department, 13th and Spruce, Boulder. If you have any questions regarding this application, please contact the Land Use Department office.

Please return responses to the above address by Jannary 30, 2003.

____ We have reviewed the proposal and have no conflicts.
__✓__ Letter is enclosed.

Signed Jeff Moh PRINTED Name Jeff Moline

Agency or Address Boulder County Parks and Open Space

G:\LUD\LUSHARED\DOCKETS\SE0301\01REF.DOC

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

PUBLIC HEARING
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

DATE: February 20, 2003
TIME: 11:30 a.m.
PLACE: Hearing Room, Third Floor, County Courthouse, Boulder

Notice is hereby given that a public hearing will be held by the Board of County Commissioners at the time and place specified above. All persons interested in the following item(s) are requested to attend such hearing and aid the Commissioners in their consideration.

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA
Request for Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement; by CEMEX, Inc.; in accordance with the Boulder County Land Use Code. The proposed project would be located in the area zoned Light Industrial (LI), at 13301 N. 55th Street, in Section 26, T2N, R71W.

Detailed information regarding this item, including maps and legal descriptions, is available for public examination at the Boulder County Land Use Department, 13th and Spruce, Boulder, Colorado (303-441-3930).

Free Parking in the City of Boulder CAGID lots is available for Board of County Commissioners' hearing participants. See the staff at the lobby desk for city parking vouchers.

Persons needing special services provided under the Americans with Disabilities Act, please contact Peggy Jackson, ADA Coordinator, or the Boulder County Human Resources Office at (303-441-3508) at least 48 hours before the scheduled hearing.

Published: January 20, 2003 – Daily Camera

G:\LUD\LUSHARED\DOCKETS\SE0301\01PNO.DOC

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Parks and Open Space Department

Administrative Office: 2045 13th Street • Boulder, Colorado 80302 • (303) 441-3950 • Fax: (303) 441-4594
Fairgrounds: 9595 Nelson Road • Longmont, Colorado 80501 • (303) 678-6235/441-3927

January 31, 2003

TO: Todd Tucker, Staff Planner
FROM: Jeff Moline, Resource Planner
RE: Cemex Development Parcel, SE-03-01

County Parks and Open Space staff has visited the site and reviewed the submittal materials. Staff has the following comments, analysis, and recommendations:

Proposal

The proposal is to cluster the remaining building rights of the applicant from their Dowe Flats property onto a 50-acre parcel. The approval of the exemption will also limit the annexation potential of the applicant's remaining lands. While the approval of the exemption would create 11 building lots, the County can purchase the properties in order to prevent their subsequent development. No development of the lots would occur prior to 2025.

Natural Resources

Background

As indicated in the submittal, the project area generally includes land in the southeast part of Dowe Flats--east of Lyons, north of the State Highway 66 corridor and immediately west of the existing Cemex limestone mine. This region of the county is at the southern edge of the Rabbit Mountain Environmental Conservation Area (ECA) as designated in the Boulder County Comprehensive Plan. The ECA designation is intended to protect the important flora and fauna features within the area, including significant natural communities, as well as the ecological processes that accompany the landscape. Because of the past agricultural uses on the property, much of the project site (Lots 4 through 11) consists primarily of disturbed upland grasslands. Lot 3 is on the southern end of the limestone ridge and has been heavily impacted by the on-going mining operations. While Lots 1 and 2 are in close proximity to the trees and shrubs associated with irrigation ditches, they too have been extremely altered by mine operations. Vegetation resources of note include the irrigation ditches and associated wetlands. While Lots 1 through 3 are adjacent to the ditches, Lots 5 through 11 are at least 600 feet from the ditches and most are over 1000 feet away from them. The proposed access road to the development follows the existing haul road for over half its roughly 4000-foot length. The new roadway segment is through the already disturbed grassland portion of the property. At this time, it appears that none of the project will directly affect riparian or wetland vegetation. Prairie dogs have colonized the very northeast corner of the subject property.

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Previous Studies

This general area has been the subject of numerous environmental studies, first for the mining operations and more recently for the City of Longmont's water treatment plant and associated pipelines. From these past studies, the importance of Dowe Flats as grassland habitat for prairie dogs and raptors is very clear. Preble's meadow jumping mice *(Zapus hudsonius preblei)* have been found about a mile from the site and suitable habitat is present along the nearby irrigation ditches. However, trapping surveys in this general area (for the water treatment plant and pipelines) have not captured any PMJM. The mature trees along the irrigation ditches have harbored roosting Bald Eagles and other raptors in the past, but use of the ditches in the vicinity of the subject property appears to have trailed off according to the more recent monitoring studies for the mine. Nevertheless, during the review of the water treatment plant project, the Colorado Division of Wildlife cited the importance of the "riparian" vegetation along the ditches as movement corridors for wildlife and the use of mature trees as raptor roost sites. The CDOW recommended a buffer of 100 feet from the ditches for protection of the habitat. If bald eagles used the trees, CDOW recommended a buffer of ¼ mile for their protection.

Analysis

The impacts of the proposal are extremely hard to assess given that the development (if it ever occurs) won't occur for over 20 years. It is very difficult to forecast the status of natural resources in the area so far into the future, and even harder to anticipate how this project would impact those resources. Lacking any other method for analyzing this development, staff has chosen to examine it based on the existing resources and conditions that can be easily predicted based on general landscape features. Furthermore, the impacts of this clustered development should be weighed against the impacts to the site if the clustering didn't happen and eleven 35-acre parcels (or even greater development if the site was annexed) were scattered across the middle of Dowe Flats. In that case, the parcels would extend further into the Rabbit Mountain ECA and disrupt the larger site. By clustering the lots along the south side of the property, they are closer to existing residential development. That being the case, the project would primarily add to the cumulative impacts of the nearby development. Mining and reclamation should end prior to commencement of this project, so there shouldn't be much disturbance or activity on the lands to the north of the site.

Because of their proximity to the riparian vegetation of the ditches, Lots 1 and 2 will have some environmental impacts to wildlife using these areas. Although these areas are extremely disturbed and denuded in large parts at this time, following the conclusion of mining and reclamation, they could easily serve as upland habitat adjacent to the irrigation ditches. At that point the mature vegetation of the ditches could harbor a variety of species including eagles and other raptors using these trees to roost. Also, there is an active prairie dog colony encroaching on the site and this could easily expand on the property. At this time, if prairie dogs would be displaced by development of the project, staff would recommend that they be removed from the site

and relocated to adjacent County property if appropriate. Furthermore, the applicants would need to check for burrowing owls if construction occurred in prairie dog colonies between March 1 and October 31.

Cultural Resources
Because of the previous agricultural operations it is unlikely that significant cultural resources will be found on-site.

Open Space
The County has a variety of easement and fee properties in the project vicinity some of which are related to the deal that prompted this subdivision exemption application. The County's Bullock property is immediately to the west of the project site. The County's Dowe Flats Open Space is adjacent on the northwest of the proposal. The County has acquired property interests in a number of parcels in this corridor to protect their scenic open, agricultural qualities--both of these properties are closed to public access at this time. The only nearby County property with public recreation use at this time is Rabbit Mountain, north and east of the project. While this development maybe visible to visitors of nearby County Open Space, staff feels that the clustered design on relatively large lots will be less intrusive than spreading the eleven homesites across 385 acres.

Specific recommendations:

1. Immediately prior to any development, the applicants shall study and survey the natural resources of site and surroundings. The applicant must ensure that no significant resources are adversely affected by the project. At a minimum this would include any necessary wildlife studies and permissions from local, state, and federal agencies. Any impacts to wildlife and vegetation must be adequately mitigated.
2. The applicant should consider moving Lots 1 and 2 north of the Supply Ditch to minimize resource impacts.
3. The County should review and approve any necessary grading, construction, and erosion control plans at the time of development
4. In the interim, the portions of the property outside the active mine site should be managed to conserve natural resources. This should include aggressive weed control and the establishment of native grasses.
5. The applicant shall notify the County immediately if any significant environmental, historic, or cultural resources are encountered during the construction activity.

April 17, 2003

Todd Tucker
Boulder County Land Use Department
Courthouse Annex
2045 13th Street
Boulder, Colorado 80302

Subject: Docket SE-03-01: Cemex, Inc.
Dowe Flats Subdivision Exemption

Dear Todd:

I have reviewed the referenced Docket and would like to comment on two issues. Longmont supports leaving the main access road from Highway 66 in place. This road would provide useful access to our facilities in the area, including ditches (of which Longmont owns shares in some of the them), pipelines, as well as secondary access to our future water treatment plant.

I recognize that this is, and will remain, a private road however we are confident that Cemex and Longmont can reach agreement on use of the road.

Also, we would have no objection to Cemex constructing a subdivision road across our pipeline easement, provided that the design and construction of the road protects the pipeline and the design is reviewed and approved by the City. Please call me at 303.651.8376 if you have any questions.

Sincerely

CITY OF LONGMONT

Dale F. Rademacher

Dale F. Rademacher, P.E.
Director
Longmont Water/Waste Utilities

RECEIVED
APR 21 2003
BOULDER COUNTY
LAND USE DEPT.

Cc: Larry Wyeno, Project Manager
Paul Banks, Banks and Gesso, LLC

Water/Wastewater Department
1100 South Sherman Street • Longmont, Colorado 80501
303-651-8376 • Fax: 303-651-8812 • www.ci.longmont.co.us

United States Department of the Interior

FISH AND WILDLIFE SERVICE
Ecological Services
Colorado Field Office
755 Parfet Street, Suite 361
Lakewood, Colorado 80215

RECEIVED
MAR 10 2003
BOULDER COUNTY
LAND USE DEPT.

IN REPLY REFER TO:
ES/CO: T&E/PMJM/Other
Mail Stop 65412

MAR - 6 2003

Peter Fogg
Boulder County Land Use Department
PO Box 471
Boulder, Colorado 80306

Dear Mr. Fogg:

Based on the authority conferred to the U.S. Fish and Wildlife Service (Service) by the Endangered Species Act of 1973 (ESA), as amended (16 U.S.C. 1531 *et seq.*), the Service reviewed the Preble's meadow jumping mouse, *Zapus hudsonius preblei* (Preble's), habitat assessment report submitted with your letter of January 29, 2003. This report regards the proposed site plan review for the **CEMEX Inc. (Dowe Flats Development Parcel)** in Boulder County, Colorado.

Based on the information provided, the Service finds the report acceptable and agrees that a population of Preble's is not likely to be present within the subject area. Thus, the Service concludes that the proposed project on this site should not have direct adverse effects to Preble's. Should Preble's populations exist downstream from the site, actions on the site that result in significant modifications of Preble's habitat downstream (for example, through alteration of existing flow regimes, or sedimentation) may be subject to provisions of the ESA.

If the Service can be of further assistance, please contact Barbara Spagnuolo of my staff at (303) 275-2370.

Sincerely,

LeRoy W. Carlson
Colorado Field Supervisor

cc: Paul Banks, Banks and Gesso, LLC
Spagnuolo

Reference: BJS\Boulder\Cemex.wpd

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

Kathleen Linder
US Department of the Interior, Fish and Wildlife Service
Colorado Field Office
755 Parfet Street, Suite 361
Lakewood, CO 80215

January 29, 2003

Dear Kathleen:

Attached are a location map, site plan, aerial photo, color field photos and a January 14th letter from me to Paul Banks regarding a proposed platting of 11 residential lots at the CEMEX Inc/Dowe Flats Development Parcel. This parcel is dissected by several irrigation ditches identified in the letter to Mr. Banks, all of which have been identified as Mouse Management Areas on the draft October 2000 Preble's Meadow Jumping Mouse conservation zone map we are presently using as a reference for development activities. The site disturbances were authorized several years ago as part of a Special Use Review approval for a large quarrying operation granted by Boulder County prior to the Prebles' listing under the ESA in 1998.

While the site disturbance appears to have displaced any potential Mouse habitat, we felt it advisable to forward the enclosed to you and FWS for comments or concems. Please contact me by telephone or via E-Mail at pfogg@co.boulder.co.us after you have had the opportunity to review the documents **(NOTE: this is a new E-Mail address).** Thanks for your time.

Regards,

Peter L. Fogg
Manager, Long Range Division

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

Paul Banks
Banks and Gesso, LLC
720 Kipling Street, Suite 117
Lakewood, CO 80215
January 14, 2003

RE: SE-03-01 CEMEX Inc. (Dowe Flats Development Parcel)

Dear Paul:

Todd Tucker, the Land Use Department project manager for this application, referred it to me for an assessment of potential Preble's Meadow Jumping Mouse (PMJM) issues. As you know, the Mouse was listed as a Threatened Species in mid-1998 pursuant to the federal Endangered Species Act. While Boulder County is working on a Habitat Conservation Plan that will ultimately give us permitting authority for activities impacting the Mouse, we presently need to defer to the US Fish and Wildlife Service whenever an application for a land use appears to be within one of six PMJM "conservation zones" as mapped in October 2000. The Rough and Ready, Highline and Supply Canal ditches have been identified as "Mouse Management Areas" (MMA) on that map where they pass by and through Lots 1 through 4 as shown on the survey plat drainage plan (see attached aerial and map).

The MMA designation means that PMJM have been trapped within one mile of the CEMEX property. We therefore need to refer this proposal to US Fish and Wildlife in Lakewood for an adverse impact assessment. Typically this is facilitated by the applicant submitting photos to the Land Use Department showing the vegetative condition and any existing structures/disturbed areas on the ground between the designated MMA and the area proposed for platting or improvements as well as the distances between the two in feet. In this particular case that would include all the land within Lot I and lands on Lots 2 – 4 within 300 feet of the nearest ditches. We will then forward the material to Fish and Wildlife for comment and direction. They may find that no direct adverse impacts are expected due to the proposal or that additional field surveys or avoidance/minimization/mitigation measures need to be submitted for review. Their determination is transmitted in letter form to the applicant and the Department.

Please contact either Todd Tucker or me if more information or clarification would be helpful. I look forward to hearing from you.

Regards,

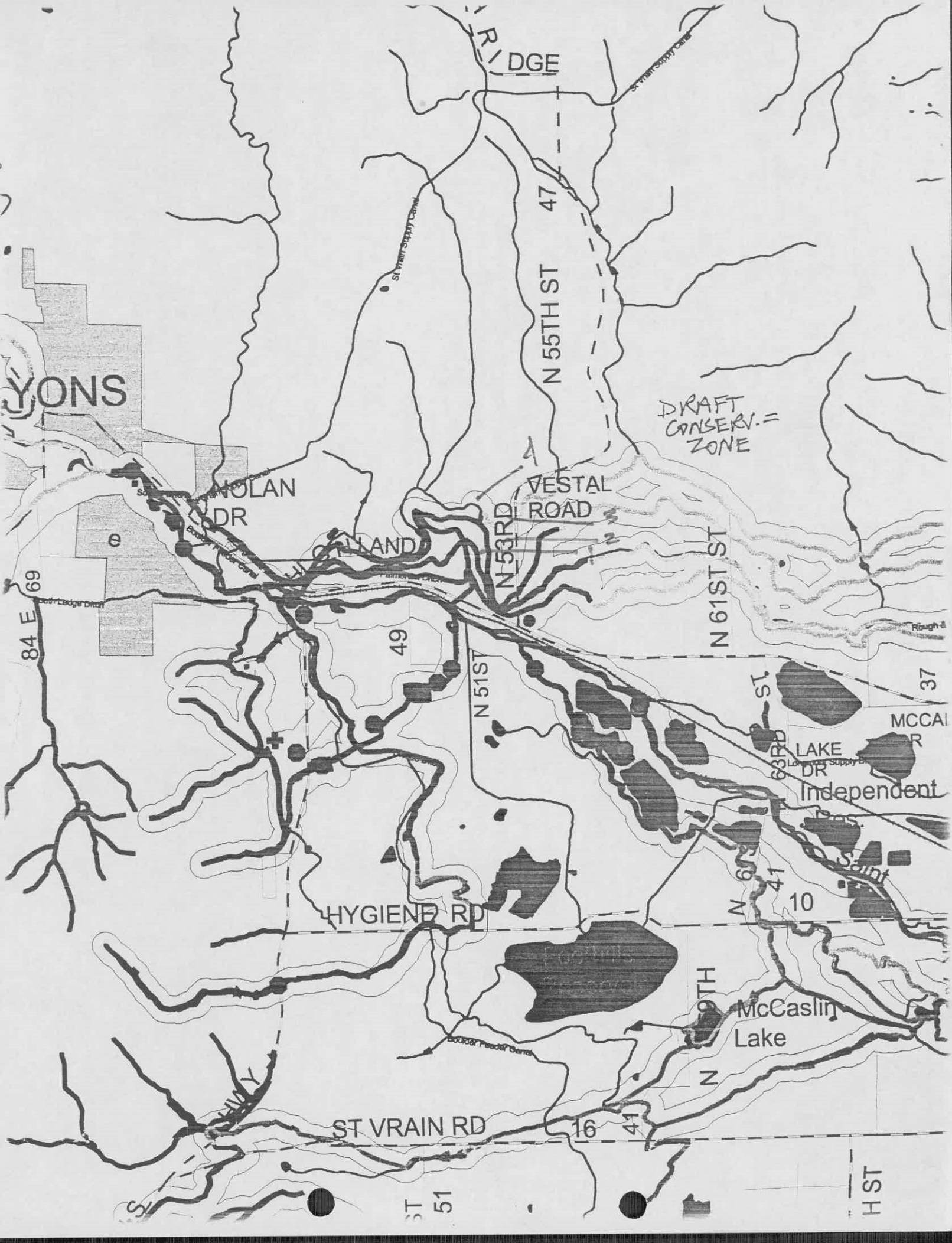
Peter L. Fogg
Manager, Long Range Division

cc: Todd Tucker

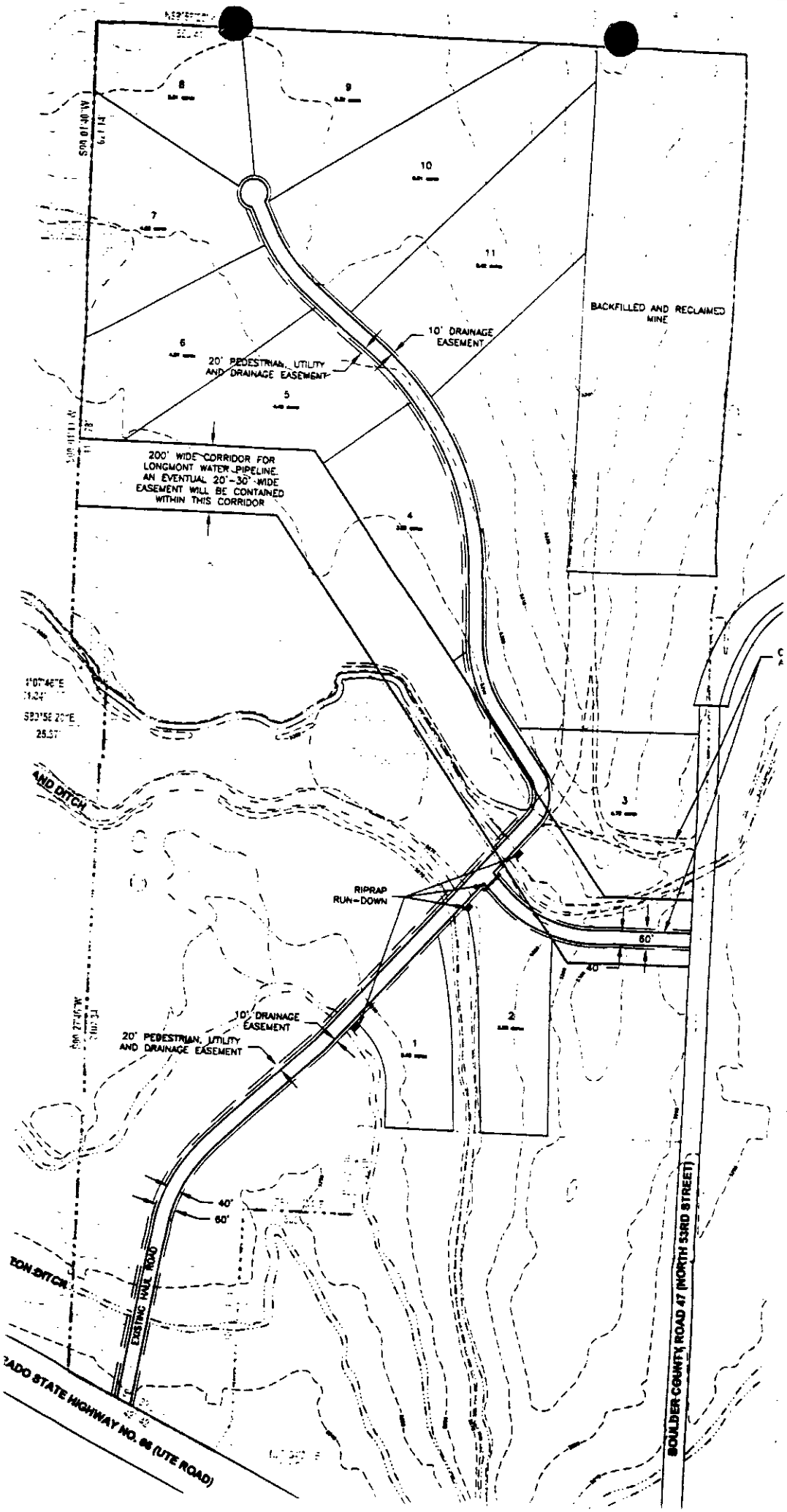
Paul Danish
County Commissioner

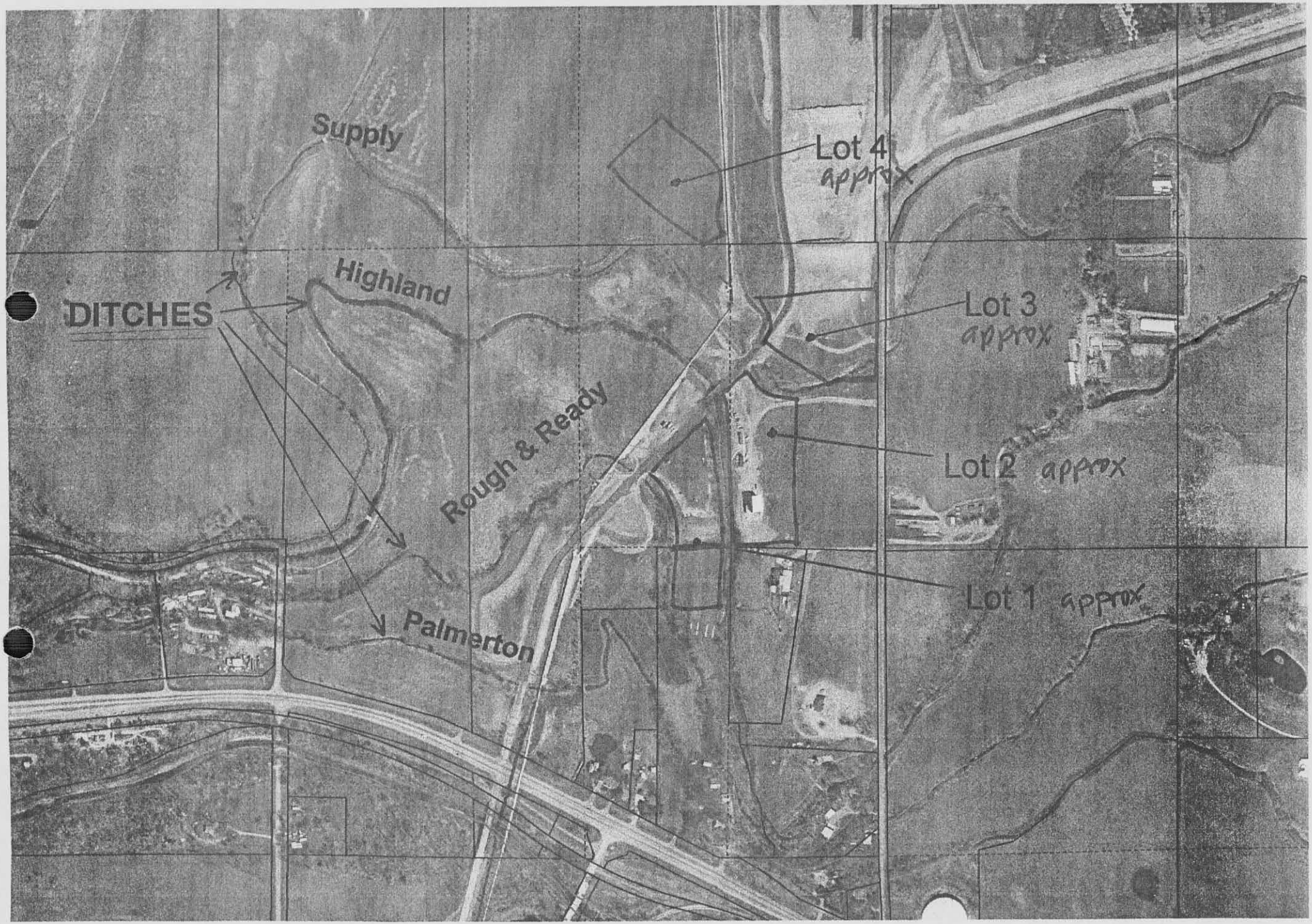
Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner


RIDGE
St Vrain Supply Canal
47
N 55TH ST
YONS
DRAFT CONSERV.= ZONE
NOLAN DR
VESTAL ROAD
N 53RD
N 61ST ST
84 E
69
49
N 51ST
37
MCCAI
LAKE DR
Independent
Saint
HYGIENE RD
10
McCaslin Lake
ST VRAIN RD
16
51


Conservation
Zone
18/2000 map
Town of Lyons
Supply
Highland
DITCHES
Rough & Ready
Palmerton
Lot 4
Lot 3
Lot 2
Lot 1
US 36
St Vrain Creek
State Hwy 66


BACKFILLED AND RECLAIMED MINE
10' DRAINAGE EASEMENT
20' PEDESTRIAN, UTILITY AND DRAINAGE EASEMENT
200' WIDE CORRIDOR FOR LONGMONT WATER PIPELINE. AN EVENTUAL 20'-30' WIDE EASEMENT WILL BE CONTAINED WITHIN THIS CORRIDOR
RIPRAP RUN-DOWN
60'
40'
10' DRAINAGE EASEMENT
20' PEDESTRIAN, UTILITY AND DRAINAGE EASEMENT
40'
60'
EXISTING HAUL ROAD
BOULDER COUNTY ROAD 47 (NORTH 53RD STREET)
ADO STATE HIGHWAY NO. 66 (UTE ROAD)
AND DITCH
TON DITCH
1
2
3
4
5
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9
10
11


Supply
Lot 4
approx
Highland
DITCHES
Lot 3
approx
Rough & Ready
Lot 2 approx
Lot 1 approx
Palmerton

Banks and Gesso, LLC

720 Kipling St ,Suite117
Lakewood, Colorado 80215

(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

RECEIVED
JAN 28 2003
BOULDER COUNTY
LAND USE DEPT.

January 27, 2003

Peter Fogg
Boulder County Land Use Department
Courthouse Annex
2045 13th Street
Boulder, Colorado 80302

Subject: Photographs of Lots 1 through 4, Dowe Flats Subdivision Exemption, Cemex, Inc.

Dear Peter:

Attached are the photographs you requested. Please forward to U.S. Fish and Wildlife and let me know if there are any questions. Thanks.

Sincerely,

Paul Banks

PB/kj

Attachment

Cc: John Lohr, Cemex
Nolan Fry, Cemex

#02031-Cemex, Inc.
Correspondence



Lot 1 looking South



Lot 1 looking East toward Highline Canal



Lot 1 looking North



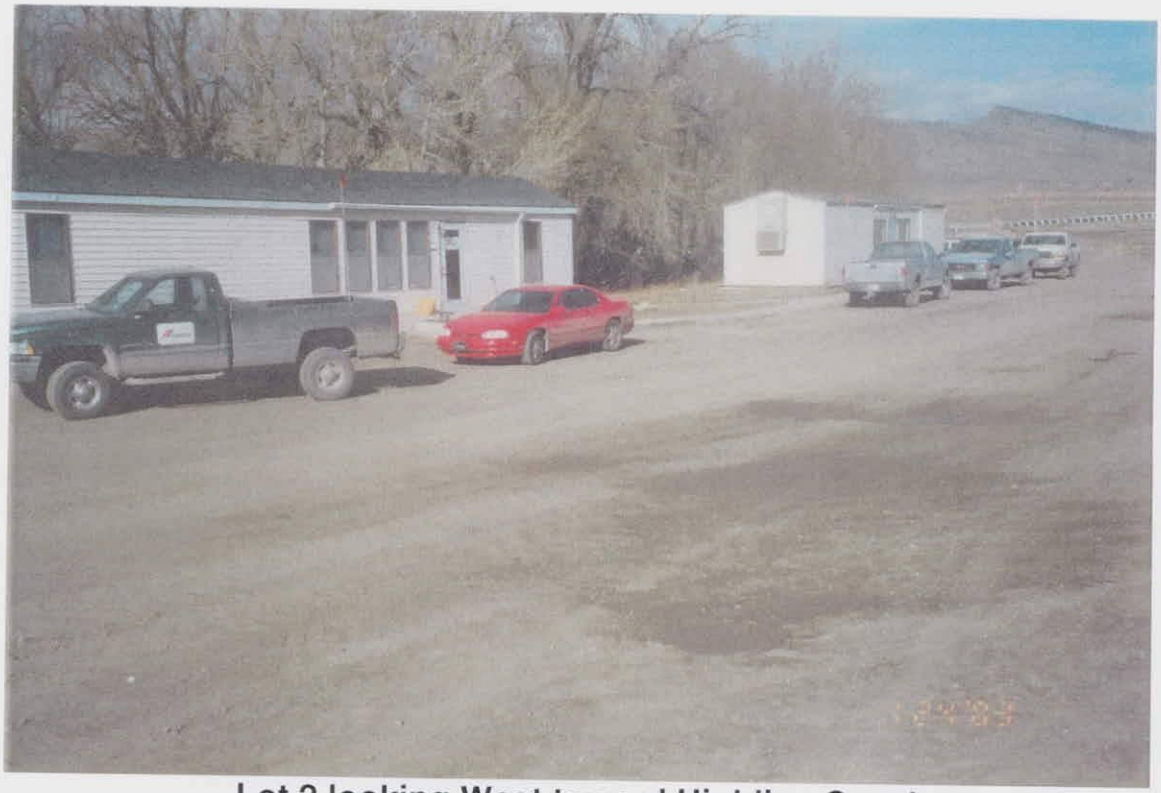
Highline Canal between lots 1 and 2



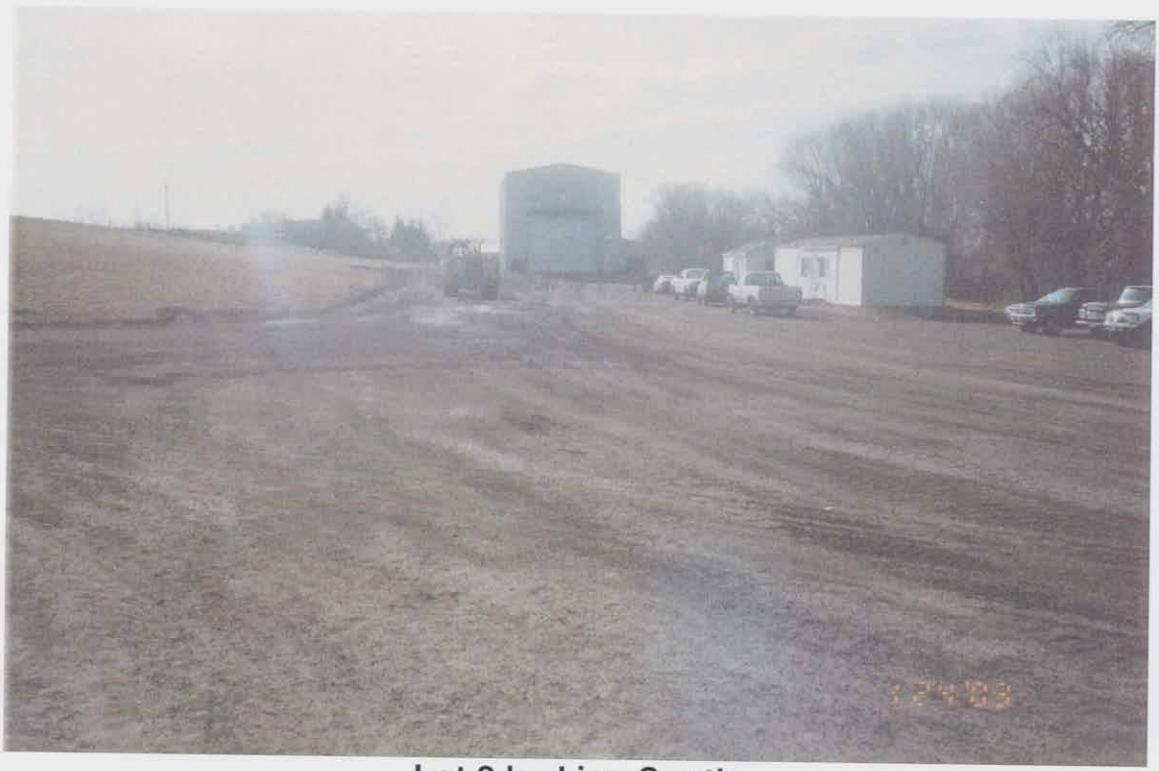
Highline Canal East of lot 1



Lot 2 looking North



Lot 2 looking West toward Highline Canal



Lot 2 looking South



Lot 3 looking North



Lot 3 with Supply Ditch in foreground



Supply Ditch South of lot 3



Lot 4 looking West



Lot 4 with Supply Ditch vegetation to the Southwest



Supply Ditch vegetation Southwest of lot 4



Lot 4 looking East



Lot 4 looking North

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

MEMO TO: Agencies and adjacent property owners
FROM: Todd Tucker, Staff Planner
DATE: January 15, 2003
RE: Docket SE-03-01

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA

Request: Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement.
Location: At 13301 N. 55th Street, in Section 36, T2N , R71W
Zoning: Agricultural (A)
Applicant: CEMEX, Inc.
Agent: Banks & Gesso, LLC / Paul Banks

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Please return responses to the above address by **January 30, 2003.**

____ We have reviewed the proposal and have no conflicts.
____ Letter is enclosed.

Signed _____ PRINTED Name Kathy Wyeno

Agency or Address City of Longmont
1100 South Sherman St.
Longmont CO 80501

G:\LUD\LUSHARED\DOCKETS\SE0301\01REF.DOC

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

PUBLIC HEARING
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

DATE:	February 20, 2003
TIME:	11:30 a.m.
PLACE:	Hearing Room, Third Floor, County Courthouse, Boulder

Notice is hereby given that a public hearing will be held by the Board of County Commissioners at the time and place specified above. All persons interested in the following item(s) are requested to attend such hearing and aid the Commissioners in their consideration.

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA
Request for Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement; by CEMEX, Inc.; in accordance with the Boulder County Land Use Code. The proposed project would be located in the area zoned Light Industrial (LI), at 13301 N. 55th Street, in Section 26, T2N, R71W.

Detailed information regarding this item, including maps and legal descriptions, is available for public examination at the Boulder County Land Use Department, 13th and Spruce, Boulder, Colorado (303-441-3930).

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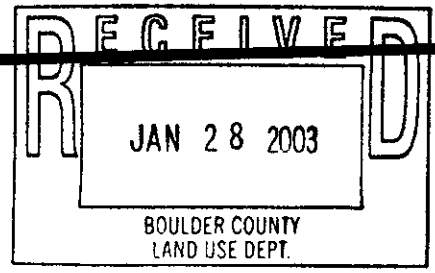
Published: January 20, 2003 – Daily Camera

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Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner





January 24, 2003

Mr. Todd Tucker
Boulder County Land Use Dept.
P.O. Box 471
Boulder, CO 80306

Re: Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA

Dear Mr. Tucker:

We have reviewed the proposed Subdivision Exemption and have the following comments.

1. Our department, the Water/Wastewater Utility Department, will be constructing a raw water pipeline within the proposed 200' wide corridor that is shown on the survey plat. This line is scheduled to be constructed in 2004 and will provide water to a new potable (drinking) water treatment plant.
2. The county should insure that any individual sewage disposal systems (ISDS) installed within the proposed lots are properly designed and constructed and comply with the Boulder County Health Department Criteria, especially for setback distances to property lines, and water lines. This is important to protect our raw water line from possible contamination as this water will be a drinkmg water supply.

If you have any questions concerning our comments, please contact me at 303-651-8628

Sincerely,

Larry Wyeno, P.E.
Senior Civil Engineer

Cc: Froda Greenberg, Planning Department

Water/Wastewater Department
1100 South Sherman Street • Longmont, Colorado 80501
303-651-8376 • Fax: 303-651-8812 • www.ci.longmont.co.us

January 31, 2003

TO: Todd Tucker, Staff Planner
FROM: Jeff Moline, Resource Planner
RE: Cemex Development Parcel, SE-03-01

County Parks and Open Space staff has visited the site and reviewed the submittal materials. Staff has the following comments, analysis, and recommendations:

Proposal
The proposal is to cluster the remaining building rights of the applicant from their Dowe Flats property onto a 50-acre parcel. The approval of the exemption will also limit the annexation potential of the applicant's remaining lands. While the approval of the exemption would create 11 building lots, the County can purchase the properties in order to prevent their subsequent development. No development of the lots would occur prior to 2025.

Natural Resources
Background
As indicated in the submittal, the project area generally includes land in the southeast part of Dowe Flats--east of Lyons, north of the State Highway 66 corridor and immediately west of the existing Cemex limestone mine. This region of the county is at the southern edge of the Rabbit Mountain Environmental Conservation Area (ECA) as designated in the Boulder County Comprehensive Plan. The ECA designation is intended to protect the important flora and fauna features within the area, including significant natural communities, as well as the ecological processes that accompany the landscape. Because of the past agricultural uses on the property, much of the project site (Lots 4 through 11) consists primarily of disturbed upland grasslands. Lot 3 is on the southern end of the limestone ridge and has been heavily impacted by the on-going mining operations. While Lots 1 and 2 are in close proximity to the trees and shrubs associated with irrigation ditches, they too have been extremely altered by mine operations. Vegetation resources of note include the irrigation ditches and associated wetlands. While Lots 1 through 3 are adjacent to the ditches, Lots 5 through 11 are at least 600 feet from the ditches and most are over 1000 feet away from them. The proposed access road to the development follows the existing haul road for over half its roughly 4000-foot length. The new roadway segment is through the already disturbed grassland portion of the property. At this time, it appears that none of the project will directly affect riparian or wetland vegetation. Prairie dogs have colonized the very northeast corner of the subject property.

Previous Studies

This general area has been the subject of numerous environmental studies, first for the mining operations and more recently for the City of Longmont's water treatment plant and associated pipelines. From these past studies, the importance of Dowe Flats as grassland habitat for prairie dogs and raptors is very clear. Preble's meadow jumping mice *(Zapus hudsonius preblei)* have been found about a mile from the site and suitable habitat is present along the nearby irrigation ditches. However, trapping surveys in this general area (for the water treatment plant and pipelines) have not captured any PMJM. The mature trees along the irrigation ditches have harbored roosting Bald Eagles and other raptors in the past, but use of the ditches in the vicinity of the subject property appears to have trailed off according to the more recent monitoring studies for the mine. Nevertheless, during the review of the water treatment plant project, the Colorado Division of Wildlife cited the importance of the "riparian" vegetation along the ditches as movement corridors for wildlife and the use of mature trees as raptor roost sites. The CDOW recommended a buffer of 100 feet from the ditches for protection of the habitat. If bald eagles used the trees, CDOW recommended a buffer of ¼ mile for their protection.

Analysis

The impacts of the proposal are extremely hard to assess given that the development (if it ever occurs) won't occur for over 20 years. It is very difficult to forecast the status of natural resources in the area so far into the future, and even harder to anticipate how this project would impact those resources. Lacking any other method for analyzing this development, staff has chosen to examine it based on the existing resources and conditions that can be easily predicted based on general landscape features. Furthermore, the impacts of this clustered development should be weighed against the impacts to the site if the clustering didn't happen and eleven 35-acre parcels (or even greater development if the site was annexed) were scattered across the middle of Dowe Flats. In that case, the parcels would extend further into the Rabbit Mountain ECA and disrupt the larger site. By clustering the lots along the south side of the property, they are closer to existing residential development. That being the case, the project would primarily add to the cumulative impacts of the nearby development. Mining and reclamation should end prior to commencement of this project, so there shouldn't be much disturbance or activity on the lands to the north of the site.

Because of their proximity to the riparian vegetation of the ditches, Lots 1 and 2 will have some environmental impacts to wildlife using these areas. Although these areas are extremely disturbed and denuded in large parts at this time, following the conclusion of mining and reclamation, they could easily serve as upland habitat adjacent to the irrigation ditches. At that point the mature vegetation of the ditches could harbor a variety of species including eagles and other raptors using these trees to roost. Also, there is an active prairie dog colony encroaching on the site and this could easily expand on the property. At this time, if prairie dogs would be displaced by development of the project, staff would recommend that they be removed from the site and relocated

to adjacent County property if appropriate. Furthermore, the applicants would need to check for burrowing owls if construction occurred in prairie dog colonies between March 1 and October 31.

Cultural Resources
Because of the previous agricultural operations it is unlikely that significant cultural resources will be found on-site.

Open Space
The County has a variety of easement and fee properties in the project vicinity some of which are related to the deal that prompted this subdivision exemption application. The County's Bullock property is immediately to the west of the project site. The County's Dowe Flats Open Space is adjacent on the northwest of the proposal. The County has acquired property interests in a number of parcels in this corridor to protect their scenic open, agricultural qualities--both of these properties are closed to public access at this time. The only nearby County property with public recreation use at this time is Rabbit Mountain, north and east of the project. While this development maybe visible to visitors of nearby County Open Space, staff feels that the clustered design on relatively large lots will be less intrusive than spreading the eleven homesites across 385 acres.

Specific recommendations:

1. Immediately prior to any development, the applicants shall study and survey the natural resources of site and surroundings. The applicant must ensure that no significant resources are adversely affected by the project. At a minimum this would include any necessary wildlife studies and permissions from local, state, and federal agencies. Any impacts to wildlife and vegetation must be adequately mitigated.
2. The applicant should consider moving Lots 1 and 2 north of the Supply Ditch to minimize resource impacts.
3. The County should review and approve any necessary grading, construction, and erosion control plans at the time of development
4. In the interim, the portions of the property outside the active mine site should be managed to conserve natural resources. This should include aggressive weed control and the establishment of native grasses.
5. The applicant shall notify the County immediately if any significant environmental, historic, or cultural resources are encountered during the construction activity.

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Transportation Department

2045 13th Street • Boulder, Colorodo 80302 • (303) 441-3900 • Fax (303) 41-4594

January 29, 2003

TO: Todd Tucker, Staff Planner, Land Use Department

FROM: Jorge Riveros, Transportation Development Engineer JR

SUBJECT: Docket # SE-03-01: Cemex, Inc. (Dowe Flats Development Parcel) BLA

The Transportation Department has reviewed the above referenced docket and has the following comments.

- In concept, Transportation Department staff has no major issues with the proposed development, however, Transportation Department staff would make the following recommendations:

  1. Eliminate the existing access off of Colorado State Highway 66 into the development as a proposed access and just use an access point off of County Road 47;

  2. Move the proposed access off of County Road 47 north where current access off of the county road exists to avoid additional disturbance of the supply ditch and avoid crossing over/into the proposed 200' wide corridor for the Longmont Water Line. This would most likely result in the elimination of, or resizing of the parcel identified as Lot 3;

  3. Lots 1 and 2 could be eliminated by virtue of the fact that access off of Colorado State Highway 66 would be eliminated, unless easements onto the parcels were granted by the appropriate agencies. This would result in a more suitable and acceptable density of eight (8) parcels in the area.

This concludes our comments at this time.

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

JAN 21 2003
BOULDER COUNTY
LAND USE

MEMO TO: Agencies and adjacent property owners
FROM: Todd Tucker, Staff Planner
DATE: January 15, 2003
RE: Docket SE-03-01

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA

Request: Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement.
Location: At 13301 N. 55th Street, in Section 36, T2N , R71W
Zoning: Agricultural (A)
Applicant: CEMEX, Inc.
Agent: Banks & Gesso, LLC / Paul Banks

A Subdivision Exemption is a waiver of the usual subdivision requirements to allow a Boundary Line Adjustment, a Lot Recognition, a Lot Split, or a Community Facility Lot Split.

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Please return responses to the above address by **January 30, 2003.**

__X__ We have reviewed the proposal and have no conflicts.
_____ Letter is enclosed.

Signed J. Winans PRINTED Name John Winans

Agency or Address 3244 9TH St Bldr Co 80302
(4559 Ute Hwy)

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Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

PUBLIC HEARING
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

DATE: February 20, 2003
TIME: 11:30 a.m.
PLACE: Hearing Room, Third Floor, County Courthouse, Boulder

Notice is hereby given that a public hearing will be held by the Board of County Commissioners at the time and place specified above. All persons interested in the following item(s) are requested to attend such hearing and aid the Commissioners in their consideration.

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA
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Persons needing special services provided under the Americans with Disabilities Act, please contact Peggy Jackson, ADA Coordinator, or the Boulder County Human Resources Office at (303-441-3508) at least 48 hours before the scheduled hearing.

Published: January 20, 2003 – Daily Camera

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Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

RECEIVED
JAN 24 2003
BOULDER COUNTY
LAND USE DEPT.

MEMO TO: Agencies and adjacent property owners
FROM: Todd Tucker, Staff Planner
DATE: January 15, 2003
RE: Docket SE-03-01

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Please return responses to the above address by Januarv 30, 2003.

____ We have reviewed the proposal and have no confiicts.
X Letter is enclosed.

Signed Ellen Rosenberg PRINTED Name ELLEN ROSENBERG

Agency or Address 13018 N. 53rd ST, LONGMONT, CO, 80503

G:\LUD\LUSHARED\DOCKETS\SE0301\01REF.DOC

☆ I WOULD LIKE ALL THIS LAND TO BE RECLAIMED TO NATURAL PRAIRIE OR FOR AGRICULTURAL USE. MY SECOND CHOICE WOULD BE FOR OPEN SPACE/PUBLIC USE.

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

BOOK 1 S MAIL

PUBLIC HEARING
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

DATE:	February 20, 2003
TIME:	11:30 a.m.
PLACE:	Hearing Room, Third Floor, County Courthouse, Boulder

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Published: January 20, 2003 – Daily Camera

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Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

MEMORANDUM OF COMMISSIONERS ACTION

TO: Land Use

FROM: Commissioners Office

SUBJ: Review of Docket #SE-03-01

This is to advise you that the Board of County Commissioners took the following action on this matter during a pubiic meeting held

FEBRUARY 6, 2003

(XXX) APPROVED ( ) DENIED ( ) OTHER

COMMENTS:

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AGENDA ITEM #

14

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

MEMO TO: Board of County Commissioners, Business Meeting Agenda
FROM: Todd C. Tucker, Planner II, Land Use Department
DATE: Tuesday, February 04, 2003

REGARDING: **Authorization to proceed with Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA**

Request: Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement.
Location: At 13301 N. 55th Street, in Section 36, T2N , R71W
Zoning: Agricultural (A)
Applicant: CEMEX, Inc.
Agent: Banks & Gesso, LLC / Paul Banks

The County holds an interest in the property that is under consideration for the proposed boundary adjustment and the eleven building lots (see attached). Therefore, authorization to proceed with the review is required before staff can accept the application as complete.

The application is part of an agreement between Boulder County and Cemex, Inc., which will result the transfer of eleven single-family building lots from the operations parcel (north of CO 66) to 50-acres of the 153-acre development parcel. The remaining ±103 acres will be placed under a conservation easement and preserved as open space.

The purchase agreement requires that the applicant submit a subdivision exemption for review and consideration by the county commissioners to create and vest the eleven single-family lots. Of note is the purchase agreement which requirement that Cemex cannot sell the lots to an entity other than Boulder County until the year 2025.

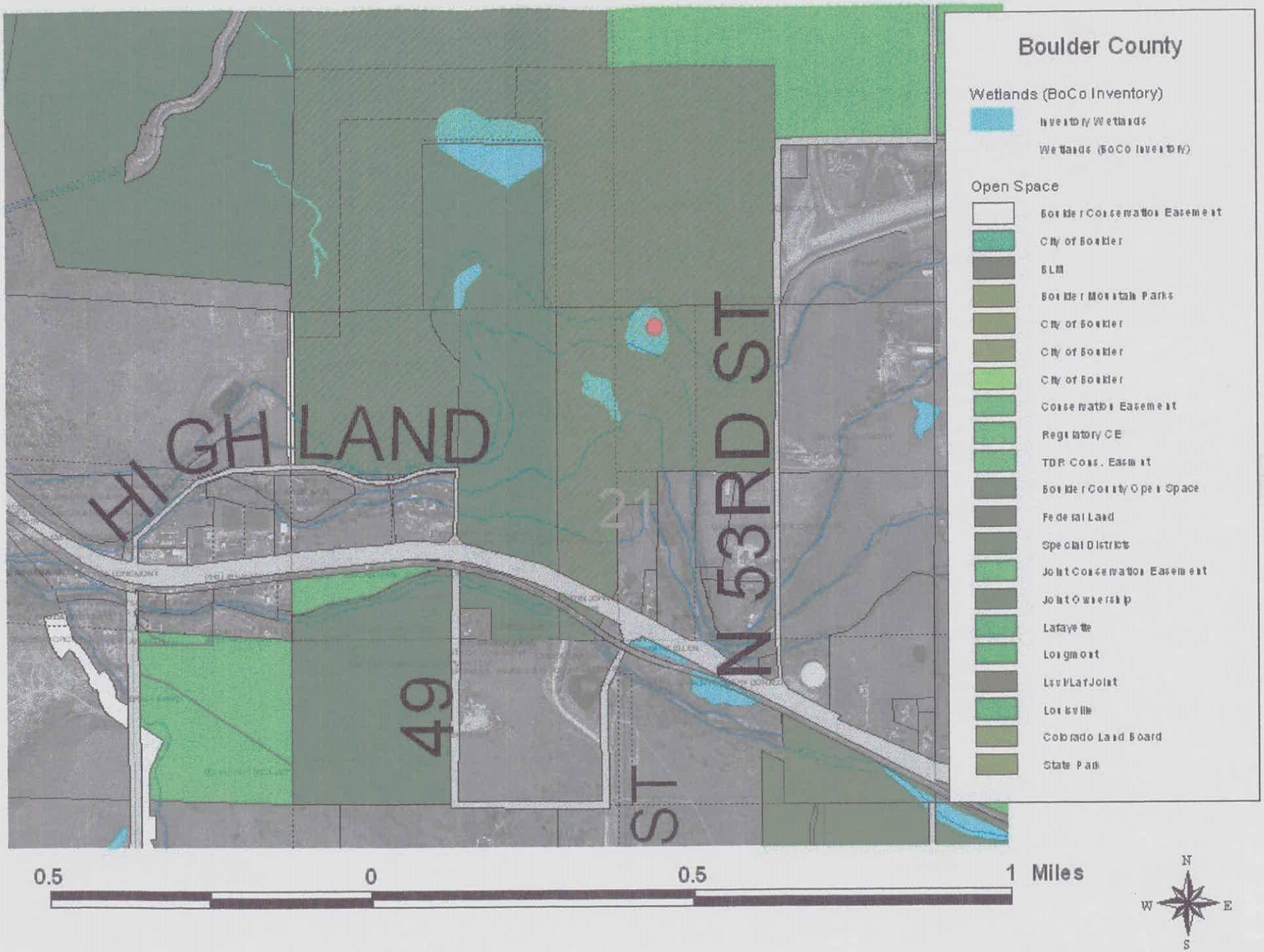
Land Use Staff respectfully requests authorization to proceed with review of this docket. It is understood that authorization to proceed does not imply any particular decision by the County with regard to the outcome of the docket, nor would this authorization to proceed constitute any approval, the terms of any conditional approval, or preclude a decision for denial of the proposal.

BOCC approved
2/6/03
Ama

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner


Boulder County
Wetlands (BoCo Inventory)
Inventory Wetlands
Wetlands (BoCo Inventory)
Open Space
Boulder Conservation Easement
City of Boulder
BLM
Boulder Mountain Parks
City of Boulder
City of Boulder
City of Boulder
Conservation Easement
Regulatory CE
TDR Cons. Easmnt
Boulder County Open Space
Federal Land
Special Districts
Joint Conservation Easement
Joint Ownership
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Longmont
Lou/Laf Joint
Louisville
Colorado Land Board
State Park
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Banks and Gesso, LLC

720 Kipling St.,Suite117
Lakewood, Colorado 80215

(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

May 6, 2003

RECEIVED
MAY 8 2003
BOULDER COUNTY
LAND USE DEPT.

Mr. Todd Tucker
Boulder County Land Use Department
P.O. Box 471
Boulder, Colorado 80306

Re: SE-03-01
Cemex, Inc., Dowe Flats Subdivision Exemption

Dear Todd:

Attached please find a copy of a letter we recently received from the Palmerton Ditch Company in support of maintaining the existing access road to Cemex's Dowe Flats property off Highway 66.

We anticipate additional letters of support from other ditch companies as well. I will fonward these to you as they become available. Thank you.

Sincerely,

Maureen Jacoby

Maureen Jacoby

Cc: John Lohr, Cemex, Inc.
Nolan Fry, Cemex, Inc.

April 26,2003

Banks and Gesso, LLC
720 Kipling St., Suite 117
Lakewood, Colorado 80215

Re: Pahnerton Ditch, Crossing the Cemex Dowe Flats Quarry Property

To Whom It May Concern:

Upon review of the information which we received in your correspondence of April 23, 2003, tiie Board of Directors of the Palmerton Consolidated Ditch Company agree that during and after future residential development of the Dowe Flats property, the existing "haul road" off Highway 66 should be left intact. This decision is based on the road and the bridge being well maintained by the responsible parties.

Thank you for the opportunity of offering our opinion on this matter.

Sincerely,

Lynn Williams

Lynn Williams
Secretary-treasurer
Palmerton Consolidated Ditch Co.

RECEIVED
APR 28 2003
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MAR 5 2003
BOULDER COUNTY
LAND USE DEPT.

February 28, 2003

Todd Tucker
Boulder County Land Use Department
Courthouse Annex
2045 13th Street
Boulder, Colorado 80302

Subject: Docket SE-03-01, Cemex, Inc.
Dowe Flats Development Parcel

Dear Todd:

On behalf of my client, Cemex, Inc., we are requesting a tabling of the March 13, 2003 County Commissioners' Hearing. Cemex is continuing to work to resolve certain issues and we will inform you when we believe that this has been accomplished so that you can reschedule the hearing. Please let me know if you have questions or comments.

Sincerely,

Paul Banks

PB/kj

Cc: Nolan Fry, Cemex
John Lohr, Cemex
Ray Petros, Petros & White
Dave Hayes, Petros & White

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February 13, 2003

Todd Tucker
Boulder County Land Use Department
Courthouse Annex
2045 13th St.
Boulder, Colorado 80302

Subject: SE-03-01, Cemex, Inc, Dowe Flats Development Parcel

Dear Todd:

On behalf of my client, Cemex, Inc., I am requesting a continuance of the February 20, 2003 public hearing in front of the County Commissioners. Cemex feels they need more time to adequately respond to the staff comments and recommended conditions of approval.

Sincerely,

Paul Banks

PB/kj

Cc: Nolan Fry, Cemex
John Lohr, Cemex

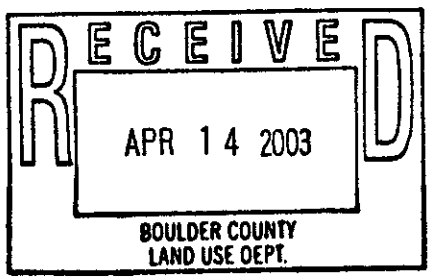
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FEB 18 2003
BOULDER COUNTY
LAND USE DEPT.

Banks and Gesso, LLC

720 Kipling St.,Suite117
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(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

April 11, 2003



Todd Tucker
Boulder County Land Use Department
Courthouse Annex
2045 13th Street
Boulder, Colorado 80302

Subject: Docket SE-03-01: Cemex, Inc.,
Dowe Flats Subdivision Exemption

Dear Todd:

This letter contains Cemex's response to the Staff Recommendation that you e-mailed to me on March 21, 2003. Our response is organized point by point to your numbered recommendations.

Staff: Based on the review criteria for a subdivision exemption under section 9-102(A) of the Land Use Code, Land Use staff recommends that the Board of County Commissioners **approve** this request subject to the following conditions:

Cemex: We would like to clarify that you are recommending approval of both the Subdivision Exemption and the Boundary Line Adjustment. Also, would you check and see if the County Commissioners need to vote on two separate resolutions (i.e. one for the Subdivision Exemption and one for the Boundary Line Adjustment).

Staff 1): The purchase agreement precludes the development of these eleven lots before the earlier of the completion of mining (i.e. release of DMG bond) or the year 2025. Any authorized development of the proposed eleven lots within the Dowe Flats Development Parcel shall be subject to County Health Department regulations, County Building Code Regulations, and applicable Land Use Regulations, as amended (including Site Plan Review, etc.) Prior to the issuance of any permits or the beginning of any construction related to this docket, the applicant shall apply for and receive the applicable approval as required in accordance with County.

Cemex 1): This recommendation conflicts with recommendation #16. Recommendation #16 states "...such right to develop shall not be diminished by any future changes in the law, such as rezoning or more

restrictive lot size or lot number requirements". Recommendation #1 implies that development shall be subject to the County regulations, as ***amended***. We are trying to guard against a misinterpretation of the intent of this recommendation that could be made be County Staff a decade or more from now. We suggest that specific reference be made here to recommendation #16 and that recommendation #16 is the controlling language with respect to what is required to develop the lots and that development of the lots is not subject to future, unknown changes in the land use code.

Staff 2): Before the County issues any construction permit or building permits for development associated with these lots, the staff shall review and approve the following:

I. Grading calculations, and plan, profile and cross sections of ail proposed roadways, including a final soils and drainage report, and surfacing and drainage design recommendations;
II. Specific location and details for all proposed utility lines to service the eleven building sites;
III. Specific location and dimensions of any proposed pedestrian paths;
IV. A utility plan placing all proposed water lines outside of any wetland area; Covenants and design guidelines shall be submitted for review and approval by the County, all covenants and guidelines shall be in accordance with the Land Use Code, amended, and that place reasonable, industry recognized xeriscape standards on the design and watering of proposed landscape areas;

Note: The 30-foot height limit of the agricultural zoning district applies to all residential structures on any lot recognized by this subdivision exemption (these requirements shall be noted on the exemption plat).

Cemex 2): We have no fundamental objection to this recommendation other than the reference to the Land Use Code, as amended, in item IV with respect to covenants and landscape design guidelines. We request that reference to amended codes be deleted.

Staff 3): There shall be no pedestrian trail located in the conservation easement south of the Supply Canal, unless it is adjacent to an approved roadway, and / or otherwise approved by Boulder County (this requirement shall be noted on the exemption plat). Use of the outlot shall be limited to that which is permitted by the terms of the conservation easement and that which is permitted by right under the agricultural zoning district or otherwise approved by the County in accordance with the provisions of the Land Use Code.

Cemex 3): We have no objection to this recommendation provided that the term "pedestrian trail" means improved trail and that the terms of the conservation easement conform to the following criteria:

- Cemex will maintain the conservation easement
- The conservation easement will not impose any affirmative obligations on Cemex
- Cemex's maintenance of the conservation easement will include weed management, erosion control, and other good management practices according to Cemex's standards of land stewardship
- The entire conservation easement will be available for the use and enjoyment of the residents of the subdivision.
- Use of the conservation easement will be non-disruptive and will include pedestrian and equestrian use, recreational uses, and no motorized vehicles.

Cemex would also like to preclude general public access to the outlot area.

Staff 4): Re-vegetation / reclamation of mining operation disturbances must be completed in accordance with previous approvals and applicable requirements. Prior to the issuance of any permits for construction, a re-vegetation / erosion control plan must be submitted to the Land Use Department for review and approval. The plan must illustrate areas of construction disturbance, areas proposed for re-vegetation, and the locations of erosion and sediment control devices. The re-vegetation/erosion control plan must be implemented prior to final approval of construction. The plan shall depict the location, type, and quantity of seed or other plantings and erosion control devices sufficient to stabilize all disturbed areas and areas of cut and fill (this requirement shall be noted on the exemption plat).

(A) The re-vegetation/erosion control plan must, at a minimum, address the following.

I. To prevent sediment loading in areas adjacent to any proposed disturbance, temporary erosion control devices must be used. Provide a properly anchored silt fence down-gradient of all disturbed areas and install anchored hay bale dikes at all channelized point releases. The silt fences and hay bales must be installed before construction begins and remain in place until vegetation is sufficiently established on the disturbed soil.

II. Permanent control devices such as native rock check dams, shall be provided at all culvert releases.

III. Erosion control matting or blankets (in addition to seeding) shall be placed on ali disturbed areas with slopes greater than 2(horizontal) to 1(vertical).

IV. Reseeding specifications (seed mix species and re-vegetation locations) must be indicated on the re-vegetation/erosion plan. Only native plant materials shall be used in re-vegetation.

Cemex 4): We have not objection to this recommendation except the sentence "The

revegetation/erosion control plan must be implemented prior to final approval of construction". That should read "...must be implemented after approval and prior to construction".

Staff 5): The development of lots one (1) and two (2) have an evident potential for significant adverse impact to wildlife habitat (Raptors and Pebbles Mouse, etc.) To avoid these conflicts lots one (1) and two (2) must be placed north of the water pipeline corridor. In an effort to reduce the potential for adverse impacts on existing wildlife and known habitat, as stated above and including the existing prairie dog colonies located east of lot four (4) and north of lot three (3), the relocation of these lots may result in the reconfigured of the other lots in terms of size and location (I.E. clustered at the north end of the proposed Cul-de-sac). The required parcel reconfiguration must be approved by county staff and shall maintain consistency with all other conditions of approval as stated herein. The required parcel reconfiguration may include the installation of an additional cul-de-sac. All approved lot adjustments must be represented in the surveyor's plat (see condition 13).

Cemex 5): We do not accept this recommendation. Lots one and two are already developed and are used on virtually a daily basis by personnel and heavy equipment and vehicles associated with the mining activity. We are not aware of any significant adverse impact to wildlife habitat resulting from the historic and on-going use of these proposed lots.

Concerning the Prebies Mouse, the U.S. Fish and Wildlife Service has commented (see their March 6, 2003 letter to Peter Fogg) and states that "...a population of Preble's is not likely to be present within the subject area". The U.S.F.W.S also concludes that the proposed project should not have direct adverse effects to the Preble's Mouse.

We will ask the County Commissioners to allow lots one and two to remain as proposed. We do not believe it is logical to reclaim already disturbed land only to initiate construction activities on previously undisturbed land. Also, we feel lots one and two are attractive and saleable due to their location and leaving them where they are currently proposed allows for a larger overall lot size in the subdivision.

Notwithstanding the above stated position, Cemex would like you to review and comment on the attached compromise lot configuration. Lots one and two are relocated to the northern portion of the property (north of the Supply Canal and south of Longmont's water pipeline easement) and the main access road remains in place. Cemex would not accept relocation of lots one and two if it were coupled with the elimination of the main access road off Highway 66.

Staff 6): The southern access road to Highway 66 (Ute Highway) shall be permanently removed and all related site disturbances reclaimed in accordance with County reclamation and re-vegetation requirements (upon closure of the mining operation). In addition, the eastern access to CR 47 (N 53rd St.) shall be relocated to align with the northern most entry,

as shown on the drawing titled "Drainage Plan," to avoid potential conflicts and crossings over the proposed water pipeline and the existing irrigation ditches. An egress for emergency use only shall be defined and developed in accordance with the requirements of the local FPD and approved by County Staff.

Cemex 6): We do not agree with this recommendation. We will ask the County Commissioners to approve the access roads to the subdivision as they are currently proposed.

The applicant has several comments on this issue. We request clarification of the Staff's rationale for recommending the removal of these existing roads and then requiring the applicant to construct a new road.

Cemex's rational for proposing that these roads remain is as follows:

- They provide excellent, dual (i.e. emergency) access to the subdivision.
- Very little additional construction is required
- The Highway 66 access road has a CDOT access permit, is in excellent condition, has four structurally sound, permanent bridges over the ditches and will be considered an amenity by future buyers of the lots.
- At the time the subdivision is occupied there will be a tremendous reduction in traffic on Highway 66 due to the absence of mining.
- We believe the City of Longmont and the ditch companies would like these roads to remain because they provide additional, improved access to their facilities in the area.

Staff 7): Lot three (3) shall be reconfigured to accommodate the access re-alignment as noted in condition 6. All approved lot adjustments must be represented in the final and approved surveyor's plat (see condition 13).

Cemex 7): We do not agree with this recommendation for previously stated reasons.

Staff 8): Private access driveways and roadways shall be reviewed and approved by the County Transportation Department, in accordance with County Requirements for private access in effect at the time of authorized development and prior to issuance of any permits (this requirement shall be noted on the exemption plat).

Cemex 8): We have no objection to this recommendation.

Staff 9): The applicant or developer shall notify the County immediately if any significant environmental, historic, or cultural resources are encountered during any construction activity (this requirement shall be noted on the exemption survey plat).

Cemex 9): We have no objection to this recommendation.

Staff 10): A final drainage study and report conforming with all applicable County standards shall be developed, for all proposed roads and driveways at time of authorized development. The purpose of this review is to determine that storm water runoff, and road and driveway designs, meet all applicable County standards, or that the appropriate variances from these standards are granted by the Transportation Department. Additional road and drainage design will be required for those sections of the existing road system that will be used for access, including but not limited to horizontal and vertical alignment, grading calculations, adequate support shoulders and ditches, head walls, end walls, aprons and culverts, silt fences, and similar design elements necessary to reduce storm water velocity and prevent excessive erosion. Cross sections for any retaining walls must be provided.

Cemex 10): We have no objection to this recommendation.

Staff 11): The development shall be subject to the terms, conditions, and commitments of record and in the file for this Docket SE-02-22 as approved by the Board of County Commissioners and all previous approvals including SU-96-18 (this requirement shall be noted on the exemption plat).

Cemex 11): We agree that the development of this subdivision shall be subject to the terms, conditions and commitments of record for this Docket (SE-02-22). We are not clear on staff s intent to make it subject to previous approvals including SU-96-18. We request clarification on this matter.

Staff 12): The applicants shall comply with all applicable post-approval requirements for a subdivision exemption as listed in Article 3-206(C) in the Land Use Code. These requirements include, but are not limited to, certification from the County Treasurer confirming that all outstanding ad valorem taxes for the subject property have been paid, and the provision and recording of a new warranty deed(s) for the subject property(s) reflecting the property description as approved by the Docket, and stating that the deed is given to implement the terms and conditions of the docket. The applicants must complete all applicable post approval requirements within the time limits stated in Article 9-300 of the Land Use Code (i.e. within one calendar year after the date of adoption of this resolution as stated beiow, unless the Board in its discretion grants an additional one-year extension as allowed under article 9-300 of the Land Use Code).

Cemex 12): We have no objection to this recommendation.

Staff 13): In addition to all applicable post approval requirements set forth in § 3-206 (C) of the Land Use Code, the applicant shall have a Colorado Registered Professional Land Surveyor prepare a land survey depicting all existing and proposed lot lines, easements, and road alignments. The survey shall be recorded with the Clerk and Recorder in conjunction with the requisite deeds acknowledging the subdivision exemption action.

Cemex 13): We have no objection to this recommendation.

Staff 14): All approvals associated with the Docket are contingent upon satisfaction of all contingencies of the 2002 (Conservation Easement) Purchase Agreement, and the closing of the conveyances of conservation easements provided for therein.

Cemex 14): We have no objection to this recommendation provided that the reversion language in recommendation 16 is incorporated into project approval.

Staff 15): The property owner or their agent shall obtain all applicable federal, state, and legally required local permits as required at time of authorized residential development (this requirement shall be noted on the exemption plat).

Cemex 15): We have no objection to this language provided that legally required local permits required at the time of residential development do not prevent residential development. Recommendation 16 should prevail in the event of such a conflict.

Staff 16): In consideration of the immense public benefit to be gained through the preservation of significant portions of valued plains ecosystem land as accomplished through the July 11, 2002 Purchase Agreement between the County and Applicant, and in light of the fact that the development requested in the Docket is of a relatively minimal nature, scope, and impact compared to the development which could have occurred absent the County's acquisition of substantial fee and conservation easement and other interests in the Subject Property and other property of the Applicant, the BOCC intends for the right to develop each of the approved lots for a residence (to the extent the County does not purchase the development rights pursuant to the option terms of the Purchase Agreement), to be perpetual, and that such right to develop shall not be diminished by any future changes in the law, such as rezoning or more restrictive lot size or number of lots allowed requirements. Paragraph 30 of the Purchase Agreement requires Application to convey the "Annexation Corridor" and a Conservation Easement in Gross to the County, if the County approves the platting of the eleven development rights as a block and vests the Applicant's ability to build eleven single family residences on the Development Parcel. The BOCC finds and determines that such conveyances by the Applicant, together with the previous grant of options to the County pursuant to the Purchase Agreement, constitute substantial and in good faith steps by the Applicant in reliance on the approvals granted herein, and the County waives the right to assert, and it shall be estopped from asserting, a position to the contrary. In the event the approvals granted herein are not vested in perpetuity, then the conveyance of the Annexation Corridor and Conservation Easement in Gross pursuant to Paragraph 30 of the Purchase Agreement shall be subject to a reversion to Applicant or its successors. This perpetual approval is subject to the Applicant meeting all terms and conditions as stated herein.

This permanent vesting approval extends to and assures the right to develop the subject eleven lots, in their approved number and size for single-family residential use. The lots shall be subject to all other County Zoning and Building Permit Requirements in effect at the time of development which are prerequisite to the issuance of a building permit for residential development of each lot, including but not necessarily limited to applicable site plan review, access review, and building permit review (this requirement shall be noted on the exemption survey plat).

Cemex **16):** This language is acceptable to Cemex. We suggest clearing up the phrase "lot number requirements" to read number of lots.

Todd, please schedule the County Commissioner hearing for late May, as we discussed. I will speak with you after you have had time to review this letter and map. I suggest we meet prior to the hearing.

Thank you for your attention to this matter

Sincerely,

Paul Banks

PB/kj

Cc: Nolan Fry, Cemex
John Lohr, Cemex
Dave Hayes, Petros and White

Banks and Gesso, LLC

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February 27, 2003

Todd Tucker
Boulder County Land Use Department
2045 13th Street
Courthouse Annex
Boulder, Colorado 80302

Subject: Response to Staff Comments, Docket SE-03-01:
Cemex, Inc., Dowe Flats Development Parcel,
Subdivision Exemption and Boundary Line Adjustment

Dear Todd:

This letter contains the applicants' response to your staff comments and recommended conditions of approval. We have comments on the main body of the text and a point by point response to the twenty recommended conditions of approval.

Main Body

Discussion – Page 1

1. We suggest that the following introductory paragraph be added to provide the Commissioners, staff and public with the background of this application and to demonstrate the tremendous public benefit of this application.

   Dowe Flats, located east of Lyons and north of the State Highway 66 corridor, contains one of Boulder County's most significant plains ecosystems. It is therefore the County's desire to ensure the preservation of this valued natural asset. CEMEX, Inc., the applicant in this matter, has been working with the County to facilitate the goal of preserving Dowe Flats, upon completion of CEMEX's ongoing mining operations there. Specifically, on July 15, 2002, CEMEX and the County entered into a Purchase Agreement, Lease and Option to Purchase ("Purchase Agreement") concerning Dowe Flats. Pursuant to the Purchase Agreement, Dowe Flats was partitioned and the County acquired over 800 acres of land in Dowe Flats, including property immediately adjacent to the Rabbit Mountain Environmental Conservation Area and the Indian Mountain open space. The County also acquired the development rights associated with 385 acres of the approximately 800 total acres retained by CEMEX in Dowe Flats. In addition, the County obtained options to

acquire the remainder of CEMEX's Dowe Flats property and the development rights associated with that property. CEMEX submitted the application in this matter as a requirement of the Purchase Agreement. The application seeks to transfer and cluster the remaining development rights on eleven lots to be created for residential units within an approximately 153 acre parcel. The eleven lots will cover approximately 50 acres, with the remaining 103 acres preserved as open space. This process facilitates the County's ability to exercise the various options, and, in the event the County does not exercise its options, minimizes the impact of the development and maximizes the open space at Dowe Flats.

2. The statement about the Boundary Line Adjustment requires revision. The purchase Agreement contains a legal description of what is called the Development Parcel South (Plant Entrance). This is a small parcel of land south of Highway 66 right at the main entrance to the cement plant. The applicant is asking that this parcel be removed from the Development Parcel North (which is the subject of the Subdivision Exemption application) and be added to the cement plant property south of Highway 66.

3. The statement that Cemex cannot sell the lots until the year 2025 requires further clarification. The contract between the parties governs this issue. Cemex suggests the following:

   Of note, if the County exercises its options under the Purchase Agreement for all the development rights associated with the parcel, then no development will occur, and the County will be conveyed the land. If the County does not exercise its options, Cemex cannot develop the lots until the eariier of the completion of mining and reclamation or the year 2025. Further, an assignment of CEMEX's rights and obligations under the Purchase Agreement requires the County's consent.

Referral Responses – Page 2

4. The applicant "overnoticed" this application in the spirit of fairness to adjacent property owners. The normal requirement to notify adjacent property owners within 1500 feet of the subject property would have resulted in only Boulder County being notified. We notified owners within 1500 feet of the original 1600 acre Dowe Flats property boundary (approximately 60 owners).

5. There is a statement about avoiding conflicts with the proposed 200 feet Longmont water line easement. This 200 foot corridor was located in consultation with the City of Longmont.

6. Also under referrals, Peter Fogg requested photographs of certain lots to send to the U.S. Fish and Wildlife Service for Preble's Mouse review. We have not heard back from the U.S. Fish and Wildlife Service.

Recommended Condition of Approval

We have reproduced staff's recommended conditions and beneath each one is the applicants' response.

Staff Language

1) The purchase agreement precludes the development of these eleven building lots before the year 2025. Any authorized development of the proposed eleven lots within the Dowe Flats Development Parcel shall be subject to County Health Department regulations, County Building Code Regulations, and applicable Land Use Regulations, as amended (including Site Plan Review, and, if applicable, Limited Impact Special Review regulations of the Land Use Code, as amended). Prior to the issuance of any permits or the beginning of any construction related to this docket, the applicant shall apply for and receive a Boulder County Construction Permit.

Cemex Response

1) The purchase agreement precludes the development of these eleven lots before the earlier of the completion of mining (i.e. release of DMG bond) or the year 2025. We request that the first sentence be changed accordingly.

   Also, the statement that development of the eleven lots be subject to applicable Land Use Regulations and Land Use Code is worrisome. It is our opinion that eleven single family residences is a use by right in perpetuity, subject to the terms of the Purchase Agreement. Future changes in the Land Use Code may create a contrary opinion. We suggest that all such references be deleted from all conditions except condition 20, which contains the applicants' suggested language.

Staff Language

2) The County reserves the right to review and determine appropriate building heights, building sizes, building envelopes, landscaping requirements, and the location of any pedestrian access trails, in accordance with other applicable requirements in effect at that time development of the lots is authorized under the operative County purchase documents and County approval for such development is applied for. Any development within all proposed residential building lots are subject to all applicable County regulations, including but not limited to the County Health Department regulations, County Building Code Regulations, Site Plan Review regulations of the Land Use Code, and, if applicable, Limited Impact Special Review regulations of the Land Use Code, as amended. All grading, including any cut and fill for roads and driveways, excess fill from foundation work, cut and fill for landscape grading, and all other general construction grading associated with the development of any site shall be computed, and reviewed for each proposed development (I.E. individual site plan review submittal). Any grading exceeding 500 cubic yards shall trigger Limited Impact Special Review as required by the Land Use Code, as amended.

Cemex Response

2) Here again we would request that reference to the Land Use Code be deleted in favor of the language presented in condition 20. The applicant has no problem with lot development being subject to the normal building permit requirements.

However, we have strong objection to language that creates the possibility that a building permit could be denied because of non-compliance with possible future changes to the Land Use Code. For example, the County could require 10 acre minimum lot sizes. We do not have any lots of this size and therefore a future building permit application could be denied on this basis.

Staff Language

3) Before the County issues any construction permit or building permits for development associated with these lots, the staff shall review and approve the following:
   I. Grading calculations, and plan, profile and cross sections of all proposed roadways, including a final soils and drainage report, and surfacing and drainage design recommendations;
   II. Specific location and details for all proposed utility lines to service the eleven building sites;
   Iii. Specific location and dimensions of any proposed pedestrian paths;
   IV. A revised utility plan placing all proposed water lines outside of any wetland area; Covenants and design guidelines shall be submitted for review and approval by the County, all covenants and guidelines shall be in accordance with the Land Use Code, amended, and that place reasonable, industry recognized xeriscape standards on the design and watering of proposed landscape areas;

   Note: The 30-foot height limit of the agricultural zoning district applies to all residential structures on any lot recognized by this subdivision exemption.

Cemex Response

3) This condition is acceptable.

Staff Language

4) There shall be no pedestrian trail located in the conservation easement south of the Supply Canal, unless it is adjacent to an approved roadway.

Cemex Response

4) We would like to defer our response to this until issues related to the main access road and the nature of the conservation easement are resolved. Cemex would like the residents of the eleven lots to have pedestrian and equestrian access to the 103 acre conservation easement for their use and enjoyment.

Staff Language

5) Prior to the issuance of any permits, a revegetation/erosion control plan must be submitted to the Land Use Department for review and approval illustrating areas of revegetation and the locations of erosion and sediment control devices. The revegetation/erosion control plan must be implemented prior to final approval of

construction. The plan shall depict the location, type, and quantity of seed or other plantings and erosion control devices sufficient to stabilize all disturbed areas and areas of cut and fill.

(A) The revegetation/erosion control plan must, at a minimum, address the following.

I. To prevent sediment loading in areas adjacent to any proposed disturbance, temporary erosion control devices must be used. Provide a properiy anchored silt fence down-gradient of all disturbed areas and install anchored hay bale dikes at all channelized point releases. The silt fences and hay bales must be installed before construction begins and remain in place until vegetation is sufficiently established on the disturbed soil.

II. Permanent control devices such as native rock check dams, shall be provided at all culvert releases.

III. Erosion control matting or blankets (in addition to seeding) shall be placed on all disturbed areas with slopes greater than 2(horizontal) to 1(vertical).

IV. Reseeding specifications (seed mix species and revegetation locations) must be indicated on the revegetation/erosion plan. Only native plant materials shall be used in revegetation.

Cemex Response

5) This condition is acceptable.

Staff Language

6) The development of lots 1 and 2 may result in significant adverse impact to wildlife habitat (Raptors and Prebies Mouse, etc.) To avoid these conflicts lots 1 and 2 must be reconfigured and placed north of the water pipeline corridor. To avoid impacts on the existing prairie dog colonies located east of lot 4 and north of lot 3. The remaining lots must be reconfigured in size and location (I.E. clustered at the north end of the proposed Cul-de-sac), to reduce the potential for adverse impacts on existing wildlife and known habitat. Any Parcel the reconfiguration must maintain consistency with all other conditions of approval as stated herein. All approved lot adjustments must be represented in the surveyor's plat (see condition 18).

Cemex Response

6. The applicant objects to the recommended lot reconfiguration. The location of the eleven lots were selected to avoid wetlands, undisturbed areas between the ditches, and any other areas within the 153 acre parcel that had environmental, ecological or cultural resource value. We also wanted to maintain a large lot

environment. Moving all lots to the northern end of the property reduces the average lot size.

Lots one and two are already developed with mining related uses. Since they are already disturbed areas we do not see the rationale in reclaiming one disturbed area only to disturb another.

We do not believe that any additional wildlife impact mitigation should be required because of the overwhelming wildlife benefit and mitigation accomplished through sale of land to Open Space and the granting of conservation easements to Open Space. The wildlife impacts associated with the development of these eleven lots have already been more than adequately mitigated.

Staff Language

7) The southern access road to Highway 66 (Ute Highway) shall be permanently removed and all related site disturbances reclaimed in accordance with County reclamation and re-vegetation requirements. In addition, the eastern access to CR 47 (N53rd St) shall be relocated to align with the northern most entry, as shown on the drawing titled "Drainage Plan," to avoid potential conflicts and crossings over the proposed water pipeline and the existing irrigation ditches.

Cemex Response

7) The applicant objects to this condition. The Highway 66 access road is an improved intersection with a CDOT access permit. The road is in very good condition and contains four bridges over the ditches. We believe this is a logical access to the development and would be considered an amenity by future buyers of the lots.

We believe that the ditch companies and Longmont would prefer that this remain in place due to the improved emergency access it provides to their facilities, assuming agreements are reached with them for the emergency use of these private roads.

The applicant chose the CR 47 access because it is a better road than the northern most entry and would require less construction disturbance to upgrade it for the intended use. Also, there are no conflicts with this road crossing the Longmont water pipeline easement or the existing irrigation ditches. Cemex conferred with and gained approval from Longmont on the pipeline easement given that this road would be the CR 47 access. Concerning the ditches, the proposed CR 47 access road (up to the intersection with the main proposed access road) doesn't cross any ditches.

Staff's recommended access configuration provides for a single access point off CR 47 north of all ditches. Should this access be blocked the residents of the subdivision and emergency vehicles would have no ingress or egress and in case of emergency would be isolated because there would be no ditch crossing.

Staff Language

8) Lot three shall be reconfigured to accommodate the access re-alignment. All approved lot adjustments must be represented in the final and approved surveyor's plat (see condition 17).

Cemex Response

8) The applicant objects to this condition for the reasons stated under condition 7.

Staff Language

9) All drives and roadways shall be reviewed and approved by the County Transportation Department, in accordance with County Requirements at the time of authorized development.

Cemex Response

9) This condition is acceptable, provided the review and approval is limited to the specifications of the roads and not whether they may exist.

Staff Language

10) Immediately prior to any proposed development, the applicants shall study and survey the natural resources of site and surroundings. The results of the study must be provided to the County for review and the proposed development must be adjusted to ensure that no significant resources are adversely affected by the project. At a minimum this would include any necessary wildlife studies and permissions from local, state, and federal agencies. Any impacts to wildlife and vegetation must be adequately mitigated.

Cemex Response

10) Cemex has spent hundreds of thousands of dollars studying and surveying the environmental, natural and cultural resources of the Dowe Flats property. It is probably the most studied property in Boulder County. We do not believe it is necessary or fair to require further study and we object to this condition. With respect to mitigation, we again state that it is our opinion that mitigation of the impacts of this proposed developed have already been more than adequately accomplished via Open Space acquisitions and conservations easement grants. Further, to the extent mitigation may be required by other permitting entities, Cemex should have the ability to utilize adjacent County lands for such mitigation (i.e. creation of wetlands).

Staff Language

11) Any future uses / or development for all of the lots within the proposed 153-acre development parcel, shall be subject to all applicable requirements of the Land Use Code, as amended.

Cemex Response

11) The applicant objects to this condition. We request that it be deleted in favor of the language contained in condition 20.

Staff Language

12) The property outside the active mine site shall be managed to conserve natural resources. The applicant shall submit a weed management and natural resources conservation plan for review and approval by county staff, prior to recording the post approval documents.

Cemex Response

12) The applicant objects to this condition and requests that it be deleted in its entirety. We believe that any condition of approval for this application can only pertain to the 153 acre Development Parcel. It is paramount to the applicant that the Special Use permit for mining supercede everything else and that no additionai conditions are placed on the mining operation as a result of this application.

If this condition applies to the 103 acre conservation easement proposed in this application we believe that the terms of the conservation easement should be identical to the conservation easement(s) granted by Cemex for the remainder of the Dowe Flats property. No affirmative obligations should be imposed by the conservation easement. Any management or conservation plans should be the County's responsibility with lot owner access allowed. The management of the remaining acreage of this development (i.e. lots and roads) shall be at Cemex's discretion until such time as they are purchased by the County or a developer.

Staff Language

13) The applicant shall notify the County immediately if any significant environmental, historic, or cultural resources are encountered during any construction activity.

Cemex Response

13) This condition is acceptable with the understanding that the applicant (for a building permit) may not be Cemex.

Staff Language

14) A final drainage study and report conforming with all applicable County standards shall be developed, for all proposed roads and driveways at time of authorized development. The purpose of this review is to determine that storm water runoff, and road and driveway designs, meet all applicable County standards, or that the appropriate variances from these standards are granted by the Transportation Department. Additional road and drainage design will be required for those sections of the existing road system that will be used for

access, including but not limited to horizontal and vertical alignment, grading calculations, adequate support shoulders and ditches, head walls, end walls, aprons and culverts, silt fences, and similar design elements necessary to reduce storm water velocity and prevent excessive erosion. Cross sections for any retaining walls must be provided.

Cemex Response

14) This condition is acceptable.

Staff Language

15) The development shall be subject to the terms, conditions, and commitments of record and in the file for the Docket, and shall be subject to applicable provisions of the Comprehensive Plan and Land Use Code, as amended.

Cemex Response

15) We request that this condition be deleted in favor of the language contained in condition 20.

Staff Language

16) The applicants shall comply with all applicable post-approval requirements for a subdivision exemption as listed in Article 3-206(C) in the Land Use Code. These requirements include, but are not limited to, certification from the County Treasurer confirming that all outstanding ad valorem taxes for the subject property have been paid, and the provision and recording of a new warranty deed(s) for the subject property(s) reflecting the property description as approved by the Docket, and stating that the deed is given to implement the terms and conditions of the docket. The applicants must complete all applicable post approval requirements within the time limits stated in Article 9-300 of the Land Use Code (i.e. within one calendar year after the date of adoption of this resolution as stated below, unless the Board in its discretion grants an additional one-year extension as allowed under article 9-300 of the Land Use Code).

Cemex Response

16) This condition is acceptable provided that the terms and conditions of the Docket are acceptable to Cemex.

Staff Language

17) In addition to all applicable post approval requirements set forth in § 3-206 (C) of the Land Use Code, the applicant shall have a Colorado Registered Professional Land Surveyor prepare a land survey depicting all existing and proposed lot lines, easements, and road alignments. The survey shall be recorded with the Clerk and Recorder in conjunction with the requisite deeds acknowledging the subdivision exemption action. The survey plat shall include a note indicating that all proposed development is subject to the provisions of the Land Use Code, as

amended, including applicable setback requirements for the zone and Site Plan Review.

Cemex Response

17) This Condition is acceptable except for the last sentence which we request be deleted in favor of the language contained in condition 20.

Staff Language

18) All approvals associated with the Docket are contingent upon satisfaction of all contingencies of the 2002 (Conservation Easement) Purchase Agreement, and the closing of the conveyances of conservation easements provided for therein

Cemex Response

18) This condition is acceptable provided that the County substantially agrees with the language contained in condition 20. Cemex does not want to be in a position where they comply with their obligations under the Purchase Agreement (i.e. granting additional land and conservation easements irrevocably and in perpetuity) and then somehow have unbuildable lots because of future changes to the Land Use Code or discretionary judgments by future staff concerning studies and impact mitigation.

Staff Language

19) The Applicant shall obtain all applicable federal, state, and legally required local permits as required at time of development (I.E. Sprinklering, access, etc.).

Cemex Response

19) This condition is acceptable.

Staff Language

20) In consideration of the immense public benefit to be gained through the preservation of significant portions of valued plains ecosystem land as accomplished through the Purchase Agreement, and in light of the fact that the development requested in the Docket is of a relatively minimal nature, scope, and impact compared to the development which could have occurred absent the County's acquisition of substantial fee and conservation easement interests in the Subject Property and other property of the Applicant, the BOCC intends for the approvals granted, and in particular the ability to develop the approved lots (subject to the constraints in the purchase agreement/conservation easements), to be perpetual. This perpetual approval is subject to the applicant meeting all terms and conditions as stated herein.

Cemex Response

20) Cemex's response is set forth in the enclosed letter from Petros & White, LLC.

Petros and White, LLC assisted in the preparation of this letter. Legal opinions and interpretations of the Purchase Agreement contained in this letter are theirs.

I suggest we set up a meeting soon to discus this letter. I believe it would be beneficial to have a County Attorney representative present because of the legal issues. Thank you for you attention to this matter.

Sincerely,

Paul Banks

PB/kj

Cc: Nolan Fry, Cemex
John Lohr, Cemex
Ray Petros, Petros & White
Dave Hayes, Petros & White

ARTICLE 7
DEVELOPMENT STANDARDS

7-100 General Restrictions on Development

A. Character of the Land

1. Land which is found by the Board of County Commissioners to be unsuitable for subdivision or development due to physical constraints shall not be subdivided or developed unless methods are used to solve the problems created by these unsuitable land conditions.
2. Land shall be used in a manner appropriate to the constraints.

B. Self-imposed Restrictions

1. If the applicant voluntarily commits to restrictions or requirements greater than those contained within this Code the commitments may be required to be indicated on the final plat, contained within the development agreement, or in restrictive covenants.
2. If the commitment is accepted by the Board of County Commissioners in their approval of any subdivision, the commitment shall be fully enforceable under these Regulations as a requirement of the subdivision approval.

7-200 Development Design

A. The following shall be considered requirements for development design.

1. All subdivisions shall result in the creation of lots which are developable and capable of being built upon in conformance with this Code, the Building Code, or other County adopted regulations.
2. The design of the development shall eliminate or mitigate the potential effects of hazardous site conditions.
3. Lots shall be laid out to provide positive drainage away from all buildings.
4. Individual lot drainage shall be coordinated with the general storm drainage pattern for the area.
5. Drainage shall be designed to avoid concentration of storm drainage from any lot to an adjacent lot.
6. Lot area, width, frontage, depth, shape, location, and orientation shall conform to all provisions of this Code and be appropriate for the location of the development and for the type of use allowed.
7. All lots shall front on and have access to a public right-of-way or approved private access easement.
8. All proposed points of access must comply with the Road and Access Standards.
9. No lot shall be divided by a municipal or County boundary line, road, alley or other lot.
10. Internal and external links to public trails and open space abutting the property shall be provided.
11. Extensions required for future development shall be provided.
12. Lot boundaries should conform to descriptions in liens or mortgages so that the division of a lot through a foreclosure does not occur.
13. Maintenance of common facilities must be accomplished either through covenants and a homeowners association, a separate maintenance agreement, or some other perpetual agreement.
14. The overall development design should conform to the Comprehensive Plan.

B. The following guidelines shall be used to the greatest extent possible.

1. The design and development of subdivisions should preserve the natural terrain, drainage, existing topsoil, and vegetation, including tree masses and large individual trees.
2. The layout of lots and blocks should provide desirable settings for structures by making use of natural contours, maintaining existing views, affording privacy for the residents and protection from adverse wind, noise, and vehicular traffic.
3. Development design should provide for efficiency in the installation and provision of all public and private facilities and services.
4. The development should provide for solar access on site and on adjacent properties.
5. The development design should maintain stands of trees or other vegetative cover to reduce the effects of winds on buildings.
6. Lot dimensions should be adequate to allow for the provision of necessary private service and off-street parking facilities needed by the type of use and development allowed.
7. Double frontage lots should be avoided except where essential to provide separation of residential development from expressways, major arterials, or to overcome specific disadvantages of topography and orientation.
8. Landscaping should be provided, especially as a buffer between different types of uses both within and adjacent to the development. Xeriscape should be used instead of traditional landscaping.
9. Side lot lines should be at right angles to, or radial to the center of curvature of the street or road on which the lot fronts. Where lot lines are not at right angles or radial to street lines, this shall be indicated on the final plat.
10. Lots should be arranged to minimize the number of outlots.
11. Lots should use natural and man made divisions, such as fences and easements, as their boundaries.
12. All lots should have reasonable access to open space, trails, park land or recreation facilities that are set aside for either development use or use by the general public.
13. Recreation facilities should be centrally located to all residents of the development.
14. The development design should be coordinated with the storm water drainage and flood control systems.
15. Utility, access, or drainage easements should not divide a lot.
16. Common water and sanitation facilities should be located on separate outlots commonly owned by the users.
17. Residential lots should be located to minimize adverse influences due to airports and airport operations.
18. The newly created residential lots should be located nearest to utilities and roads to minimize the amount of construction of these improvements and the loss of agricultural land.

C. The following applies where phasing of the development is requested.

1. The phasing schedule shall be noted in the development agreement.
2. A single phase shall not divide a block.
3. All phasing shall be approved by the Board of County Commissioners.

4. Modifications to the phasing schedule shall be made only after review and approval by the Board of County Commissioners.
5. The phasing schedule shall recognize the need for proper drainage, secondary access, water and waste systems and open space at all times during the phasing schedule.

7-300 Water Systems

A. The State Engineer and County Engineer shall be considered the County's experts in evaluating the reliability of the water supply source. It shall be the responsibility of the applicant to provide such evidence as may be required by the State and County Engineers.

B. The County Health Department shall be considered as the County's expert in evaluating the quality of the proposed water supply source. It shall be the responsibility of the applicant to provide such evidence as may be required by the County Health Department.

C. Water supplies shall be treated by a method acceptable to the County Health Department to conform to minimum local and State requirements. The Health Department may require test wells.

7-301 Water Reliability Requirements

A. In addition to the requirements of the State Engineer and Health Department, the following provisions shall be used to evaluate the adequacy of the water source intended to serve the proposed development:

1. Sufficient water supply
   a. The average daily demand of the entire service area and the proposed development will be based upon 300 gpd (gallons per day) per residential unit or 75 gpd per capita, whichever is greater.
   b. The average daily demand for commercial and industrial uses will be reviewed based on the anticipated demand of the proposed development. Appropriate multipliers may be utilized in calculating this amount.
   c. Each residential lot shall have adequate water to meet required landscaping.
2. Irrigation Water
   a. The irrigation demand shall be based on information submitted by the Soil Conservation Service. Such material shall take into account the type of vegetation to be maintained, the soil characteristics, the historic yield of the property, and available water rights.
   b. All areas shall be evaluated for water demand.
   c. The development agreement shall include any requirements for water.

7-302 Water Service

A. Every effort should be made to secure public water system extension; however, where water service is not physically or economically feasible, a central well and distribution system is preferred over individual wells.

B. The applicant must submit a letter of intent for service from the water supplier at the time of sketch plan application with a contract for service prior to final plat recordation.

C. For proposed developments within 2,000 feet of an existing water system, or within a community service area, the Board may require the subdivider to make provisions for

the extension of service. This includes escrow funds for the installation of water mains and house connections in addition to the installation of domestic wells.

D. If a private water supply system is proposed, the applicant shall submit engineering plans to the County to be reviewed by the Land Use Department, County Engineer, and the County Health Department.

1. If a private central water supply system is proposed, evidence must be submitted regarding the ability of the system to meet the minimum requirements of State and County Health Department regulations and this Section. Evidence regarding the means to repair and maintain the water system is also required.
2. Special review may be required for use of a central water system.

7-303 Wells

A. The following provisions shall apply for the use of wells.

1. Individual on-site wells will not be permitted for developments with densities greater than one residential unit per acre.
2. The well shall have adequate water quality, quantity, and dependability for the proposed density prior to preliminary plan approval.
   - **a.** The well should be continuously pumped or bailed at a minimum rate of three gallons per minute per domestic unit for a minimum of five hours. After five hours of pumping or bailing at such a rate, recorded data should show that the well is producing at a minimum rate of three gallons per minute per domestic unit and that the quality of water recovered from the well after five such hours of pumping or bailing, meets public health standards for potability.
   - **b.** Water samples from the well tests shall comply with Primary Drinking Water Regulations for the State of Colorado issued by the State Department of Health.

7-304 Water Distribution System

A. The water distribution system internal to the development shall be sized to meet both the initial and future demands of the proposed development. Oversizing for likely extensions may be required, with that oversizing to be paid for by future development.

B. In constructing the internal water distribution system, the following design provisions shall apply:

1. The system shall be sized for maximum day demand plus fire or peak hour demand, whichever is greater.
   - **a.** Maximum day demand may be assumed as 3.0 times average day demand, and maximum hour demand may be assumed to be 6.0 times average day demand unless calculations indicate otherwise. Designs using standards other than these must be approved by the County Engineer.
   - **b.** Minimum residual pressures shall be 40 psi under maximum hour demands; 20 psi if direct flow is used.
   - **c.** The actual pressure in the supply system under the conditions specified shall be used in designing the distribution system.
     - **(i)** If future connection to a different supply system is anticipated, critical pressure in that system may be used as the starting design pressure.

(ii) Assumed future supply pressures and points of connection for designing the system in all other cases shall be subject to the approval of the County Engineer.

d. Minimum main sizes shall be six inches except for short culs-de-sac. Where the external supply or pressure is not adequate to meet requirements, additional pipe diameter, parallel or looping lines, or additional storage or pumping shall be provided to meet the requirements.

2. Standards for fire flows shall be as follows:

a. The distribution system shall be designed for the following fire flows in addition to the maximum day rate:

Population On System	gpm	Duration in Hours
0 - 250	500	2
251 - 1,000	1000	4
1,001 - 2,000	1500	6
2,001 - 4,000	2000	8
4,001 - 6,000	2500	10
6,001 - 10,000	3000	10

b. Each fire hydrant shall be assumed to flow 500 gpm in low density areas and 1000 gpm in high density or commercial/industrial areas. Fire flows shall be assumed to flow from hydrants or groups of hydrants which will produce the critical pressure on the system.

(i) The minimum size of the main on which fire hydrants are located shall be 6 inches in diameter.

(ii) All hydrants shall be fitted with National Standard threads unless other agreements are reached with the agency providing fire protection.

3. The quality and materials specifications for all water systems must be submitted for review and are subject to the approval of the County Engineer. Proposed specifications should include the following:

a. The strength rating for distribution piping and fittings with fire flow demand is to have a minimum safety factor of four times the anticipated internal operating pressure.

b. The system is to be designed for a minimum service life of 50 years.

c. Sufficient cover to prevent freezing.

d. Dead-end mains are to be provided with a suitable means for flushing.

C. New water systems shall be designed with sufficient treatment and storage capacity to serve the specified maximum hour demands for a period of 6 hours or a maximum day demand plus the required fire demand of the specified duration.

7-400 Sewage Treatment

A. The County Health Department shall be considered Boulder County's expert concerning the adequacy of the proposed sewage treatment system.

B. In addition to the requirements of the Health Department the provisions of this article shall be used to evaluate the adequacy of the sewage treatment system intended to serve the proposed development.

7-401 Public Systems

A. Every effort should be made to secure public sewer extension; however, where connections to an existing public sewer are not physically or economically feasible, a central collection system and treatment plant is preferred.

B. The applicant must submit a letter of intent for service from the sanitation service at the time of sketch plan application with a contract for service prior to final plat recordation.

C. For proposed developments within 2,000 feet of an existing sanitary sewer main, or in a community service area, the Board may require the subdivider to make provisions for the extension of service. This includes escrow funds for the installation of sewer mains and house connections in addition to the installation of temporary individual on-site sanitary disposal systems.

D. Where the proposed development is within a community service area, individual septic systems will not be permitted. Where sewer service is not available, a central treatment plant and collection system in accordance with appropriate municipal standards may be used.

7-402 Private Systems

A. For private systems, the applicant will be required to submit formal plans to the County which will be reviewed by the Land Use Department, County Engineer, and the County Health Department. The recommendations of these referral agencies will be given to the Planning Commission and the Board of County Commissioners.

B. On-site Systems

Where individual or central on-site treatment systems are proposed, lots shall be laid out to provide a suitable treatment area for each lot or grouping of lots based upon criteria established by the County Health Department.

1. Where leach fields are proposed, evaluation of suitable treatment area shall include soil suitability, well slopes, surface hydrology, and water table depth, including anticipated variation with time.
   - **a.** Percolation tests shall be sufficiently representative to reasonably assure that each lot will have a suitable treatment area.
   - **b.** Larger lots may be required due to the capacity of the proposed treatment system.
2. The applicant must contact the County Health Department to determine specific problems in the general vicinity which might affect the proposed septic systems.
3. For central systems, the applicant must submit engineering data to prove that each site in the development is capable of accommodating a septic system or accommodating an alternative engineered system in accordance with Health Department requirements.

7-403 Sewage Collection

A. Collection systems shall be designed and sized in accordance with guidelines and requirements furnished by the sewage agency providing the service and the County Health Department.

1. Collection systems shall be sized to meet present and future demands of the proposed development.
2. Oversizing for likely extensions may be required, with that oversizing to be paid for by future development.

3. For situations where guidelines and standards are not available, those designs intended for use shall be submitted for review and are subject to approval by the County Engineer.
4. Approval of the proposed system by the service agency is required where applicable as a condition of approval by the County Engineer.
5. The constructed systems shall not permit infiltration rates in excess of 200 gallons per inch of diameter per mile of pipe per day, unless otherwise specified by the service agency.

7-500 Solid Wastes

Where suitable public or private solid waste storage and collection systems are not available to serve the proposed development, individual unit or group storage containers and/or container sites and periodic collection of containers may be required. Volume generation rates to be used in determining the size, number, and type of containers and frequency of pickup shall be subject to approval by the County Engineer.

7-600 Roads

A. The overall design and arrangement of all proposed roads shall be in conformance with the provisions of this Code and the Boulder County Road Standards.

B. The Road Standards are made a part of this Code by reference, and all roads shall be reviewed by the County Engineer and constructed to the specifications contained in the Road Standards.

C. Road Design and Arrangement

1. The following shall apply to general road design and arrangement.
   a. Road systems shall provide for adequate and efficient internal circulation within the development, provide for reasonable access to the public highways, minimize road congestion and unsafe conditions, and shall be in conformance with the Comprehensive Plan.
   b. Roads should be designed and arranged with appropriate regard for topography, creeks, wooded areas, and other natural features which would enhance attractive development.
   c. Grades of roads should conform to the original topography. Combinations of steep grades and curves should be avoided.
   d. Earthwork quantities for proposed road work should be balanced to assure construction can occur as planned, thereby avoiding excessive waste or borrow, or the necessity to make excessive road alignment changes in the field.
   e. Road systems should minimize erosion and provide for efficient and maintainable drainage and utility systems.
   f. Local access roads should be designed and arranged so that their use by through traffic or other high speed traffic will be discouraged.
   g. Proposed roads shall intersect one another, as well as existing roads, as nearly at right angles as topography and other limiting factors of good design permit.
   h. In commercial and industrial developments, the roads and other access ways shall be planned in connection with the grouping of buildings, location of rail facilities, truck loading and maneuvering areas, walks, and parking areas so as to minimize conflict of movement among various types of traffic.

i. Roads shall be designed so as to provide emergency access and egress for residents, occupants, and emergency equipment.

j. Roads, streets, and emergency access ways shall be designed to provide for proper access by fire fighting equipment by providing required width and strength to support vehicle weight and size.

7-601 Required Road Improvements

A. The following shall apply to required road improvements.

1. Surfacing in accordance with the Road Standards is required for all public or private roads in subdivisions.
2. Roadways, curbs and gutters, and sidewalks are required as specified in the Road Standards.
3. Traffic control devices, road name signs, traffic signs, lighting, signals, striping, and pedestrian crosswalks are to be provided in conformance with criteria contained in The Manual on Uniform Traffic Control Devices' as adopted by the State of Colorado.
4. Roadway drainage structures such as bridges, culverts, cross pans, inlets, curbs, and gutters are to be provided as determined by design and in conformance with the Road Standards.
5. Where, in the opinion of the County Engineer, a development will have an adverse impact on the Boulder County road improvement program, the applicant may be required by the Board to make necessary improvements to the impacted roads as a condition of plat approval.
   a. The Board may establish a special area road improvement fund applicable to areas requiring improvement.
   b. Any land being subdivided in one of these areas shall be required to make appropriate payment to the fund or establish the means for such payment through the development agreement.
6. In order to properly evaluate the traffic impacts of a proposal, the applicant may be required to provide a traffic study in conformance with the guidelines established in the Road Standards.
7. Planting of trees and shrubs, construction of berms, and fences within the road right-of-way must be approved by the County Engineer.
8. Where railroad crossings are proposed or are affected, provisions for grade separation, buffer strips, and safety protection devices shall be provided by the applicant. Obtaining approval from the affected railroad company and the Colorado Public Utilities Commission, where applicable shall be the applicant's responsibility.
9. Where a development adjoins a railroad or utility right-of-way, provisions of space for grade separations, buffer strips, or other protective treatment shall be made as required by the Board.

7-602 Continuation of Roads and Dead End Roads

A. The following shall apply to dead end roads and roads which will be continued.

1. The arrangement of roads shall provide for the continuation of major roads between adjacent properties when the continuation is necessary for the convenient movement of traffic, effective fire protection, or for efficient provision of utilities.
   a. If the adjacent property is undeveloped and the road must be temporarily dead-ended, right-of-way shall be extended to the property line, and the construction and maintenance of a turnaround of

approximately 80 feet in diameter may be required for temporary use, with plat notation that land outside the normal road right-of-way shall revert to abutting property owners whenever the road is continued.

2. Where a road does not extend to the boundary of the development, and its continuation is not required for access to adjoining property, its terminus should be no closer than 50 feet to the boundary.
3. Emergency access shall comply with the provisions of the Road Standards.

7-603 Reserve Strips

A. Reserve strips in the form of one foot outiots may be required to control or restrict access to perimeter or stub roads.

B. Such strips shall bc utilized only where their ownership and control is accepted by the public agency having jurisdiction.

C. The outlots should be deeded to the public agency at the time of recordation of the final plat.

7-604 Road Names

A. Assigned road names shall be shown on the final plat.

B. Road naming shall conform to the road naming and addressing guidelines as adopted by the County, and shall be subject to the review of the Planning Commission and approval of the Board of County Commissioners. (See Section 13-100, Road Name Changes)

7-605 Private Roads

A. The use of private roads, which meet the specifications contained in the Road Standards, is encouraged and is permitted upon review by the Planning Commission and approval by the Board of County Commissioners.

B. Private roads shall be designed to discourage use by the general public.

C. A corporation or perpetual association or other suitable means must be established for maintenance of the private road.

7-606 Pedestrian, Equestrian, and Bikeway Facilities

A. In developments where a link to schools, shopping areas, parks, trails, greenbelts, and other public facilities is feasible, a trail system shall be provided.

B. Trail and walkways systems through open space areas are encouraged to take advantage of the visual qualities of the area and as an alternate to pedestrian sidewalk requirements. These systems may be used after approval by the County, providing the following criteria are met:

1. The system provides at least the same level of service as would the applicable sidewalk requirement.
2. Easements or open ways are platted.
3. The type of construction of trails and walkways shall be compatible with the anticipated use.
4. A perpetual association or corporation or other suitable means is established for maintenance.
5. Unsafe road crossing locations are to be avoided. Special structures and/or traffic control devices may be required at road crossings for safety.

7-700 Access Permit Requirements

A. Purpose

1. The purpose is to ensure that a building permit not be issued for a building lot unless the building lot has a lawfully established right of vehicular ingress and egress.
2. The access must be of such a standard and condition to safely and adequately accommodate the type and volume of traffic currently using the access, including emergency and fire equipment and vehicles, plus any increase in traffic that may be added by the permitted use.

B. The following are considered to be adequate access:

1. Public Maintained Road
   - a. A road maintained by the County, the State Highway Department, or other public agency as indicated on the Boulder County Road Map.
   - b. All new driveways or other access points on public maintained right-of-way must be constructed in accordance with an access permit issued by the appropriate public agency.
2. Public Road - Not Maintained
   - a. A public right-of-way, that has been dedicated to the public and accepted as such by Boulder County but which is not maintained by a public agency, or a road that has been found by the Board of County Commissioners to be a public road in accordance with state statute, but which is not maintained by a public agency.
   - b. In order to qualify as adequate access all such roads must:
     - (i) For roadways with a traffic volume of less than 150 Average Daily Traffic (ADT), as determined by the County Engineer, construction must be to the driveway standards set forth in Section 7-700(B)(3).
     - (ii) For roadways with a traffic volume of more than 150 ADT, as determined by the County Engineer. Construction must be to the local access' standards as specified in the Boulder County Road Standards.
     - (iii) In either case, the County Engineer may, if deemed necessary, require road plans prepared by a Colorado Registered Professional Engineer.
   - c. Have access points to the public maintained road system constructed in accordance with access permits issued by the appropriate public agency.
   - d. Have a maintenance waiver signed by the lot owner acknowledging that the County does not maintain the roads and that the County or area residents may form an improvement district for the purpose of constructing the roads to County standards for public maintenance, which document will be recorded with the Boulder County Clerk and Recorder.
3. A Private Road or Driveway
   - a. The building lot must have the legal right to cross other private lands or a permit to cross public lands for vehicular access.
   - b. That portion of the road or driveway that has a traffic volume with the permitted use of more than that which would be generated by a one family dwelling unit or more than 10 ADT, whichever is less, but less than 150 ADT, must be constructed to minimum standards, as follows:

(i) 12 foot-wide traveled way surfaced with 4' of Aggregate Base Course Class 6 (3/4');

(ii) Where visibility is less than 400 feet, 8 foot-wide, 60 foot-long turnout areas located no further apart than 400 feet;

(iii) Except on existing roads where the maximum grades may be modified by the County Engineer to avoid additional environmental damage, the maximum sustained grade for new construction or reconstruction is 10 percent;

(iv) 40 foot radius centerline curves with an appropriately widened travel way;

(v) Stable cut and fill slopes no steeper than 1:1;

(vi) Roadside drainage ditches;

(vii) Lines and grades as approved by the County Engineer;

(viii) Other road and drainage facilities and appurtenances as deemed necessary by the County Engineer;

(ix) Any traffic control devices such as stop signs, private road or dead-end signs, as deemed necessary by the County Engineer;

(x) Cross-section as shown in the Boulder County Road Standards shall be used for design.

c. That portion of the road or driveway that has a traffic volume with the permitted use of more than 150 ADT, must be constmcted to 'local access' standards as specified in the Boulder County Road Standards.

d. The road or driveway must have a minimum 20 foot easement width or wide enough to contain the required physical improvements.

e. Any access points to the public maintained system must be constmcted in accordance with access permits issued by the appropriate public agency.

f. The lot owner must sign a maintenance waiver acknowledging that the County does not maintain the road or driveway, which document will be recorded with the Boulder County Clerk and Recorder.

C. Administration of Access Requirements

1. The Boulder County Engineer is responsible for the administration and implementation of the requirements of this article. Such responsibilities include, but are not limited to:

a. Determining that the requirements of this article have been satisfied and that all necessary permits have been obtained;

b. Reviewing lot access approval applications, reviewing and inspecting proposed access routes, and issuing approvals if the proposal is in compliance with the requirements of this article;

c. Estimating traffic volumes for access routes and taking measurements of actual traffic volumes if deemed necessary;

d. Determining the need for road plans to be prepared by a Colorado Registered Land Surveyor;

e. Approving the location, cross-section, lines and grade and other physical characteristics of an access route based on the standards given in this section, the Boulder County Road Standards, and sound engineering judgment;

f. Developing and transmitting recommendations to the Board of Adjustment regarding requested variances to the provisions of this article.

2. Lot access approval shall be obtained from the County Engineer prior to the issuance of any building permit for any new use or change of use required to be located upon a building lot. An application for lot access approval shall be filed with and on forms made available by the County Engineer and shall include the following information:
   a. Name of applicant;
   b. Address;
   c. Telephone number;
   d. Date application submitted;
   e. Location of parcel (Subdivision Lot number or Section, Township, Range);
   f. Location map of access road or driveway;
   g. Name and location of the access point to the public maintained road system;
   h. Existing or new access route;
   i. General description of physical characteristics of access route including length, average traveled width, easement width, average grade, steepest grade, and surfacing material;
   j. Estimated average daily traffic volume.
3. The County Engineer shall approve an application for lot access only if the lot access conforms to the minimum requirements set forth in Section 7-700 (B). In evaluating the ability of the lot access to safely accommodate the type and volume of traffic that may reasonably be expected to use the access, the County Engineer shall consider the following factors:
   a. The suitability of the access route for use by vehicles generally expected to use the access, including emergency and fire fighting equipment and vehicles, and the availability of a second access route;
   b. The physical limitations of terrain on meeting maximum grade requirements.
4. Permit Expiration, Certification and Enforcement
   a. The County Building Inspector shall not issue any building permit for nor shall the Zoning Administrator issue any use permit for the establishment of any new use or change of use required to be located upon a building lot unless a lot access approval has been granted in accordance with the provisions of this article.
   b. A lot access approval shall expire two years after the date of issuance if the applicant has not completed construction according to provisions of the approval.

D. Other Requirements
1. Lots are not permitted to front on or obtain direct access from a collector, arterial or other major highway.
2. A suitable driveway as defined in the Road Standards from the access road to a usable building area on each lot shall be demonstrated.
3. The number of intersecting roads along freeways, expressways, or principal and minor arterials shall be held to a minimum. Access points shall comply with the Access Control Standards of the Road Standards.

4. When a development abuts and controls access to public lands or existing access ways, access shall be provided in the form required by the public agency involved. When a development abuts private lands, the County may require the developer to provide access to the private land.

E. Pursuant to the provisions and standards of Section 4-1000 of this Code, appeals to the Board of Adjustment may be taken by any person aggrieved by an inability to obtain a parcel access approval or by any decision of the County Engineer made in the course of the administration or enforcement of the provisions of this Resolution.

7-800 Parking

A. Each off-street parking area shall be surfaced with asphalt, concrete, compacted gravel, grass, or equivalent surfacing which will not cause blowing granular material, shall be properly drained, and be located within 250 feet walking distance of the principal structure for which the parking area is required.

B. No part of an off-street parking area required for any use shall be included as a part of an off-street parking area similarly required for another use unless approved under (C) below.

C. A parking area may be shared to meet the parking requirements provided a signed agreement of sufficient length of time is provided. Revocation of the agreement will result in the loss of the dependent use until that use has provided adequate parking through other means.

D. For multiuse facilities, the parking for the most intensive use shall control. (Example: a church with an office and Sunday school classrooms will require parking for the sanctuary and for the classrooms if used at the same time, but might not need parking for the office.)

7-900 Drainage

A. The Storm Drainage Criteria Manual (SDCM), available from the County Engineer, shall be the authoritative reference for drainage. The Urban Storm Drainage Criteria Manual, available through the Urban Drainage and Flood Control District, may be used as an authoritative supplement. The Road Standards shall be used for design standards and specifications.

B. Complete drainage systems for the entire development area shall be designed by a professional engineer, licensed in the State of Colorado.

C. The drainage system plan shall be depicted graphically identifying all existing drainage features which are to be used; all proposed surface drainage structures; and all appropriate designs, details, and dimensions necessary to clearly explain proposed construction materials and elevations.

D. Development proposed within a Floodplain Overlay District, shall be capable of receiving a floodplain development permit from the County Engineer prior to receiving final plat approval by the Board of Comnty Commissioners.

E. Land which is subject to a possible upstream dam failure shall not be platted unless the potential flooding condition is alleviated according to plans approved by the County Engineer, unless otherwise approved by the State Engineer.

F. Storm drainage systems shall be separate and independent of any sanitary sewer system and shall be designed in compliance with the following requirements:

1. The drainage system shall be designed to consider the drainage basin as a whole and shall accommodate not only runoff from the development area but also, where applicable, the system shall bc designed to accommodate the

runoff from those areas adjacent and upstream from the development itself, as well as its effects on lands downstream.

2. If a development is proposed in phases, a general drainage plan for the entire area shall be presented with the first phase and appropriate development stages for the drainage system for each section shall be indicated.

7-901 Drainage Easements

A. A storm water or drainage easement or right-of-way shall be provided if a proposed development is traversed by a watercourse, drainageway, channel, stream, water supply ditch, or canal. This right-of-way shall conform to the lines of such watercourse, and be of such width and construction as will be adequate for the purpose of maintenance, and the exclusion of improvements of the type which would interfere with runoff.

1. Where possible, the drainage shall be maintained by an open channel with rip-rap or grass lined banks, or such channel design that is in accordance with the SDCM. This channel shall be of adequate width for maximum potential volume off flow.
2. The minimum requirements for such easements or rights-of-way shall he based on a base flood, but shall not be less than 20 feet in width.
3. Where topography or other conditions are such as to make impractical the inclusion of drainage facilities within road rights-of-way, perpetual unobstructed easements at least 20 feet in width for such drainage facilities shall be provided across property outside the road lines and with satisfactory access to the road. Drainage easements shall be carried from the road to a natural watercourse or to other drainage facilities.
4. When a proposed drainage system will carry water across private land outside the development, appropriate drainage rights must be secured and indicated on the plat.
5. Low-lying lands along watercourses subject to flooding or overflowing during storm periods, whether or not included in areas for easement dedication, shall be preserved and retained in their natural state as drainage ways.
6. Provision for the maintenance of such drainage areas shall be included as part of the development approval.

7-902 Water Table

A. The following provisions shall apply to areas of high ground water. Stipulation may be required as part of the development agreement to mitigate problems associated with ground water.

1. In cases where the water table is proposed to be artificially lowered, the design water table must be determined prior to the completion of the subdrain system. Confirmation of the lowering of the water table must be made after construction. Also, provisions must be made for maintenance of the subdrain system, including funds for maintenance, as well as individual or group responsibility for on-going maintenance.
2. The following shall apply to buildings with basements:
   a. the finished basement floor elevation shall be six inches or more above the design water table; and
   b. where the finished basement floor elevation ranges from six inches to two feet above the design water table, the basement shall be equipped with a peripheral subdrain which flows to a sump or sumps, daylight, or other approved point.

c. In each case the ultimate discharge point for peripheral Subdrain shall bc reviewed and approved in conjunction with subdivision approval.

d. Acceptable ultimate discharge points include:
   (i) at-grade on lots larger than one acre provided that water will not flow onto adjacent property;
   (ii) buried storm drainage systems provided that freezing will not be a problem; and
   (iii) major natural waterways.

e. Unacceptable discharge points include:
   (i) roadside ditches
   (ii) street gutters
   (iii) at-grade on lots one acre or smaller and adjacent property

f. Where the finished basement floor elevation is more than two feet above the design water table, no special requirements for subdrainage shall be imposed.

3. In relevant cases as described above, where the elevation of the design water table is within 10 feet of the pre-construction grade at the building site then the development agreement shall provide for the following:
   a. the elevation of the design water table shall be shown on structural plans submitted with the building permit application
   b. the elevation of the finished basement floor shall be shown on the structural plans submitted with the building permit application
   c. a licensed surveyor shall certify that the basement floor was constructed at the elevation specified on the approved structural plans as a precondition for issuance of the certificate of occupancy.

4. Crawl spaces shall be permitted only where the design water table is a minimum of three feet below the interior finished crawl space grade.

5. In cases where the artificial lowering of the water table may interfere with established water supplies, water rights, and/or aquatic environments, the County may prohibit such lowering.

7-903 Erosion and Sediment Control

A. If the plans for development entail an erosion potential, a soil erosion and sedimentation control plan shall be prepared by a registered professional engineer or the U.S. Soil Conservation Service. The County conservation standards or the soil and water conservation plan are to be used in preparing the soil erosion and sedimentation control plan.

B. In addition to permanent provisions, temporary erosion and sediment control measures are also required during construction operations. Construction schedules are to be programmed to permit installation of required permanent sediment and erosion control structures as soon as possible.

C. Inlets for drainage structures are to be protected from sedimentation.

D. Data available through the local Soil Conservation Service District shall be used as a supplemental guideline for soil and water conservation practices.

E. Finished slopes are to be protected with a vegetative cover, riprap, or other means.

F. The performance guarantee shall include provisions for enforcement of both the permanent and temporary erosion and sediment control facilities.

7-1000 Water Supply Ditches

A. An easement must be platted for any existing ditch or lateral.

B. The following provisions shall be required for the handling of irrigation ditches traversing areas proposed to be subdivided for development.

1. Existing ditches must be accurately located on the plat by appropriate survey data. The preliminary plan must show the top of ditch banks relative to easement limits proposed.
2. The written approval of the ditch owner or representative may be required for any proposed modifications of a ditch at the sketch plan and preliminary plan phases of the subdivision process. Written approval of final plans for such uses shall be required for final plat approval.
3. Where the County Engineer determines that extraordinary requirements are proposed by a ditch company as conditions of subdivision approval, the County Engineer may recommend that the Board of County Commissioners approve other requirements.
4. Irrigation ditches are not to be realigned unless expressly approved by the Division Engineer and then the realignment is to be in a manner approved by the ditch owner and the County Engineer.
   a. Ditch realignments shall be referred to the Soil Conservation Service for review and comment during review of the preliminary plan.
5. Prior to county acceptance of any public improvement located within the ditch easement, the applicant shall provide a certificate of clearance from the appropriate official of the ditch company to the effect that all work required as a condition of plat approval has been satisfactorily performed.
6. Road crossings over a public water course or ditch shall be bridged or culverted in a manner consistent with the County's requirements, standards, and specifications and in accordance with the hydraulic requirements of the ditch company.
   a. The ditch company shall be consulted regarding all proposed ditch crossings and written consent of the ditch company may be required by the County Engineer for such crossings.
7. The ditch easement shall extend the length of the ditch through the subject property and the size of the ditch easement shall be based on the following:
   a. The minimum ditch easement shall be the area between the ditch banks, as measured between the top of each ditch bank plus 15 feet on one side of the ditch and five feet on the other side of the ditch to provide for vehicular access and maintenance activities.
      (i) The side with 15 feet is to be such that continuous vehicular access along the length of the ditch can be provided.
      (ii) The top of the ditch is considered to be the lowest point, as measured at any cross-section, at which water could not overflow.
   b. Additional easement width may be required where the ditch company can demonstrate the legal right for the additional width in order to continue the historic maintenance and/or use of the ditch.
   c. Additional easement width may be required where there is a dedication of land paralleling the ditch easement for a needed public purpose.

d. Except where otherwise provided, the ditch easement shall be an exclusive easement for the use of the ditch company. Exceptions to an exclusive easement will be at road rights-of-way, along trails or bikeways and where drainage and other utility easements are overlapping.

8. Not withstanding the width of the ditch easement proposed by the developer, within the specifications of this Section, or approved by the Board of County Commissioners, the ditch company may have rights to an easement or right-of-way which is larger in size either under the rnles of adverse possession and prescription, or under applicable state or federal law existing at the time the ditch was constrncted. Activities of the County or subdivider are not intended to annul or abridge these rights.

9. Unless otherwise approved by the County Engineer and the applicable ditch company, ditches are not intended to be used as drainage facilities.

10. If the Board determines the existence of a ditch through a proposed development may result in improper use of that ditch for recreational purposes by residents of the development, then the developer may be required by the Board to take protective measures.

7-1100 Fire Protection

A. It is the intent of Boulder County to work with the Fire Protection Districts and Fire Departments in the County to assure the highest level of fire protection service that is available and reasonable.

B. To work towards a reasonable level of fire protection the following requirements apply:

1. Where a central water system is provided, fire hydrants shall be provided in all developments and shall be separated by no more than 600 feet. No dwelling shall be more than 300 feet from the nearest hydrant.

2. Fire fighting water sources for the proposed development shall meet the requirements set forth in the National Fire Protection Association, National Fire Code, Standard 1231 'Standard On Water Supplies For Suburban And Rural Fire Fighting' or the specific fire code regulations as jointiy adopted by Fire Protection Districts and the Board.

3. In areas that cannot meet the distance and time requirements a local water source shall be provided. The source may be either a lake or pond with an all weather access or a cistern. Cisterns shall be connected to a water source in such a manner that they will be constantly maintained at full available capacity.

4. Capacity of cisterns shall be based on the requirements set forth in the National Fire Code, as cited in Section 7-1100(B)(2), above.

5. Cisterns or other similar systems will not be allowed without an adequate backup water supply source.

6. Storage systems that require recharging by hauling of water will not be permitted unless there is no suitable alternative and binding provisions are made for recharging.

7. Written approval from the applicable fire agency is required if on-site storage is to be waived.

8. When fire protection facilities are to bc installed by the developer, such facilities including all surface access roads shall be installed and made serviceable prior to and during the time of constrnction.

9. Subdivision agreements or other documents shall provide for continued maintenance of fire protection systems and means of enforcement by Boulder County.

C. Fire Hazard Areas

1. Additional fire precaution measures may be required because of fire hazard in the following areas:
   a. areas rated as fire hazards by the State of Colorado Forest Service;
   b. where slopes in or adjacent to proposed developments are in excess of 20%; or
   c. where the local fire protection agency identifies a specific fire danger.
2. In these areas all slash (fallen trees, shrubs, pulled stumps, and other combustible materials) may be required to be disposed of from an area extending to at least 150 feet from the road centerline prior to the acceptance of any roads.
3. All slash must also be removed from the vicinity of the home sites prior to final building inspection.
4. A forest management program for the reduction of wildfire danger may be required, including provisions for continuous proper forest management to maintain a low wildfire danger.
5. The Board may require other mitigation efforts as conditions of final approval where there is the determination that these efforts will reduce the recognized fire hazard.
6. A development proposal shall be referred to the appropriate fire protection experts as part of the development review process.

7-1200 Utility Location

A. Utilities include, but are not limited to water, sewer, gas, electric power, telephone and cable television.

B. The following shall apply to the location of utility services.

1. All utility facilities shall be located underground throughout the development except in situations or locations where undue hardship result from compliance with this requirement and the overriding intent of this Code has been demonstrated. All utility lines, including appurtenances, shall be placed either within public road rights-of-way or within the subdivision easements or rights-of-way provided for the particular facilities in accordance with the approved utility service plan.
2. Easements shall be free from conflicting legal encumbrances, avoid unnecessary removal of trees or excessive excavations, and be reasonably free from physical obstructions.
   a. Easements centered on common rear lot lines shall be at least 16 feet wide.
   b. Where an easement abuts a rear lot line which is not the rear lot line of another lot, or which is on the perimeter of the development, the easement width shall be 10 feet or more.
   c. Where easements are combined with a water course, drainage way, channel, or stream, an additional utility easement of at least 10 feet in width shall be provided if the use would be in conflict with drainage requirements or wetlands.

d. Multiple use of a given easement is encouraged to minimize easements.

e. Where topographical or other conditions are such as to make impractical the inclusion of utilities within the rear lot lines, perpetual unobstructed easements at least 10 feet in width shall he provided along side lot lines with satisfactory access to the road or rear lot lines. Easements shall be indicated on the plat.

3. In all cases, the applicant shall work with the utility companies to provide reasonably sized easements in appropriate locations.

C. The final plat shall note all easements.

1. Ditch easements shall, in general, be dedicated to the ditch company.

2. Public utility easements, drainage easements, etc., including all easements that are for the benefit of the public, unless otherwise indicated on the plat, shall be dedicated to Boulder County.

a. These easements are the property of Boulder County.

b. The County shall act as custodian of the easements and may limit the use of such easements to the purposes indicated on the plat.

c. The use or uses for each easement shall be designated on the plat to avoid use conflicts.

3. Permits for construction within the easements may be required by the Board of County Commissioners.

4. After review by public utilities, or other service providers, providing designated services to the area in and around the development, the Board of County Commissioners may vacate platted easements after review of the vacation by the Planning Commission.

7-1300 Dedication Requirements

A. The Board of County Commissioners, after review by the Planning Commission, may require the dedication of sites and land areas within a development which are deemed necessary to serve the residents of that proposed subdivision or development.

B. In lieu of a dedication of sites and land areas, the Board of County Commissioners, after review by the Planning Commission and with advice from the potential receiving body, may require payment of a sum of money not exceeding the full market value of such sites and land areas or combination of such land dedication and such payment.

7-1301 Dedicated Land

A. All dedicated lands shall be designated on the final plat as outlots.

1. Outlots shall be deeded to Boulder County or other appropriate agency at the time of recordation of the final plat.

2. Disposition of the outlots shall be shown on the face of the final plat.

B. Title insurance, acceptable to Boulder County, which is provided by a title insurance company authorized to do business in the State of Colorado, and a certificate of representations and warranties concerning titie and usability of the property on a form provided by Boulder County shall be required at the time of recordation of the final plat.

7-1302 Required Road Dedications

A. The following shall be required for development.

1. All roads, streets, alleys or other public traffic ways located within the subject property, the benefit of which is to the current or future residents of the subject

property, shall be dedicated as public rights-of-way unless specifically approved as private rights-of-way and so designated on the plat or exemption documents.

2. In addition to any other dedication requirements of this Article, land shall be dedicated to Boulder County for rights-of-way for perimeter streets and roads.

B. The following shall pertain to road dedications and reservations.

1. New perimeter street systems in new subdivisions shall be laid out so as to eliminate or avoid new perimeter half-streets. Where an existing half-street is adjacent to a new subdivision, the other half of the street shall be improved and dedicated by the subdivider. The Board of County Commissioners may authorize a new perimeter street where the subdivider improves and dedicates the entire required street right-of-way width entirely within the subdivision boundaries.

2. When, due to topography, hazards or other design constraints, additional road width is necessary to provide for the public safety by cut and/or fill area, drainage area or other road appurtenances along roads, then dedication or right-or-way in excess of the minimum standards set forth in this Code shall be required.

7-1303 Required Park Dedications

A. The following shall be required for subdivisions and exemptions.

1. The standard for required park dedications is 25 acres per 1000 occupants for residential areas and/or up to three percent of the total land utilized for commercial, industrial, or other nonresidential areas.

2. Where a trail alignment is required as a condition of approval, and where the total land set aside for such trail exceeds the required dedication amount, then the land designated as trail land shall be reserved for future acquisition by Boulder County.

B. Criteria for Park Dedications

1. In determining which land areas are appropriate for dedication as parks, the Planning Commission and Board of County Commissioners shall consider the following criteria in requiring park dedications:

a. The assurance of the continuity of open space links, trails, and other major components of the recreation system.

b. The assurance that areas set aside for parklands have been examined for compliance with all regional plans, particularly the Boulder County policies and development statement for parks and recreation and the Boulder County Parks Department capital development schedule.

c. The assessment of the suitability of proposed land dedications for park, recreation and open space needs.

d. The examination of the size, shape, topography, geology, presence and condition of ground cover and timber; condition of soil; drainage; location; access; and availability of water to lands proposed for park, and recreation uses.

e. The assurance of the protection of natural and historical features, scenic vistas, watersheds, air quality, timber, and wildlife.

f. Parklands that are intended to be used for trail rights-of-way shall conform to the following additional criteria:

(i) The land may be either set aside as a dedicated easement or as a deeded outlot.

(ii) The minimum width for such trail easement or outlot shall be based on the particular reasonable needs of the trail, its location, the surrounding terrain, and the projected usage. In no instance shall the width be less then 12 feet, and in all cases the easement shall be adequate width to handle the proposed uses.

(iii) User safety shall be a primary consideration in locating a trail easement adjacent to collectors or arterial streets.

(iv) There shall be provisions for public access to the trail easement within the subject property.

(v) The trail easement may overlap and include property previously included in other easements such as ditch, canal, utility, or conservation easements; public or private open space; or other easement. However, no easement may compromise the functional use of any other easement.

g. Park land shall not be considered as part of the land set aside for open space or agricultural preservation as provided for PUD's or NUPUD's.

7-1304 Required School Dedications

A. The following shall be required for subdivisions and exemptions.

1. Dedication requirements shall be 750 square feet of land per dwelling unit for single family residences and 500 square feet per dwelling unit for multifamily residences or other reasonable criteria approved by the specific school district and passed by Resolution of the Board of County Commissioners.

2. When, after recommendation of the appropriate school district, dedication of all or portions of required school lands is not deemed feasible or in the public interest, the school district may recommend to the Board of County Commissioners one of the following options:

a. Guarantee of future land dedication may be requested by the school district when dedication of all or portions of required school lands is not deemed feasible or in the public interest in a particular phase of development. In this case, the developer must submit a letter guaranteeing future dedication of land for school sites to the appropriate school district.

b. Cash-in-lieu of land in accordance with this article.

B. Such dedication shall be a condition of approval by both the Planning Commission and the Board of County Commissioners.

7-1305 Other Required Dedications

A. The following shall bc required for subdivisions and exemptions.

1. The applicant shall dedicate drainage ways, drainage basins, floodway areas, etc. as drainage easements as required by the Board.

2. Utility easements shall be set aside so as to provide areas for the provision of those utilities.

3. The applicant may be required to dedicate or reserve suitable lands for sites for fire stations or other public safety facilities as may be reasonably required by the Board to protect the health, safety and welfare of the future residents of the proposal.

B. Such dedication shall be a condition of approval by both the Planning Commission and the Board of County Commissioner.

7-1306 Reservations

A. In addition to other public dedication requirements, the Board reserves the option to require that certain lands be reserved for schools or other public purposes listed in Article 7.

B. These lands are reserved for acquisition by Boulder County on a payment schedule established by the Board of County Commissioners which shall be based on the fair market value at the time of purchase, as determined by the County Assessor, or another designated appraiser and accepted by the Board of County Commissioners.

C. Unless the Board approves some other time period, these lands shall be reserved for a period not to exceed five years.

7-1307 Cash-in-lieu

A. The applicant, at the option of the Board after advice from the potential receiving body, may pay Boulder County cash-in-lieu of land dedication in those cases where the dedication of land is unacceptable.

1. Payment shall be based on the market value, to be determined after completion of the platting process, of the entire property as it is valued after platting.
2. A proportionate amount of this value shall be assigned to any parcels or properties requested by Boulder County for public use.
3. If required, property values shall be established by appraisal, provided in the first instance by the applicant, and accepted by the Board of County Commissioners.
4. Minimum payment for cash-in-lieu of land dedication shall be $500 for any required dedication.
5. Any payments shall be placed in designated Boulder County maintained interest bearing escrow accounts.

B. Combination of Dedication and Cash-in-lieu

1. The applicant, at the option of the Board after advice from the potential receiving body, may meet the dedication requirements of this Article 7 through a combination of cash-in-lieu and land dedication in those cases where a portion of the dedication of land is unacceptable.
2. The value of the combination of both the land dedication and the cash-in-lieu of land shall not exceed the full market value of the total required dedication of sites and land areas.
3. Full market value shall be established in accordance with the provisions of Section 7-1307(A)(1), above.

7-1308 Release of Land or Cash

A. After final approval of a subdivision plat and receipt of dedications, the Board shall give written notification to the appropriate school districts and local government entities.

1. Following such notice, a school district or local government entity may request the dedication for a use authorized by this section.
2. After review by the Board the land or funds will be transferred to the appropriate school district or local government entity.

B. In the case of school and park sites: after completion of the platting it is determined the receiving body no longer finds a need for such land they may request that the Board sell the land.

1. Prior to a sale, both the Planning Commission and the Parks and Open Space Advisory Board shall review the action.
2. Any moneys paid to the Board from the sale of such dedicated sites and land areas shall be held by the Board to be used for any of the following:
   a. the acquisition of reasonably necessary sites and land areas or for other capital outlay purposes for schools;
   b. the development of sites and land areas for park purposes; or
   c. growth-related planning functions by school districts for educational purposes.
3. Such moneys shall be held and released in accordance with the processes estabhshed by Section 7-1307 of this Code.

C. Funds may be released to the appropriate school district or local govemment entity if the Board finds that the proposed use of the fund is compatible with the intent of the cash-in-lieu payment or sale of the land. At the time of release of funds, Boulder County shall retain a reasonable management fee for the holding and maintenance of such escrow accounts, provided that the management fee does not exceed the amount of interest generated by the account.

7-1400 Supplementary Requirements for Lots and Yards

7-1401 Supplementary Requirements for Lots

A. In measuring the minimum lot area one-half of the area of adjacent public rights-of-way may be included provided the measured public rights-of-way do not exceed ten percent of the total lot area.

B. In those instances where the right of way has increased by acquisition of property on only one side of the original right-of-way, the original centeriine should be used to measure the original size of the property.

7-1402 Supplementary Requirements for Yards

A. Cornices, canopies, eaves or similar architectural features may extend two feet into a required yard.

B. Fire escapes may extend six feet into a required rear yard.

7-1403 Supplemental Requirements for Yards Along Major Roads

A. Existing Freeways, Expressways, Principal Arterials, Minor Arterials, and Collectors shall be designated on the Boulder County zoning maps.

B. Along these designated roads, the minimum yard requirements for all structures, with the exception of signs, shall be not less than either:
   1. the normal zoning district requirement,
   2. the zoning district front yard requirement, or
   3. the following distance from the centerline of the existing roadway
      a. freeways, expressways 160 feet
      b. principal arterials 110 feet
      c. minor arterials 110 feet
      d. minor arterials in mountainous terrain 55 feet
      e. collectors not in mountainous terrain 90 feet

7-1500 Survey Monuments

A. All survey work shall, at a minimum, comply with the standards contained in C.R.S. 38-51-101 and 102 and this Code. All horizontal and vertical monuments shall be established by a Land Surveyor registered in the State of Colorado.

B. Permanent plat boundary monuments shall be set at locations approved by the County Engineer. In general these include:

1. Survey monuments for external boundaries of all platted subdivisions shall be set not more than fourteen hundred feet apart along any sttaight boundary line; at all angle points; at the beginning, end, and points of change of direction or change of radius of any curved boundaries defined by circular arcs; and at the beginning and end of any spiral curve; and at all public land comers.
2. Internal subdivision survey monuments shall be established at all road centerline intersections; the center of radius for culs-de-sac; the road centeriine Point of Curvature's and Point of Tangent's of curves, or the Point of Intersection's of curves; and at the end of the centerline for dead-end streets.
3. All monuments shall be solidly embedded in the ground. Affixed securely to the top of each monument shall be a durable cap bearing the Colorado registration number of the land surveyor responsible for the establishment of said monument.
4. State plane coordinates are required to be fumished to the County Engineer for all subdivision boundary monuments that are within one mile of a first or second order monument.

C. At least one permanent benchmark shall be established in a new or replatted subdivision.

1. The benchmark shall bc a domed brass cap firmly affixed to a permanent stmcture, i.e., a concrete bridge headwall, concrete irrigation structures, or other sizeable concrete masses. The cap can also be set in a solid rock formation or in the ground in a 6 inch diameter, 36 inch deep concrete monument. The cap is not to bc set in sidewalks, curbs, driveways, streets, utility poles or trees.
2. The benchmark shall be located with at least 3 horizontal ties shown on the plat.
3. The elevation and the datum used to establish tiie benchmark shall be recorded on the plat and submitted to the County Engineer.
4. The elevation datum of the benchmark shall be surveyed from United States Geological Survey, Bureau of Land Management, or Boulder County Floodplain monuments.

7-1600 Outdoor Lighting

A. Any outdoor light used for the illumination of parking areas, loading areas, recreation areas, or for any other private or public purpose, shall be arranged in such manner as to meet the following conditions:

1. Lights shall be fully shielded or arranged in a manner so that concentrated rays of light will not shine directiy onto other properties; *(10/10/96)*
2. Neither tiie direct or reflected light fiom any light source may create a traffic hazard to operators of motor vehicles on public roads, and no colored lights may be used in such a way as to be confused or consimed as traffic control devices; and
3. No blinking, flashing, or fluttering lights, or other illuminated device which has a changing light intensity, brightness, or color, or no light which exceeds 25 feet in height, may be permitted in any zoning district, except for temporary holiday displays or as required by local, state, or federal regulations.

7-1700 Wildlife Impacts *(1/26/99)*

A. Unless exempted pursuant to Subsection (I), below, all land use development applications which require a development report under Article 3-203(F) of this Code (subdivisions, PUDs, special review and limited impact special review approvals, rezonings, and exemptions), shall be required to include a wildlife impact report as provided herein, prepared by an approved wildlife expert retained by the County Parks and Open Space Department, whenever the property which is the subject of the application meets any one of the following criteria:

1. Is located within a Critical Wildlife Habitat, a Significant Natural Community, a Rare Plant Area, or a Riparian Corridor, as designated on the adopted Environmental Resources maps of the Boulder County Comprehensive Plan.
2. Is located within a Natural Area or Natural Landmark listed in the Environmental Resources Element of the Boulder County Comprehensive Plan and mapped in the Boulder County Zoning Maps.
3. Is located within a Boulder Valley Natural Ecosystem as designated on the adopted Boulder Valley Natural Ecosystems Map of the Boulder Valley Comprehensive Plan.
4. Is located within a Critical Parcel Candidate Land as designated in the official records of the Front Range Backdrop Project as maintained in the Boulder County Land Use Department.
5. Is located within any critical habitat for state- or federally-designated threatened or endangered species as shown on any maps adopted under the critical wildlife habitat provisions of Article 8 of this Code.
6. Is determined by the Boulder County Parks and Open Space Department to serve as significant habitat for any of the listed "Species of Special Concern in Boulder County" (1994 adopted list, as it may be duly updated from time to time).
7. Is determined by the Boulder County Parks and Open Space Department to serve as significant habitat for any of the species on the Colorado Division of Wildlife's "Colorado Listing of Endangered and Threatened Wildlife Species and Species of Special Concern" (May 15, 1998 adopted list, as it may be duly updated from time to time).
8. Is determined by the Boulder County Parks and Open Space Department to serve as significant habitat for the black-tailed prairie dog (Cynomys ludovicianus), with reference to any published maps of the Boulder County Health Department, the Colorado Division of Wildlife, or other such competent information source.
9. The wildlife species listed in subsections (6), (7), and (8) directly above shall hereafter be referred to as "Species of Special County Concern" with respect to the subject land development proposals.

B. The required wildlife impact report shall include an inventory of any Species of Special County Concern that are found on the subject property; an assessment of the property's status as significant habitat for any Species of Special County Concern; an assessment of the proposed development's impact on any Species of Special County Concern found on the subject property, and on the property's status as significant habitat for any Species of Special County Concern; a review of possible mitigation measures to reduce or alleviate any material negative impact on such Species of Special County Concern or on the property's status as significant habitat for any Species of Special County Concern; and a recommendation regarding whether the

proposal can proceed without causing material adverse impact on a Species of Special County Concern or its significant habitat, and, if so, on what basis the proposal can avoid such impact.

C. The Board, in reviewing development proposals required to submit a wildlife impact report hereunder, shall have the discretion to deny proposals which the Board determines will have a material adverse impact on a Species of Special County Concern, or may materially and adversely impact habitat which is determined to be significant for such Species. In the alternative, if the Board determines it to be reasonable under the facts of the particular application, the Board may require mitigation measures to protect the Species of Special County Concern or its significant habitat on the subject property.

D. Mitigation measures may include, but shall not necessarily be limited to: avoidance of the area of Species of Special County Concern's significant habitat; construction of berms, landscaping, or other physical devices to protect the Species of Special County Concern or its significant habitat from material harm by the proposed development; relocation of all or part of the Species of Special County Concern to another suitable property; acquisition of other property to provide replacement habitat of a comparable quantity and quality to that being impaired; donation of a conservation easement to the County if warranted to assure adequate preservation and management of a Species of Special County Concern or its significant habitat; or a combination of these or other reasonable measures.

E. The Board may determine the appropriate mitigation measures considering the required wildlife impact report, the advice of other professionals or consultants in the field, and the advice of the County Parks and Open Space Department, all based on accepted biological knowledge and the particular circumstances and impacts of the proposed development. These circumstances may include but are not limited to the prevalence of the Species of Special County Concern in the general area of the development and in the County as a whole; the prevalence of predator species in the general area of the development; the relationship of the affected property to Environmental Conservation Areas identified on the Boulder County Comprehensive Plan and similar ecological areas identified in other Comprehensive Plan or in intergovernmental agreements to which the County is a party; and other relevant ecological and biological factors.

F. As used in this Article 7-1700, "significant habitat" means an area or property which contains a Species of Special County Concern, or which has a high potential to serve as significant habitat for such Species based on the ecological, biological, or physical characteristics of the property as well as on the property's proximity or relationship to other known locations of the Species or to other significant habitat for the Species.

G. Unless the Land Use Director determines that a longer period is necessary due to such factors as seasonal considerations, scope of the required report, or work demands of an approved wildlife expert, an applicant can generally expect that a required wildlife impact report will be completed within 45 days after a request for such report.

H. Existing expert wildlife impact reports may be used to satisfy, in whole or in part, the wildlife impact report requirement of this Article 7-1700, provided the County Parks and Open Space Department determines that such existing report is adequate for this purpose, considering such factors as the existing report's date and scope and the nature of the development proposed in the application.

I. The Land Use Director may exempt any of the following, otherwise covered applications from the foregoing wildlife impact report requirement:

1. Subdivision exemption applications proposing a change or development which can be reasonably determined at the pre-application stage to have no material impact on a Species of Special County Concern or significant habitat for such Species (such as a minor boundary line adjustment to resolve an existing structural encroachment).
2. Applications where the subject property is encumbered by a conservation easement or other form of binding land management or preservation plan which adequately protects any Species of Special County Concern or significant habitat for such Species found on the property.

STATE OF COLORADO

DEPARTMENT OF TRANSPORTATION

STATE HIGHWAY ACCESS PERMIT INFORMATION AND BILLING

TO: Permittee: Southdown, Inc.

Street: P.O. Box 529

City: Lyons State: CO Zip: 80540

Date: 09/08/93

Permittee: Please review both sides of the attached State Highway Access Permit (form #101) and all attachments.

NOTE: IF YOU FAIL TO SIGN AND RETURN THE ATTACHED ACCESS PERMIT WITHIN 60 DAYS OF THE DATE OF THIS LETTER, THE COLORADO DEPARTMENT OF TRANSPORTATION WILL CONSIDER THE PERMIT VOID.

If you choose not to act on the permit:
- return the permit unsigned

If you wish to appeal the terms and conditions of the permit:
- refer to the back of the Access Permit for an explanation of appeal procedures

If you accept the permit please:
- sign the Access Permit on the line marked "PERMITTEE". Your signature confinns your agreement to all listed terms and conditions
- provide a check or money order made out lo the jurisdiction named on the next line for the amount due.

Boulder County — Make check or money order payable to

$100 — Amount due

- return all copies and attachments of the Access Pennit along with your payment back to the Colorado Department of Transportation at the address noted below.

The Department of Transportation will process and return to you a valldated (signed and recorded) copy of your Access Permit.

DO NOT BEGIN ANY WORK WITHIN THE STATE RIGHT OF WAY WITHOUT A VALIDATED ACCESS PERMIT. USE OF THE PERMIT WITHOUT TRANSPORTATION DEPARTMENT VALIDATION SHALL BE CONSIDERED A VIOLATION OF STATE LAW.

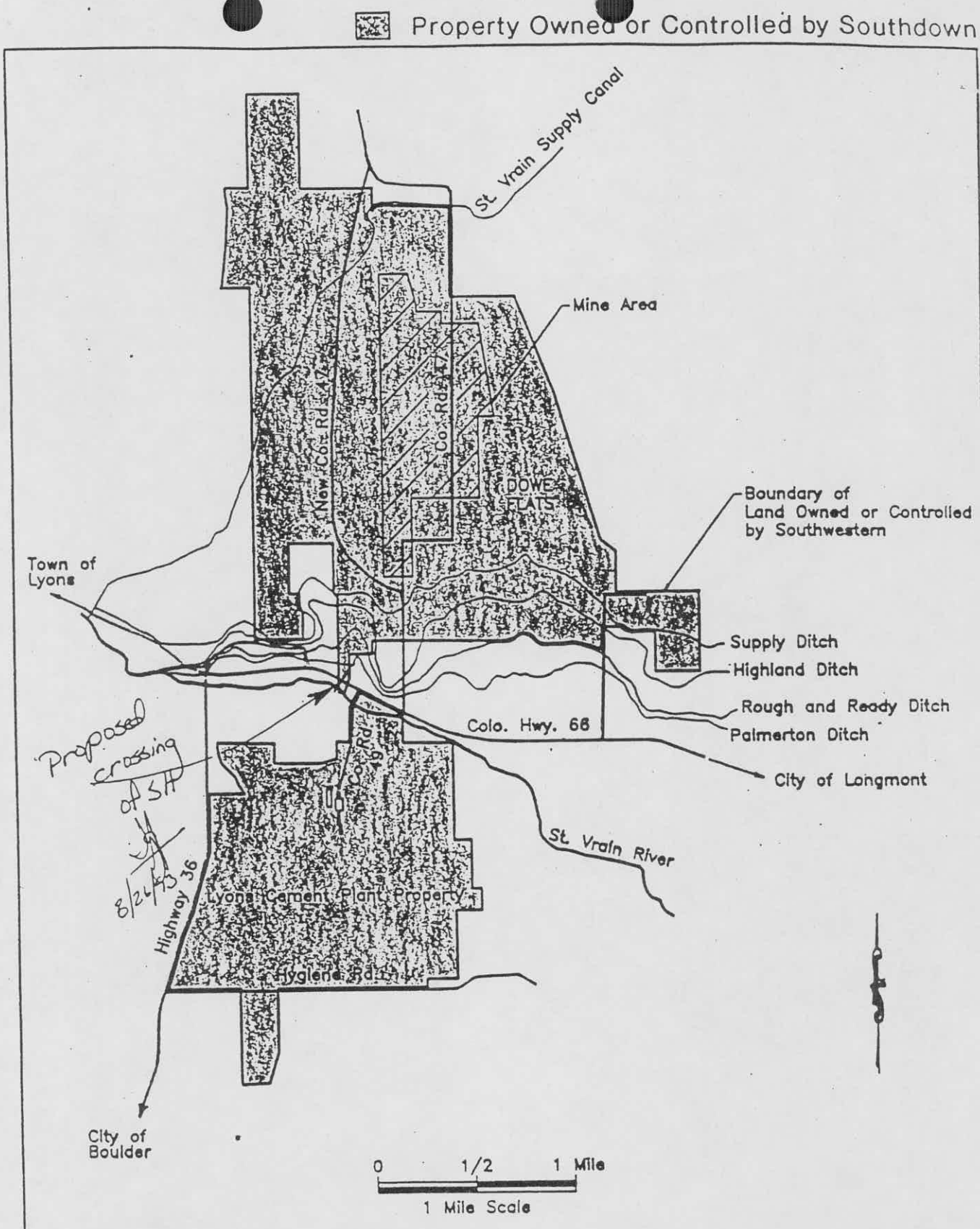
If you have any questions please call:

Dean Yost - CDOT — Name

350-2113 — Phone #

Return the Access Permit to the address noted here:

The transmittal to you of the access pennit form for your approval constitutes final action by the Colorado Department of Transportation pursuant to section 43-2-147 C.R.S., as amended.



FILE - E92-7075.DWG

SHB AGRA, INC.
Engineering & Environmental Services
AGRA

SHB AGRA PROJ. NO. E92-7075

DOWE FLATS PROJECT
Vicinity Map

Southdown, Inc.
(Southwestern Portland Cement)

VARIANCE FROM STATE HIGHWAY ACCESS CODE

SH 66 at this location is a Category 3 highway. This request seeks a variance from Section 3.6.3 of the Access Code, which specifies:

> "Private direct access to the state highway system shall be permitted only when the property in question has no other reasonable access to the general street system or if the local authority and Department determine and agree that denial of direct access to the state highway and alternative direct access to another roadway would cause unacceptable traffic operation and safety problems to the overall traffic flow of the general street system."

Subparagraph b further specifies that:

> "No more than one access shall be provided to an individual parcel or to contiguous parcels under the same ownership unless it can be shown that: (1) additional access would be significantly beneficial to the safety and operation of the highway, or (2) allowing only one access would be in conflict with local safety regulations."

This request is for a haul route crossing across SH 66 to allow the transport of rock from the Dowe Flats project on the north side of the highway to the cement plant on the south side of the highway. Both of these sites currently have access via county roads (CR 49 on the south and CR 47 on the north). However, this request for access is specifically to enhance the safety of traffic operations in the area for all users of the public roadway system.

The proposed haul route and crossing would be restricted to use by haul trucks only. Other traffic associated with the cement plant operation (employees, customers, etc.) would continue to use the existing county roads. The purpose of constructing a designated haul route is to separate the truck traffic from other traffic on the county roads and to move the haul trucks directly across SH 66 rather than operating along SH 66 and making turning movements to and from SH 66. Thus, the impacts of these trucks on traffic operations and safety on SH 66 will be substantially lessened.

~~Rock hauling~~ at this crossing will occur during only four days of the week; this ~~activity will~~ not occur on ~~weekends or holidays~~, when traffic volumes are ~~heaviest on~~ the highway. The crossing will be gated at SH ~~66 to restrict access.~~ Advance warning signs with flashing beacons will be installed ~~on SH 66~~ to advise motonsts ~~of side~~ road truck traffic and, if ~~acceptable to CDOT~~, the applicant would install an actuated traffic signal ~~at the crossing~~.

Comments not related to Variance Condition.

9/1/93

COLORADO DEPARTMENT OF TRANSPORTATION
STATE HIGHWAY ACCESS PERMIT

SHMW: Glenn Welham (between 6-6:30 a.m./4-4:30 p.m.)
823-5183

SH No/MP/Side: 66/29.450/L&R
Local Jurisdiction: Boulder County
Dist/Section/Patrol: 4/1/08
DOT Permit No.: 493071
Permit Fee: $100
Date of Transmittal: 09/08/93

THE PERMITTEE:

Southdown Inc.
P.O. Box 529
Lyons, Colorado 80540

Phone: 823-6685

is hereby granted permission to construct and use an access to the state highway at the location noted below. The access shall be constructed, maintained and used in accordance with the terms and conditions of this permit, including the State Highway Access Code and listed attachments. This permit may be revoked by the issuing authority if at any time the permitted access and its use violate any of the terms and conditions of this permit. The use of advance warning and construction signs, flashers, barricades and flaggers are required at all times during access construction within State right-of-way in conformance with the MANUAL ON UNIFORM TRAFFIC CONTROL DEVICES, Part VI. The issuing authority, the Department and their duly appointed agents and employees shall be held harmless against any action for personal injury or property damage sustained by reason of the exercise of the permit.

LOCATION:

Accesses are to be located on State Highway 66, a distance of 2377 feet east from Mile Post 29 on the north/left - south/right side.

ACCESS TO PROVIDE SERVICE TO:

Industrial haul route from Dowe Flats to Southdown, Inc. (cement plant). This is deemed a conditional permit only for the purpose of authorization for location of future accesses. No construction shall occur within the highway right-of-way until all final plans are received and approved. (See SHAC 2.9.6.)

OTHER TERMS AND CONDITIONS:

1. This permit is only for the use and purpose stated in the Application and Permit.

MUNICIPALITY OR COUNTY APPROVAL

Required only when the appropriate local authority retains issuing authority.

By (X) _____ Date _____ Title _____

Upon the signing of this permit the permittee agrees to the terms and conditions and referenced attachments contained herein. All construction shall be completed in an expeditious and safe manner and shall be finished within 45 days from initiation. The permitted access shall be completed in accordance with the terms and conditions of the permit prior to being used. The permittee shall notify Max Fanning with the Colorado Department of Transportation in Boulder at 442-4382, at least 48 hours prior to commencing construction within the State Highway right-of-way.

The person signing as the permittee must be the owner or legal representative of the property served by the permitted access and have full authority to accept the permit and all it's terms and conditions.

Permittee (X): John W Johnson Date 9/16/93

This permit is not valid until signed by a duly authorized representative of the Department.
DEPARTMENT OF TRANSPORTATION, STATE OF COLORADO

By (X) _____ Date _____ Title Access/Development Coordinator
Region IV (Date of issue)

COPY DISTRIBUTION: Required: 1 District (Original) 2 Applicant. Make copies as necessary for: Local Authority, Inspector

Previous Editions are Obsolete and will not be used
CDOT Form #10

COLORADO DEPARTMENT OF HIGHWAYS

VARIANCE FROM THE STATE HIGHWAY ACCESS CODE

Highway No/Mp/Side 66/29.450/L&R
Local Jurisdiction Boulder County
Dist/Section/Patrol 4/1/08
Permit No. (if approved) 493071

WHEN USED, THIS FORM SHALL BE ACCOMPANIED BY AN ACCESS PERMIT APPLICATION.

1. State specific reasons for this variance request. Documents verifying statements may be requested or should be provided with request. State specific sections of the State Highway Access Code from which this request seeks relief. (Additional sheets may be attached). If variance is temporary, state conditions which will change allowing the access to conform to the access code. If a date is known when conformance can be achieved, provide that date.

(See Attached)

NOTICE: Providing false information to a government agency is punishable as perjury in the second degree, as well as being punishable under any other applicable state or federal laws.

XTHIS FORM SUBMITTED BY _____ DATE 8/23/93

ITEMS BELOW THIS LINE ARE FOR OFFICE USE ONLY.

2. Recommendation of local government authority. When local government has issuing authority, this recommendation must be signed by an authorized official.

(X) _____, Date _____

3. Recommendation of the District Traffic and Safety Engineer:

Recommend variance.

(X) _____ Date 9/8/93

4. Recommendation of the ~~Section Maintenance Superintendent~~ or District Access Coordinator

I support their request.

(X) _____, Date 93

FINAL ACTION TAKEN BY THE DISTRICT ENGINEER:

Having reviewed this variance request and all materials attached, I hereby:

APPROVE(X) Douglas Ramey

DENY(X) _____

this request for variance from the standards of the State Highway Access Code. DATE Sept. 9, 1993

ite copy - Dist. Permit files
ary copy - Staff ROW

CDOH Form #112
10/86

COLORADO DEPARTMENT OF HIGHWAYS

APPLICATION FOR STATE HIGHWAY ACCESS PERMIT

Issuing authority application acceptance date 9-1-93

Instructions:
- contact the Department of Highways or your local government to determine your issuing authority.
- contact the issuing authority to determine what plans and other documents are required to be submitted with your application.
- complete this form (some questions may not apply to you) & attach all necessary documents and submit it to the issuing authority. Submit an application for each access requested.
- if you have any questions contact the issuing authority.

Please print or type

1) Property owner (Permittee)
Southdown, Inc.
street address, city,
P.O. Box 529, Lyons
state & zip: CO 80540
Phone #: (303) 823-6685

2) Applicant
Southdown, Inc.
street address, city,
P.O. Box 529, Lyons
state & zip: CO 80540
Phone #: (303) 823-6685

3) Address of property to be served by permit (if known)
5069 Ute Highway, Longmont, CO 80503

4) Legal description of property:
county: Boulder | subdivision: N/A | block: N/A | lot: N/A | section: 21 | township: 3N | range: 70W

5) What state highway are you requesting access from?
Haul Route Across SH 66

6) What side of the highway? ☒N ☒S ☐E ☐W

7) How many feet is the proposed access from the nearest mile post or cross street?
610 feet (N S E (W)) from Boulder County Road 49

8) Check here if you are requesting a
☒ new access ☐ temporary access ☐ improvement to existing access ☐ change in access use

9) What is the approximate date you intend to begin construction?
Spring, 1994

10) Do you have knowledge of any State Highway access permits serving this property, of for adjacent properties in which you have a property interest.
☒ yes ☐ no If "yes" - what are the permit number(s)? grandfathered and/or, permit date ____

11) Does the property owner own or have any interests in any adjacent property?
☒ yes ☐ no If "yes" - please describe: See Attached Map

12) Are there existing or dedicated public streets, roads, highways or access easements bordering or within the property?
☒ yes ☐ no If "yes" - list them on your plans and indicate the proposed and existing access points.
CR 49 - South
CR 47 - North - does not border at SH 66 portion

13) If you are requesting commercial or industrial access please indicate the types and number of businesses and provide the floor area square footage of each?

business	square footage	business	square footage
Industrial Haul Route (Rock)	N.A.		

14) If you are requesting agricultural field access - how many acres will the access serve?

15) If you are requesting residential development access, - what is the type (single family, apartment, townhouse) and number of units?

type	number of units	type	number of units

Condition: Access to be written as right in, right out. Haul Unit #2 is revoked. 8/24/93

16) Provide the following vehicle count estimates for vehicles that will use the access. Leaving property then returning is two counts. Indicate if your counts are peak hour volumes ☐ or average daily volumes ☒

# of passengers cars and light trucks	# of multi unit trucks	# of other vehicles
	Avg. - 316 / 25-ton trucks Peak - 380	Avg. - 93 / 85-ton trucks Peak - 112
# of single unit vehicles in excess of 30 ft	# of farm vehicles (field equipment)	Total Count of All Vehicles: 93 or 316 (Avg.)

17) Check with the issuing authority to determine which of the following documents are required to complete the review of your application. (plans should be no larger than 24" x 36")

a) Highway and driveway plan and profile.
b) Drainage plan showing impact to the highway right-of-way.
c) Map and letters detailing utility locations before and after development in and along the right-of-way.
d) Subdivision, zoning, or development plan.
e) Property map indicating other access, bordering roads and streets.
f) Proposed access design.
g) Parcel and ownership maps including easements.
h) Signing and striping plans.
i) Traffic control plan
j) Proof of liability insurance

If an access permit is issued to you it will state the terms and conditions for its use. Any changes in the use of the permitted access not consistent with the terms and conditions listed on the permit may be considered a violation of the permit.

THE APPLICANT DECLARES UNDER PENALTY OF PERJURY IN THE SECOND DEGREE, AND ANY OTHER APPLICABLE STATE OR FEDERAL LAWS, THAT ALL INFORMATION PROVIDED ON THIS FORM AND SUBMITTED ATTACHMENTS ARE TO THE BEST OF THEIR KNOWLEDGE TRUE AND COMPLETE.

Applicant signature ____ Date ____

If the applicant is not the owner of the property, we require this application also to be signed by the property owner or their legally authorized representative (or other acceptable written evidence). This signature shall constitute agreement with this application by all owners-of-interest unless stated in writing. If a permit is authorized, the property owner will be listed as the permittee.

Property owner signature: John W Pohn, PLANT MANAGER Date 8/23/93

Previous editions may be used until supplies are exhausted

CDOH Form #137

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

PUBLIC HEARING
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

DATE: May 22, 2003
TIME: 9:00 a.m.
PLACE: Hearing Room, Third Floor, County Courthouse, Boulder

Notice is hereby given that a public hearing will be held by the Board of County Commissioners at the time and place specified above. All persons interested in the following item(s) are requested to attend such hearing and aid the Commissioners in their consideration.

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA
Request for Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement; by CEMEX, Inc.; in accordance with the Boulder County Land Use Code. The proposed project would be located in the area zoned Agricultural (A), at 13301 N. 55th Street, in Section 26, T2N, R71W.

Detailed information regarding this item, including maps and legal descriptions, is available for public examination at the Boulder County Land Use Department, 13th and Spruce, Boulder, Colorado (303-441-3930).

Free Parking in the City of Boulder CAGID lots is available for Board of County Commissioners' hearing participants. See the staff at the lobby desk for city parking vouchers.

Persons needing special services provided under the Americans with Disabilities Act, please contact Peggy Jackson, ADA Coordinator, or the Boulder County Human Resources Office at (303-441-3508) at least 48 hours before the scheduled hearing.

Published: April 17, 2003 – Daily Camera

G:\LUD\LUSHARED\DOCKETS\SE0301\01PNO3.DOC

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

MEMORANDUM

TO: **Applicant(s), Adjacent Property Owners & Referral Agencies**

FROM: **Todd Tucker, Planner II**

DATE: **February 28, 2003**

RE: **Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA**

Please be informed that the Board of County Commissioners hearing scheduled for March 13, 2003 at 9:00 a.m. has been *TABLED INDEFINITELY*, at the applicant's request. A new notice will be sent to prior to the next scheduled hearing.

We apologize for any inconvenience this postponement may have caused you. If you have any questions, please feel free to contact me at (303) 441-3930.

Thank you.

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Tucker, Todd

From: Lacey, Cecilia
Sent: Thursday, February 13, 2003 12:34 PM
To: Tucker, Todd; Ryder, Mike; Perez, Martha
Cc: Brawley, Elizabeth
Subject: RE: Cemex request that their hearing be tabled . . . .

Confirmation:

The tabled date for docket # SE-03-01 (CEMEX) is 03/13/03 @ 9:00 a.m. (as item #2).

Cecilia

-----Original Message-----
From: Tucker, Todd
Sent: Thursday, February 13, 2003 10:30 AM
To: Ryder, Mike; Perez, Martha; Lacey, Cecilia
Cc: Brawley, Elizabeth
Subject: Cemex request that their hearing be tabled . . . .

Four about 4 weeks - what's available in mid march?

SE-03-01 Cemex schedule for 2/20/03

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

MEMO TO: Agencies and adjacent property owners
FROM: Todd Tucker, Staff Planner
DATE: January 15, 2003
RE: Docket SE-03-01

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA

Request: Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement.
Location: At 13301 N. 55th Street, in Section 36, T2N , R71W
Zoning: Agricultural (A)
Applicant: CEMEX, Inc.
Agent: Banks & Gesso, LLC / Paul Banks

A Subdivision Exemption is a waiver of the usual subdivision requirements to allow a Boundary Line Adjustment, a Lot Recognition, a Lot Split, or a Community Facility Lot Split.

This process includes public hearings before the Boulder County Board of County Commissioners. Adjacent property owners and holders of liens, mortgages, easements or other rights in the subject property are notified of these hearings.

The Land Use staff and County Commissioners value comments from individuals and referral agencies. Please check the appropriate response below or send a letter. Late responses will be reviewed as the process permits; all comments will be made part of the public record and given to the applicant. Only a portion of the submitted documents may have been enclosed; you are welcome to review the entire file at the Land Use Department, 13th and Spruce, Boulder. If you have any questions regarding this application, please contact the Land Use Department office.

Please return responses to the above address by **Jannary 30, 2003.**
_____ We have reviewed the proposal and have no conflicts.
_____ Letter is enclosed.

Signed _____ PRINTED Name _____

Agency or Address _____

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Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

PUBLIC HEARING
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

DATE:	February 20, 2003
TIME:	11:30 a.m.
PLACE:	Hearing Room, Third Floor, County Courthouse, Boulder

Notice is hereby given that a public hearing will be held by the Board of County Commissioners at the time and place specified above. All persons interested in the following item(s) are requested to attend such hearing and aid the Commissioners in their consideration.

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA
Request for Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement; by CEMEX, Inc.; in accordance with the Boulder County Land Use Code. The proposed project would be located in the area zoned Agricultural (A), at 13301 N. 55th Street, in Section 26, T2N, R71W.

Detailed information regarding this item, including maps and legal descriptions, is available for public examination at the Boulder County Land Use Department, 13th and Spruce, Boulder, Colorado (303-441-3930).

Free Parking in the City of Boulder CAGID lots is available for Board of County Commissioners' hearing participants. See the staff at the lobby desk for city parking vouchers.

Persons needing special services provided under the Americans with Disabilities Act, please contact Peggy Jackson, ADA Coordinator, or the Boulder County Human Resources Office at (303-441-3508) at least 48 hours before the scheduled hearing.

Published: January 27, 2003 – Daily Camera

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Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

BOARD OF COUNTY COMMISSIONERS
BUSINESS MEETING AGENDA
THURSDAY, FEBRUARY 6, 2003

10:00 A.M. OLD BUSINESS

LAND USE ITEMS

1. Docket #SE-02-20 (Menard LR); Subdivision Exemption for a Lot Recognition to consider an 8.59-acre parcel a legal building lot (located southwest of Erie on the east side of US 287, approximately ½ mile north of Arapahoe Road, in Section 27, T1N, R69W) (Tabled from 12/19/02 & 1/9/03).
   ACTION REQUESTED: **Table indefinitely**

10:30 A.M. NEW BUSINESS

CONSENT ITEMS

2. 2003 contracts with non-profits:
   a. Alternatives for Youth ($53,000);
   b. Boulder County AIDS Project ($38,441);
   c. Boulder Valley Women's Health Center ($81,833);
   d. Community Food Share ($58,240);
   e. The Inn Between of Longmont ($33,600);
   f. Radio Reading Service ($17,850)
   g. YWCA of Boulder County ($105,166);
   h. Voices for Children ($19,082).
   ACTION REQUESTED: Approval/Signature

3. Other contracts:
   a. Integrated Managed Partnership for Adolescent and Child Community Treatment (IMPACT) – amendment to the contract with the Colorado Division of Youth Corrections to reflect a decrease in funding to the County (new amount $586,833);
   b. IMPACT – amendment to the contract with the Colorado Division of Youth Corrections and the Mental Health Center to reflect a decrease in funding to the MHC (new amount $1,048,538.96);
   c. Resource Conservation Division – renewal of the Recycling Center design & construction services agreement with Taylor Kohrs (estimated $50,000).
   ACTION REQUESTED: Approval/Signature

4. Open Space acquisition documents: Mechanics Lien Letter, Deed of Conservation Easement in Gross/Lowell Tveten to County, Deed of Conservation Easement in Gross/Alan Tveten to County (Tveten Parcel 6).
ACTION REQUESTED: Approval/Signature

DISCUSSION ITEMS

Commissioners Matters:

5. Personnel Actions.
ACTION REQUESTED: Approval

6. Boards and Commissions:
   a. Request from Herbert A. Chameroy for re-appointment to the Board of Review;
   b. Application from Jules Van Thuyne, Jr. for a vacancy on the Parks and Open Space Advisory Committee.

ACTION REQUESTED: Appointment

Boulder County Housing Authority Board Matters:

7. Appointment of former Housing Authority Board members to the Housing Commission.
ACTION REQUESTED: Appointment

8. Application from Sharon Smith-Eisler for a vacancy on the Housing Commission.
ACTION REQUESTED: Appointment

9. Housing Authority: Contract with Colorado Groundwater Resource Services, Inc. for environmental Phase I review of 2003 bond portfolio ($13,500).
ACTION REQUESTED: Approval/Signature

Board of Social Services Matters:

10. Social Services Department: Memorandum of Understanding with City of Boulder Children's Services for City administration of a $32,280 Colorado Department of Human Services grant to expand quality child care in Boulder County (no County funds involved).
ACTION REQUESTED: Approval/Signature

Elected Officials and Department Heads Matters:

11. Health Department: Request for a letter to Governor Owens supporting placement of the California Gulch segment of the Lefthand Creek watershed on the priority list for Superfund (Tabled from 2/4/03).
ACTION REQUESTED: Direction/Approval

12. Facilities Management Division:
    a. Request for a three-year bid waiver to purchase HVAC control systems from Staefa Control Systems, with the understanding that if alternatives become available a competitive bidding process will be used (Tabled from 2/4/03);
    b. Award of Bid #4400-03, Justice Center Absorption Chiller Rebuild, to Trane ($56,502).
    ACTION REQUESTED: Approval/Signature

13. Parks and Open Space Department: Amendment to Deed of Conservation Easement in Gross with John C. Hendershot and Diann M. Yandrich.
    ACTION REQUESTED: Approval/Signature

14. Land Use Department: Request for authorization to proceed with review of Docket #SE-03-1 (CEMEX, Inc./Dowe Flats Development Parcel Boundary Line Adjustment).
    ACTION REQUESTED: Approval

15. Sheriff's Office: Award of RFP #4394-02, Fitness Facility, to Flatirons Athletic Club.
    ACTION REQUESTED: Approval/Signature

16. Road Maintenance Division: Request for a three-year bid waiver to purchase hot mix asphalt from the vendor closest to the work site, whenever possible, to save on time and hauling costs.
    ACTION REQUESTED: Approval

Administrative Matters:

17. Scheduling and Communications.

OTHER MATTERS UNTIL OFFICIALLY ADJOURNED

CHICAGO TITLE INSURANCE COMPANY

COMMITMENT FOR TITLE INSURANCE

CHICAGO TITLE INSURANCE COMPANY, a corporation of Missouri, herein called the Company, for a valuable consideration, hereby commits to issue its policy or policies of title insurance, as identified in Schedule A, in favor of the proposed Insured named in Schedule A, as owner or mortgagee of the estate or interest covered hereby in the land described or referred to in Schedule A, upon payment of the premiums and charges therefor; all subject to the provisions of Schedule A and B and to the Conditions and Stipulations hereof.

This Commitment shall be effective only when the identity of the proposed Insured and the amount of the policy or policies committed for have been inserted in Schedule A hereof by the Company, either at the time of the issuance of this Commitment or by subsequent endorsement.

This Commitment is preliminary to the issuance of such policy or policies of title insurance and all liability and obligations hereunder shall cease and terminate six months after the effective date hereof or when the policy or policies committed for shall issue, whichever first occurs, provided that the failure to issue such policy or policies is not the fault of the Company. This Commitment shall not be valid or binding until countersigned by an authorized officer or agent.

IN WITNESS WHEREOF, the Company has caused this Commitment to be signed and sealed, to become valid when countersigned by an authorized officer or agent of the Company, all in accordance with its By-Laws. This Commitment is effective as of the date shown in Schedule A as "Effective Date."

Fidelity National Title
Insurance Company
1900 West Loop South, Suite 650
Houston, Texas 77027

(713) 621-9960
(800) 879-1677
(713) 623-4406 Fax

CHICAGO TITLE INSURANCE COMPANY

By:

President

By:

Secretary

CHICAGO TITLE INSURANCE COMPANY

COMMITMENT FOR TITLE INSURANCE

SCHEDULE A

Commitment Number: 1283505

1. **Effective date:** September 6, 2002 at 7:30 A.M.

2. **Policy or policies to be issued:**

		Amount	Premium
(A)	**ALTA Owner's Policy - Proposed Insured:** TO BE DETERMINED	$ TBD	$ TBD
(B)	**ALTA Loan Policy - Proposed Insured:** NONE	$ - 0 -	$ - 0 -
(C)	**ALTA Loan Policy - Proposed Insured:**	$ -0-	$ -0-
	DELETION OF EXCEPTIONS 1-4		110.00
	TOTAL		$ 110.00

3. **The estate or interest in the land described or referred to in this Commitment and covered herein is Fee simple and title thereto is at the effective date hereof vested in CEMEX, INC., A LOUISIANA CORPORATION.**

4. **The land referred to in this Commitment is described as follows and shall hereinafter be referred to as the "Property":**

SEE "EXHIBIT A" ATTACHED

Issued at: Denver, Colorado

on: September 25, 2002

CHICAGO TITLE INSURANCE CO.

"EXHIBIT A"

DEVELOPMENT PARCEL NORTH:

A TRACT OF LAND LOCATED IN THE S 1/2 OF SECTION 16 AND IN THE N 1/2 OF SECTION 21, ALL IN TOWNSHIP 3 NORTH, RANGE 70 WEST OF THE 6TH P.M., BOULDER COUNTY, COLORADO, DESCRIBED AS FOLLOWS:

COMMENCING AT THE S 1/4 CORNER OF SECTION 9, TOWNSHIP 3 NORTH, RANGE 70 WEST OF THE 6TH P.M., FROM WHICH THE SOUTHEAST CORNER OF SAID SECTION 9 BEARS SOUTH 87 DEGREES 27 MINUTES 25 SECONDS EAST, 2644.89 FEET;
THENCE NORTH 87 DEGREES 28 MINUTES 55 SECONDS WEST, 86.80 FEET ALONG THE SOUTH LINE OF THE SW 1/4 OF SAID SECTION 9;
THENCE SOUTH 00 DEGREES 00 MINUTES 00 SECONDS WEST, 3490.76 FEET TO THE TRUE POINT OF BEGINNING;
THENCE NORTH 89 DEGREES 58 MINUTES 20 SECONDS WEST, 563.41 FEET TO THE EAST LINE EXTENDED NORTHERLY OF THAT TRACT OF LAND AS DESCRIBED IN WARRANTY DEED RECORDED IN BOOK 601 AT PAGE 45 OF THE RECORDS OF BOULDER COUNTY, COLORADO AND AS DESCRIBED IN QUIT CLAIM DEED RECORDED IN BOOK 603 AT PAGE 26 OF THE RECORDS OF BOULDER COUNTY, COLORADO;
THENCE SOUTH 00 DEGREES 01 MINUTES 40 SECONDS WEST, 621.14 FEET ALONG THE EAST LINE EXTENDED NORTHERLY OF THAT TRACT OF LAND AS DESCRIBED IN SAID BOOK 601 AT PAGE 45 AND IN SAID BOOK 603 AT PAGE 26 TO THE NORTHEAST CORNER THEREOF;
THENCE SOUTH 00 DEGREES 01 MINUTES 40 SECONDS WEST, 1194.78 FEET ALONG THE EAST LINE OF THAT TRACT OF LAND AS DESCRIBED IN SAID BOOK 601 AT PAGE 45 AND IN SAID BOOK 603 AT PAGE 26 TO THE APPROXIMATE SOUTHERLY BANK OF THE SUPPLY DITCH AND THE NORTHERLY LINE OF THAT TRACT OF LAND AS DESCRIBED IN WARRANTY DEED RECORDED IN BOOK 584 AT PAGE 231 OF THE RECORDS OF BOULDER COUNTY, COLORADO;
THENCE SOUTH 34 DEGREES 07 MINUTES 46 SECONDS EAST, 151.34 FEET ALONG THE APPROXIMATE SOUTHERLY BANK OF SAID SUPPLY DITCH AND ALONG THE NORTHERLY LINE OF THAT TRACT OF LAND AS DESCRIBED IN SAID BOOK 584 AT PAGE 231 TO THE SOUTH LINE OF THE SW 1/4 OF SAID SECTION 16;
THENCE SOUTH 89 DEGREES 58 MINUTES 20 SECONDS EAST, 25.37 FEET ALONG THE SOUTH LINE OF THE SW 1/4 OF SAID SECTION 16 TO THE WEST LINE OF THE EAST 30 ACRES OF THE NW 1/4 OF SAID SECTION 21;
THENCE SOUTH 00 DEGREES 27 MINUTES 46 SECOND WEST, 2102.34 FEET ALONG THE WEST LINE OF THE EAST 30 ACRES OF THE NW 1/4 OF SAID SECTION 21 TO THE NORTHEASTERLY RIGHT-OF-WAY LINE OF COLORADO STATE HIGHWAY NO. 66;
THENCE SOUTH 63 DEGREES 32 MINUTES 37 SECONDS EAST, 497.42 FEET ALONG THE NORTHEASTERLY RIGHT-OF-WAY LINE OF SAID COLORADO STATE HIGHWAY NO. 66 TO THE NORTHWESTERLY LINE OF THAT TRACT OF LAND AS DESCRIBED IN WARRANTY DEED RECORDED IN BOOK 70 AT PAGE 162 OF THE RECORDS OF BOULDER COUNTY, COLORADO;

THENCE NORTH 27 DEGREES 54 MINUTES 28 SECONDS EAST, 101.97 FEET ALONG THE NORTHWESTERLY LINE OF THAT TRACT OF LAND AS DESCRIBED IN SAID BOOK 70 AT PAGE 162 TO THE NORTH-SOUTH CENTERLINE OF SAID SECTION 21;
THENCE NORTH 00 DEGREES 27 MINUTES 46 SECONDS EAST, 645.55 FEET ALONG THE NORTH-SOUTH CENTERLINE OF SAID SECTION 21 TO THE SOUTH LINE OF THE NORTH 265.00 FEET TO THE NW 1/4 OF THE SW 1/4 OF THE NE 1/4 OF SAID SECTION 21;
THENCE SOUTH 89 DEGREES 46 MINUTES 54 SECONDS EAST, 330.00 FEET ALONG THE SOUTH LINE OF THE NORTH 265.00 FEET OF THE NW 1/4 OF THE SW 1/4 OF THE NE 1/4 OF SAID SECTION 21 TO THE EAST LINE OF THE WEST 330.00 FEET OF THE NW 1/4 OF THE SW 1/4 OF THE NE 1/4 OF SAID SECTION 21;
THENCE NORTH 00 DEGREES 27 MINUTES 46 SECONDS EAST, 265.00 FEET ALONG THE EAST LINE OF THE WEST 330.00 FEET OF THE NW 1/4 OF THE SW 1/4 OF THE NE 1/4 OF SAID SECTION 21 TO THE SOUTH LINE OF THE NW 1/4 OF THE NE 1/4 OF SAID SECTION 21;
THENCE SOUTH 89 DEGREES 46 MINUTES 52 SECONDS EAST, 328.67 FEET ALONG THE SOUTH LINE OF THE NW 1/4 OF THE NE 1/4 OF SAID SECTION 21 TO THE SOUTHEAST CORNER OF THE W 1/2 OF THE NW 1/4 OF THE NE 1/4 OF SAID SECTION 21;
THENCE SOUTH 89 DEGREES 46 MINUTES 54 SECONDS EAST, 658.67 FEET ALONG THE SOUTH LINE OF THE NW 1/4 OF THE NE 1/4 OF SAID SECTION 21 TO THE SOUTHEAST CORNER THEREOF;
THENCE NORTH 00 DEGREES 29 MINUTES 57 SECONDS EAST, 1314.38 FEET ALONG THE EAST LINE OF THE NW 1/4 OF THE NE 1/4 OF SAID SECTION 21 TO THE SOUTH LINE OF BOULDER COUNTY ROAD NO. 47 AS DESCRIBED IN EXHIBIT A IN SPECIAL WARRANTY DEED RECORDED ON FILM 2126 AT RECEPTION NO. 1607221 OF THE RECORDS OF BOULDER COUNTY, COLORADO;
THENCE NORTH 89 DEGREES 37 MINUTES 04 SECONDS WEST, 45.93 FEET ALONG THE SOUTHERLY LINE OF SAID BOULDER COUNTY ROAD NO. 47 TO THE SOUTHWEST CORNER THEREOF;
THENCE NORTHEASTERLY, 160.80 FEET ALONG THE WESTERLY LINE OF SAID BOULDER COUNTY ROAD NO. 47 AND ALONG THE ARC OF A CURVE CONCAVE TO THE SOUTHEAST TO THE WEST LINE OF THE SE 1/4 OF THE SE 1/4 OF SAID SECTION 16, SAID ARC HAVING A RADIUS OF 815.00 FEET, A CENTRAL ANGLE OF 11 DEGREES 18 MINUTES 16 SECONDS AND BEING SUBTENDED BY A CHORD THAT BEARS NORTH 17 DEGREES 11 MINUTES 48 SECONDS EAST, 160.54 FEET;
THENCE NORTH 00 DEGREES 34 MINUTES 45 SECONDS EAST, 1200.64 FEET ALONG THE WEST LINE OF THE SE 1/4 OF THE SE 1/4 OF SAID SECTION 16 TO THE NORTHWEST CORNER THEREOF;
THENCE NORTH 00 DEGREES 34 MINUTES 45 SECONDS EAST, 600.00 FEET ALONG THE WEST LINE EXTENDED NORTHERLY OF THE SE 1/4 OF THE SE 1/4 OF SAID SECTION 16 TO A POINT FROM WHICH THE TRUE POINT OF BEGINNING BEARS NORTH 89 DEGREES 58 MINUTES 20 SECONDS WEST;
THENCE NORTH 89 DEGREES 58 MINUTES 20 SECONDS WEST, 1377.93 FEET TO THE TRUE POINT OF BEGINNING,

EXCEPT THAT PART LYING WITHIN THE RIGHT-OF-WAY FOR BOULDER COUNTY ROAD NO. 47 (NORTH 53RD STREET),

COUNTY OF BOULDER,
STATE OF COLORADO.

Commitment Number: 1283505

The following are to be complied with:

A. THIS COMMITMENT IS SUBJECT TO SUCH FURTHER EXCEPTIONS AND/OR REQUIREMENTS AS MAY APPEAR NECESSARY WHEN THE NAME, AND NATURE OF THE BUSINESS ORGANIZATION OF THE PROPOSED INSURED HAS BEEN DISCLOSED TO THE COMPANY.

B. THE ACTUAL VALUE OF THE ESTATE OR INTEREST TO BE INSURED MUST BE DISCLOSED TO THE COMPANY, AND SUBJECT TO APPROVAL BY THE COMPANY, ENTERED AS THE LIABILITY AMOUNT OF THE POLICY TO BE ISSUED. UNTIL THE LIABILITY AMOUNT OF THE POLICY TO BE ISSUED SHALL BE DETERMINED AND ENTERED AS AFORESAID, IT IS AGREED THAT AS BETWEEN THE COMPANY, THE APPLICANT FOR THIS COMMITMENT, AND EVERY PERSON RELYING ON THIS COMMITMENT, THE COMPANY CANNOT BE REQUIRED TO APPROVE ANY SUCH EVALUATION IN EXCESS OF $50,000.00 AND THE TOTAL LIABILITY OF THE COMPANY ON ACCOUNT OF THIS COMMITMENT SHALL NOT EXCEED SAID AMOUNT.

C. WARRANTY DEED SUFFICIENT TO CONVEY THE FEE SIMPLE ESTATE OR INTEREST IN THE LAND DESCRIBED OR REFERRED TO HEREIN FROM CEMEX, INC., A LOUISIANA CORPORATION, TO THE PROPOSED INSURED. SCHEDULE A, ITEM 2(A). THE DEED MUST HAVE THE CORPORATION'S CORPORATE SEAL AFFIXED AND MUST BE EXECUTED BY ITS PRESIDENT OR A VICE-PRESIDENT.

D. RESOLUTION OF THE BOARD OF DIRECTORS OF CEMEX, INC., A LOUISIANA CORPORATION, AUTHORIZING THE WITHIN CONTEMPLATED TRANSACTION. THE RESOLUTION MUST CONTAIN AN ACKNOWLEDGED CERTIFICATION BY AN OFFICER OF THE CORPORATION.

Note: (1) Execution of the Company's Lien Affidavit by the purchaser(s) and seller(s). In the event the lien affidavit discloses the existence of new construction on the property within the past 6 months or plans for the commencement of new construction, additional requirements may be made, or standard Exception No. 4 will not be deleted from the final policies to be issued hereunder.

(2) An ALTA Improvement Survey Plat in form, content and certification satisfactory to the Company.

Exception may be made to any adverse matters disclosed by the ALTA Improvement Survey Plat.

(3) The standard printed Exceptions 1-5 will be deleted from the final policies when issued upon payment of the applicable premium and satisfaction of the requirement(s).

(4) Upon verification of payment of all prior years' taxes, Exception No. 6 will be amended to read as follows: "Taxes and assessments for the year 2002 and subsequent years, a lien, not yet due and payable".

(5) Colorado Division of Insurance Regulations 3-5-1, Paragraph C of Article VII, requires that "Every title entity shall be responsible for all matters which appear of record prior to the time of recording whenever the title entity conducts the closing and is responsible for recording or filing of legal documents resulting from the transaction which was closed". Provided that Chicago Title of Colorado, Inc., conducts the closing of the insured transaction and is responsible for recording the legal documents from the transaction, Exception No. 5 in Schedule B-2 will not appear on the Owner's Title Policy and the Lender's Policy when issued.

(6) Recording statutes require that all documents submitted for recording must contain a one-inch margin along the top and a one-half-inch margin along the sides and bottom of each page. The county clerk and recorder may reject any document that does not comply.

Pursuant to Section 10-11-123 of the Colorado Revised Statutes, the Company is required to disclose the following information:

That there is recorded evidence that a mineral estate has been severed, leased, or otherwise conveyed from the surface estate and that there is a substantial likelihood that a third party holds some or all interest in oil, gas, other minerals, or geothermal energy in the property; and

That such mineral estate may include the right to enter and use the property without the surface owner's permission.

NOTICE: In the event we are requested to perform closing functions in connection with the proposed transaction, we must require, as a condition of closing, information from the seller, as required by the Tax Reform Act of 1986, including the Seller's tax identification number or Social Security Number and forwarding address.

SCHEDULE B - 2
EXCEPTIONS

Commitment Number: 1283505

The policy or policies to be issued will contain exceptions to the following unless the same are disposed of to the satisfaction of the Company:

1. Rights or claims of parties in possession not shown by the public records.

2. Easements or claims of easements not shown by the public records.

3. Discrepancies, conflicts in boundary lines, shortages in area, encroachments, and any facts which a correct survey and inspection of the premises would disclose and which are not shown by the public records.

4. Any lien, or right to a lien, for services, labor, or material heretofore or hereafter furnished, imposed by law and not shown by the public records.

5. Defects, liens, encumbrances, adverse claims or other matters, if any, created, first appearing in the records or attaching subsequent to the effective date hereof but prior to the date the proposed insured acquired of record for value the estate or interest or mortgage thereon covered by this Commitment.

6. Taxes or special assessments which are not shown as existing liens by the public records.

7. Water rights, claims or title to water, whether or not shown by the public records.

8. THE RIGHT OF THE PROPRIETOR OF A VEIN OR LODE TO EXTRACT OR REMOVE HIS ORE, SHOULD THE SAME BE FOUND TO PENETRATE OR INTERSECT THE PREMISES THEREBY GRANTED AND RIGHTS OF WAY FOR DITCHES AND CANALS AS RESERVED IN UNITED STATES PATENT RECORDED DECEMBER 26, 1900 IN BOOK 59 AT PAGE 493 AS TO THE NORTH HALF AND THE NORTH HALF OF THE SOUTHWEST QUARTER AND NORTH HALF OF THE SOUTHEAST QUARTER AND THE SOUTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 16, TOWNSHIP 3 NORTH, RANGE 70 WEST, AND ANY AND ALL ASSIGNMENTS THEREOF OR INTERESTS THEREIN.

9. AN EASEMENT FOR WATER PIPELINE AND INCIDENTAL PURPOSES GRANTED TO THE CITY OF LONGMONT, A MUNICIPAL CORPORATION BY THE INSTRUMENT RECORDED MAY 14, 1910 IN BOOK 337 AT PAGE 100.

10. AN OIL AND GAS LEASE AND ANY AND ALL ASSIGNMENTS THEREOF, DATED NOVEMBER 8, 1978, EXECUTED BY PAUL J. ZENOBIA AND FRANCES E. ZENOBIA, AS LESSORS, AND BENTON R. BULLOCK, AS LESSEE, FOR A TERM OF 5 YEARS, RECORDED JULY 24, 1980 AT RECEPTION NO. 404724.

11. AN OIL AND GAS LEASE AND ANY AND ALL ASSIGNMENTS THEREOF, DATED JUNE 7, 1982, EXECUTED BY IDEAL BASIC INDUSTRIES, INC., AS LESSOR, AND BENTON R. BULLOCK, AS LESSEE, FOR A TERM OF 3 YEARS, RECORDED JULY 16, 1982 AT RECEPTION NO. 503237.

12. AN OIL AND GAS LEASE AND ANY AND ALL ASSIGNMENTS THEREOF, DATED JUNE 7, 1982, EXECUTED BY IDEAL BASIC INDUSTRIES, INC., AS LESSOR, AND BENTON R. BULLOCK, AS LESSEE, FOR A TERM OF 3 YEARS, RECORDED JULY 16, 1982 AT RECEPTION NO. 503238.

13. THE EFFECT OF THE FOLLOWING ITEMS AS FOUND IN THE HEREINAFTER RECITED DITCH PLAT BOOKS:

    A) SUPPLY DITCH AS SHOWN IN DITCH PLAT BOOK 3 AT PAGES 14, 15, 16, 58, 78, 79 AND 80, BOULDER COUNTY RECORDS.

    B) HIGHLAND DITCH AS SHOWN IN DITCH PLAT BOOK BOX 1 AT PAGE 67, BOULDER COUNTY RECORDS.

    C) ROUGH AND READY DITCH AS SHOWN IN DITCH PLAT BOOK B AT PAGE 19, BOULDER COUNTY RECORDS.

    D) BALMERTON DITCH AS SHOWN IN DITCH PLAT BOOK E AT PAGE 40 IN BOX 2 AT PAGE 104, BOULDER COUNTY RECORDS.

14. EXCEPT AN UNDIVIDED ONE-HALF INTEREST IN AND TO ALL GAS AND OIL RIGHTS UNDERLYING SAID PREMISES, TOGETHER WITH THE RIGHT TO PROSPECT FOR, MINE AND REMOVE THE SAME, BUT THIS RESERVATION SHALL NOT INCLUDE LIMESTONE, LIME ROCK, SHALE, CLAY, SAND, GRAVEL OR MINERALS OTHER THAN GAS AND OIL, AS RESERVED IN DEEDS RECORDED APRIL 13, 1959 IN BOOK 1106 AT PAGE 152, BOOK 1106 AT PAGE 153 AND AS CORRECTED IN BOOK 1109 AT PAGE 460.

15. TERMS, PROVISIONS, CONDITIONS, OBLIGATIONS AND AGREEMENTS AS CONTAINED IN DITCH CROSSING AGREEMENT RECORDED FEBRUARY 27, 1995 AT RECEPTION NO. 01500035.

16. TERMS, PROVISIONS, CONDITIONS, OBLIGATIONS AND AGREEMENTS AS CONTAINED IN DITCH CROSSING AGREEMENT RECORDED FEBRUARY 27, 1995 AT RECEPTION NO. 01500036.

17. TERMS, PROVISIONS, CONDITIONS, OBLIGATIONS AND AGREEMENTS AS CONTAINED IN DITCH CROSSING AGREEMENT RECORDED FEBRUARY 27, 1995 AT RECEPTION NO. 01500037.

18. TERMS, PROVISIONS, CONDITIONS, OBLIGATIONS AND AGREEMENTS AS CONTAINED IN THE DEVELOPMENT AGREEMENT RECORDED JULY 18, 1994 AT RECEPTION NO. 01447009.

19. TERMS, PROVISIONS, CONDITIONS, OBLIGATIONS AND AGREEMENTS AS CONTAINED IN THE RESOLUTION 95-256 RECORDED MAY 13, 1996 AT RECEPTION NO. 01607220.

20. ANY RIGHTS WHICH POUDRE VALLEY RURAL ELECTRIC ASSOCIATION MAY HAVE IN THE PROPERTY BY VIRTUE OF THAT RIGHT OF WAY EASEMENT EXECUTED BY IDEAL CEMENT COMPANY ON SEPTEMBER 24, 1963 AS DISCLOSED IN TERM DEED RECORDED MARCH 25, 1993 ON FILM 1808 AT RECEPTION NO. 01276718.

21. ANY RIGHTS WHICH POUDRE VALLEY RURAL ELECTRIC ASSOCIATION MAY HAVE IN THE PROPERTY BY VIRTUE OF THAT EASEMENT EXECUTED BY IDEAL CEMENT COMPANY ON MARCH 19, 1965 AS DISCLOSED IN TERM DEED RECORDED MARCH 25, 1993 ON FILM 1808 AT RECEPTION NO. 01276718.

22. TERMS, PROVISIONS, CONDITIONS, OBLIGATIONS, AGREEMENTS AND EASEMENTS AS CONTAINED IN SPECIAL WARRANTY DEED RECORDED MAY 13, 1996 AT RECEPTION NO. 01607221.

23. TERMS, PROVISIONS, CONDITIONS, OBLIGATIONS, AGREEMENTS AND EASEMENTS AS CONTAINED IN SPECIAL WARRANTY DEED RECORDED MAY 13, 1996 AT RECEPTION NO. 01607222.

24. TERMS, CONDITIONS, PROVISIONS, AGREEMENTS, AND OBLIGATIONS SPECIFIED UNDER THE PURCHASE AGREEMENT LEASE AND OPTION TO PURCHASE BY AND BETWEEN THE COUNTY OF BOULDER AND CEMEX INC. RECORDED JULY 17, 2002 AT RECEPTION NO. 2308598.

25. TERMS, CONDITIONS, PROVISIONS, AGREEMENTS, AND OBLIGATIONS SPECIFIED UNDER THE PURCHASE AGREEMENT BY AND BETWEEN THE COUNTY OF BOULDER AND MARIGOLD 41 RECORDED JULY 17, 2002 AT RECEPTION NO. 2308591 AND AMENDMENT RECORDED JULY 17, 2002 AT RECEPTION NO. 2308592 AND SECOND AMENDMENT RECORDED JULY 17, 2002 AT RECEPTION NO. 2308593.

26. TERMS, CONDITIONS, PROVISIONS, AGREEMENTS, AND OBLIGATIONS SPECIFIED UNDER THE COVENANT RUNNING WITH THE LAND BY AND BETWEEN THE COUNTY OF BOULDER AND MICHAEL D. DOLLAGHAN AND WILLIAM W. CROWELL RECORDED JULY 17, 2002 AT RECEPTION NO. 2308595.

27. RIGHTS OF WAY FOR THE HIGHLAND DITCH AND THE PALMERTON AND READY DITCH AS SHOWN ON MAP OF THE AREA.

28. ANY EXISTING LEASES OR TENANCIES, AND ANY AND ALL PARTIES CLAIMING BY, THROUGH OR UNDER LESSEES.

The Owner's Policy of title insurance committed for in this Commitment, if any, shall contain, in addition to the items set forth in Schedule B-2, the following Items:

1. The Deed of Trust, if any, required under Schedule B Section 1.

PUBLIC NOTICE SIGNS

The Land Use Code requires the posting of a sign on the property for any docket (other than location and extent review, and comprehensive rezonings). The sign notes the name of the project, the docket number, and the address and telephone of the Land Use Department so that interested parties have a contact for questions and information. The sign must be posted in a conspicuous manner at least 12 days prior to the Planning Commission hearing, and must remain in place through the public hearing process until final action on the application is taken by the County Commissioners.

The Land Use Department staff is responsible for posting the sign, buy you have an option of returning the public notice sign or asking the Land Use Department to retrieve the sign. If you wish to return the sign, it must be returned to the Land Use Department no sooner than the day after the last public hearing concerning the proposal, and no later than 14 days after the same date. If the sign is not returned within the 14 day time frame, a fee will be charged toward the docket reflecting the staff time required to retrieve the sign (a minimum of $25—a higher fee for remote locations). Please indicate below which option you prefer, and return this handout as part of your application submittal.

☒ I will return the sign myself

☐ I will pay the fee to have the sign picked up

G:\LUD\LUSHARED\MAS-APS\SIGNS.NOT

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

January 15, 2003

CEMEX, Inc.
1200 Smith Street, Suite 2400
Houston TX 77002

Re: Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA

Dear Applicant(s):

This letter confirms that your application for a Subdivision Exemption has been accepted as complete, and referred to the required agencies and adjacent property owners. From this point, the process proceeds as follows:

- Referral response deadline is January 30, 2003.
- The Board of County Commissioners' public hearing has been scheduled, in accordance with regulations and public notice requirements, for February 20, 2003 at 11:30 a.m., the Hearing Room, Third Floor, County Courthouse, Boulder.

A copy of the staff recommendation to the Board of County Commissioners will be sent to you before this hearing. Please plan to attend to present your application, if necessary, and to answer any questions, which might arise. If you have any questions, feel free to contact me at (303) 441-3930.

Sincerely,

Todd Tucker, Planner II
Current Planning Division
Land Use Department

cc: Dave Banks / Banks & Gesso, LLC

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Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

PUBLIC HEARING
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

DATE:	February 20, 2003
TIME:	11:30 a.m.
PLACE:	Hearing Room, Third Floor, County Courthouse, Boulder

Notice is hereby given that a pubhc hearing will be held by the Board of County Commissioners at the time and place specified above. All persons interested in the following item(s) are requested to attend such hearing and aid the Commissioners in their consideration.

Docket SE-03-01: CEMEX INC (Dowe Flats Development Parcel) BLA
Request for Approval of a Subdivision Exemption for a Boundary Line Adjustment to create eleven (11) lots on 50.43 acres. The proposed lots vary in size from 2.48 acres to 6.91 acres. Approximately 103-acres will be placed in a Conservation Easement; by CEMEX, Inc.; in accordance with the Boulder County Land Use Code. The proposed project would be located in the area zoned Light Industrial (LI), at 13301 N. 55th Street, in Section 26, T2N, R71W.

Detailed information regarding this item, including maps and legal descriptions, is available for public examination at the Boulder County Land Use Department, 13th and Spruce, Boulder, Colorado (303-441-3930).

Free Parking in the City of Boulder CAGID lots is available for Board of County Commissioners' hearing participants. See the staff at the lobby desk for city parking vouchers.

Persons needing special services provided under the Americans with Disabilities Act, please contact Peggy Jackson, ADA Coordinator, or the Boulder County Human Resources Office at (303-441-3508) at least 48 hours before the scheduled hearing.

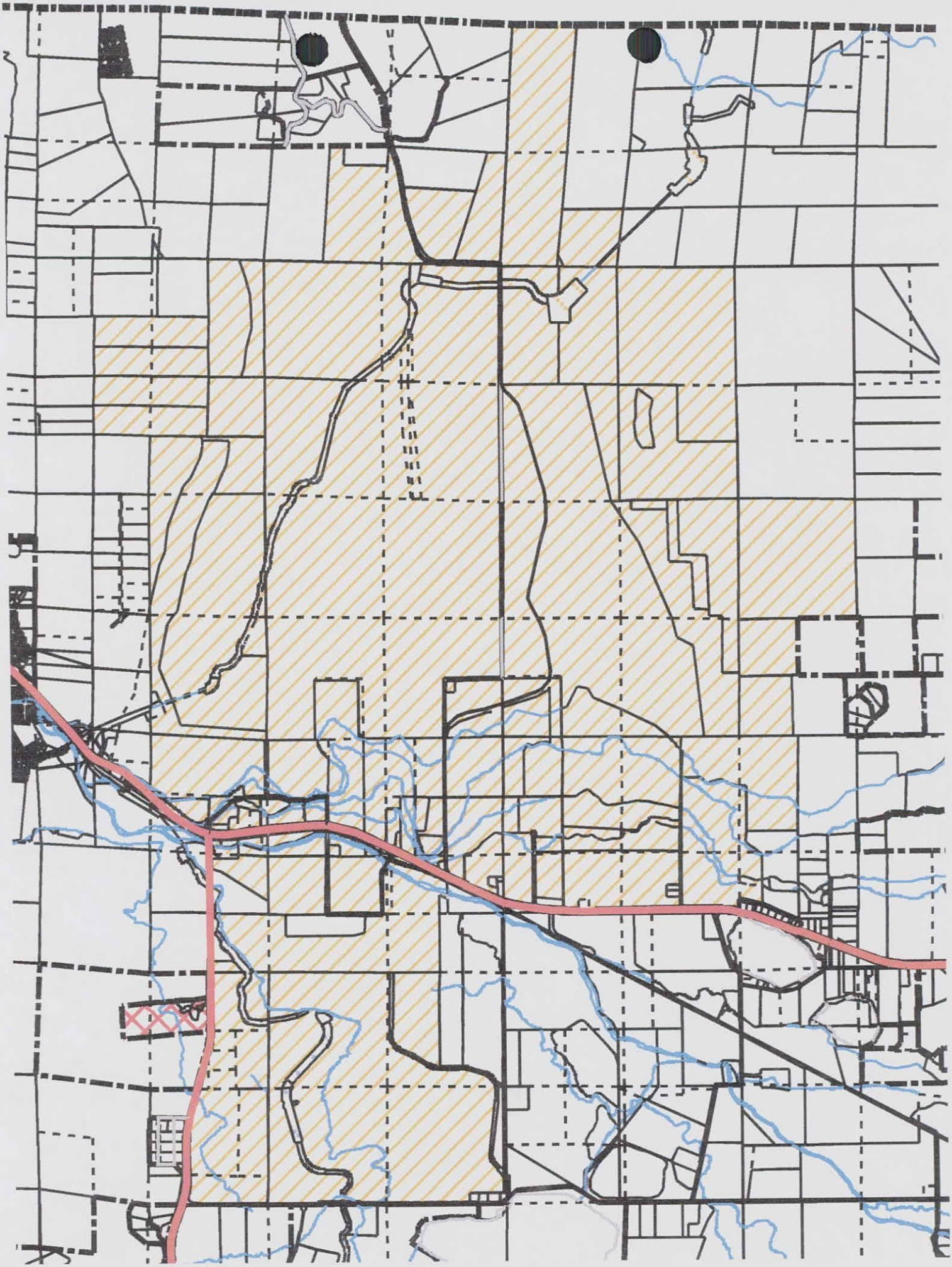
Published: January 20, 2003 – Daily Camera

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Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner



Banks and Gesso, LLC

720 Kipling St.,Suite117
Lakewood, Colorado 80215

(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

January 8, 2003

David Callahan
Boulder County Land Use Department
Courthouse Annex
2045 13th Street
Boulder, Colorado 80302

Subject: Transmittal, Subdivision Exemption, Dowe Flats Development Parcel, Cemex, Inc.

Dear David:

Attached is a complete application for the referenced project, including application fee and referral packets. Please let me know if you have any questions.

Sincerely,

Paul Banks

PB/kj

Cc: John Lohr, Cemex, Inc.
Nolan Fry, Cemex, Inc.

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Page: 1 of 8
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CONSERVATION EASEMENT

This Conservation Easement (the "Easement") is granted by Cemex, Inc., a Louisiana corporation ("Grantor") on the 15th day of July, 2002, to the County of Boulder, a body corporate and politic ("County" or "Grantee").

WHEREAS, Grantor is the owner of the Property legally described on Exhibit A, attached hereto and by this reference made a part of this Easement located in Sections 16 and 21, Township 3 North, Range 70 West of the 6th P.M., in the County of Boulder, State of Colorado ; and

WHEREAS, pursuant to Paragraph 22 of the Purchase Agreement, Lease and Option dated July 11, 2002 ("the Purchase Agreement"); County will consider Grantor's application to transfer certain development rights to the Property and plat them as a block: and

WHEREAS, by entering into this Conservation Easement, the Parties intend to prohibit the use of the Property for mining, or for use as a landfill or waste disposal site.

NOW, THEREFORE, for good and valuable consideration, Grantor hereby grants and conveys to the County a Conservation Easement in gross pursuant to Title 38, Article 30.5 of the Colorado Revised Statutes, as amended, over the Property as identified above, subject to the following terms and restrictions:

1. The Property shall be used only for residential, agricultural, wildlife, and livestock purposes. The excavation or extraction or removal of minerals ("Mining") after December 31, 2021, and use of the Property for a landfill or waste disposal site shall be prohibited. As used in this Easement a landfill or waste disposal site shall not include the burying, placement or relocation of overburden and other materials mined on the Property or from adjoining properties at other locations on the Property in connection with reclamation of the Property and adjoining properties from Mining so long as such overburden and other materials do not include kiln dust or hazardous materials. Further as used in this Easement, Mining shall not include activities in connection with residential, agricultural, wildlife, livestock and mining reclamation, including, but not limited to, earth and rock moving, grading, planting and removal of structures, tanks and equipment. The prohibition on Mining contained herein does not prohibit reclamation of the Propertyafter December 31, 2021, so long as it is consistent with Boulder County Special Use Permit 93-14, as approved in Boulder County Resolution 94-81, including without limitation the extended time referenced in Boulder County Resolution 94-81, page 7, paragraph 15.

2. Grantor may conduct or allow to be conducted any use on the Property which is consistent with and accessory to the preservation of the Property for the uses described in Paragraph 1 above, and which complies with the Land Use Code and the terms of this Easement.

FIRST AMERICAN

HERITAGE TITLE

KC 39946 B02

9/11

3. The County shall have the right to enter upon the Property with prior reasonable notice, to inspect for violations of the terms and covenants of this Easement and take appropriate legal action to remove or eliminate any conditions or operations which violate the same. No further right of access entry or possession is conveyed hereby. If County requires temporary access through the mine site, County shall comply with Grantor's safety guidelines and requirements for such temporary access.

4. This Easement is granted in perpetuity, except that this Easement shall immediately terminate if the County does not approve the platting of the 11 development rights as a block and vest the Grantor's right to build 11 single family residences on the Property as provided in Paragraph 22 of the Purchase Agreement. The covenants as set forth herein shall run with the land and be binding upon all parties thereto, their heirs, successors, representatives, and assigns, and all persons who may hereafter acquire an interest in the Property. It is intended that this Easement and any other interests created under this Easement vest immediately. Pursuant to Colorado Revised Statute Section 15-11-1102(1)(a) and (b), if any nonvested property interests conveyed to the Grantee under this Easement do not vest within 90 years after the date of execution of this Easement by both parties, said interests shall automatically be severed from the remainder of the interests conveyed herein and shall automatically terminate.

5. If circumstances arise under which an amendment would be appropriate, Grantor and Grantee may jointly amend the Easement. Any such amendment shall be consistent with the purposes of the Easement, shall not affect its perpetual duration, shall not permit additional developments or improvements currently prohibited by the Easement, and shall not impair any of the significant conservation values of the Property Any such amendment shall be recorded in the official records of Boulder County, Colorado.

In giving this Easement, the Grantor has considered the possibility that uses prohibited by the terms of this Easement may become more economically valuable than permitted uses and that neighboring properties may in the future be put entirely to such prohibited uses. It is the intent of both the Grantor and the Grantee that any such changes shall not be deemed circumstances justifying the termination or extinguishment of this Easement. In addition, the inability of the Grantor, or the Grantor' heirs, successors or assigns, to conduct or implement any or all of the uses permitted under this Easement, or the unprofitability of doing so, shall not impair the validity of this Easement or be considered grounds for its termination or extinguishment.

IN WITNESS WHEREOF, Grantor has caused its name to be hereunto subscribed the day and year first above written.

GRANTOR:

CEMEX, INC., a Louisiana corporation

By: _____
Nolan Fry, Director of Real Estate

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STATE OF COLORADO)
)ss
COUNTY OF BOULDER)

The foregoing instrument was acknowledged before me this 15th day of July, 2002 by Nolan E Fry, the Director of Real Estate of Cemex, Inc., a Louisiana corporation.

Witness my hand and official seal.

My commission expires: 5/9/06

Diane C. David
Notary Public

DIANE C. DAVID
NOTARY PUBLIC
STATE OF COLORADO
My Commission Expires 5/9/06

IN WITNESS AND ACCEPTANCE WHEREOF, the County has caused its name to be hereunto subscribed the day and year first above written.

Paul D. Danish, Vice Chair
Board of County Commissioners of the County of Boulder, Colorado

ATTEST:

Clerk to the Board

SEAL OF BOULDER COUNTY, COLORADO
Boulder County

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EXHIBIT A
TO CONSERVATION EASEMENT IN GROSS
LEGAL DESCRIPTION FOR THE PROPERTY

The Property includes the parcels identified as the Cemex Property Development Parcel North and Boulder County South Parcel A, as legally described on the following pages:

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CEMEX PROPERTY
DEVELOPMENT PARCEL NORTH

A tract of land located in the S1/2 of Section 16 and in the N1/2 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the S1/4 Corner of Section 9, T3N, R70W of the 6th P.M., from which the Southeast Corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the South line of the SW1/4 of said Section 9; thence S00°00'00"W, 3490.76 feet to the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder Ccunty, Colorado and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado;

Thence S00°01'40"W, 621.14 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northeast Corner thereof;

Thence S00°01'40"W, 1194.78 feet along the East line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the approximate Southerly bank of the Supply Ditch and the Northerly line of that tract of land as described in Warranty Deed recorded in Book 584 at Page 231 of the records of Boulder County, Colorado;

Thence S34°07'46"E, 151.34 feet along the approximate Southerly bank of said Supply Ditch and along the Northerly line of that tract of land as described in said Book 584 at Page 231 to the South line of the SW1/4 of said Section 16;

Thence S89°58'20"E, 25.37 feet along the South line of the SW1/4 of said Section 16 to the West line of the East 30 acres of the NW1/4 of said Section 21;
Thence S00°27'46"W, 2102.34 feet along the West line of the East 30 acres of the NW1/4 of said Section 21 to the Northeasterly right-of-way line of Colorado State Highway No. 66;

Thence S63°32'37"E, 497.42 feet along the Northeasterly right-of-way line of said Colorado State Highway No. 66 to the Northwesterly line of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 101.97 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the North-South Centerline of said Section 21;

Thence N00°27'46"E, 645.55 feet along the North-South Centerline of said Section 21 to the South line of the North 265.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21;

Thence S89°46'54"E, 330.00 feet along the South line of the North 265.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21 to the East line of the West 330.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21;

Thence N00°27'46"E, 265.00 feet along the East line of the West 330.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21 to the South line of the NW1/4 of the NE1/4 of said Section 21;

Thence S89°46'52"E, 328.67 feet along the South line of the NW1/4 of the NE1/4 of said Section 21 to the Southeast Corner of the W1/2 of the NW1/4 of the NE1/4 of said Section 21;

Thence S89°46'54"E, 658.67 feet along the South line of the NW1/4 of the NE1/4 of said Section 21 to the Southeast Corner thereof;

Thence N00°29'57"E, 1314.38 feet along the East line of the NW1/4 of the NE1/4 of said Section 21 to the South line of Boulder County Road No. 47 as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607221 of the records of Boulder County, Colorado;

Thence N89°37'04"W, 45.93 feet along the Southerly line of said Boulder County Road No. 47 to the Southwest Corner thereof;

Thence Northeasterly, 160.80 feet along the Westerly line of said Boulder County Road No. 47 and along the arc of a curve concave to the Southeast to the West line of the SE1/4 of the SE1/4 of said Section 21, said arc having a radius of 815.00 feet, a central angle of 11°18'16" and being subtended by a chord that bears N17°11'48"E, 160.54 feet;

Thence N00°34'45"E, 1200.64 feet along the West line of the SE1/4 of the SE1/4 of said Section 16 to the Northwest Corner thereof;

Thence N00°34'45"E, 600.00 feet along the West line extended Northerly of the SE1/4 of the SE1/4 of said Section 16 to a point from which the True Point of Beginning bears N89°58'20"W;

Thence N89°58'20"W, 1377.93 feet to the TRUE POINT OF BEGINNING.

Subject to a right-of-way for Boulder County Road No. 47 (North 53rd Street).

EXCEPTIONS

All that portion of the Highland Ditch located in the W1/2 of the NW1/4 of the NE1/4 of said Section 21.

Area = 153.153 acres, more or less (including the Highland Ditch).

TOGETHER WITH:

COUNTY PROPERTY
BOULDER COUNTY SOUTH PARCEL A

A tract of land located in the SW1/4 of Section 16 and in the NW1/4 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of said Section 16, from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the North line of the NW1/4 of said Section 16; thence S00°00'00"W, 3490.76 feet; thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado, and as described in Quit Claim Deed recorded in Bock 603 at Page 26 of the records of Boulder County, Colorado, and the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 2030.68 feet to the West line of the SW1/4 of said Section 16;

Thence S00°28'48"W, 1941.21 feet along the West line of the SW1/4 of said Section 16 to the Southwest Corner of said Section 16;

Thence S00°26'16"W, 216.48 feet along the West line of the NW1/4 of said Section 21;

Thence S89°49'48"E, 399.85 feet;

Thence N00°28'48"E, 1758.67 feet;

Thence S89°58'20"E, 1633.82 feet to the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26;

Thence N00°01'40"E, 400.00 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the TRUE POINT OF BEGINNING.

Area = 34.806 acres, more or less.

Legal Description Prepared By:
William K. Wright, PLS #23529
Drexel, Barrell & Co.
4840 Pearl East Circle, Suite 114
Boulder, CO 80301-2475
(303)442-4338

PURCHASE AGREEMENT, LEASE AND OPTION TO PURCHASE

THIS AGREEMENT (the "Agreement") is made and entered into this 11th day of July, 2002, by and between the **COUNTY OF BOULDER**, a body corporate and politic ("County") and **CEMEX, INC**. a Louisiana corporation ("Seller").

RECITALS

A. Seller owns an interest in approximately 1594 acres of land located in Sections 9, 10, 15, 16 and 21, Township 3 North, Range 70 West, 6th P.M., in Boulder County, legally described on Exhibit A, and in the water rights described on Exhibit B (the "Water Rights"), both attached hereto and by this reference made a part of this Agreement (which land and water rights are hereinafter together called the "Entire Property").

B. Seller's interest in the Entire Property is subject to the Term Deed recorded March 25, 1993, at Reception No. 01276718 in the real property records of Boulder County, Colorado (the "Term Deed"). Pursuant to the Term Deed, Marigold 41, a Colorado partnership ("Marigold") owns a reversionary interest in an undivided 50% interest in the Entire Property. County has contracted to purchase Marigold's interest in the Entire Property.

C. Seller's interest in the Entire Property is also subject to the terms of the Cotenancy Agreement between Marigold and Seller (as successor to Southdown, Inc., a Louisiana corporation) recorded March 25, 1993, at Film 1808, Reception #01276720 of the real property records of Boulder County, Colorado, as amended by the Amendment to Cotenancy Agreement between Seller and Marigold, recorded August 10, 2001, at Reception No. 2186007 of the real property records of Boulder County (as so amended, the "Cotenancy Agreement").

D. Seller's interest in the Entire Property is also subject to the terms of the Settlement Agreement dated March 16, 1993, among Seller, Marigold and other parties (the "Settlement Agreement").

E. Subject to County's purchase of Marigold's interest in the Entire Property, the County desires to purchase from Seller and Seller desires to sell to the County portions of Seller's interest in the Entire Property and to grant County options to purchase the remainder of Seller's interest in the Entire Property. Seller and County intend to partition the Entire Property so that County will own fee simple interest in those parcels identified on Exhibit C as the County Property and legally described on Exhibit D and the appurtenant water rights, and Cemex will own fee simple interest in those parcels identified on Exhibit C as the Cemex Property and legally described on Exhibit E, and the appurtenant water rights. Exhibits C, D, and E are attached hereto and by this reference made a part of this Agreement. At the completion of the partition, County and Cemex shall each own approximately 800 acres of the Entire

Property and the cotenancy agreement shall be terminated. The general boundaries of the County Property shall be lands east of County Road 47 and north of the Supply Ditch, lands north of the seismic station, and a large portion of the western valley. Cemex will own the entrance road, quarry operations center, mine site, the corridor extending east and north of the Peiker-Dickens farm, and surrounding property consisting of approximately 613 acres (the "Operations Parcel"), , the portion of the Entire Property located between the Bullock open space and North 53rd Street, consisting of approximately 153 acres (the "Development Parcel "), the corridor extending from the Development Parcel to the west boundary of the Entire Property (the "Annexation Corridor"), and the parcel extending south of Highway 66 and including the conveyor bridge over Highway 66 (the "Plant Entrance Parcel"). The Operations Parcel,the Development Parcel, the Annexation Corridor and the Plant Entrance Parcel collectively constitute the Cemex Property and are identified on Exhibit C and legally described on Exhibit E, attached hereto and by this reference made a part of this Agreement.

F. The County shall also purchase from Cemex 11 development rights appurtenant to the Cemex Property and plat the 11 remaining development rights appurtenant to the Cemex Property as a block on the Development Parcel.

G. Cemex shall grant County options to purchase the Operations Parcel, and the Development Parcel and the appurtenant water rights as provided below.

NOW, THEREFORE, in consideration of the recitals, promises, payments, covenants and undertakings hereinafter set forth, and other good and valuable consideration, which is hereby acknowledged and receipted for, the County and Seller agree as follows, to-wit:

PURCHASE PROVISIONS

1. Contingency. This Agreement is contingent upon the County closing on the purchase of Marigold's interest in the Entire Property simultaneously with or immediately before the closing scheduled between County and Seller described in paragraph 10. (The closing between Cemex and County described in Paragraph 10 is referred to herein as the "Closing"). If County fails to close with Marigold for any reason, this Agreement shall immediately terminate and the parties shall be released from all obligations hereunder.

2. Partition. Immediately following County's purchase of Marigold's interest in the Entire Property, County and Seller shall terminate the Cotenancy Agreement and partition the Entire Property as provided below. Cemex shall convey to County all of Cemex' right, title and interest in and to the County Property, as legally described on Exhibit D, and all appurtenant mineral rights, and water rights. County shall convey to Cemex all of County's right, title and interest in and to the Cemex Property, as legally described on Exhibit E, and all appurtenant mineral rights and water rights. The conveyances to effect the partition shall take place at Closing. Cemex shall combine the Plant Entrance Parcel with Cemex's property south of Highway 66 on one deed. If necessary to satisfy County Land Use regulations, Cemex shall apply for a Boundary Line Adjustment and the County shall process the application in association with the subdivision application described in Paragraph 22.

3. Survey. Cemex shall pay all costs for surveying the County Property and the Cemex Property, including the Operations Parcel, the Development Parcel, the Annexation Corridor, and the Plant Entrance Parcel, and shall provide copies of all survey work to County. Said survey shall be an exhibit map, based on the existing perimeter survey prepared by Drexel Barrell in 1985 with the interior lines for the division of the parcels platted based on computer information and without monumentation on the ground. Said survey shall be certified to the County, Cemex and the title company and the legal descriptions shall be provided to the County on or before the Closing, said legal descriptions to include a certificate of the acreage for each of the County Property, the Cemex Property, the Operations Parcel, the Development Parcel, the Annexation Corridor, and the Plant Entrance Parcel as determined by the surveyor, and based on the office calculations used to create the exhibit map.

4. Purchase and Transfer of Development Rights. Under current Boulder County Land Use regulations, there are 22 development rights appurtenant to the Cemex Property. County shall purchase eleven (11) development rights from Cemex at $100,000.00 each for a total purchase price of $1,100,000.00. The purchase of development rights shall close simultaneously with the partition and conveyance of property described in Paragraph 2, above. The remaining 11 development rights, 11 [number] of which are appurtenant to the Operations Parcel shall be platted as a block on the Development Parcel, as provided in Paragraph 22. The 11 development rights shall be available for residential units clustered on that portion of the Development Parcel located between the Bullock open space and N. 53rd Street, as generally shown on Exhibit C. To effect the transfer, the Operations Parcel shall be restricted by a Conservation Easement which will limit its use to agricultural, limestone mining, reclamation, wildlife and livestock purposes. At the Closing, Seller shall convey to County a conservation easement in gross over the northern 385 acres of the Operations Parcel lying north of an east-west line bisecting the parcel. The conservation easement shall be in the form of Exhibit F-1 , attached hereto and by this reference made a part of this Agreement. When the 11 development rights are vested in accordance with Paragraph 22, Seller shall convey to County a conservation easement in gross over the entire Operations Parcel, in the form of Exhibit F-1.

5. Modification of Existing Agreements. At Closing, Seller and County shall execute mutual releases relating to the Settlement Agreement. Seller shall release County from the covenants contained in Sections 5.2, 5.3 and 5.4 of the Settlement Agreement, and to the extent any of these covenants have terminated due to the commencement of mining, confirm and ratify that such covenants no longer bind the County. Seller shall also release County from the covenants of Section 5.6(d) which relate to the Rabbit Mountain property the County previously purchased from Michael Dollaghan. County shall release Seller from the covenants of Section 5.6 of the Settlement Agreement. The parties shall also release each other from all remaining terms of the Term Deed, to the extent they continue in effect. In addition, at Closing, Seller shall waive any and all rights it may have to challenge the County's purchase of Marigold's interest in the Entire Property and Seller's interest in the Entire Property.

6. Earnest Money and Purchase Price. Within two business days after execution of this Agreement by the Board of County Commissioners of Boulder County, the County shall pay to the title company described in paragraph 7 below, ONE HUNDRED THOUSAND DOLLARS ($100,000.00) as Earnest Money for the transactions described in this Agreement. The Earnest Money shall be applied to the purchase price for the development rights, and shall also secure the options described below. The purchase price for the development rights shall be payable in cash, certified funds or county warrant at Closing. If County fails to close on this transaction, County shall be obligated to pay Seller the Earnest Money and Seller shall be entitled to retain the Earnest Money as liquidated damages, as provided in Paragraph 11, below.

7. Title Commitment. Seller shall furnish to County a title insurance commitment on the Entire Property, on a form acceptable to the County, from First American Heritage Title Company by Closing for review only and not for issuance of a title policy. Seller shall also furnish to County by the same date, a separate titie insurance commitment, on a form acceptable to the County, to insure the County's ownership of the County Property and insuring the Conservation Easements and the options over the Operations Parcel and the Development Parcel in the amount of $1,500,000.00. Seller shall be solely responsible for the cost of said titie commitment and the County policy. Seller may order a title commitment, at its expense, to insure the Seller's ownership of the Cemex Property. County shall be responsible for complying with the requirements of the Seller's commitment to the extent such obligations relate to the County's purchase of Marigold's interest in the Entire Property, and partitioning of such interest to vest title to the Cemex Property in Seller.

8. Permitted Exceptions. Title to the Entire Property shall be merchantable in Seller, and the title commitment shall contain no exceptions other than:

(a) taxes and assessments for the current year, which shall be adjusted and prorated to the date of delivery of the deed; and

(b) exceptions 7-36 on First American Heritage Title Company commitment KC32344B02, dated June 13, 2002, and exceptions 21 and 22 on Exhibit B to the Term Deed.

Seller shall execute an affidavit and take all steps necessary to obtain the deletion of the standard printed exceptions, except that Seller shall have no obligation to obtain the deletion of the standard printed exceptions that are not normally deleted by title companies in Colorado without a sufficient survey.

9. Title Defects. If the title commitment includes additional exceptions which are not acceptable to the County, a written notice of the defects shall be given to the Seller by the County before Closing Seller agrees to attempt to correct such defects at Seller's expense on or before Closing. If Seller has not corrected such defects on or before Closing, the County, at its option, may complete the transaction notwithstanding the defects or may, upon notice to Seller in recordable form, declare this Agreement terminated, whereupon all payments made by County to Seller shall be returned to County and both parties shall be released herefrom.

10. Closing. Closing and delivery of the instruments described below shall take place on or before July 15, 2002, at 10:00 a.m. in the office of the title company which provides the titie commitment described above, or at a time and place agreed to by the County and the Seller, provided it shall be concurrent with or immediately following the County's closing with Marigold. Settlement sheets for the closing shall be furnished by Seller to the County by Closing.

(a) At the Closing, the Seller shall deliver to the County the following:

(i) A termination of the Cotenancy Agreement;

(ii) A fully good and sufficiently executed and acknowledged Special Warranty Deed conveying to the County all of Seller's right, title and interest in and to the County Property, free and clear of all liens, tenancies and encumbrances except those set forth in Paragraphs 8(a) and 8(b) of this Agreement;

(iii) Possession of the County Property, free and clear of all existing leases and tenancies except for the Seller's leaseback described below;

(iv) Documents acceptable to County and the title company evidencing the authority of Seller to execute this Agreement and to convey the County Property to the County;

(v) All instruments, certificates, affidavits, and other documents necessary to satisfy the Requirements listed on Schedule B-1 of the title commitment for conveyance of the County Property to the County;

(vi) A current update of the title commitment, at the Seller's expense, showing title subject only to the permitted exceptions determined by Paragraph 8. Seller shall cause the Title Company to issue to County its standard form Owner's Policy of Title Insurance insuring good and marketable title in County as to the Parcel being purchased, with the standard printed exceptions deleted, and subject only to the permitted exceptions as determined in Paragraph 8 of this Agreement;

(vi) A certification that the representations and warranties of Seller pursuant to Paragraph 12 hereof continue to be true and correct as of the closing;

(vii) Seller's closing costs which include Seller's portion of the pro-rated taxes and other assessments affecting the Entire Property, all incidental costs and fees customarily paid by Seller in Boulder County land transactions and one-half of the cost of any closing fee;

(viiii) An affidavit as contemplated by the Internal Revenue Code Section 1445 as to the non-foreign person status of Seller;

(ix) An affidavit as contemplated by Paragraph 15 of a registered professional engineer, if required;

(x) Any other documents required by this Agreement to be delivered by Seller to Title Company or reasonably required by County or Title Company in comection herewith.

(xi) All documents necessary for conveyance of the Water Rights, as set forth in Paragraph 16.

(xii) The Conservation Easement over the Operations Parcel as described in Paragraph 4 of this Agreement.

(xiii) The Release from the terms of the Settlement Agreement and Term Deed described in Paragraph 5 of this Agreement.

(xiv) The Lease described in Paragraph 32 of this Agreement.

(xv) A deed and assignment for the transfer of the 11 development rights to the County.

(b) At closing the County shall deliver to Seller:

(i) The purchase price for the 11 development rights, offset by any closing adjustments and fees.

(ii) County's closing costs which include all incidental costs and fees customarily paid by Purchasers in Boulder County and one-half of the cost of any closing fee;

(iii) The option payment of $700,000.00 described in Paragraph 18.

(iv) A termination of the Cotenancy Agreement;

(v) A fully good and sufficiently executed and acknowledged Special Warranty Deed conveying to Seller all of the County's right, title and interest in and to the Cemex Property, free and clear of all liens, tenancies and encumbrances except those set forth in Paragraphs 8(a) and 8(b) of this Agreement;

(vi) Possession of the Cemex Property, free and clear of all existing leases and tenancies, but subject to the Development Agreement and the terms of Special Use Permit 93-14;

(vii) Documents acceptable to Seller and the title company evidencing the authority of County to execute this Agreement and to convey the Cemex Property to Seller;

(viii) All instruments, certificates, affidavits, and other documents necessary to satisfy the Requirements listed on Schedule B-1 of the title commitment for conveyance of the Cemex Property to Cemex

(ix) Any other documents required by this Agreement to be delivered by County to Title Company or reasonably required by Seller or Title Company in connection herewith.

(x) All documents necessary for conveyance of the Water Rights, as set forth in Paragraph 16.

(xi) The Release from the terms of the Settlement Agreement and Term Deed described in Paragraph 5 of this Agreement.

(xii) The Lease described in Paragraph 32 of this Agreement.

11. Remedies. It is agreed that time is of the essence hereof If the County should fail or default in prompt payment of the purchase price for the development rights or conveyance of the Cemex Property according to the terms and conditions of this Agreement, and such failure is not attributable to any failure by Seller to timely and fully perform all of Seller's obligations hereunder, Seller, at Seller's option, may in writing declare this Agreement terminated and retain all monies paid to Seller as liquidated damages. It is agreed that such payments are the Seller's sole and only remedy for County's failure to perform the obligations of this Agreement. Seller expressly waives the remedies of specific performance and additional damages. If Seller is in default, (1) County may elect to treat this Agreement as terminated, in which case all payments and things of value received hereunder shall be returned to County; or (2) County may elect to treat this Agreement as being in full force and effect, and County shall have the right to an action for specific performance or damages, or both. If this Agreement is terminated pursuant to this paragraph, then all options rights shall also terminate and the parties shall be released from all further obligations to perform under the option provisions set forth below.

12. Representations And Warranties. Seller hereby represents and warrants to the County that to the best of Seller's knowledge as of the date of the signing of this Agreement:

(a) Seller has received no notice of, and has no other knowledge of, any litigation, claim or proceeding, pending or currentiy threatened, which in any manner affects the Entire Property; and

(b) Seller has received no notice, and has no other knowledge of, any current, existing violations of any federal, state or local law, code, ordinance, rule, regulation, or requirement affecting the Entire Property; and

(c) Seller has the full right, power and authority to transfer and convey the County Property and the development rights, to the County as provided in this Agreement and to carry out the Seller's obligations umder this Agreement; and

(d) Each and every document, schedule, item and other information delivered or to be delivered by the Seller to the County hereunder, or made available to the County for inspection hereunder, shall be true, accurate and correct; and

(e) Seller has not entered into any agreements with any private persons or entity or with any governmental or quasi-governmental entity with respect to the Entire Property that may result in liability or expenses to County upon the County's acquisition of all or any portion of the County Property; and

(f) There are no special assessments which now burden or encumber the Entire Property and there are no special assessments currently proposed as to the Entire Property; and

(g) The execution and delivery of this Agreement and the performance of all of the obligations of the Seller hereunder will not result in a breach of or constitute a default under any agreement entered into by the Seller or under any covenant or restriction affecting the Entire Property; and

(h) There are no leases, tenancies or rental agreements relating to the Entire Property, or to any part thereof, which cannot be terminated by Seller on or prior to the date of closing of the transactions provided in the Agreement; and,

(i) Seller has not granted or created, and has no knowledge of any third parties who may have the right to claim or assert any easement, right-of-way or claim of possession not shown by record, whether by grant, prescription, adverse possession or otherwise, as to any part of the Entire Property, except as to the leases described in Subparagraph h, above, if any; and

(j) To the best of Seller's knowledge, no part of the Entire Property has ever been used as a landfill, and no materials have ever been stored or deposited upon the Entire Property which would under any applicable governmental law or regulation require that the Entire Property be treated or materials removed from the Entire Property prior to the use of the Entire Property for any purpose which would be permitted by law but for the existence of said materials on the Entire Property, except that the Entire Property is located within a three-mile radius of the Arapahoe Chemical Landfill, a storage site for low level chemical pollutants, and Seller makes no warranty to County regarding such Arapahoe Chemical Landfill site; and

(k) To the best of Seller's knowledge, no underground storage tank, as that term is defined by federal statute or Colorado statute, is located on the Entire Property which under applicable governmental law or regulation require such underground storage tank to be upgraded, modified, replaced, closed or removed; and

(l) To the best of Seller's knowledge, Seller has not caused or permitted the release of any hazardous substance on the Entire Property. The terms "hazardous substance" and "release" as used herein shall have the same meaning and definition as set forth in Paragraphs (14), (22) and (23), respectively, of Title 42 U.S.C. Section 9601; provided, however, that the term "hazardous substance" as used herein also shall include "hazardous waste", as defined in Paragraph (5) of 42 U.S.C. Section 6903; and,

(m) Seller has received no actual notice from any oil company or related business of any intention to conduct operations for the drilling of any oil or gas well on the Entire Property, whether such notice is in the form of a "thirty-day notice" under the rules of the Oil and Gas Conservation Commission of the State of Colorado, a notice to commence earthwork for drilling operations, a notice for the location of access roads, or any other notice of any kind related to the conduct of operations for such drilling.

(n) Seller has no knowledge of any claims or purported claims of adverse possession pertaining to the Entire Property and/or any land adjacent thereto by reason of the location of any exterior boundary fence lines, or otherwise.

The Seller shall, at the time of closing, certify to the County in writing that the above and foregoing representations and warranties remain true and correct as of the date of closing.

13. Additional Remedies. In addition to all other rights and remedies of the County and the Seller as set forth and provided in this Agreement, the Seller agrees that the County shall have the right to terminate this Agreement and to make the same of no further force and effect:

(a) If the representations and warranties of the Seller as set forth and provided for in Paragraph 12 are not true and correct as of the date of the Closing; or

(b) If the Seller fails or refuses to provide the title insurance commitments and title insurance policies to the County within the time period and in the form and content required under the provisions of this Agreement; or

(c) If any part of the Entire Property is condemned, or if proceedings for such condemnation are commenced or notice of condemnation is received by Seller from a condemning authority prior to the date of closing on any part of the Entire Property; or

(d) If any of the standards/requirements provided for in Paragraphs 14 and/or 15 are not satisfied as of the date of Closing.

If the County terminates this Agreement pursuant to this provision, all sums paid hereunder by County to Seller shall be returned to County.

14. Inspection and Environmental Audit. At all reasonable times during the term of this Agreement, upon reasonable advance notice to Seller, County shall have access to the Entire Property for the purpose of conducting tests, studies and surveys thereon, including, without

limitation, environmental audits, soil and subsoil tests. County may have performed at its option and/or expense the following inspections:

(a) Soil and percolation tests;

(b) Inspections for asbestos, PCB's, underground tanks, or other hazardous substances;

(c) Any other tests and/or studies deemed necessary by County which do not materially damage the Property.

County has received an environmental assessment from Apex Consulting Services, dated July 10, 2002 (the "Phase I environmental audit"), and provided a copy to Seller. County shall promptly provide to Seller copies of the results of all additional tests, inspections, and studies following the receipt of same by County. Any inspections conducted by County shall not mitigate or otherwise affect Seller's representations and warranties, above. The Phase I environmental audit is satisfactory to the County. If there is no change in the condition of the Entire Property as of Closing, and no new environmental matters become apparent to the County before Closing, then County shall not object to the environmental condition of the Entire Property. If County's environmental investigations reveal any environmental matters that are not disclosed in the Phase I environmental audit, County shall give Seller written notice of the environmental defects by Closing. Seller agrees to attempt to correct such defects at Seller's expense by Closing. If Seller has not corrected such defects by Closing the County, at its option, may complete the transaction notwithstanding the defects or may, upon notice to Seller in recordable form, declare this Agreement terminated, whereupon all payments made by County to Seller shall be returned to County, and both parties released herefrom.

15. Underground Storage Tanks. If any underground tanks are located on the County Property, said tanks shall be removed by Seller at Seller's expense prior to the Closing. If any underground tanks are located on the Cemex Property, said tanks shall be removed by Seller at Seller's expense prior to the Closing on the County's option described below. If any underground tanks are removed prior to the closings pursuant to this Paragraph, Seller shall provide at the time of closing of each Parcel an affidavit, subscribed and sworn to by a registered professional engineer licensed in the State of Colorado and approved by the County, stating that the Property meets all applicable federal, state and local laws, regulations, and standards regarding such sites, including without limitation, the following standards:

(a) No more than 75 parts per million total petroleum hydrocarbons in the soil using an analytical test/s which are standard in the industry for the detection of specific compound mentioned herein.

(b) No more than 10 parts per million total petroleum hydrocarbons in ground water, other than drinking water, using an analytical test/s which are standard in the industry for the detection of the specific compound mentioned herein.

(c) The BTEX (benzene, toluene, ethylbenzene and xylene) and the petroleum contaminants in the ground water shall not exceed the maximum contaminant levels for these components in the ground water as set forth by the state water quality provisions in effect at the time of the execution of this Agreement.

16. Conveyance of Water Rights. County and Seller shall exchange properly executed and acknowledged quit claim deeds conveying their respective interests in the water rights appurtenant to the Cemex Property and the County Property, respectively. The appurtenant water rights are the "Kuhn Seep" and any wells, springs, groundwater and nontributary water appurtenant to the Entire

Property. The parties acknowledge that Seller owns units of Northern Colorado Water Conservancy District water that shall be retained by Seller and are not subject to this Agreement. Seller shall also retain the conditional storage right described in Case No. 83CW374, District Court, Water Division No. 1, provided that Seller shall agree that it will not use the County Property for storage pursuant to these rights, including the County Property and, if County exercises its options to purchase, the Operations Parcel and/or the Development Parcel. The parties shall execute appropriate documentation, including if necessary, a water court application to implement this provision. The parties also acknowledge that the Kuhn Seep may be destroyed during the course of Seller's mining and may no longer exist at the completion of mining and reclamation.

OPTION PROVISIONS

17. Grant of Options. hi accordance with the terms and conditions herein contained, and in consideration of the payment of the Earnest Money identified in Paragraph 6 of this Agreement, the receipt of which is acknowledged, Seller hereby grants to the County two separate options to purchase the (a) Operations Parcel and (b) the Development Parcel (the "Options"). The Operations Parcel and the Development Parcel are sometimes referred to herein as the "Parcels" or the "Option Parcels".

18. Operations Parcel Option Price. At Closing, the County shall make an initial option payment of $700,000 for the Operations Parcel. Thereafter, the County shall pay Seller $50,000 each year on or before July 15, to continue the option until mining and reclamation of the Operations Parcel have been completed. The County shall have no obligation to make $50,000 annual option payments after 2021. If County fails to make the option payment in any given year, Seller shall notify County in writing of the missed payment and County shall have a period of ten (10) business days in which to make the option payment. The option will terminate if County fails to make the annual option payment after Seller's notice and the ten business day period has elapsed. The purchase price for the Operations Parcel shall be $1,500,000.00. The $700,000 initial option payment and the $50,000 annual option payments shall not be applied to the purchase price for the Operations Parcel. The Operations Parcel shall include surface and subsurface water, if any attached or appurtenant to or used in connection with the Operations Parcel and owned by the Seller, but shall exclude the excluded water rights described in Paragraph 16, and shall include any and all minerals appurtenant to the Operations Parcel and owned by the Seller.

19. Operations Parcel, Exercise of Option. Seller shall provide written notice to County within thirty (30) days after it has completed reclamation of the Operations Parcel and the bond for the Operations Parcel has been released by the State Division of Minerals and Geology. County shall have a period of sixty (60) days from receipt of Seller's notice of completion of reclamation to provide written notice to Seller of its exercise of the option to purchase the Operations Parcel. If County has not received notice by December 31, 2024, County shall have the option to proceed with the purchase of the Operations Parcel, within 60 days thereafter, regardless of whether mining and reclamation have been completed.

20. Development Parcel, Option Price. The purchase price for the Development Parcel and the 11 development rights attached as a block to the Development Parcel shall be as provided on Exhibit G, attached hereto and by this reference made a part of this Agreement The Development Parcel shall include surface and subsurface water, if any attached or appurtenant to or used in connection with the Development Parcel and owned by the Seller (excluding the excluded rights described in Paragraph 16), and any and all minerals appurtenant to the Development Parcel and owned by the Seller. The consideration for the option on the Development Parcel and the 11 development rights shall be those payments made by County to Seller at the Closing in July, 2002.

No additional option payments will be required to secure the option for the County. In any year, on or before the earlier of (a) the completion of mining and reclamation and the release of the bond by the State Division of Minerals and Geology or (b) December 31, 2024, the County shall have the option to purchase all or any number of the individual development rights attached to the Development Parcel at the price per unit set forth on Exhibit G. County shall have a period of sixty (60) days from receipt of Seller's notice of completion of reclamation to provide written notice to Seller of its exercise of the option to purchase the development rights and the Development Parcel. If the County purchases all 11 of the development rights, Seller shall convey the Development Parcel to County, at no additional cost, at the completion of mining and reclamation, but no later than December 31, 2024.

21. Development Parcel, Exercise of Option. At each closing of an option purchase of development rights, the Seller shall provide a letter agreement in recordable form, or other similar document, indicating the reduction in the number of development rights attached to the Development Parcel.

22. Platting of Development Rights. Seller shall submit a subdivision or subdivision exemption application to the County within six (6) months after Closing. The application shall provide for the platting of the 11 development rights as a block on a portion of the Development Parcel, and shall also identify the boundaries of the outiot(s) for the Development Parcel. The application shall be in a form sufficient to qualify as a site specific development plan as required for statutory vesting of the development rights. The platting process shall be subject to approval by the Board of County Commissioners, based on the Boulder County Land Use Code as it would apply to any other Development Block with a specified number of development rights approved but not platted as lots through an initial PUD application. Nothing in this Agreement shall be construed as guaranteeing Seller, its successors or assigns, the right to 11 development rights, or any greater or lesser number of development rights on the Development Parcel or as vesting such rights in Seller. The number of development rights and vesting to which the Seller is entitled shall be determined by the Board of County Commissioners of Boulder County based on the Boulder County Land Use Code in effect at the time of the submission of the application. If the County has not exercised its option to purchase all of the development rights by the earlier of completion of mining and reclamation or December 31, 2024, or if the development rights have not been otherwise conveyed to the County, then, subject to approval of the subdivision or subdivision exemption plat, Seller shall be entitled to plat 11 residential lots on the Development Parcel, or such lesser number of development rights that have not been conveyed to the County. The final platting of the remaining development rights shall be in the block approved by the County on the subdivision plat or exemption plat, provided the initial plat or exemption plat was approved by the County.

23. Default. If, following exercise of the Options hereunder, the County should default in the payment of said purchase price, or any part thereof, promptly as herein provided for, Seller may declare a forfeiture of this Agreement, all remaining option rights shall terminate and all amounts previously paid by the County pursuant to this Agreement shall be retained by Seller as liquidated damages and not as a penalty

24. Recording of Quit Claim Deed. If the County forfeits its option rights as hereunder set forth, the County will execute promptly and deliver to Seller a quit claim deed or other instrument which will release from the provisions of this Agreement the parcels for which the Options were not exercised.

25. Payments. Payments to Seller by County for the purchase of the Operations Parcel and the Development Parcel shall be in cash, certified funds or County Warrant at closing, subject to closing adjustments.

26. Option Title. As to each Option exercised by the County, Seller agrees to furnish to the County at least 30 days prior to closing a titie insurance commitment in the amount of the purchase price for the particular option parcel, subject to the conditions and requirements set forth in Paragraphs 7-9 of this Agreement. Seller shall have the right to choose the titie insurance company in its reasonable discretion. Seller agrees to pay for the issuance of said commitments and the owner's title insurance policies.

27. Option Representations. The Seller shall, at the time of closing on the Operations Parcel, and/or the Development Parcel, certify to the County in writing that the representations and warranties in Paragraph 12 of this Agreement remain true and correct as of the date of closing with respect to the Option parcel being purchased.

28. Option Remedies. If the representations and warranties of the Seller as set forth and provided in Paragraph 12 of this Agreement are not true and correct as of the date of closing of each Parcel, then the County, at its option and in addition to all other rights and remedies of the County as set forth and provided in this Agreement, may complete the transaction notwithstanding the fact that the representations and warranties are not true and correct as of the date of closing or, the County may, at its option and upon notice to Seller in recordable form, declare this Agreement terminated, whereupon any option payment made by County to Seller for any unpurchased Parcels shall be returned to County, and both parties released herefrom.

29. Option Closings. Closing and delivery of the deed for each of the Option Parcels shall be on a date within ninety (90) days after exercise of the option, or such other time and place as agreed to by the County and the Seller, and Seller and County shall deliver all items required by Paragraph 10 for the Parcel which is being purchased, except for any documents which relate solely to the initial Closing between County and Seller.

30. Annexation Corridor and Conservation Easement Over Remainder of Operations Parcel. Seller shall convey the Annexation Corridor to County, at no additional cost, if the County approves the platting of the 11 development rights as a block and vests the Seller's rights to build 11 single family residences on the Development Parcel, as provided in paragraph 22 above. The conveyance of the Annexation Corridor shall be by Special Warranty Deed and shall be provided to the County immediately following vesting of the 11 development rights. The Annexation Corridor shall become part of the County Property leased back to Seller under Paragraph 31. Seller shall also convey the Annexation Corridor to County, at no additional cost, if Seller fails to file an application for subdivision or subdivision exemption to Boulder County on or before January 15, 2003. In such case the conveyance of the Annexation Corridor to the County shall occur by February 1, 2003. Seller shall also convey to County a conservation easement in gross in the form of Exhibit F-1 over the Operations Parcel (including the northerly 385 acres already subject to a conservation easement) at the same time and subject to the same conditions for conveyance of the Annexation Corridor. If Seller has encumbered the Operations Parcel with any deeds of trust, mortgages or other financial encumbrances, it shall obtain subordination agreements from all secured parties, subordinating their encumbrances to the Conservation Easement on the Operations Parcel.

31. Lease to Seller. County hereby agrees to lease back to Seller, solely for agricultural purposes and for compliance with the mining permits for the Property, and Seller hereby agrees to lease from County the County Property and any improvements thereon. The term of such lease shall commence on the date of Closing and shall expire on the earlier of the completion of mining and reclamation of the Cemex Property or December 31, 2024.

32. Execution of Lease. At Closing, County and Seller shall enter into a written lease agreement in the form of Exhibit H.

33. Real Estate Commission. Any real estate commission due to any broker, upon sale of any portion of the Entire Property shall be paid by Seller. The County represents and warrants to the Seller that the County is not a party to a contract which requires the payment of any real estate commission upon sale of any portion of the Entire Property to the County.

34. Access. To the extent reasonable practical, the County's access to the County Property shall be across existing County roads and along the west side of the County Property through the locked gate which services the Supply Canal. County shall provide reasonable advance notice to Seller if County requires temporary access through the mine site, and County shall comply with Seller's safety guidelines and requirements for such temporary access.

35 Property to Remain Unencumbered. Seller agrees that it will not, so long as this Agreement is in effect, encumber or burden the Entire Property or any part thereof without the consent of County, which consent shall not be unreasonably withheld. Seller further agrees that during the term of this Agreement and through the date of delivery of possession of the County Property to the County, Seller shall not develop the County Property in any manner, including without limitation, constructing any improvements or erecting any structures on the County Property, leasing mineral rights for the County Property, or disturbing the surface of the County Property.

36. Assignment. Seller shall not assign its rights and obligations hereunder unless County first consents thereto in writing, which consent shall not be unreasonably withheld. Seller agrees that so long as County is not in default hereunder, Seller shall not sell or convey any of the Entire Property except to County pursuant to this Agreement.

37. **(i) Condemnation of the Entire Property Which is the Subject of This Agreement**

If another governmental entity or agency, exercises its powers of eminent domain to acquire title to all of the property which County has the right to purchase pursuant to this Agreement, County shall, in such event, release its rights and option to purchase as to the property so condemned and shall make no claim as to the monies paid for the property so taken by the condemning authority. In the event of such a condemnation, the money so paid by the condemning authority for the property so taken shall be and become the sole and separate property of Seller. The provisions of this Paragraph shall not be construed, however, as precluding or preventing County from condemning any property which it is statutorily authorized to condenm.

(ii) Condemnation of a Portion of the Property Which is The Subject of This Agreement

If another governmental entity or agency, exercises its powers of eminent domain to acquire title to a portion of the property which is the subject of this Agreement, the County shall still retain the rights granted under this Agreement as to such of the property described in Exhibit D, the County water rights and the 8 development rights which are not taken by the condemnation and the option rights. In such event, the portion of the property which is not condemned shall remain subject to the terms of the Agreement. The purchase price of the portion of the property remaining subject to this Agreement shall be determined on a per acre basis, and/or a per development rights unit price, notwithstanding the consideration paid to Seller for the part of said Property taken by virtue of said eminent domain proceedings. If no per acre price is set forth the per acre price shall be determined by

dividing the total purchase price for each Parcel by the total acreage of each Parcel to determine a per acre price, and/or a unit/share price.

38. Tax Consequences. Seller acknowledges that neither the County, nor any of its agents or attorneys have made any representations as to the tax treatment to be accorded to this Agreement or to any proceeds thereof by the Internal Revenue Service under the Internal Revenue Code or by the tax officials of the State of Colorado under Colorado tax law.

39. Agreement to Survive Closing. The parties hereto agree that, except for such of the terms, conditions, covenants and agreements hereof which are, by their very nature fully and completely performed upon the closing of the purchase-sale transactions herein provided for, all of the terms, conditions, representations, warranties, covenants and agreements herein set forth and contained shall survive the closing of any purchase-sale transaction herein provided for and shall continue after said closing to be binding upon and inure to the benefit of the parties hereto, their successors and assigns.

40. Entire Agreement. This Agreement, including exhibits, contains the entire contract, understanding, and agreement between the parties and supersedes all prior understandings, warranties, representations, letters of intent, all of which are by execution hereof rendered null and void.

41. Notice. Whenever notice is required to be given hereunder, it shall be in writing and may be sent by facsimile delivered to the party entitled thereto or mailed to the party entitled thereto, by registered or certified mail, return receipt requested. If delivered or sent by facsimile, said notice shall be effective and complete upon delivery or transmission of the facsimile. If mailed, said notice shall be effective and complete as of the date of mailing. Until changed by notice in writing, notice shall be given as follows:

To the County:

The Director
Boulder County Parks and Open Space
P.O. Box 471
Boulder, Colorado 80306
Facsimile number: 303-441-4594

With a copy to:

The Boulder County Attorney's Office
Post Office Box 471
Boulder, Colorado 80306
Facsimile number: 303-441-4794

To the Seller:

Mr. Nolan Fry
Cemex, Inc.
1200 Smith Stteet, Suite 2400
Houston, Texas, 77002
Facsimile number: 713-653-8569

Mr. John Lohr
Cemex, Inc.
5134 Ute Highway (80503)
P.O. Box 529
Lyons, Colorado 80540
Facsimile number: 303-823-2199

With a copy to:

Raymond L. Petros, Jr.
Petros & White
730 17th Street, Suite 820
Denver, Colorado 80202-3518
Facsimile number: 303-825-1983

42. Governing Law. The validity and effect of this Agreement shall be determined in accordance with the laws of the State of Colorado.

43. Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, and all of which shall constitute one and the same agreement. Facsimile signatures shall be acceptable to and binding upon all parties.

44. Recording. This Agreement shall be recorded in the office of the Clerk and Recorder of Boulder County, Colorado.

45. Severability. If any part of this Agreement is found, decreed or held to be void or unenforceable such finding, decree or holding shall not affect the other remaining provisions of this Agreement which shall remain in full force and effect.

[Remainder of page intentionally left blank]

IN WITNESS WHEREOF, Seller and County have executed this Agreement on the dates set forth in their respective acknowledgments intending that this Agreement be effective as of the day and year first above set forth.

COUNTY OF BOULDER,
a body corporate and politic

By: _____
Jana L. Mendez, Chair

By: _____
Paul D. Danish, Vice-Chair

By: _____
Ronald K. Stewart, Commissioner

COUNTY OF BOULDER)
) ss.
STATE OF COLORADO)

The foregoing instrument was acknowledged before me this 11th day of July, 2002, by, Jana L. Mendez, Chair, Paul D. Danish, Vice-Chair Ronald K. Stewart, Commissioner, of the Board of County Commissioners of Boulder County.

(S E A L)

SUSAN M. ASHCRAFT NOTARY PUBLIC STATE OF COLORADO

My Commission Expires 10/17/2005

_____
Notary Public

My Commission Expires 10-17-2005

CEMEX, INC., a Louisiana corporation

BY: _____
JESUS GONZALEZ HERRERA
EXECUTIVE VICE PRES.

STATE OF Texas)
) ss.
COUNTY OF Harris)

The foregoing instrument was acknowledged before me this 9th day of July, 2002, by Jesus Gonzalez Herrera as Executive Vice President of Cemex, Inc. a Louisiana corporation.

Witness my hand and official seal.

(S E A L)

Rhonda Lirette
Notary Public

My Commission Expires: 12/21/02

RHONDA LIRETTE
Notary Public, State of Texas
My Commission Expires
DECEMBER 21, 2002.

EXHIBIT A
Legal Description for the Entire Property

The real property located in Boulder County, Colorado described on Exhibit A to the Term Deed recorded in the real property records of Boulder County, Colorado on March 25, 1993 on Film 1808 as Reception No. 01276718.

Exhibit B
Water Rights

The water rights located in Boulder County, Colorado described on Exhibit B to the Term Deed recorded in the real property records of Boulder County, Colorado on March 25, 1993 on Film 1808 as Reception No. 01276718.

Exhibit C
Parcel Map

EXHIBIT D to PURCHASE AGREEMENT
COUNTY PROPERTY

BOULDER COUNTY EAST PARCEL

A tract of land located in the SWI/4 of Section 10 and in Section 15, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the Southeast Corner of Section 9, T3N, R70W of the 6th P.M., from which the S1/4 Corner of said Section 9 bears N87°27'25"W, 2644.89 feet, thence S51°33'47"E, 4965.84 feet to an Easterly Corner of the Mining Property as described in Exhibit A in Term Deed recorded on Film 1808 as Reception No. 1276718 of the records of Boulder County, Colorado, and the TRUE POINT OF BEGINNING;

Thence S61°53'26"E, 406.88 feet along the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718;

Thence S05°48'06"E, 1111.23 feet along the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718;

Thence S84°11'54"W, 129.78 feet to a point of curve to the right;

Thence Northwesterly, 98.84 feet along the arc of said curve to a point tangent, said arc having a radius of 185.00 feet, a central angle of 30°36'42" and being subtended by a chord that bears N80°29'45"W, 97.67 feet;

Thence N65°11'24"W, 1391.34 feet to a point of curve to the right;

Thence Northwesterly, 275.51 feet along the arc of said curve to a point of reverse curve, said arc having a radius of 680.00 feet, a central angle of 23°12'52" and being subtended by a chord that bears N53°34'58"W, 273.63 feet;

Thence Northwesterly, 1675.78 feet along the arc of said reverse curve to a point tangent, said arc having a radius of 1835.00 feet, a central angle of 52°19'28" and being subtended by a chord that bears N68°08'16"W, 1618.15 feet;

Thence S85°42'00"W, 94.98 feet to the Easterly line of that strip of land as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607222 of the records of Boulder County, Colorado;

The following courses and distances are along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222:

Thence Northwesterly, 346.75 feet along the arc of a curve concave to the Southwest to a point tangent, said arc having a radius of 1110.00 feet, a central angle of 17°53'54" and being subtended by a chord that bears N13°54'53"W, 345.34 feet;

Thence N22°51'50"W, 265.52 feet;

Thence N17°54'30"W, 199.95 feet;

Thence Northeasterly, 261.69 feet along the arc of a curve concave to the Southeast to a point tangent, said arc having a radius of 605.00 feet, a central angle of 24°47'00" and being subtended by a chord that bears N08°19'36"E, 259.66 feet;

Thence N20°43'06"E, 209.12 feet;

Thence N28°01'26"E, 151.19 feet;

Thence N15°19'04"E, 151.14 feet;

Thence N20°43'06"E, 270.81 feet to a point of curve to the left;

Thence Northeasterly, 357.25 feet along the arc of said curve, said arc having a radius of 1600.00 feet, a central

angle of 12°47'35" and being subtended by a chord that bears N14°19'19"E, 356.51 feet;

Thence N14°42'15"E, 139.41 feet;

Thence N00°04'09"W, 305.91 feet to a point of curve to the left;

Thence Northerly, 364.73 feet along the arc of said curve to a point tangent, said arc having a radius of 2120.00 feet, a central angle of 9°51'26" and being subtended by a chord that bears N04°59'52"W, 364.28 feet;

Thence N09°55'35"W, 169.14 feet;

Thence N11°37'57"W, 503.87 feet;

Thence N09°55'35"W, 238.83 feet to a point of curve to the left;

Thence Northwesterly, 608.93 feet along the arc of said curve, said arc having a radius of 2105.00 feet, a central angle of 16°34'28" and being subtended by a chord that bears N18°12'49"W, 606.81 feet;

Thence N23°09'45"W, 152.54 feet;

Thence N38°04'48"W, 43.34 feet;

Thence N39°30'28"W, 1025.58 feet to a point of curve to the right;

Thence Northwesterly, 229.70 feet along the arc of said curve to a point tangent, said arc having a radius of 325.00 feet, a central angle of 40°29'40" and being subtended by a chord that bears N19°15'38"W, 224.95 feet;

Thence N00°59'12"E, 152.37 feet to the North line of the SW1/4 of said Section 10;

Thence leaving the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 S89°10'22"E, 1853.46 feet along the North line of the SW1/4 of said Section 10 to the Northeast Corner of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718;

The following courses and distances are along the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718:

Thence S11°26'41"E, 2699.53 feet;

Thence S33°00'42"E, 1264.40 feet;

Thence S22°20'47"E, 1733.69 feet;

Thence S14°23'36"E, 431.01 feet to the TRUE POINT OF BEGINNING.

TOGETHER WITH:
BOULDER COUNTY WEST PARCEL

A tract of land located in Sections 9 and 16, T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the S1/4 Corner of said Section 9, from which the Southeast Corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the South line of the SW1/4 of said Section 9 to the TRUE POINT OF BEGINNING;

Thence S00°00'00"W, 3490.76 feet;

Thence N89°58'20"W, 2594.09 feet to the West line of the SW1/4 of said Section 16;

Thence N00°28'48"E, 828.94 feet along the West line of the SW1/4 of said Section 16 to the W1/4 Corner of said Section 16;

Thence N00°27'54"E, 2773.47 feet along the West line of the NW1/4 of said Section 16 to the Northwest Corner of said Section 16;

Thence N00°24'30"E, 2618.21 feet along the West line of the SW1/4 of said Section 9 to the W1/4 Corner of said Section 9;

Thence S88°00'00"E, 2146.94 feet along the North line of the SW1/4 of said Section 9 to the Southeasterly line of Tract "B" as described in Special Warranty Deed recorded in Book 903 at Page 221 of the records of Boulder County, Colorado;

Thence N54°07'00"E, 799.62 feet along the Southeasterly line of said Tract "B" to a point of curve to the left;

Thence Northeasterly, 158.24 feet along the Southeasterly line of said Tract "B" and along the arc of said curve to a point tangent, said arc having a radius of 643.00 feet, a central angle of 14°06'00" and being subtended by a chord that bears N47°04'00"E, 157.84 feet;

Thence N40°01'00"E, 464.70 feet along the Southeasterly line of said Tract "B" to a point of curve to the left;

Thence Northeasterly, 140.41 feet along the Southeasterly line of said Tract "B" and along the arc of said curve to a point tangent, said arc having a radius of 356.50 feet, a central angle of 22°34'00" and being subtended by a chord that bears N28°44'00"E, 139.51 feet;

Thence N17°27'00"E, 440.20 feet along the Southeasterly line of said Tract "B" and along the Easterly line of Tract "C" as described in Warranty Deed recorded in Book 905 at Page 250 of the records of Boulder County, Colorado, to a point of curve to the left;

Thence Northwesterly, 302.62 feet along the Easterly line of said Tract "C" and along the arc of said curve to a point tangent, said arc having a radius of 308.70 feet, a central angle of 56°10'00" and being subtended by a chord that bears N10°38'00"W, 290.64 feet;

Thence N38°43'00"W, 73.00 feet along the Northeasterly line of said Tract "C" to the West line of the E1/2 of the W1/2 of the NE1/4 of said Section 9;

Thence N00°09'52"E, 246.96 feet along the West line of the E1/2 of the W1/2 of the NE1/4 of said Section 9 to the Southeasterly line of Tract "D" as described in said Book 905 at Page 250;

Thence N60°20'22"E, 196.38 feet along the Southeasterly line of said Tract "D" to the Southerly line of Tract "B" as described in Warranty Deed recorded on Film 834 as Reception No. 083286 of the records of Boulder County, Colorado;

Thence S81°31'02"E, 913.54 feet along the Southerly line of said Tract "B" and along the Southerly line of Tract "A" as described in said Book 905 at Page 250 to a point of curve to the left;

Thence Easterly, 134.86 feet along the Southerly line of said Tract "A" and along the arc of said curve to a point tangent, said arc having a radius of 643.00 feet, a central angle of 12°01'00" and being subtended by a chord that bears S87°31'32"E, 134.61 feet;

Thence N86°27'58"E, 332.10 feet along the Southerly line of said Tract "A" to a point of curve to the right;

Thence Easterly, 106.38 feet along the Southerly line of said Tract "A" and along the arc of said curve to a point tangent, said arc having a radius of 1325.00 feet, a central angle of 4°36'00" and being subtended by a chord that bears N88°45'58"E, 106.35 feet;

Thence S88°56'02"E, 349.96 feet along the Southerly line of said Tract "A" to the East line of the NE1/4 of said Section 9;

Thence S00°16'51"W, 2146.77 feet along the East line of the NE1/4 of said Section 9 to the E1/4 Corner of said Section 9;

Thence N88°00'00"W, 2749.89 feet along the East-West Centeriine of said Section 9 to a point from which the True Point of Beginning bears S00°00'00"W;

Thence S00°00'00"W, 2642.02 feet to the TRUE POINT OF BEGINNING.

EXCEPTIONS

Tract "B", Tract "C", Tract "F", Tract "G", Tract "I" and Tract "S" conveyed to the United States of America as described in Warranty Deed recorded in Book 903 at Page 221 of the records of Boulder County, Colorado.

Tract "F" and Tract "G" conveyed to the United States of America as described in Warranty Deed recorded in Book 905 at Page 250 of the records of Boulder County, Colorado.

TOGETHER WITH:
BOULDER COUNTY SOUTH PARCEL B

A tract of land located in the SW1/4 of Section 16 and in the NW1/4 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of said Section 16, from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the North line of the NWI/4 of said Section 16; thence S00°00'00"W, 3490.76 feet; thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado, and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado; thence N89°58'20"W, 2030.68 feet to the West line of the SW1/4 of said Section 16; thence S00°28'48"W, 1941.21 feet along the West line of the SW1/4 of said Section 16 to the Southwest Corner of said Section 16; thence S00°26'16"W, 216.48 feet along the West line of the NW1/4 of said Section 21 to the TRUE POINT OF BEGINNING;

Thence S89°49'48"E, 399.85 feet;

Thence N00°28'48"E, 1758.67 feet;

Thence S89°58'20"E, 1633.82 feet to the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26;

Thence S00°01'40"W, 221.14 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northeast Corner thereof;

Thence N89°58'20"W, 996.10 feet along the North line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northwest Corner thereof;

Thence S00°01'40"W, 1320.01 feet along the West line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Southwest Corner thereof and the South line of the SW1/4 of said Section 16;

Thence S89°58'20"E, 137.03 feet along the South line of the SW1/4 of said Section 16 to the approximate Easterly bank of the Supply Ditch and the Westerly line of that tract of land as described in Warranty Deed recorded in Book 584 at Page 231 of the records of Boulder County, Colorado;

Thence S03°09'35"W, 111.70 feet along the approximate Easterly bank of said Supply Ditch and the Westerly line of that tract of land as described in said Book 584 at Page 231;

Thence S17°17'58"E, 243.37 feet along the approximate Easterly bank of said Supply Ditch and the Westerly line of that tract of land as described in said Book 584 at Page 231;

Thence S41°11'48"E, 104.41 feet along the approximate Easterly bank of said Supply Ditch and the Westerly line of that tract of land as described in said Book 584 at Page 231 to the East line of the NW1/4 of the NW1/4 of said Section 21;

Thence S00°27'00"W, 897.37 feet along the East line of the NW1/4 of the NW1/4 of said Section 21 to the Southeast Corner thereof;

Thence N89°49'48"W, 1324.92 feet along the South line of the NW1/4 of the NW1/4 of said Section 21 to the Southwest Corner thereof;

Thence N00°26'16"E, 1100.01 feet along the West line of the NW1/4 of said Section 21 to the TRUE POINT OF BEGINNING.

(W. Wright - S5143-7 - 5464.L.WKW)

Legal Descriptions Prepared By:
William K. Wright, PLS #23529
Drexel, Barrell & Co.
4840 Pearl East Circle, Suite 114
Boulder, CO 80301-2475
(303)442-4338

EXHIBIT E TO PURCHASE AGREEMENT
CEMEX PROPERTY

OPERATIONS PARCEL WEST

A tract of land located in Sections 9, 10, 15 and 16, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the S1/4 Corner of said Section 9 from which the Southeast Corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the South line of the SW1/4 of said Section 9 to the TRUE POINT OF BEGINNING;

Thence S00°00'00"W, 3490.76 feet;

Thence S89°58'20"E, 1377.93 feet to the West line extended Northerly of the SE1/4 of the SE1/4 of said Section 16;

Thence S00°34'45"W, 600.00 feet along the West line extended Northerly of the SE1/4 of the SE1/4 of said Section 16 to the Northwest Corner of the SE1/4 of the SE1/4 of said Section 16;

Thence S89°18'43"E, 1320.20 feet along the North line of the SE1/4 of the SE1/4 of said Section 16 to the Northeast Corner thereof;

Thence S89°45'38"E, 1028.99 feet along the North line of the SW1/4 of the SW1/4 of said Section 15 to the Westerly right-of-way line of Boulder County Road No. 47 as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607221 of the records of Boulder County, Colorado;

The following courses and distances are along the Westerly and Northerly right-of-way line of said Boulder County Road No. 47:

Thence Northerly, 155.73 feet along the arc of a curve concave to the West to a point tangent, said arc having a radius of 480.00 feet, a central angle of 18°35'21" and being subtended by a chord that bears N04°59'58"E, 155.05 feet;

Thence N04°17'43"W, 777.37 feet to a point of curve to the left;

Thence Northwesterly, 324.08 feet along the arc of said curve to a point tangent, said arc having a radius of 1000.00 feet, a central angle of 18°34'07" and being subtended by a chord that bears N13°34'46"W, 322.67 feet;

Thence N22°51'50"W, 269.77 feet to a point of curve to the right;

Thence Northerly, 532.46 feet along the arc of said curve to a point tangent, said arc having a radius of 700.00 feet, a central angle of 43°34'56" and being subtended by a chord that bears N01°04'22"W, 519.71 feet;

Thence N20°43'06"E, 780.37 feet to a point of curve to the left;

Thence Northeasterly, 544.21 feet along the arc of said curve to a point tangent, said arc having a radius of 1500.00 feet, a central angle of 20°47'14" and being subtended by a chord that bears N10°19'29"E, 541.23 feet;

Thence N00°04'09"W, 218.20 feet to a point of curve to the left;

Thence Northerly, 344.09 feet along the arc of said curve to a point tangent, said arc having a radius of 2000.00 feet, a central angle of 09°51'26" and being subtended by a chord that bears N04°59'52"W, 343.66 feet;

Thence N09°55'35"W, 911.61 feet to a point of curve to the left;

Thence Northwesterly, 1032.58 feet along the arc of said curve to a point tangent, said arc having a radius of 2000.00 feet, a central angle of 29°34'53" and being subtended by a chord that bears N24°43'02"W, 1021.15 feet;

Thence N39°30'28"W, 741.51 feet to a point of curve to the right;

Thence Northwesterly, 246.83 feet along the arc of said curve, said arc having a radius of 420.00 feet, a central angle of 33°40'21" and being subtended by a chord that bears N22°40'17"W, 243.29 feet;

Thence S89°37'09"E, 70.50 feet to the Westerly line of that strip of land as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607222 of the records of Boulder County, Colorado;

Thence leaving the Northerly right-of-way line of said Boulder County Road No. 47, Northerly, 49.31 feet along the Westerly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 and along the arc of a curve concave to the East to a point tangent, said arc having a radius of 350.00 feet, a central angle of 8°04'19" and being subtended by a chord that bears N03°02'57"W, 49.27 feet;

Thence N00°59'12"E, 152.30 feet along the West line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 to the East-West Centerline of said Section 10;

Thence N89°10'22"W, 1.43 feet along the East-West Centerline of said Section 10 to the W1/4 Corner of said Section 10;

Thence N88°00'00"W, 2749.89 feet along the East-West Centerline of said Section 9 to a point from which the True Point of Beginning bears S00°00'00"W;

Thence S00°00'00"W, 2642.02 feet to the TRUE POINT OF BEGINNING.

Subject to a right-of-way for Boulder County Road No. 47.

TOGETHER WITH:
OPERATIONS PARCEL EAST

A tract of land located in the S1/2 of Section 15 and in the NE1/4 of Section 22, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the Southeast Corner of Section 9, T3N, R70W of the 6th P.M., from which the S1/4 Corner of said Section 9 bears N87°27'25"W, 2644.89 feet, thence S51°33'47"E, 4965.84 feet to an Easterly Corner of the Mining Property as described in Exhibit A in Term Deed recorded on Film 1808 as Reception No. 1276718 of the records of Boulder County, Colorado; thence S61°53'26"E, 406.88 feet along the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718; thence S05°48'06"E, 1111.23 feet along the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718 to the TRUE POINT OF BEGINNING;

Thence S84°11'54"W, 129.78 feet to a point of curve to the right;

Thence Northwesterly, 98.84 feet along the arc of said curve to a point tangent, said arc having a radius of 185.00 feet, a central angle of 30°36'42" and being subtended by a chord that bears N80°29'45"W, 97.67 feet;

Thence N65°11'24"W, 1391.34 feet to a point of curve to the right;

Thence Northwesterly, 275.51 feet along the arc of said curve to a point of reverse curve, said arc having a radius of 680.00 feet, a central angle of 23°12'52" and being subtended by a chord that bears N53°34'58"W, 273.63 feet;

Thence Northwesterly, 1675.78 feet along the arc of said reverse curve to a point tangent, said arc having a radius of 1835.00 feet, a central angle of 52°19'28" and being subtended by a chord that bears N68°08'16"W, 1618.15 feet;

Thence S85°42'00"W, 94.98 feet to the Easterly line of that strip of land as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607222 of the records of Boulder County, Colorado;

Thence Southerly, 12.99 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 and along the arc of a curve concave to the West to a point tangent, said arc having a radius of 1110.00 feet, a central angle of 00°40'13" and being subtended by a chord that bears S04°37'50"E, 12.99 feet;

Thence S04°17'43"E, 306.87 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222;

Thence S04°24'56"W, 99.04 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222;

Thence S04°17'43"E, 211.84 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222;

Thence S10°02'04"E, 100.00 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222.

Thence S04°17'43"E, 61.25 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 to a point of curve to the right;

Thence Southerly, 163.65 feet along the Easterly line of that strip of land as described in Exhibit A on said Film 2126 as Reception No. 1607222 and along the arc of said curve to the North line of the SW1/4 of the SW1/4 of said Section 15, said arc having a radius of 585.00 feet, a central angle of 16°01'40" and being subtended by a chord that bears S03°43'07"W, 163.11 feet;

Thence S89°45'38"E, 185.33 feet along the North line of the SW1/4 of the SW1/4 of said Section 15 to the Northeast Corner thereof;

Thence S00°31'39"W, 683.81 feet along the East line of the SW1/4 of the SW1/4 of said Section 15 to the approximate Northerly bank of the Supply Ditch;

The following courses and distances are along the approximate Northerly bank of said Supply Ditch:

Thence N74°04'04"E, 86.38 feet;

Thence N61°42'40"E, 199.17 feet;

Thence N21°00'22"E, 276.56 feet;

Thence N45°56'00"E, 75.97 feet;

Thence N75°25'05"E, 176.92 feet;

Thence S27°00'29"E, 306.77 feet;

Thence S64°35'35"E, 357.74 feet;

Thence S79°34'12"E, 142.33 feet;

Thence S63°57'18"E, 182.39 feet;

Thence S50°18'58"E, 112.20 feet;

Thence S71°54'56"E, 168.49 feet;

Thence S55°53'34"E, 189.88 feet;

Thence S75°12'21"E, 184.87 feet;

Thence S66°08'01"E, 196.80 feet;

Thence S57°15'11"E, 312.16 feet;

Thence S37°39'43"E, 194.52 feet;

Thence S39°28'40"E, 236.03 feet to the East line of the NW1/4 of the NE1/4 of said Section 22;

Thence, leaving the approximate Northerly bank of said Supply Ditch, N00°23'09"E, 274.18 feet along the East line of the NW1/4 of the NE1/4 of said Section 22 to the Northeast Corner thereof;

Thence S89°54'18"E, 532.30 feet along the South line of the SE1/4 of said Section 15 to a point from which the Southeast Corner of said Section 15 bears S89°54'18"E, 793.42 feet and the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718;

Thence N05°48'06"W, 943.93 feet along the Easterly line of the Mining Property as described in Exhibit A on said Film 1808 as Reception No. 1276718 to the TRUE POINT OF BEGINNING.

TOGETHER WITH:
DEVELOPMENT PARCEL NORTH

A tract of land located in the S1/2 of Section 16 and in the N1/2 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the S1/4 Corner of Section 9, T3N, R70W of the 6th P.M., from which the Southeast Corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the South line of the SW1/4 of said Section 9; thence S00°00'00"W, 3490.76 feet to the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado;

Thence S00°01'40"W, 621.14 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northeast Corner thereof;

Thence S00°01'40"W, 1194.78 feet along the East line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the approximate Southerly bank of the Supply Ditch and the Northerly line of that tract of land as described in Warranty Deed recorded in Book 584 at Page 231 of the records of Boulder County, Colorado;

Thence S34°07'46"E, 151.34 feet along the approximate Southerly bank of said Supply Ditch and along the Northerly line of that tract of land as described in said Book 584 at Page 231 to the South line of the SW1/4 of said Section 16;

Thence S89°58'20"E, 25.37 feet along the South line of the SW1/4 of said Section 16 to the West line of the East 30 acres of the NW1/4 of said Section 21;

Thence S00°27'46"W, 2102.34 feet along the West line of the East 30 acres of the NW1/4 of said Section 21 to the Northeasterly right-of-way line of Colorado State Highway No. 66;

Thence S63°32'37"E, 497.42 feet along the Northeasterly right-of-way line of said Colorado State Highway No. 66 to the Northwesterly line of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 101.97 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the North-South Centerline of said Section 21;

Thence N00°27'46"E, 645.55 feet along the North-South Centerline of said Section 21 to the South line of the North 265.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21;

Thence S89°46'54"E, 330.00 feet along the South line of the North 265.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21 to the East line of the West 330.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21;

Thence N00°27'46"E, 265.00 feet along the East line of the West 330.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21 to the South line of the NW1/4 of the NE1/4 of said Section 21;

Thence S89°46'52"E, 328.67 feet along the South line of the NW1/4 of the NE1/4 of said Section 21 to the Southeast Corner of the W1/2 of the NW1/4 of the NE1/4 of said Section 21;

Thence S89°46'54"E, 658.67 feet along the South line of the NW1/4 of the NE1/4 of said Section 21 to the Southeast Corner thereof;

Thence N00°29'57"E, 1314.38 feet along the East line of the NW1/4 of the NE1/4 of said Section 21 to the South line of Boulder County Road No. 47 as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607221 of the records of Boulder County, Colorado;

Thence N89°37'04"W, 45.93 feet along the Southerly line of said Boulder County Road No. 47 to the Southwest Corner thereof;

Thence Northeasterly, 160.80 feet along the Westerly line of said Boulder County Road No. 47 and along the arc of a curve concave to the Southeast to the West line of the SE1/4 of the SE1/4 of said Section 21, said arc having a radius of 815.00 feet, a central angle of 11°18'16" and being subtended by a chord that bears N17°11'48"E, 160.54 feet;

Thence N00°34'45"E, 1200.64 feet along the West line of the SE1/4 of the SE1/4 of said Section 16 to the Northwest Corner thereof;

Thence N00°34'45"E, 600.00 feet along the West line extended Northerly of the SE1/4 of the SE1/4 of said Section 16 to a point from which the True Point of Beginning bears N89°58'20"W;

Thence N89°58'20"W, 1377.93 feet to the TRUE POINT OF BEGINNING.

Subject to a right-of-way for Boulder County Road No. 47 (North 53rd Street).

EXCEPTIONS

All that portion of the Highland Ditch located in the W1/2 of the NW1/4 of the NE1/4 of said Section 21.

TOGETHER WITH:
DEVELOPMENT PARCEL SOUTH (PLANT ENTRANCE)

A tract of land located in the NW1/4 of Section 21, T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of Section 16, T3N, R70W of the 6th P.M., from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence S00°29'31"W, 5428.32 feet along the North-South Centerline of said Section 16 to the S1/4 Corner of said Section 16; thence S00°27'46"W, 2646.11 feet along the North-South Centerline of said Section 21 to the Center of said Section 21; thence N89°40'32"W, 494.10 feet along the South line of the NW1/4 of said Section 21 to the West line of the East 30 acres of the NW1/4 of said Section 21 and the TRUE POINT OF BEGINNING;

Thence S89°40'32"E, 279.60 feet along the South line of the NW1/4 of said Section 21 to the Southwest Corner of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 208.38 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the Southwesterly right-of-way line of Colorado State Highway No. 66;

Thence N63°32'37"W, 417.92 feet along the Southwesterly right-of-way line of said Colorado State Highway No. 66 to the West line of the East 30 acres of the NW1/4 of said Section 21;

Thence S00°27'46"W, 368.76 feet along the West line of the East 30 acres of the NW1/4 of said Section 21 to the TRUE POINT OF BEGINNING.

EXCEPTIONS

Right-of-way for the Burlington and Northern Railroad.

TOGETHER WITH:
BOULDER COUNTY SOUTH PARCEL A (ANNEXATION ARM)

A tract of land located in the SW1/4 of Section 16 and in the NW1/4 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of said Section 16, from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the North line of the NW1/4 of said Section 16; thence S00°00'00"W, 3490.76 feet; thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado, and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado, and the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 2030.68 feet to the West line of the SW1/4 of said Section 16;

Thence S00°28'48"W, 1941.21 feet along the West line of the SW1/4 of said Section 16 to the Southwest Corner of said Section 16;

Thence S00°26'16"W, 216.48 feet along the West line of the NW1/4 of said Section 21;

Thence S89°49'48"E, 399.85 feet;

Thence N00°28'48"E, 1758.67 feet;

Thence S89°58'20"E, 1633.82 feet to the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26;

Thence N00°01'40"E, 400.00 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the TRUE POINT OF BEGINNING.

Legal Descriptions Prepared By:
William K. Wright, PLS #23529
Drexel, Barrell & Co.
4840 Pearl East Circle, Suite 114
Boulder, CO 80301-2475
(303)442-4338

EXHIBIT F-1
Conservation Easement in Gross for the Operations Parcel
[This form will be used for the conservation easement over the northerly 385 acres of the Operations Parcel to be conveyed at closing, and for the conservation easement over the entire Operations Parcel to be granted after vesting of the development rights in accordance with Paragraph 22]

CONSERVATION EASEMENT

This Conservation Easement (the "Easement") is granted by Cemex, Inc., a Louisiana corporation ("Grantor") on the _____ day of _____, 2002, to the County of Boulder, a body corporate and politic ("County" or "Grantee").

WHEREAS, Grantor is the owner of the Property legally described on Exhibit A, attached hereto and by this reference made a part of this Easement located in Section(s) _____, Township _____, Range _____ West of the 6th P.M., in the County of Boulder, State of Colorado ; and

WHEREAS, County has purchased or transferred to other properties all of the development rights appurtenant to the Property, pursuant to the Purchase Agreement, Lease and Option dated July ____, 2002 ("the Purchase Agreement");

WHEREAS, Grantor has agreed to preserve the Property in consideration of the County's purchase of the development rights and other terms of the Purchase Agreement through this Conservation Easement; and

WHEREAS, by entering into this Conservation Easement, the Parties intend to preserve the Property as open land for agricultural, Limestone Mining, reclamation, wildlife and livestock purposes in accordance with the Purchase Agreement.

NOW, THEREFORE, for good and valuable consideration, Grantor hereby grants and conveys to the County a Conservation Easement in gross pursuant to Title 38, Article 30.5 of the Colorado Revised Statutes, as amended, over the Property as identified above, subject to the following terms and restrictions:

1. The Property shall be used only for agricultural, Limestone Mining, reclamation, wildlife, and livestock purposes. Limestone Mining and those uses permitted under Special Use Permit 93-14, including reclamation, shall be allowed on the Property until the completion of mining and reclamation under Boulder County Special Use Permit 93-14. Thereafter, no mining shall be allowed on the Property. As used herein, "Limestone" shall include all limestone, limerock, calcareous materials, clay, shale and other materials used in the manufacture of cement in, on or under the Property. As used herein, "Limestone Mining" shall include the right to enter upon and use the Property for the purposes of surveying, exploring for, and defining the extent and quality of all Limestone and all Limestone deposits in, on, or under the Property, and for developing, mining removing, crushing, processing, shipping and marketing such Limestone and Limestone deposits by whatever methods Grantor may deem appropriate; to construct and use such buildings, crushers, processing and conveyor equipment, rods, water facilities, power and communication lines and other improvements on the Property as are required by Grantor for the full use of the Property in connection with Grantor's mining operations; to construct and use workings now or hereafter located on the Property as may be necessary, convenient or suitable for or incidental to any of the rights or privileges of Grantor hereunder; and to use so much of the surface and subsurface of the Property n such manner as may be necessary, convenient, or suitable for or incidental to Grantor's mining operations.

2. Grantor may conduct or allow to be conducted any use on the Property which is consistent with and accessory to the preservation of the Property for the uses described in Paragraph 1 above, and which complies with the Land Use Code and the terms of this Easement.

3. Grantor shall not erect on the Property any residential structures or any other structures which are not accessory to an agricultural use. Agriculturally related buildings and structures may be permitted on the Property if they are not used for residential purposes; they are constructed and used as accessory structures to a single principal use of agriculture; and they are in accordance with the Land Use Code. Mining structures approved in Special Use Permit 93-14 are also permitted on the Property.

4. Grantor shall not divide the Property into two or more parcels, separate interests or interests in common (whether or not such subdivision is permitted under state law) without the express written consent of the Grantee. The Property shall be held as one agricultural unit and, without the express written consent of the Grantee, or by operation of law, Grantor may not convey any portion of the Property as said conveyance would constitute an impermissible division of the Property under this Easement. If the Grantee does approve a division of the Property, or the Property is divided by operation of law, all terms of this Easement shall attach to the land and shall survive any division.

5. The County shall have the right to enter upon the Property with prior reasonable notice, to inspect for violations of the terms and covenants of this Easement and take

appropriate legal action to remove or eliminate any conditions or operations which violate the same. No further right of access entry or possession is conveyed hereby.

6. This Easement is granted in perpetuity and the covenants as set forth herein shall run with the land and be binding upon all parties thereto, their heirs, successors, representatives, and assigns, and all persons who may hereafter acquire an interest in the Property. It is intended that this Easement and any other interests created under this Easement vest immediately. Pursuant to Colorado Revised Statute Section 15-11-1102(1)(a) and (b), if any nonvested property interests conveyed to the Grantee under this Easement do not vest within 90 years after the date of execution of this Easement by both parties, said interests shall automatically be severed from the remainder of the interests conveyed herein and shall automatically terminate.

7. If circumstances arise under which an amendment would be appropriate, Grantor and Grantee may jointly amend the Easement. Any such amendment shall be consistent with the purposes of the Easement, shall not affect its perpetual duration, shall not permit additional developments or improvements currently prohibited by the Easement, and shall not impair any of the significant conservation values of the Property Any such amendment shall be recorded in the official records of Boulder County, Colorado.

In giving this Easement, the Grantor has considered the possibility that uses prohibited by the terms of this Easement may become more economically valuable than permitted uses and that neighboring properties may in the future be put entirely to such prohibited uses. It is the intent of both the Grantor and the Grantee that any such changes shall not be deemed circumstances justifying the termination or extinguishment of this Easement. In addition, the inability of the Grantor, or the Grantor' heirs, successors or assigns, to conduct or implement any or all of the uses permitted under this Easement, or the unprofitability of doing so, shall not impair the validity of this Easement or be considered grounds for its termination or extinguishment.

IN WITNESS WHEREOF, Grantor has caused its name to be hereunto subscribed the day and year first above written.

Grantor

STATE OF COLORADO)
)ss
COUNTY OF BOULDER)

The foregoing instrument was acknowledged before me this ____ day of _____, 2002 ____, by _____.

Witness my hand and official seal.

My commission expires:

Notary Public

IN WITNESS AND ACCEPTANCE WHEREOF, the County has caused its name to be hereunto subscribed the day and year first above written.

Chair, Board of County Commissioners of the
County of Boulder, Colorado

ATTEST:

Clerk to the Board

Exhibit G
Option Schedule for Development Parcel and 11 Development Rights

Year	3.5% Escalator	Escalated Purchase Price at 3.5%*
7/15/2003	$0	$250,000
7/15/2004	8750	258750
7/15/2005	9056	267806
7/15/2006	9373	277179
7/15/2007	9701	286880
7/15/2008	10040	296920
7/15/2009	10392	307312
7/15/2010	10755	318067
7/15/2011	11132	329199
7/15/2012	11521	340720
7/15/2013	11925	352645
7/15/2014	12342	364987
7/15/2015	12774	377761
7/15/2016	13221	390982
7/15/2017	13684	404066
7/15/2018	14142	418208
7/15/2019	14637	432845
7/15/2020	15149	447994
7/15/2021	15679	463673

*Purchase Price per development right per year.

EXHIBIT H
LEASE FOR COUNTY PROPERTY
LEASE AGREEMENT

THIS LEASE AGREEMENT, hereinafter referred to as "Lease" or "Agreement", is made and entered into to be effective as of the __ day of July, 2002, between the **COUNTY OF BOULDER**, a body corporate and politic, hereinafter referred to as "Landlord", and **CEMEX, INC.**, a Louisiana corporation whose address is 5134 Ute Highway, Lyons, CO 80503, hereinafter referred to as "Tenant".

In consideration of the mutual covenants contained herein and other valuable considerations, the parties hereto agree as follows.

1. Lease of Premises

The Landlord and Tenant hereby agree to enter into a Lease for approximately 800 acres of land, hereinafter referred to as the "Leased Premises", more particularly described in Exhibit A, and as shown on the map attached hereto as Exhibit B, which exhibits are made a part hereof by this reference.

2. Term

The term of this Lease shall commence as of the date of this Lease and shall expire upon the completion of reclamation by Tenant of the Leased Premises, and the release of Tenant from all obligations under the permit from the Colorado Division of Minerals and Geology, but no later than December 31, 2024. The term of this Lease shall also be terminable upon 30 days' written notice by Tenant to County, provided that Tenant shall continue to lease the Leased Premises until the Colorado Mined Land Reclamation Board and the County have determined that all reclamation obligations are completed, with respect to the Leased Premises.

3. Rent

During the term of this Lease, Tenant shall pay the Landlord rent in the amount of ONE THOUSAND DOLLARS ($1000.00) per annum, due and payable on the anniversary date of this Lease. If Tenant fails to make the lease payment in any given year, Landlord shall notify Tenant in writing of the missed payment and Tenant shall have a period of ten (10) business days in which to make the lease payment.

Rent is due by 4:30 p.m. on the above dates, either by mail to the Parks and Open Space Department, P.O. Box 471, Boulder, CO 80306 or delivered to 2045 13th Street, Boulder, CO. Tenant shall incur and be charged $5.00 per day as a late fee for payment of rent received after the 10 business day period has elapsed.

4. **Use**

Tenant shall use the Leased Premises solely for agricultural uses and for buffer areas to comply with permit regulations for mining of Tenant's adjacent property and as permitted under Special Use Permit 93-14. It is the intent of the parties that Tenant may count the Leased Premises as property under its control for purposes of meeting permit requirements, including air emission permits, but that Landlord shall direct and manage reclamation and agricultural efforts on the Leased Premises.

5. **Property Management**

Tenant shall manage the Property consistent with the conditions of Boulder County Special Use, Docket SU-93-14. Landlord shall have the right to enter the Leased Premises to engage in agricultural, open space, and short grass prairie reclamation efforts on the Leased Premises, provided that Landlord's management shall not conflict with Tenant's requirements under its mining permits, including without limitation, air emission permits for Tenant's mining operations on its adjacent property. Nothing in this provision shall be construed as the Landlord accepting or assuming Tenant's obligations to reclaim the property under its mining permits.

6. **Removal of Personal Property**

Tenant shall prior to expiration or other termination of the Lease, remove all of Tenant's personal property from the Leased Premises. Tenant agrees that any personal property of Tenant remaining on the Leased Premises after the end of the lease term, or termination of the Lease, shall be deemed abandoned by Tenant and Landlord shall have the right to dispose of any such personal property in any manner Landlord deems appropriate. Tenant will be liable for any disposal costs incurred by Landlord.

7. **Delivery of Possession**

The Tenant shall be entitled to possession of the Leased Premises at 7 a.m. on the date of commencement of the lease term.

8. **Holdover**

If the Tenant holds over after the expiration or termination of this Lease Agreement, Tenant shall occupy said premises on a month-to-month basis at a rental rate of five dollars per acre per annum, unless a new lease for a new term is executed by both parties. As a month-to-month tenant, the Tenant shall be required to give notice of termination not later than the first day of the month at the end of which Tenant desires to terminate tenancy; otherwise Tenant shall be liable for payment of the succeeding month's rent.

9. Insurance Requirements

Tenant shall procure and maintain at Tenant's expense and without cost to County the following types and amounts of insurance.

(a) A Comprehensive General Liability Insurance with minimum limits of $1,000,000.00 combined single limit for each occurrence. This policy shall include the Broad Form Endorsement. The Certificate of Insurance for this coverage must identify if this coverage is on a claims-made form. A letter from Tenant's Insurance Broker must accompany the Certificate of Insurance which outlines the current policy aggregate limits.

(b) If applicable, Automobile Liability Insurance which includes coverage for all owned, non-owned, and hired vehicles with a minimum limit of $1,000,000.00 combined single limit for each occurrence.

(c) If applicable, Workers' Compensation and Employers' Liability Insurance shall cover the obligations of the Tenant in accordance with the provisions of the Workers Compensation Act, as amended, of the State of Colorado.

Tenant shall provide Certificates of Insurance to County in the name of Boulder County demonstrating that the aforementioned insurance requirements have been met at the closing of each Parcel, and annually thereafter. The Comprehensive General Liability Certificate of Insurance shall indicate **THE COUNTY OF BOULDER, STATE OF COLORADO, A BODY CORPORATE AND POLITIC, AS ADDITIONAL NAMED INSURED**. These Certificates of Insurance shall also contain a valid provision or endorsement that these policies may not be canceled, terminated, changed or modified without thirty (30) days' written notice to County.

Certificates of Insurance shall be forwarded to the following designated County representative:

Gene Jackson
Risk Management
P.O. Box 471
Boulder, Colorado 80306

With a copy to: Cat Trujillo
Boulder County Parks &
Open Space Department
P.O. Box 471
Boulder, Colorado 80306

10. Condition of Property

Prior to signing this Agreement, Tenant has inspected or caused to be inspected the Leased Premises and takes the Leased Premises in the condition **AS IS**. No additional representation, statement or warranty, express or implied, has been made by or on behalf of Landlord as to such condition. In no event shall the Landlord be liable for any defect in such Leased Premises or for any limitation on its use for the mining permit and reclamation.

GENERAL PROCEDURAL REQUIREMENTS

11. Tenant Covenants and Responsibilities

a. Tenant shall permit Landlord to inspect the Leased Premises during all reasonable business hours. Landlord shall also have a right of access at all times in the event of an emergency.

b. Tenant shall only allow odors, fumes, vibrations and noise on and from the Leased Premises which are commensurate with the normal conduct of mining operations, and in accordance with the conditions of Docket SU-93-14.

c. All chemical pest control employed on the leased premises shall be in accordance with federal, state or local statute, ordinance, resolution, rule or regulation.

d. Subject to County Rules and Regulations and Boulder County Special Use, Docket SU-93-14 and any future dockets approved by the Board of County Commissioners, Tenant shall burn, clean, dredge and generally maintain in a serviceable condition, all ditches, including wasteways, related to the Leased Premises.

e. Tenant shall properly place, store, use or dispose on the Leased Premises, temporarily or permanently, only those substances legally permitted to be used on the Leased Premises. Such substances shall include fuel products that are hazardous, toxic, dangerous or harmful or which are defined as a hazardous substance by the Comprehensive Environmental Response Compensation and Liability Act ("CERCLA") 42 USC 9601. These substances shall be referred to collectively as "hazardous substances". Tenant shall immediately notify Landlord of all reportable spills, or releases, inspections, correspondence, orders, citations, notices or written allegations of violations of law, fines, response and/or cleanup actions, and adjudicated violations of law, regulations or ordinances which affect the Leased Premises.

f. Except as permitted by Boulder County Special Use, Docket SU-93-14 and any future dockets approved by the Board of County Commissioners, Tenant agrees there shall be no construction of any structure, building or other improvement on the Leased Premises without Landlord's prior written approval.

g. Tenant shall indemnify and save harmless Landlord from and against any and all claims, suits, actions, damages and causes of action arising during the term of this Lease for personal injury, loss of life, or damage to property sustained in, or upon the Leased Premises, and from and against all costs, attorneys fees, expenses and liabilities incurred in and about any such claims, the investigation thereof or the defense of any action or proceedings brought thereon, and from any judgments, orders, decrees, or liens, resultant therefrom by virtue of the use of the Leased Premises. By requiring this right to indemnification, the Landlord in no way waives or intends to waive the limitations on liability which are provided to the Landlord under the Colorado Governmental Immunity Act, C.R.S., Sections 24-10-101, et seq.

h. Tenant agrees that it shall not permit any mechanic's lien to be perfected or remain against the Leased Premises. Tenant shall not directly or indirectly create, incur, assume or suffer to exist any mortgage, pledge, lien, charge, encumbrance or claim on or with respect to the Leased Premises.

i. Tenant expressly shall not assign its Lease interest, nor its Lease obligations herein to any third party, who is not an affiliate of Tenant, without the prior written consent of the County, which shall not be unreasonably withheld. Tenant may assign its Lease interest or Lease obligations herein to an affiliate of Tenant, if Tenant continues as a joint obligor for the Lease, and provides written notice of the assignment to County. Tenant may request that the County consent to the release of Tenant from its obligations under the Lease, upon assignment to an affiliate. The County's consent to such release of Tenant shall not be unreasonably withheld if the affiliate is adequately capitalized to complete the mining and reclamation of the Property, and has posted appropriate bonds with regulatory authorities. Tenant may sublease the Property to Leonard Loukenon, or to another subtenant approved by County, provided that such subleases shall be for no more than one year terms, and the County shall have the annual right to approve or reject extensions.

j. Tenant agrees the Leased Premises shall not be used for any purposes prohibited by the laws of the United States or the State of Colorado or the ordinances or resolutions of the County of Boulder.

k. Tenant agrees to deliver up and surrender to the Landlord, possession of said Leased Premises at the expiration or termination of this Lease, by lapse of time or otherwise.

12. Notices

Any notice from one party to another, required by the terms of this lease Agreement, may be delivered in person to such party (delivery to one of two or more persons named as a party shall be effective notice to all), or shall be delivered by first class mail, postage prepaid, and shall be deemed given one (1) day after the date mailed, addressed to the respective parties as follows:

Landlord: Boulder County Parks and Open Space Department
P. O. Box 471
Boulder, CO 80306
303-441-3950 - phone no. provided for informational purposes only.
303-441-4794 - fax no. provided for informational purposes only

Tenant: Cemex, Inc.

13. **Breach**

The Tenant agrees to observe and perform the conditions and agreements herein set forth to be observed and performed by the Tenant. If Tenant defaults in the payment of rent, or any part thereof, or if the Tenant shall fail to observe or perform any conditions or agreements set forth in this Agreement, Landlord shall give Tenant written notice that Tenant has fifteen (15) days to cure such breach. If Tenant fails to commence within said fifteen-day period, a course of performance to cure such default and thereafter to diligently pursue the work required to correct it, then, and in that event, and as often as the same may happen, it shall be lawful for the Landlord, at its election, to terminate this Lease and to re-enter and repossess itself of said premises, but only with and pursuant to legal proceedings, and to remove therefrom any livestock, crops and any personal property belonging to the Tenant without prejudice to any claim for rent or for the breach of covenants hereof. Tenant agrees to indemnify and hold harmless the Landlord from and against any costs for the removal and storing of livestock and crops elsewhere incurred by the Landlord under the provisions of this paragraph.

14. **Miscellaneous Provisions**

Time is of the essence of this Lease Agreement and of all provisions herein.

This Lease Agreement shall be construed and enforced in accordance with the laws of the State of Colorado.

If any provisions of this Lease Agreement shall be declared invalid or unenforceable, the remainder of the Lease Agreement shall continue in full force and effect.

Notwithstanding anything to the contrary contained herein, Landlord's liability under this Lease Agreement shall be limited to Landlord's interest in the Leased premises.

15. Payment of Attorney's Fees and Costs

In the event of litigation concerning the provisions of this Lease, the prevailing party shall be entitled to recover reasonable attorneys fees from the other party to this Lease.

16. Venue

This Lease shall be governed by the laws of the State of Colorado. Venue for any action brought under this Lease shall be the Boulder District Court.

17. Entire Agreement

This Lease contains the entire agreement of the parties and may not be altered or amended except by mutual written agreement signed by both parties.

18. Counterparts

This Lease may be executed in any number of counterparts, each of which shall be deemed an original, and all of which shall constitute one and the same agreement.

[Remainder of page intentionally left blank]

IN WITNESS WHEREOF, the parties hereto have executed this Lease Agreement on the date set forth opposite their respective signatures.

LANDLORD

COUNTY OF BOULDER, a body corporate and politic

By:
Jana L. Mendez, Chair

ATTEST:

_____
Susan M. Ashcraft
Clerk to the Board

TENANT

CEMEX, INC., a Louisiana corporation

By:_____

ATTEST:_____

EXHIBIT A

(Attached to and forming a part of the Lease Agreement from County of Boulder, as landlord to Cemex, Inc. as tenant)

Description of the Property

Exhibit B

Attached to and forming a part of the Lease Agreement from County of Boulder, as landlord to Cemex, Inc. as tenant)

Map of Leased Premises

Ordar No. KC41100B02 Policy No. J1345481

radius of 815.00 feet, a central angle of 11°18'16" and being subtended by a chord that bears N17°11'48"E, 160.54 feet;

Thence N00°34'45"E, 1200.64 feet along the West line of the SE1/4 of the SE1/4 of said Section 16 to the Northwest Corner thereof;

Thence N00°34'45"E, 600.00 feet along the West line extended Northerly of the SE1/4 of the SE1/4 of said Section 16 to a point from which the True Point of Beginning bears N8958'20"W;

Thence N89°58'20"W, 1377.93 feet to the TRUE POINT OF BEGINNING.

Subject to a right-of-way for Boulder County Road No. 47 (North 53rd Street).

EXCEPTIONS:

All that portion of the Highland Ditch located in the W 1/2 of the NW 1/4 of the NE 1/4 of said Section 21.

TOGETHER WITH:

DEVELOPMENT PARCEL SOUTH: (PLANT ENTRANCE)

A tract of land located in the NW1/4 of Section 21, T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of Section 16, T3N, R70W of the 6th P.M., from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence S00°29'31"W, 5428.32 feet along the North-South Centerline of said Section 16 to the S1/4 Corner of said Section 16; thence S00°27'46"W, 2646.11 feet along the North-South Centerline of said Section 21 to the Center of said Section 21; thence N89°40'32"W, 494.10 feet along the South line of the NW1/4 of said Section 21 to the Wast line of the East 30 acres of the NW1/4 of said Section 21 and the TRUE POINT OF BEGINNING;

Thence S89°40'32"E, 279.60 feet along the South line of the NW1/4 of said Section 21 to the Southwest Corner of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 208.38 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the Southwesterly right-of-way line of Colorado State Highway No. 66;

Thence N63°32'37"W, 417.92 feet along the Southwesterly right-of-way line of said Colorado State Highway No. 66 to tha West line of the East 30 acres of the NW1/4 of said Section 21;

Thence S00°27'46"W, 368.76 feet along the West line of the East 30 acres of

CONTINUED

Order No. KC41100B02 Policy No. J1345481

the NW1/4 of said Section 21 to the TRUE POINT OF BEGINNING.

EXCEPTIONS:

Right-of-way for the Burlington and Northern Railroad.

TOGETHER WITH:

BOULDER COUNTY SOUTH PARCEL A: (ANNEXATION ARM)

A tract of land located in the SW1/4 of Section 16 and in the NW1/4 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of said Section 16, from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the North line of the NW1/4 of said Section 16; thence S00°00'00"W, 3490.76 feet; thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado, and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado, and the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 2030.68 feet to the West line of the SW1/4 of said Section 16;

Thence S00°28'48"W, 1941.21 feet along the West line of the SW1/4 of said Section 16 to the Southwest Corner of said Section 16;

Thence S00°26'16"W, 216.48 feet along the West line of the NW1/4 of said Section 21;

Thence S89°49'48"E, 399.85 feet;

Thence N00°28'48"E, 1758.67 feet;

Thence S89°58'20"E, 1633.82 feet to the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26;

Thence N00°01'40"E, 400.00 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the TRUE POINT OF BEGINNING.
County of Boulder,
State of Colorado.

Appendix 1

Cemex/Longmont Water Tap Agreement

AGREEMENT

THIS AGREEMENT is made and entered into this ___ day of July, 2001, by and between CEMEX, Inc., formerly known as Southdown, Inc., a Louisiana corporation ("CEMEX") and the City of Longmont, Colorado, a home rule City, acting on behalf of its Water/Wastewater Utility enterprise ("LONGMONT").

RECITALS

A. **WHEREAS**, CEMEX is the owner of six properties in Boulder County, Colorado totaling approximately 3,000 acres and commonly referred to as Pieker-Dickens, Harroun Farm, Stone Canyon, Silica Quarry, Plant Site and Dowe Flats, which land is more specifically identified on Exhibit A attached hereto (the "CEMEX Properties");

B. **WHEREAS**, LONGMONT and CEMEX'S predecessor-in-interest entered into that certain Water Service Agreement dated May, 1968, under which LONGMONT agreed to deliver water to satisfy the full requirements of CEMEX's predecessor-in-interest's quarry and cement plant (and related buildings and activities);

C. **WHEREAS**, CEMEX desires to secure water service for all the CEMEX Properties;

D. **WHEREAS**, LONGMONT desires to purchase approximately 86 acres of the Harroun Farm, together with two shares of stock in the Supply Ditch, for purposes of constructing a new water treatment facility.

AGREEMENT

NOW, THEREFORE, in consideration of the covenants and agreements contained in this Agreement, the sufficiency of which are mutually acknowledged, CEMEX and LONGMONT hereby agree as follows:

1. **Incorporation of Recitals**. The recitals set forth above are incorporated in the operative provisions of this Agreement.

2. **Purchase and Sale**. CEMEX agrees to sell to LONGMONT a 56 acre parcel located in the Harroun Farm, exclusive of personal property, for $15,375.00 per acre. CEMEX also agrees to sell an additional adjacent 30 acres of the Harroun Farm to LONGMONT, also exclusive of any personal property, at a price of $16,500.00 per acre. The stated prices per acre and CEMEX'S agreement to sell is contingent upon LONGMONT purchasing both the 56 acre parcel and the 30 additional acres. This sale is also exclusive of all water rights with the exception of two shares of stock in the Supply Ditch, which CEMEX agrees to sell to Longmont for the additional sum of $16,000.00 per share. Such shares shall be free and clear from any liens, encumbrances, or claims of third parties, except for unpaid assessments, if any, for the year 2001. Any unpaid assessments for 2001 shall be paid by CEMEX. Provisions for the purchase and sale of such water are included

in the Purchase Contract. Contemporaneous with the execution of this Agreement, the parties agree to execute a purchase contract for the sale of said 86 acres of the Harroun Farm, as more specifically identified therein. for a purchase price of $1,356,000.00 and in the form attached hereto as Exhibit B (the "Purchase Contract"). This Agreement and all the obligations set forth herein are expressly contingent upon the execution of and obtaining all necessary approvals for the Purchase Contract. In the event the Purchase Contract is not executed and all necessary approvals of the Purchase Contract obtained, this Agreement shall be null and void and the parties are relieved of all obligations hereunder, including without limitation those relating to the sale and purchase of the two shares of the Supply Ditch.

3. Extraterritorial Water Service.

(a) LONGMONT to Provide Treated Water for the Benefit of the CEMEX Properties. LONGMONT agrees to provide CEMEX with potable water service for 56 residential taps (or the industrial or commercial equivalent, subject to LONGMONT's approval, not to be unreasonably withheld) to be used upon any of the CEMEX Properties. The water taps shall not be personal to CEMEX, but rather may be allocated to CEMEX's successors and assigns for use on the CEMEX Properties. LONGMONT agrees to make available potable water service in a phased approach by year as follows:

(i) From the date of closing of the purchase and sale of the subject 86 acres within the Harroun Farm and through January 1, 2005, five (5) taps shall be made available;

(ii) During the period of January 2, 2005 to January 1, 2010, fifteen (15) additional taps shall be made available;

(iii) During the period of January 2, 2010 to January 1, 2015, fifteen (15) additional taps shall be made available;

(iv) During the period of January 2, 2015 to January 1, 2020, fifteen (15) additional taps shall be made available; and

(v) Six (6) additional taps shall be made available by January 2, 2021.

The use of allocated water taps is at CEMEX's sole option and the phasing schedule set forth above designates the earliest date by which the taps will be available for CEMEX's use and said taps shall remain available for CEMEX's use at any time thereafter.

No water taps shall be provided until a building permit has been issued by Boulder County for the structure to be serviced by the water tap.

(b) Tap Fees. CEMEX, or its successors or assigns, will pay associated water tap fees at the time the tap is provided and in accordance with LONGMONT's schedule of tap fees then in place as set forth in the Longmont Municipal Code.

(c) Water Dedication. LONGMONT's Raw Water Requirement Policy requires the transfer of 2 acre feet of water per tap or cash in lieu of water rights. CEMEX, or its successors or assigns, will satisfy this water dedication requirement as follows:

(i) At the time the water taps are provided in accordance with the phased schedule set forth in Section 3(a) above, CEMEX, pursuant to LONGMONT'S Raw Water Requirement Policy, shall satisfy the then applicable water dedication requirements, including payment of cash-in-lieu of water or dedication of water; or in the alternative, and at CEMEX's option, CEMEX may transfer to LONGMONT sufficient variable quota acre foot units of the Colorado - Big Thompson Project ("C-BT units") administered by the Northern Colorado Water Conservancy District ("District") to satisfy LONGMONT'S then-existing raw water dedication requirement. Provided, however, this option shall only be available if at the time of any such transfer LONGMONT is not precluded or restricted by any policies, requirements or other actions of the District from being able to own and fully use the water allotments to which the C-BT units may be entitled. If CEMEX elects this option, CEMEX, within sufficient time so that the transfer of the C-BT units can be duly transferred to LONGMONT at the time water taps are to be provided, shall make application to the District, and take such other actions as may be necessary, for the approval and implementation of the transfer of ownership of the required number of C-BT units to LONGMONT. LONGMONT shall cooperate with CEMEX as necessary in order to obtain District approval of said transfer. If this option is selected by CEMEX, the completion of such transfer to LONGMONT of said units, free from liens or encumbrances (except the obligation to reconvey to CEMEX under the circumstances described below) is a precondition of any obligation of LONGMONT to provide any water service to CEMEX. LONGMONT agrees that upon transfer of any C-BT units to it, that it shall thereafter pay all assessments and other charges

made by the District in regard to said C-BT units, and shall not encumber, sell, transfer or otherwise alienate its ownership interest in said C-BT units until after January 1, 2023, without the written consent of CEMEX. The C-BT units shall be considered by LONGMONT as acceptable water to satisfy the City's then-existing raw water dedication requirement. For this purpose, it is agreed that each C-BT unit shall be considered to yield 0.76 acre feet annually. LONGMONT shall have the right to the full use of the water allotted to the C-BT units during the time of its ownership.

(ii) Within the period from January 1, 2022 through January 1, 2023, LONGMONT agrees that it will, upon written request of CEMEX received during that period of time, transfer the C-BT units back to CEMEX, in accordance with the procedures and requirements of the District for so doing, in exchange for other water rights sufficient to meet the then applicable water dedication requirements under LONGMONT'S Raw Water Requirement Policy, and/or rights to store water in the CEMEX A-Pit storage facility ("A-Pit") that are acceptable to LONGMONT. In determining such acceptability, LONGMONT must be satisfied, in its sole discretion, that the rights to store water are consistent with and fully satisfy its raw water dedication requirements as to all taps then issued or to be issued. LONGMONT shall advise CEMEX in writing as to whether it accepts the proffered rights to store water within 60 days of receipt of the written request to exchange from CEMEX.

(d) Water Quality. At LONGMONT's expense, LONGMONT may conduct water quality testing on water stored in the A-Pit once prior to closing and thereafter, on an annual basis. LONGMONT agrees to give CEMEX reasonable prior notice of such testing, provide CEMEX with any test reports and to keep all such test reports confidential to the extent allowed by law. In conducting testing, LONGMONT shall not interfere with CEMEX's operations in the vicinity of the A-Pit or elsewhere.

4. Main Line or Lateral Extension(s). CEMEX will pay all its costs incurred for engineering design, construction, supervision and the acquisition of all rights-of-way and permits necessary in the construction of any main line or lateral extensions required to provide water service to the CEMEX Properties. LONGMONT will provide reasonable assistance in applying for permits and use its best efforts to assist in acquiring easements necessary for construction of said extension(s). CEMEX shall convey any such public main line extensions, excluding any pressure boosting facilities which are privately owned and maintained, to LONGMONT by good and

sufficient bill of sale free and clear of all liens and encumbrances. Both parties acknowledge that LONGMONT'S water system has limited pressure in the area and that pressure boosting facilities will be required to provide adequate service. All main line extensions to be conveyed to LONGMONT must be constructed according to LONGMONT'S Design Specifications and Construction Standards as adopted by reference in the Longmont Municipal Code then in effect. LONGMONT may at its option, review the design of the pressure boosting facilities prior to their construction, notwithstanding the fact that they are not to be conveyed to LONGMONT but will remain privately owned and maintained. CEMEX shall be permitted cost recovery on a pro rata basis (with the third party paying that portion of the total cost which its number of taps bears to the total number of taps served by such line) from any third party that desires to use any extension paid for by CEMEX.

5. **1041 Permit**. CEMEX agrees to not oppose LONGMONT in its 1041 permitting process; provided, however, that LONGMONT agrees to not adversely affect CEMEX's mining operations in any way by matters addressed or approvals sought in the 1041 Permit. LONGMONT further agrees to promptly submit an amendment or supplement prepared by CEMEX to its 1041 permit application to request Boulder County approval of the approximately 31 acre parcel north of County Road 47 to be retained by CEMEX as a legal buildable parcel.

6. **Right to Terminate**. All obligations of CEMEX under this Agreement are subject to, and conditioned upon, approval of this Agreement and the transactions contemplated hereby by CEMEX's Board of Directors. Absent further extension agreed to by the Parties, his Agreement shall automatically terminate and be of no further force or effect unless CEMEX shall give LONGMONT notice of such approval within forty-five (45) days of execution of this Agreement. CEMEX disclaims any express or implied representation or warranty that CEMEX will be able to obtain such approval from its Board of Directors. In the event that CEMEX's Board of Directors fails to approve this Agreement, this Agreement shall be terminated, and neither party shall have any further liability hereunder.

All obligations of LONGMONT under this Agreement are subject to, and conditioned upon, approval of this Agreement and the transactions contemplated hereby by LONGMONT's Water Board and City Council. Absent further extension agreed to by the Parties, this Agreement shall automatically terminate and be of no further force or effect unless LONGMONT shall give CEMEX notice of such approval within forty-five (45) days of execution of this Agreement. LONGMONT disclaims any express or implied representation or warranty that LONGMONT will be able to obtain such approval from its Water Board and City Council. In the event that either the Water Board or City Council fails to approve this Agreement, this Agreement shall be terminated, and neither party shall have any further liability hereunder.

7. **Waiver of Mining Related Claims**. Blasting, mining, heavy equipment use and other industrial and commercial impacts occur in connection with CEMEX's present and future mining and processing operations which are in the vicinity of the Harroun Farm and could adversely impact LONGMONT's planned water treatment facility. LONGMONT acknowledges and agrees

that it is proceeding with this Agreement with full knowledge of such blasting, mining, heavy equipment use and other industrial and commercial impacts, and, provided that CEMEX conducts such operations, including without limitation, its blasting operations, in full compliance with all applicable permits, LONGMONT hereby waives and shall not later assert claims against CEMEX based on any such activities or future related activities of CEMEX.

To the extent CEMEX retains any mineral rights in the Property to be conveyed to LONGMONT, CEMEX agrees not to pursue extraction of the minerals or permit extraction under a lease of mineral rights to a third party in a manner that disrupts the surface of the Property or interferes with LONGMONT's water treatment facility.

8. May, 1968 Water Service Agreement. Nothing provided for herein shall be construed so as to change, modify, alter or amend any rights or obligations set forth in the May, 1968 Water Service Agreement between LONGMONT and CEMEX's predecessor-in-interest.

9. CEMEX's Representations and Warranties. CEMEX hereby represents and warrants to LONGMONT as follows:

(a) CEMEX represents and warrants to LONGMONT that CEMEX is a corporation duly organized and validly existing under the laws of the State of Louisiana, has duly authorized the execution and performance of this Agreement (subject to the approval of CEMEX's Board of Directors as set forth in paragraph 6 above), and such execution and performance shall not violate any material term of its organizational documents.

(b) Neither the execution of this Agreement nor its consummation constitutes, or will result in, any breach of any of the terms, conditions or provisions of, or is a default under, any indenture, charter, bylaw, mortgage, loan agreement, lien, license, judgment, decree, order, instrument or other verbal or written agreement, covenant or restriction to which Seller is a party or is subject or to which the Property is subject; provided, however, that this representation and warranty shall not extend to any mining permits or special use permits impacting the Property.

(c) The terms hereof constitute a valid enforceable obligation of CEMEX.

10. LONGMONT's Representations and Warranties. LONGMONT hereby represents and warrants to CEMEX as follows:

(a) LONGMONT has the full right and capacity to enter into this Agreement subject to the approval of its Water Board and City Council as set forth in paragraph 6 above.

(b) LONGMONT's entering into this Agreement will not result in a breach under any other agreement or instrument by which LONGMONT is bound, and is not prohibited by, nor will it constitute a violation of, any applicable law, rule, regulation, judgment, court order or decree.

(c) The terms hereof constitute a valid enforceable binding obligation of LONGMONT.

11. Default.

(a) CEMEX's Default. It is an event of default by CEMEX or its successors and assigns, as the case may be, if CEMEX defaults in the performance or observation of any other covenants, agreements or conditions on the part of CEMEX in this Agreement. Default will not occur until LONGMONT shall have given CEMEX thirty (30) days' written notice with the opportunity during such time to cure the default.

(b) LONGMONT's Default. It is an event of default by LONGMONT if it fails or defaults in the performance or observation of the covenants, agreements or conditions on the part of LONGMONT in this Agreement. Default will not occur until CEMEX shall have given LONGMONT thirty (30) days' written notice and LONGMONT is given the opportunity during such time to cure the default. LONGMONT shall use reasonable efforts to promptly restore water service to the CEMEX properties in the case of emergency or operational difficulties.

(c) Remedies Upon Default. Upon the occurrence and continuance of an event of default, the nondefaulting party shall be entitled to enforce the provisions of this Agreement in law or in equity, and relief in the nature of specific performance or damages or both may be awarded, subject to the provisions of the laws of the State of Colorado. The prevailing party in any legal or administrative action shall be entitled to the recovery of its costs and expenses of such action, including without limitation, reasonable attorneys' fees. Nothing in this Agreement shall be construed as a waiver by LONGMONT of rights it may have under the Colorado Governmental Immunity Act.

12. Assignment. CEMEX may assign its rights under this Agreement to any affiliates or successors in interest as a matter of right so long as such assignee uses such rights for residential water taps. CEMEX may also assign its rights under this agreement to any affiliates or successors in interest for the use of a commercial or industrial tap, subject to LONGMONT'S approval, such approval not to be unreasonably withheld. A sufficient basis for LONGMONT'S withholding approval may include a reasonable belief that the assignee will seek taps for a commercial or industrial use that is a nuisance or hazardous. In the event of such an assignment, CEMEX shall be relieved of all further liability hereunder. LONGMONT may also assign its rights hereunder subject

to CEMEX's approval, such approval not to be unreasonably withheld. A sufficient basis for CEMEX's withholding such approval may include a reasonable belief that any assignee is unable to provide water pressure equal to or greater than the City's Water System, water quality that meets the requirements of the Federal Safe Drinking Water Act or water quantity sufficient to meet the needs of the tap. In the event of such assignment, LONGMONT is not relieved from its obligations as set forth herein.

13. **Notice**. All notices required under this Agreement shall be in writing and shall be delivered by overnight delivery or regular mail. All notices shall be considered effective the following day for overnight delivery or 72 hours after deposit in the U.S. mail with the proper address set forth below. Either party by giving notice may change the address to which future notices shall be sent.

Notice to CEMEX:

CEMEX, Inc.
Attn: Nolan Fry, Director of Real Estate
1200 Smith Street, Suite 2400
Houston, TX 77002-4482
and
Richard A. Johnson
Johnson Repucci & Berg LLP
1401 Walnut Street, Suite 500
Boulder, CO 80302

With a copy to:

CEMEX, Inc.
Attn: Greg Strobl, Corporate Counsel
1200 Smith Street, Suite 2400
Houston, TX 77002-4482

Notice to LONGMONT:

Longmont Water/Wastewater Department
Service Center
Attn: Dale Rademacher
1100 South Sherman Street
Longmont, CO 80507

With a copy to:

Longmont City Attorney
408 3rd Avenue
Longmont, Colorado 80501

14. **Miscellaneous**.

(a) Financial Obligations. All LONGMONT's financial obligations under this Agreement are contingent upon appropriation, budgeting, and availability of specific funds to discharge those obligations. Nothing in this Agreement constitutes a debt,

a direct or indirect multiple fiscal year financial obligations, a pledge of LONGMONT's credit, or a payment guarantee by LONGMONT to CEMEX.

(b) Illegality, Invalidity, Unenforceability and Impossibility. If any provision of this Agreement shall prove to be illegal, invalid, unenforceable or impossible to perform, the remainder of this Agreement shall not be affected thereby, and in lieu of each provision of this Agreement that is illegal, invalid, unenforceable or impossible to perform, there shall be added as a part of this Agreement a provision as similar in terms to such illegal, invalid, unenforceable or impossible provision as may be possible and be legal, valid, enforceable and capable of performance.

(c) Force Majeure. Neither party shall be liable for failure to perform hereunder if such failure is the result of Force Majeure. "Force Majeure" shall mean unanticipated causes beyond the reasonable control of a party such as, but not limited to, weather conditions or acts of God.

(d) Entire Agreement. This Agreement, together with the Exhibits attached hereto, contains the entire understanding and agreement between the parties and supersedes any and all prior negotiations, understandings or agreements regarding the subject matter hereof.

(e) Amendments. This Agreement may not be amended nor any rights hereunder waived except by an instrument in writing signed by the parties sought to be charged with such amendment or waiver.

(f) Governing Law and Venue. This Agreement shall be interpreted in accordance with and governed by the laws of the State of Colorado and shall be construed without regard to the party or parties responsible for its preparation and shall be deemed to have been prepared jointly by the parties. The forum for resolution of any and all disputes arising hereunder shall be the District Court in and for Boulder County, State of Colorado.

(g) Waiver. The waiver of any provision or requirement of this Agreement by any party shall not be deemed a waiver of any other provision or requirement.

(h) Paragraph Headings. The paragraph headings herein are inserted for convenience of reference only and do not define, limit or prescribe the scope of this Agreement or any exhibit attached hereto.

(i) Term. The term of this Agreement is perpetual.

(j) Further Execution of Necessary Documents. The parties agree to execute such additional documents as may be reasonably required to implement the terms of this Agreement.

Executed as of the date first set forth above.

BUYER:

CITY OF LONGMONT, COLORADO,
acting on behalf of its Water/Wastewater Utility Enterprise

City Manager

APPROVED AS TO FORM:

Assistant City Attorney

FISCHER BROWN & GUNN, P.C.

William Brown,
Special Water Counsel

APPROVED AS TO FORM AND SUBSTANCE:

Originating Department

SELLER:

CEMEX, INC.

By:_____
Nolan E. Fry, Director of Real Estate

(j) Further Execution of Necessary Documents. The parties agree to execute such additional documents as may be reasonably required to implement the terms of this Agreement.

Executed as of the date first set forth above.

BUYER:

CITY OF LONGMONT, COLORADO,
acting on behalf of its Water/Wastewater Utility Enterprise

_____
City Manager

APPROVED AS TO FORM:

_____
Assistant City Attorney

FISCHER BROWN & GUNN, P.C.

_____
William Brown,
Special Water Counsel

APPROVED AS TO FORM AND SUBSTANCE:

_____
Originating Department

SELLER:

CEMEX, INC.

By:_____
Nolan E. Fry, Director of Real Estate

(j) Further Execution of Necessary Documents. The parties agree to execute such additional documents as may be reasonably required to implement the terms of this Agreement.

Executed as of the date first set forth above.

BUYER:

CITY OF LONGMONT, COLORADO,
acting on behalf of its Water/Wastewater Utility Enterprise

_____
City Manager

APPROVED AS TO FORM:

_____
Assistant City Attorney

FISCHER BROWN & GUNN, P.C.

_____
William Brown,
Special Water Counsel

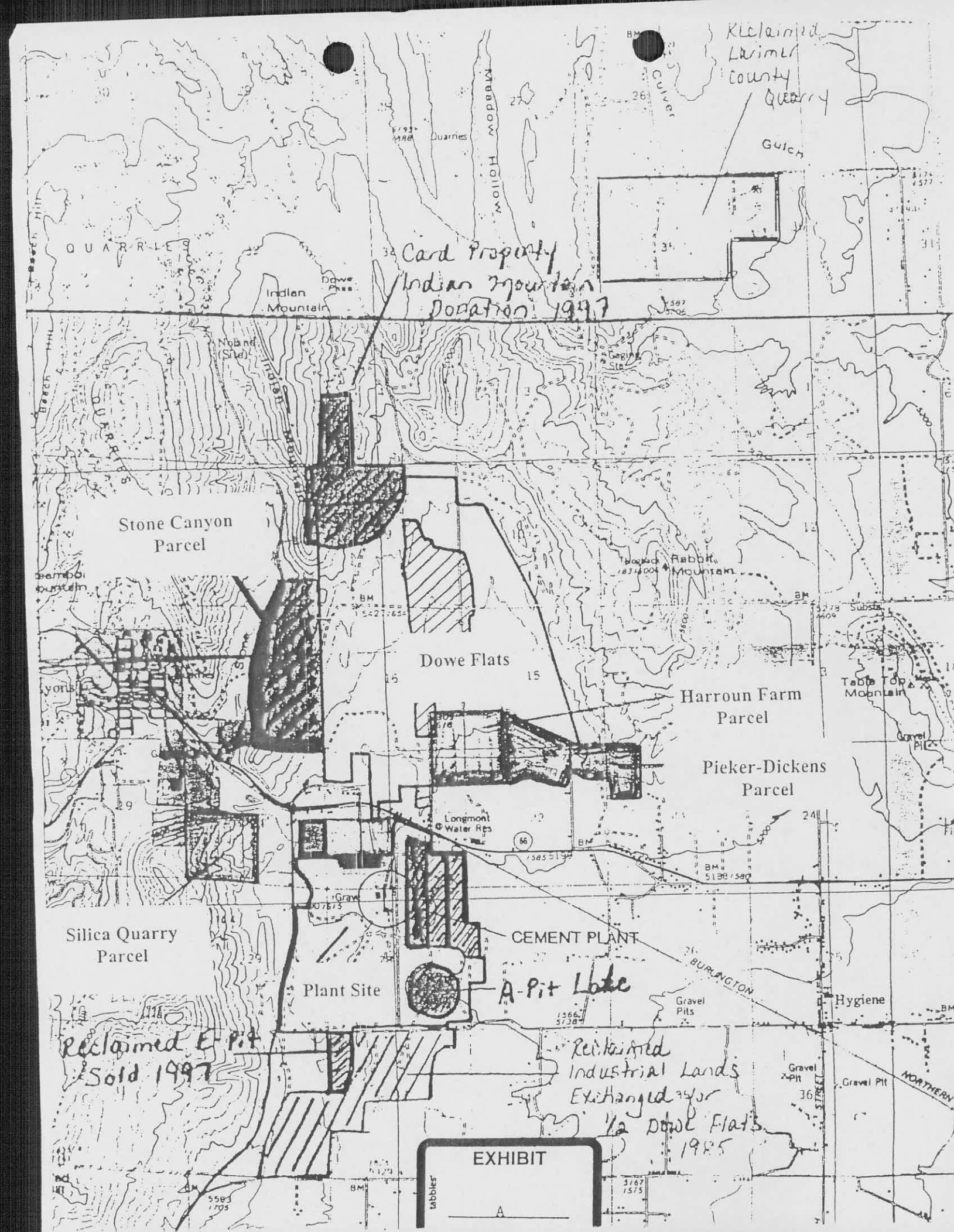
APPROVED AS TO FORM AND SUBSTANCE:

_____
Originating Department

SELLER:

CEMEX, INC.

By: _____
~~Nolen E. Fry, Director of Real Estate~~ Treasurer


Reclaimed Larimer County Quarry
Gulch
Meadow Hollow
Quarries
Card Property
Indian Mountain
Donation 1997
Indian Mountain
Dowe Flats
Stone Canyon Parcel
Harroun Farm Parcel
Pieker-Dickens Parcel
Silica Quarry Parcel
Plant Site
CEMENT PLANT
A-Pit Late
Reclaimed E Pit
Sold 1997
Reclaimed Industrial Lands Exchanged for ½ Dowe Flats 1995
Gravel Pits
Hygiene
Gravel Pit
Table Top Mountain
Longmont Water Res
EXHIBIT
A

Appendix 2

Drainage Report

00152412 06/19/95 09:54 AM REAL ESTATE RECORDS
F2056 CHARLOTTE HOUSTON BOULDER CNTY CO RECORDER

REVOCABLE LICENSE

THIS REVOCABLE LICENSE is entered into as of June 8, 1995 between SOUTHDOWN, INC., a Louisiana corporation d/b/a Southwestern Portland Cement Company ("Licensor") and GARY R. BRENNER and SHIRLEY E. H. BRENNER (collectively "Licensee").

#SHED - located & encroaching onto adjacent

Recitals

A. Licensor has sold to Licensee that certain property described on Exhibit A attached hereto and by this reference incorporated herein (the "Sale Property").

B. Licensor owns the property located to the north of the Sale Property and more particularly described on Exhibit B attached hereto and by this reference incorporated herein (the "Southdown Property").

C. An aluminum shed of about 35 feet by 23 feet (together with any foundation or other related improvements, the "Shed") located on the northern property line of the Sale Property encroaches about 13 feet onto a southern portion of the Southdown Property (the "Shed Encroachment Area").

D. Certain fences (the "Fences") located on the Sale Property extend up to about 25 feet beyond the northern property line of the Sale Property and enclose southern portions of the Southdown Property (the "Fence Encroachment Areas").

E. In connection with the sale of the Sale Property to Licensee, Licensor has agreed to grant Licensee a revocable license to use the Shed Encroachment Area and the Fence Encroachment Areas, on the terms and conditions set forth herein.

Agreement

NOW, THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Licensor and Licensee hereby agree as follows:

1. Revocable License for Shed Encroachment Area. Licensor hereby grants Licensee a revocable license (the "Shed Encroachment License") to use the Shed Encroachment Area for the continued existence, maintenance and use of the Shed until the earlier of (a) the destruction, removal or relocation of the Shed or (b) December 31, 2021.

2. Removal of Shed. If the Shed is destroyed, or substantially destroyed, Licensee shall promptly remove any remaining portion of the Shed from the Shed Encroachment Area and return the Shed Encroachment Area to its pre-existing condition. If the Shed has not sooner been removed from the Shed Encroachment Area, Licensee shall, on or before

063461

RDB

6-2

December 31, 2021, at Licensee's sole expense, remove the Shed from the Shed Encroachment Area and restore the Shed Encroachment Area to its pre-existing condition.

3. Licensor's Right to Revoke Shed Encroachment License. Licensor shall have the right to revoke the Shed Encroachment License at any time upon 30 days' prior notice to Licensee; provided, however, that Licensor shall, promptly after the giving of such notice of revocation, move or replace the Shed at Licensor's sole expense in a location on the Sale Property designated by Licensee. Upon receipt of a notice of revocation, Licensee shall remove all of Licensee's personal property from the Shed and otherwise cooperate with Licensor in connection with the relocation or replacement of the Shed.

4. Revocable License for Fence Encroachment Areas. Licensor hereby grants Licensee a revocable license (the "Fence Encroachment License") to use the Fence Encroachment Areas for access, open space, pedestrian, livestock and agricultural uses and for the existence and maintenance of the Fences until the earlier of (a) the destruction, removal or relocation of the Fences or (b) December 31, 2021.

5. Removal of Fences. If the Fences are destroyed, or substantially destroyed, Licensee shall promptly remove any remaining portions of the Fences from the Fence Encroachment Areas and return the Fence Encroachment Areas to their pre-existing condition. If the Fences have not sooner been removed from the Fence Encroachment Areas, Licensee shall, on or before December 31, 2021, at Licensee's sole expense, remove the Fences and all personal property and improvements from the Fence Encroachment Areas and restore the Fence Encroachment Areas to their pre-existing condition.

6. Licensor's Right to Revoke Fence Encroachment License. Licensor shall have the right to revoke the Fence Encroachment License with respect to all or any portions of the Fence Encroachment Areas at any time, or from time to time, upon 30 days' prior notice to Licensee; provided, however, that Licensor shall, promptly after the giving of such notice of revocation, move or replace the Fences, or portions thereof, at Licensor's sole expense, to the property line of the Sale Property. Upon receipt of a notice of revocation, Licensee shall remove all of Licensee's personal property from the applicable Fence Encroachment Area(s) and otherwise cooperate with Licensor in connection with the relocation or replacement of the Fences.

7. No Improvements. Licensee shall not construct or install any improvements on the Fence Encroachment Area.

8. Indemnity. Licensee shall indemnify, defend and hold Licensor harmless from and against any and all claims, suits, actions, damages, judgments, losses, costs and expenses (including, without limitation, attorneys' fees and disbursements) in any way arising out of or relating to the use of the Fence Encroachment Area or the Shed Encroachment Area by Licensee or Licensee's agents, employees, lessees, permittees, licensees or invitees.

6-19-95

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9. Insurance. Licensee shall, at Licensee's expense, at all times maintain a policy of insurance in form and amounts, and with an insurance company, reasonably acceptable to Licensor insuring the liability of Licensee under this Agreement and naming Licensor as an additional insured. Licensee shall, upon request by Licensor, provide Licensor with a certified copy of such policy or a certificate evidencing such insurance which names Licensor as an additional insured and provides that such policy shall not be canceled or amended without 30 days' prior written notice to Licensor.

10. Enforcement. Each party shall be entitled to all remedies at law or in equity for the enforcement of this Agreement. In any action brought to enforce or contest any provision of this Agreement, or to obtain a declaration of the rights or responsibilities of any party hereunder, the prevailing party shall be entitled to recover all costs and expenses (including, without limitation, reasonable attorneys' fees and disbursements) incurred by such party in connection with such action.

11. Covenants Run with the Land. The terms and provisions of this Revocable License shall run with the land and shall be binding upon and inure to the benefit of Licensee and Licensor and their respective heirs, successors and assigns.

12. Governing Law. This Revocable License shall be governed by and construed and enforced in accordance with the laws of the State of Colorado.

EXECUTED as of the date first set forth above.

LICENSOR

SOUTHDOWN, INC.
a Louisiana corporation d/b/a
Southwestern Portland Cement Company

By _____
John W. Lohr,
Division Vice President

LICENSEE

_____
Gary R. Brenner

_____
Shirley E. H. Brenner

6-4

STATE OF COLORADO)
) ss.
COUNTY OF Boulder)

The foregoing instrument was acknowledged before me this 8th day of June, 1995, by John W. Lohr, as Division Vice President of Southdown, Inc., a Louisiana corporation d/b/a Southwestern Portland Cement Company.

Witness my hand and official seal.

Pamela S. Barnes
Notary Public

My commission expires: 8-23-98

STATE OF COLORADO)
) ss
COUNTY OF Boulder)

The foregoing instrument was acknowledged before me this 8th day of June, 1995, by Gary R. Brenner.

Witness my hand and official seal.

Pamela S. Barnes
Notary Public

My commission expires: 8-23-98

STATE OF COLORADO)
) ss
COUNTY OF Boulder)

The foregoing instrument was acknowledged before me this 8th day of June, 1995, by Shirley E. H. Brenner.

Witness my hand and official seal.

Pamela S. Barnes
Notary Public

My commission expires: 8-23-98

6-5

EXHIBIT A

DESCRIPTION OF THE SALE PROPERTY

ALL THAT PORTION OF THE EAST 1/2 OF THE SOUTHWEST 1/4 OF THE NORTHEAST 1/4 OF SECTION 21, TOWNSHIP 3 NORTH, RANGE 70 WEST OF THE 6TH P.M., IN THE COUNTY OF BOULDER, STATE OF COLORADO, DESCRIBED AS FOLLOWS

BEGINNING AT A POINT ON THE NORTH LINE OF SAID EAST 1/2, 350.00 FEET EAST OF THE NORTHWEST CORNER OF THE EAST 1/2 OF THE SOUTHWEST 1/4 OF THE NORTHEAST 1/4 OF SAID SECTION 21; THENCE WEST 350.00 FEET TO THE SAID NORTHWEST CORNER; THENCE SOUTH ON THE WEST LINE OF SAID EAST 1/2, 750.00 FEET; THENCE EAST 240.00 FEET; THENCE NORTHEAST 725.00 FEET MORE OR LESS TO THE POINT OF BEGINNING, COUNTY OF BOULDER, STATE OF COLORADO

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EXHIBIT B

DESCRIPTION OF THE SOUTHDOWN PROPERTY

The East 1/2 of the Northwest1/4 of the Northeast 1/4 of Section 21, Township 3 North, Range 70 West of the 6th P.M., County of Boulder, State of Colorado.

6.19.95

401524420 06/19/95 09:54 AM REAL ESTATE RECORDS
F2058 CHARLOTTE HOUSTON BOULDER CNTY CO RECORDER

ACCESS EASEMENT

THIS EASEMENT is entered into as of June 8, 1995 between SOUTHDOWN, INC., a Louisiana corporation d/b/a Southwestern Portland Cement Company ("Southdown") and MARIGOLD 41, a Colorado general partnership ("Marigold") (collectively, "Grantor") and GARY R. BRENNER and SHIRLEY E. H. BRENNER (collectively, "Grantee").

Recitals

A. Southdown has sold to Grantee that certain property described on Exhibit A attached hereto and by this reference incorporated herein (the "Benefitted Property").

B. Southdown is the owner of that certain property described on Exhibit B attached hereto and by this reference incorporated herein (the "Southdown Property"), and Marigold owns a reversionary interest in an undivided one-half interest in the Southdown Property, which interest reverts to Marigold at midnight on December 31, 2021, as set forth in that certain Term Deed dated March 16, 1993 from Marigold to Southdown, recorded in the real property records of Boulder County, Colorado on March 25, 1993 under reception number 01276718 (Film No. 1808).

C. Current access to the Sale Property is over an approximately 20 feet wide existing driveway (the "Driveway") between County Road 47 (Vestal Road) and the northeastern corner of the Benefitted Property. The Driveway is located partially on the Southdown Property (about eight (8) feet along and to the north of the southern property line of the Southdown Property, which line is the north line of the East 1/2 of the Southwest 1/4 of the Northeast 1/4 of Section 21, Township 3 North, Range 70 West of the 6th P.M., County of Boulder, State of Colorado) and partially on property adjacent to and south of the Southdown Property.

D. In connection with the sale of the Benefitted Property to Grantee, Grantor has agreed to grant to Grantee a nonexclusive access easement across the portion of the Southdown Property on which the Driveway is located (the "Driveway Area"), and a nonexclusive access easement across a 15 foot wide strip of land along and north of the southern property line of the Southdown Property (which line is the north line of the East 1/2 of the Southwest 1/4 of the Northeast 1/4 of Section 21, Township 3 North, Range 70 West of the 6th P.M., County of Boulder, State of Colorado) between a point on said property line which is 15 feet west of the northeast corner of the Sale Property and Vestal Road (the "Driveway Relocation Area"), on which property Grantee may, at any time prior to December 31, 2021, relocate the Driveway in the event that Grantee is lawfully denied, by a third party pursuant to a court order, the right of access over the Driveway.

Agreement

NOW, THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Grantor and Grantee hereby agree as follows:

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1. Driveway Easement. Grantor hereby sells and conveys to Grantee a nonexclusive easement (the "Driveway Easement") over and across the Driveway Area for vehicular and pedestrian ingress and egress to and from the Benefitted Property.

2. Driveway Relocation Easement. Grantor hereby sells and conveys to Grantee a nonexclusive easement (the "Driveway Relocation Easement") over and across the Driveway Relocation Area, on which property Grantee may, at any time prior to December 31, 2021, relocate the Driveway in the event that Grantee is lawfully denied, by a third party pursuant to a court order, the right of access over the Driveway. If Grantee has not been so denied access and has not relocated the Driveway onto the Driveway Relocation Area on or before December 31, 2021, the Driveway Relocation Easement shall automatically terminate.

3. Maintenance and Repair; Liens. Grantee shall be responsible for the maintenance, repair and improvement of the Driveway. Grantee shall pay for all labor and materials furnished in connection therewith and shall not cause or permit the Driveway Area or the Driveway Relocation Area to be encumbered by any mechanics' or materialmen's liens or any other lien of any kind whatsoever. Grantor shall not be liable for any labor or materials furnished or to be furnished in connection with Grantee's use of the Driveway Easement or the Driveway Relocation Easement and no mechanics' or materialmen's lien or other lien shall attach to or affect the Driveway Area or the Driveway Relocation Area. Grantee shall perform all work in the Driveway Area and the Driveway Relocation Area in a good and workmanlike manner in compliance with all applicable laws, rules, regulations, ordinances and other requirements of governmental authorities.

4. Indemnity. Grantee shall indemnify, defend and hold Grantor harmless from and against any and all claims, suits, actions, damages, judgments, losses, costs and expenses (including, without limitation, attorneys' fees and disbursements) in any way arising out of or relating to the use of the Driveway Easement or the Driveway Relocation Easement by Grantee or Grantee's agents, employees, lessees, permittees, licensees or invitees.

5. Insurance. Grantee shall, at Grantee's expense, at all times maintain a policy of insurance in form and amounts, and with an insurance company, reasonably acceptable to Grantor insuring the liability of Grantee under this Agreement and naming Grantor as an additional insured. Grantee shall, upon request by Grantor, provide Grantor with a certified copy of such policy or a certificate evidencing such insurance which names Grantor as an additional insured and provides that such policy shall not be cancelled or amended without 30 days' prior written notice to Grantor.

5. Grantor's Reserved Rights. Grantor reserves the right to use the Driveway Area and the Driveway Relocation Area for ingress and egress to and from the Southdown Property and for any other purpose that does not unreasonably interfere with Grantee's use of the Driveway Easement or the Driveway Relocation Easement.

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6. Enforcement. Each party shall be entitled to all remedies at law or in equity for the enforcement of this Agreement. In any action brought to enforce or contest any provision of this Agreement, or to obtain a declaration of the rights or responsibilities of any party hereunder, the prevailing party shall be entitled to recover all costs and expenses (including, without limitation, reasonable attorneys' fees and disbursements) incurred by such party in connection with such action.

EXECUTED as of the date first set forth above.

GRANTOR:

SOUTHDOWN, INC.,
a Louisiana corporation d/b/a
Southwestern Portland Cement Company

By: _____
John W. Lohr,
Division Vice President

MARIGOLD 41, a Colorado
General Partnership

By: SOUTHDOWN, INC.,
a Louisiana corporation d/b/a
Southwestern Portland Cement Company,
as attorney in fact

By: _____
John W. Lohr,
Division Vice President,
Southdown, Inc.

GRANTEE:

_____
Gary K. Brenner

_____
Shirley E. H. Brenner

#64110

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7-4

STATE OF COLORADO)
) ss.
COUNTY [illegible])

The foregoing instrument was acknowledged before me this 8th day of June, 1995, by John W. Fohr, as Division Vice President of Southdown, Inc., a Louisiana corporation d/b/a Southwestern Portland Cement Company.

Witness my hand and official seal.

Pamela J. Lamoreaux
Notary Public

My commission expires: 8-23-98

STATE OF COLORADO)
) ss.
COUNTY [illegible])

The foregoing instrument was acknowledged before me this 8th day of June, 1995, by John W. Fohr, as Division Vice President of Southdown, Inc., a Louisiana corporation d/b/a Southwestern Portland Cement Company, as attorney in fact for Marigold 41, a Colorado general partnership.

Witness my hand and official seal.

Pamela J. Lamoreaux
Notary Public

My commission expires: 8-23-98

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STATE OF COLORADO)
) ss.
COUNTY OF [illegible])

The foregoing instrument was acknowledged before me this 8th day of June, 1995, by Gary R. Brenner.

Witness my hand and official seal.

Pamela A. Samora
Notary Public

My commission expires: 8-23-96

STATE OF COLORADO)
) ss.
COUNTY OF [illegible])

The foregoing instrument was acknowledged before me this 8th day of June, 1995, by Shirley E. Brenner.

Witness my hand and official seal.

Pamela A. Samora
Notary Public

My commission expires 8-23-96

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EXHIBIT A

DESCRIPTION OF THE BENEFITTED PROPERTY

ALL THAT PORTION OF THE EAST 1/2 OF THE SOUTHWEST 1/4 OF THE NORTHEAST 1/4 OF SECTION 21, TOWNSHIP 3 NORTH, RANGE 70 WEST OF THE 6TH P.M., IN THE COUNTY OF BOULDER, STATE OF COLORADO, DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT ON THE NORTH LINE OF SAID EAST 1/2, 350.00 FEET EAST OF THE NORTHWEST CORNER OF THE EAST 1/2 OF THE SOUTHWEST 1/4 OF THE NORTHEAST 1/4 OF SAID SECTION 21; THENCE WEST 350.00 FEET TO THE SAID NORTHWEST CORNER; THENCE SOUTH ON THE WEST LINE OF SAID EAST 1/2, 750.00 FEET; THENCE EAST 240.00 FEET; THENCE NORTHEAST 725.00 FEET MORE OR LESS TO THE POINT OF BEGINNING, COUNTY OF BOULDER, STATE OF COLORADO

6 19 95

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EXHIBIT B

DESCRIPTION OF THE SOUTHDOWN PROPERTY

The East 1/2 of the Northwest 1/4 of the Northeast 1/4 of Section 21, Township 3 North, Range 70 West of the 6th P.M., County of Boulder, State of Colorado